

TAB 21



Board of Education Report

File #: Rep-089-25/26, **Version:** 1
In Control: Charter Schools Division

Agenda Date: 10/14/2025

Denial of the Renewal Petition for Learning by Design Charter [PUBLIC HEARING] Charter Schools Division

Brief Description:

(Denial of the Renewal Petition for Learning by Design Charter) Recommends denial of the renewal petition for Learning by Design Charter, located in Board District 1 and Region South, for five (5) years, beginning July 1, 2026, until June 30, 2031, to serve up to 300 students in grades TK-5 in each year of the charter term.

Action Proposed:

Adopt the denial of the renewal charter petition for Learning by Design Charter (“Charter School”), proposed to be located in Board District 1 and Region South, and adoption of the attached Findings of Fact in Support of Denial of the Renewal Charter Petition for Learning by Design Charter. Charter school is requesting to reduce enrollment capacity from 350 to 300 students to align with facility occupancy.

Background:

Learning by Design Charter is a TK-5 school currently serving 106 students on a private facility at 7019 S. Van Ness Ave., Los Angeles, CA, 90047 in Board District 1 and Region South. Learning by Design Charter was originally approved by the LAUSD Board of Education on February 6, 2018. Pursuant to Education Code section 47607.4, all charter schools whose term expires on or between January 1, 2022, and June 30, 2025, inclusive, shall have their term extended by two years, and all charter schools whose term expires on or between January 1, 2024, and June 30, 2027, inclusive, shall have their term extended by one additional year. Thus, by operation of law, the charter term for Learning by Design Charter expires June 30, 2026.

On July 18, 2025, Learning by Design Charter submitted its charter renewal petition application to the Charter Schools Division seeking to continue operations of its independent charter school. The 90-day statutory timeline for Board action on this petition runs through October 16, 2025.

An initial Public Hearing was held on September 16, 2025.

Based on a comprehensive review and assessment of Charter School’s renewal petition application and its record of performance, staff has determined that Charter School has not met the requirements set forth in Education Code sections 47605, 47607 and/or 47607.2 and therefore recommends denial of the renewal petition.

Due Diligence:

Current Learning by Design Charter governing board members completed questionnaires so the District may assess whether any conflicts of interest arise based on the information provided. A confidential due diligence review of the charter school and its governing organization, school leader and financial manager, was performed by the Office of the Inspector General, and to the extent any material concerns were identified by the

Office of the Inspector General, such information was forwarded to District staff for further assessment.

Statutory Framework and Criteria for Renewal:

A charter school must demonstrate that it is eligible for a renewal of its charter by meeting specific renewal criteria outlined in the Charter Schools Act. The renewal criteria prescribed in Education Code sections 47607 and 47607.2 requires a three-pronged analysis:

Criterion 1: The Charter Schools Act provides that renewals are governed by the standards and criteria described in Education Code section 47605 applicable to initial petitions. The first criterion considered in reviewing a renewal petition requires an analysis of the following:

- Whether the petition includes a sound educational program;
- Whether the petition contains a reasonably comprehensive description of the 15 elements required for petitions;
- Whether the petition contains an affirmation of each of the conditions described in Education Code section 47605(e); and
- Whether the charter school is demonstrably unlikely to successfully implement the program set forth in the petition. Education Code section 47607(b) provides that renewals are governed by the standards and criteria described in section 47605 applicable to initial petitions. (The Board may not consider the community impact analysis or District fiscal analysis in determining whether to grant or deny a renewal petition).

Criterion 2: The Board is required to consider the charter school's performance on the California School Dashboard accountability indicators. Education Code sections 47607 and 47607.2 prescribe three-tiers of performance classification in which a charter school falls within one of the following categories - "high," "middle," or "low." The three-tier classification considers a charter school's performance on the California School Dashboard accountability indicators, with an emphasis on the measurements of academic performance.

Criterion 3: Notwithstanding Criterion 1 and 2, the Board must also consider whether the charter school's enrollment or dismissal practices are discriminatory as grounds for nonrenewal. (Ed. Code, § 47607 (e).) Additionally, the Board considers whether the charter school has substantial fiscal or governance factors as grounds for nonrenewal. (Ed. Code, § 47607(e).)

Grounds for Nonrenewal:

Staff of the Charter Schools Division and the Office of the General Counsel reviewed the renewal charter petition application for Learning by Design Charter and have assessed that the renewal petition application does not meet the criteria for approval. As fully discussed in the attached Findings of Fact in Support of Denial of the Renewal Charter Petition for Learning by Design Charter, based on review of the renewal petition and supporting documentation, staff has determined, Petitioner is unlikely to successfully implement the program set forth in the renewal petition ((Ed. Code, § 47605.); the renewal petition does not contain a reasonably comprehensive description of the 15 elements required for petitions; the charter school has not attained measurable increases in academic achievement school wide and for numerically significant student groups served by the charter school (Ed. Code, §§ 47607 and 47607.2); and the charter school has substantial fiscal and governance factors as grounds for nonrenewal. (Ed. Code, § 47607(e).)

Expected Outcomes:

Denial will prevent Charter School from continuing its operations as a charter school under the authority of the LAUSD Board.

Board Options and Consequences:

“Yes” - If the Board adopts the recommendation of denial and the attached Findings of Fact in Support of Denial of the Renewal Charter Petition for Learning by Design Charter, Charter School would not be authorized to continue operating as a charter school under the terms of the authority of the LAUSD Board. Charter School’s current charter expires on June 30, 2026. The petitioners may appeal a denial to Los Angeles County Board of Education. If the petition is approved on appeal by the Los Angeles County Board of Education, Charter School would be authorized by the Los Angeles County Board of Education. If the Los Angeles County Board of Education denies the renewal petition, the petitioners may appeal that denial to the California State Board of Education. If the denial of the renewal petition is reversed by the California State Board of Education, the California State Board of Education shall designate, in consultation with the petitioners, either the LAUSD Board or the Los Angeles County Board of Education as the chartering authority. This Board Report No. 089-25/26, accompanying documents, and transcript of the Board meeting, shall constitute the Board of Education’s adopted written findings of fact for the denial of Charter School renewal petition.

“No” - If the Board does not adopt the recommendation of denial of the charter renewal petition and the attached Findings of Fact in Support of Denial of the Renewal Charter Petition for Learning by Design Charter, and instead takes specific action to approve the renewal charter petition, Charter School would be authorized to continue operating as a charter school under the terms of the approved renewal petition for a five (5) year period beginning July 1, 2026. Within 30 days, the Board requires that the school submit to the Charter Schools Division a revised renewal charter petition that is consistent with and meets all applicable legal and LAUSD requirements, including but not limited to a reasonably comprehensive description of all fifteen required elements and current Federal, State, District Required Language.

Policy Implications:

All provisions in the FSDRL shall be consistent with and be governed by all applicable legal and District policy requirements. To the extent any inconsistency may exist between any provision contained in the FSDRL and any applicable legal and District policy requirement, those applicable legal and District policy requirements shall control and the FSDRL shall be updated accordingly.

Budget Impact:

The Local Control Funding Formula (LCFF) and various other income sources of the District are reduced when current District students enroll at a charter school, and corresponding reduction in expenditures may not occur in such cases. If the Board adopts staff recommendation of denial of the petition, the action will not have a budget impact. If the Board does not adopt the staff denial recommendation and the petition is approved, the impact on the budget will be commensurate with the terms of the specific Special Education Local Plan Area (SELPA) Memorandum of Understanding (MOU) (Option 1, 2, or 3) executed by the charter school and the District, if applicable.

Under Education Code section 47604(d), a chartering authority that grants a charter to a charter school to be operated as or by a nonprofit public benefit corporation is not liable for the debts or obligations of the charter

school or for claims arising from the performance of acts, errors, or omissions by the charter school, if the chartering authority has complied with all oversight responsibilities required by law including, but not limited to, those required by Education Code section 47604.32 and Education Code section 47605(m). As the chartering authority, the District will continue to monitor and evaluate the charter school's fiscal condition and operations, and management of public funds, including review of all legally required fiscal reports, and the annual update of the charter school's LCAP. (Ed. Code, §§ 47604.32, 47604.33, 47606.5.) Any significant modifications to the charter school's charter or operations that raise financial implications would require a material revision prior to implementation. Charter schools are expected to secure and maintain all insurance coverage consistent with all applicable legal, District and charter requirements.

Charter School has selected LAUSD SELPA Option 2. Charter School's fair share contribution for special education will be 20% of the District's general fund contribution rate per Average Daily Attendance (ADA) for the first fiscal year of the charter petition period, which will be paid from Charter School's Local Control Funding Formula ("LCFF") funds or other unrestricted revenue sources. This formula will increase by 5% for each subsequent fiscal year of the charter petition period until the applicable percentage reaches 35%. For the remainder of the term of Charter School's charter, the rate will remain at 35% of the District's general fund contribution rate for each fiscal year. If Charter School is renewing its charter petition and has reached the 35% fair share contribution rate for special education, Charter School shall continue to contribute at the 35% rate for the full renewal period. If Charter School is renewing and has reached a fair share contribution rate that is less than 35%, Charter School's fair share contribution rate shall continue to increase by 5% per year from the prior year's rate until the applicable percentage reaches 35%. If Charter School does not spend its allocation of special education funds during a fiscal year of the charter petition period, the allocation of special education funds to Charter School for the next fiscal year will be reduced by an amount equal to the unspent special education funds of the previous fiscal year.

In addition to the payments required under this option, Charter School may request specific special education related services from the District through fee-for-service arrangements that will reflect the calculated cost of the requested services and will be contingent on the District's available resources.

Any change in the Option election that occurs during Charter School's charter term shall be mutually agreed upon and addressed in a MOU between the charter school and the District. The new Option election shall be effective on July 1 of the next school year with the corresponding fair share contribution.

Student Impact:

As stated in the LAUSD Policy and Procedures for Charter Schools, "[W]hen the LAUSD Board authorizes and oversees a charter school, it establishes a relationship to advance its vision and mission and to accelerate gains in academic achievement and accountability for all of its students and public schools," (Policy, p.3). Based on a comprehensive review and assessment of Charter School's renewal petition application, staff has determined that Charter School has not met the requirements for charter school approval and therefore recommends denial of the renewal petition.

Issues and Analysis:

If all applicable pending issues, including but not limited to special education requirements, special education local planning area (SELPA) requirements, governance, fiscal and facilities matters, are not resolved at the time of the Board meeting, the item may be pulled from the agenda to the extent consistent with the Charter Schools Act and the LAUSD Policy and Procedures for Charter Schools.

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Attachments:

Attachment A - Staff Assessment and Recommendation Report

Attachment B - Learning by Design Charter Data Set

Attachment C - Findings of Fact in Support of Denial of the Renewal Charter Petition for Learning by Design Charter

Budget, Petition, and Verified Data Reports (if applicable) will be available prior to the board meeting at the following link:

https://drive.google.com/drive/folders/1e7MBWqh8bagc4_KIAIUUGYfUsIGFY5k?usp=sharing

Submitted:

09/19/25

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RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

APPROVED & PRESENTED BY:


CAROLYN SPAHT GONZALEZ
Chief Strategy Officer
Office of the Chief Strategy Officer

REVIEWED BY:

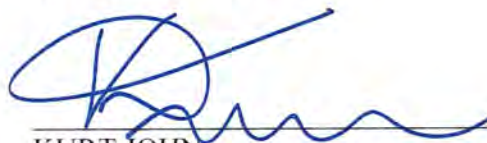

DEVORA NAVERA REED
General Counsel

✓ Approved as to form.

APPROVED & PRESENTED BY:


JOSÉ COLE-GUTIÉRREZ
Senior Executive Director of Strategy
Office of the Chief Strategy Officer

REVIEWED BY:


KURT JOHN
Deputy Chief Financial Officer

✓ Approved as to budget impact statement.

APPROVED & PRESENTED BY:


MARLA WILLMOTT
Director
Charter Schools Division

STAFF ASSESSMENT AND RECOMMENDATION REPORT**RENEWAL PETITION**

Board of Education Report 089-25/26

October 14, 2025

School Name:	Learning by Design Charter			BOARD IS REQUIRED TO TAKE ACTION BY: October 16, 2025
Type of Charter School:	Start-Up Independent Charter School			
Charter Operator	Learning by Design Inc.			
Location Code:	7572			
Type of Site(s):	Private			
Site Address(es):	7019 S. Van Ness Ave., Los Angeles, CA 90047			
Board District(s):	1	Region(s):	South	
Grade Levels Served:	TK-5	Current Enrollment:	106	
Grade Levels Authorized in Current Charter:	TK-5	Approved Enrollment in Current Charter:	350 (see proposed change in "Action Proposed" below)	
CONSIDERATION:	Renewal			
CDE PERFORMANCE CATEGORY: (PER CDE'S 2025 CLASSIFICATION)	Middle Performing			
STAFF RECOMMENDATION:	Denial			
PROPOSED BENCHMARKS:	None			

STAFF ASSESSMENT**I. ACTION PROPOSED**

Staff recommends denial of the renewal petition for Learning by Design Charter ("Learning by Design" or "Charter School"), located in Board District 1 and Region South, for a term of five (5) years, beginning July 1, 2026, until June 30, 2031, to serve up to 300 students in grades TK-5 in each year of the charter term. The school is requesting to reduce enrollment capacity from 350 to 300 students to align with facility occupancy.

II. RENEWAL REQUIREMENTS

Upon submission, District staff comprehensively reviews each renewal petition application to determine whether the school has met the requirements for renewal set forth in Education Code sections 47605, 47607, 47607.2, and 47611.5.

Criteria for Charter School Renewal and Grounds for Nonrenewal

As part of staff's holistic review of the renewal petition application, the charter school must be determined to be eligible for renewal of its charter under the specific renewal criteria outlined in the Charter Schools Act. The renewal criteria prescribed in Education Code sections 47607 and 47607.2 requires a three-pronged analysis:

- **Criterion 1:** Does the renewal petition include a sound educational program, a reasonably comprehensive description of the 15 elements required for petitions, an affirmation of each of the conditions described in Education Code section 47605(e), and are petitioners demonstrably unlikely to successfully implement the program set forth in the petition? (Ed. Code, § 47607(b).)

For reasons more fully set forth in the *Findings of Fact in Support of Denial of the Charter Petition for Learning by Design Charter*, these criteria have been determined to be bases for denial.

- **Criterion 2:** Is the charter school “high,” “middle,” or “low” performing? (see Ed. Code, §§ 47607(c), 47607.2(a), and 47607.2(b).) Has the charter school attained measurable increases in academic achievement schoolwide and for numerically significant student groups served by the charter school, and does the charter school have strong postsecondary outcomes, if applicable?

For reasons more fully set forth in the *Findings of Fact in Support of Denial of the Charter Petition for Learning by Design Charter*, these criteria have been determined to be bases for denial.

- **Criterion 3:** Is the charter school serving all pupils who wish to attend, or does the charter school have substantial fiscal or governance issues? (Ed. Code, § 47607(e).)

For reasons more fully set forth in the *Findings of Fact in Support of Denial of the Charter Petition for Learning by Design Charter*, these criteria have been determined to be bases for denial.

Charter Petition Requirement:

In accordance with Education Code section 47611.5, a charter school charter shall contain a declaration regarding whether or not the charter school shall be deemed the exclusive public school employer of the employees at the charter school for the purposes of Section 3540.1 of the Government Code, and that declaration shall not be materially inconsistent with the charter.

- Does the petition contain a declaration of whether or not the charter school shall be deemed the exclusive public employer of the employees of the charter school?

This requirement has been determined not to be a basis for denial.

III. GENERAL SCHOOL INFORMATION

A. School History

	Learning by Design Charter
Initial Authorization:	On February 6, 2018, Learning by Design Charter was authorized by the LAUSD Board of Education to serve 350 students in grades TK-5.
Most Recent Renewal	This is the charter school's first consideration for renewal. Pursuant to Education Code section 47607.4, all charter schools whose term expires on or between January 1, 2022, and June 30, 2025, inclusive, shall have their term extended by two years, and all charter schools whose term expires on or between January 1, 2024, and June 30, 2027, inclusive, shall have their term extended by one additional year. Thus, by operation of law, the charter term for Learning by Design Charter expires June 30, 2026.

	Learning by Design Charter
Approved Material Revisions of Current Charter:	Not applicable
Board Benchmarks in Current Charter Term:	Not applicable
Submission of Renewal Petition Application:	Learning by Design Charter submitted its renewal petition application on July 18, 2025. The 90-day statutory timeline for Board action on the petition runs through October 16, 2025.
Concurrent Request for Material Revision:	Not applicable
Master Plan for English Learners and Standard English Learners:	Learning by Design Charter implements the LAUSD Master Plan for English Learners and Standard English Learners.
Special Education SELPA	Learning by Design Charter participates in LAUSD Special Education Local Plan Area (SELPA) Option 2.

B. Charter School Operator

Learning by Design Charter is operated by Learning by Design Inc., a California nonprofit public benefit corporation that does not operate any other LAUSD-authorized charter schools.

IV. STUDENT ACHIEVEMENT AND EDUCATIONAL PERFORMANCE

a. Summary

Learning by Design Charter has been identified by the state as a Middle performing charter school. The recommendation for renewal has considered the schoolwide performance and performance of numerically significant student groups and the state and local indicators reported on the California School Dashboard, and whether there was clear and convincing verified data evidence showing the school demonstrated measurable increases in academic achievement, as defined by at least one year's progress in each year in school, and/or strong postsecondary outcomes, as applicable.

Overall, Charter School's Dashboard performance was lower than the state in ELA, but higher than the state in Math. The charter school provided three years of verified data, demonstrating one year's progress in the two most recent years. However, the verified data did not include student group data and did not meet participation rates. Further analysis in ELA demonstrated lower outcomes for the charter school when compared to Resident Schools. In addition, when comparing the CAASPP Met or Exceeded rates in ELA, the charter school was lower than the Resident Schools in two of the three years.

Please see the Learning by Design Charter data sets and Verified Data Reports.

b. Measurements of Academic Performance on the California School Dashboard

Due to the COVID-19 pandemic, the 2022 Dashboard only displayed one year of data (also known as Status). Status Levels are reported based on the 2021-2022 school year data using one of five Status Levels (ranging from Very High, High, Medium, Low, and Very Low) for state measures. Please note that the Status Levels associated with the Chronic Absenteeism and Suspension Rate Indicators are reversed (ranging from Very Low, Low, Medium, High, and Very High). Below, the 2023 and 2024 Dashboard Performance Levels (colors) based on two years' data are provided.

Learning by Design Charter

School Year	ELA	Math	English Learner Progress	College/Career	Chronic Absenteeism	Graduation Rate	Suspension Rate
2021-2022	Very Low	Very Low	Not Applicable	Not Applicable	Very Low	Not Applicable	Low
2022-2023	Yellow	Yellow	Not Applicable	Not Applicable	Red	Not Applicable	Orange
2023-2024	Yellow	Green	Not Applicable	Not Applicable	Red	Not Applicable	Orange

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

c. English Language Arts Indicator

Please see the *Findings of Fact in Support of Denial of the Charter Petition for Learning by Design Charter* for more details.

d. Math Indicator

In 2022 in Math, the charter school's DFS was lower than the state for All Students, and lower than the state for all numerically significant student groups. In 2023 in Math, the charter school's DFS was lower than the state for All Students, and higher than the state for all numerically significant student groups. In 2024 in Math, the charter school's DFS was higher than the state for All Students, and higher than the state for all student groups.

Learning by Design Charter - Math Indicator - 2021-2022

Student Group	Charter Participation Rate	Charter Level	Charter Math (DFS)	State Level	State Math (DFS)	Charter to State Comparison (DFS)
All Students	Not Met	Very Low	-130.8	Low	-51.7	Lower
Black or African American	Not Met	Very Low	-139.8	Very Low	-106.9	Lower
Socioeconomically Disadvantaged	Not Met	Very Low	-135.0	Low	-84.0	Lower

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

Learning by Design Charter - Math Indicator - 2022-2023

Student Group	Charter Participation Rate	Charter Color	Charter Math (DFS)	Charter Change	State Color	State Math (DFS)	Charter to State Comparison (DFS)
All Students	Met	Yellow	-62.1	75.1	Orange	-49.1	Lower
Black or African American	Met	Yellow	-62.7	88.4	Red	-104.5	Higher
Socioeconomically Disadvantaged	Met	Yellow	-66.8	74.9	Yellow	-80.8	Higher

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

Learning by Design Charter - Math Indicator - 2023-2024

Student Group	Charter Participation Rate	Charter Color	Charter Math (DFS)	Charter Change	State Color	State Math (DFS)	Charter to State Comparison (DFS)
All Students	Met	Green	-1.9	60.1	Orange	-47.6	Higher
Socioeconomically Disadvantaged	Met	Green	-10.8	56.0	Orange	-78.2	Higher

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

e. English Learner Progress Indicator

ELPI data not reportable due to the low number of English Learners.

f. College/Career Indicator

Not applicable

g. Chronic Absenteeism Indicator

In 2022, on the Chronic Absenteeism Indicator, the charter schools rate of chronic absenteeism was lower than the state for All Students and for all numerically significant student groups. In 2023 and 2024, on the Chronic Absenteeism Indicator, the charter schools rate of chronic absenteeism was higher than the state for All Students, and for all numerically significant student groups.

h. Graduation Indicator [HS only]

Not applicable

i. Suspension Rate Indicator

In 2022 and 2023, the charter school's percentage of students suspended at least once was lower than the state for All Students, and for all numerically significant student groups. In 2024, the charter school's percentage of students suspended at least once was higher than the state for All Students, and for two of three numerically significant student groups.

j. Dashboard Local Indicators

Staff also considered the Local Indicators (e.g., Basic: Teachers, Instructional Materials, Facilities; Implementation of Academic Standards; Parent and Family Engagement; Local Climate Survey; Access to a Broad Course of Study) which have all been reported as "Met" in 2024 and "Not Met" in 2023.

k. Additional Information

For additional context, pursuant to applicable legal and District policy requirements, CSD's ongoing oversight assesses a school's performance and utilizes a tiered intervention model when necessary to address and respond to concerns or challenges related to a charter school's governance, programs, operations, organization, and fiscal management. Accordingly, the District has utilized its tiered intervention model to address and respond to concerns or issues that have occurred during Learning by Design Charter's charter term. Below are examples of the tiered intervention ("Notices") that the District has issued Learning by Design to ask the charter school to provide additional information or documents to further assess a concern(s), or request that the charter school take required corrective measures to cure specified actions by the charter school. In response to the Notices, as well as follow-up communications from the CSD, Charter School provided information to share their proposed remediations. The

District's continued engagement in tiered intervention, and the extent of the oversight record, raises concerns.

Date	Type of Notice (NOC or NTC)	Issue/Topic	Resolved (Y/N)
11/14/19	Notice to Cure	Findings of Non-compliance Governance and Operations	Yes
8/3/2020	Notice of Concern	Charter School's weak fiscal condition (reporting negative net assets since its inception, from 2018-2019 through 2020-2021).	Yes (temporarily)
2/23/2021	Notice to Cure	2019-2020 EOY Schoolwide Suspension Rate	Yes
3/1/2021	Notice of Concern	Student Information System (Illuminate)	Yes
7/9/2021	Notice to Cure	Findings of Non-compliance in Governance and Operations	Yes
8/27/2021	Notice to Cure	Findings of Non-compliance in Governance and Operations	Yes
9/24/2021	Notice of Concern	LCAP, Annual Update	Yes
10/11/2021	Follow-Up Letter to the 8/3/2020 Notice of Concern, and Charter School's response	Charter School's negative fiscal condition and low enrollment. Based on the enrollment site visit, the District continues to have concerns regarding Charter School's student enrollment. Additionally, Charter School reported a negative net asset balance of (\$109,908) as of June 30, 2021, based on its Unaudited Actuals submitted to the District.	Yes (temporarily)
2/28/2024	Notice to Cure	2022-2023 EOY Suspension Data	Yes
6/25/2024	Notice of Concern	Charter School's deteriorating fiscal condition and low student enrollment issues.	No
3/31/2025	Notice to Cure	Charter School's deteriorating financial condition/negative unrestricted net assets; and low and continued declining student enrollment.	No
5/19/2025	Notice to Cure	2022-2023 EOY Suspension Data	Yes

Date	Type of Notice (NOC or NTC)	Issue/Topic	Resolved (Y/N)
7/15/2025	Notice of Alleged Violations	Charter School's weak fiscal condition and low and declined student enrollment (recurring issues), ongoing financial sustainability concerns at the charter school.	No

The CSD continues to monitor the school through oversight. Please see the *Findings of Fact in Support of Denial of the Charter Petition for Learning by Design Charter* for more details.

V. ANNUAL PERFORMANCE-BASED OVERSIGHT RESULTS

In accordance with Education Code section 47604.32, the District's Charter Schools Division (CSD) conducts at least one school site visit each year where the CSD evaluates charter school performance in the following four categories: Governance; Student Achievement and Educational Performance; Organizational Management, Programs, and Operations; and Fiscal Operations. Charter schools are rated in each category based on information and evidence gathered at the time of the annual performance-based oversight visit following a four-point rubric: (4) *Accomplished*, (3) *Proficient*, (2) *Developing*, and (1) *Unsatisfactory*. Please see below for Learning by Design Charter outcomes on its annual oversight evaluation reports for the last two years.

a. Governance

Oversight Ratings/Concerns	
2023-2024	<i>Proficient</i>
2024-2025	<i>Developing</i>
Concerns	The rating of <i>Developing</i> in 2024-2025 extends from significant fiscal issues.

b. Student Achievement and Educational Performance

Oversight Ratings/Concerns	
2023-2024	<i>Developing</i>
2024-2025	<i>Proficient</i>
Concerns	In 2023-2024, Learning by Design Charter earned a rating of <i>Developing</i> based on student academic performance in the CA school Dashboard Indicators.

c. Organizational Management, Programs, and Operations

Oversight Ratings/Concerns	
2023-2024	<i>Proficient</i>
2024-2025	<i>Proficient</i>
Concerns	No unresolved issues pending

d. Fiscal Operations

Oversight Ratings/Concerns	
2023-2024	<i>Developing</i>
2024-2025	<i>Unsatisfactory</i>
Concerns	The ratings of <i>Developing</i> in 2023-2024 and <i>Unsatisfactory</i> in 2024-2025 were primarily due to the school's weak and deteriorating financial condition, and low and continued declining student enrollment (recurring issues).

VI. VERIFIED DATA

Charter schools satisfying the Middle performing criteria may be renewed for a specified term. (Ed. Code, § 47607.2 (b)(7).) A chartering authority must consider, among other requirements, clear and convincing evidence, demonstrated by verified data, showing the charter school's achieved measurable increases in academic achievement, or strong postsecondary outcomes for the timeframe specified in law. (Ed. Code, § 47607.2(b)(3).)

Charter School provided data from “MAP Growth by NWEA, Grades K-12” (NWEA) *Student Growth Summary Report* in Reading, Language Usage (2022-2023), and Math. NWEA is an adopted academic progress indicator approved by the State Board of Education (SBE) to be on the verified data list. Per NWEA, this assessment only reports data disaggregated by grade levels.

Per Education Code section 47607.2 (c)(2), the State Board of Education established criteria to define verified data. To be eligible for inclusion as verified data, a data source (e.g., assessment or postsecondary outcome) must include the results of at least 95 percent of eligible students. The *Student Growth Summary Report* provided by Charter School in Reading does not provide a participation rate on the report, however it does include the total number of “growth events¹” on the reports. In 2024-2025 Charter School had a norm enrollment of 106 students and the NWEA Reading report indicates that the school had 65 growth events and the NWEA Math report had 86 growth events. Thus, the 2024-2025 assessment data does not appear to include at least 95% of eligible students.

Per the California SBE's May 2023 Agenda Item #02, publisher guidance states, “A CGI range of -0.2 to 0.2 (or greater) could be used as an approximation of one year's growth (or more) in a subject, as the overall average growth of students would be generally consistent with the amount of growth observed by students in the same grade and subject with the same starting achievement level receiving a similar amount of instructional exposure.”

ELA

Please see the *Findings of Fact in Support of Denial of the Charter Petition for Learning by Design Charter* for more details.

MATH

Charter School provided data for Math from “MAP Growth by NWEA, Grades K-12” (NWEA) *Student Growth Summary Report* for 2022-2023, 2023-2024 and 2024-2025 (Fall to Spring administration) for Grades Kindergarten, Grade 1, Grade 2, Grade 3, Grade 4 and Grade 5.

The 2024-2025 data outcomes are represented in the table below disaggregated by grade level showing overall Kindergarten, Grade 2, and Grade 3 Met one year's progress, but did not include student group data.

MAP Growth Math 2024-2025				
Student Groups	Total Number of Growth Events	Map Growth CGI Range	Math: Conditional Growth Index (CGI)	One Year's Progress
Kindergarten	11	-0.2 to 0.2	1.01	Met
Grade 1	16	-0.2 to 0.2	-0.51	Not Met
Grade 2	14	-0.2 to 0.2	1.65	Met

¹ Total Number of Growth Events: The number of students with valid growth-based test events for both terms.

MAP Growth Math 2024-2025				
Student Groups	Total Number of Growth Events	Map Growth CGI Range	Math: Conditional Growth Index (CGI)	One Year's Progress
Grade 3	14	-0.2 to 0.2	1.26	Met
Grade 4	*	-0.2 to 0.2	*	*
Grade 5	23	-0.2 to 0.2	-0.54	Not Met

Note: An asterisk (*) indicates that the student group consists of less than 11 students, the minimum size for reporting.

Charter School also submitted verified data using NWEA for the 2022-2023 and 2023-2024 school year. Based on NWEA's CGI range of -0.2 to 0.2, Charter School Met the one year's progress for a majority of grade levels, however, the assessment data does not appear to include at least 95% of eligible students.

Based on the review and consideration of verified data, Learning by Design Charter provided three years of data, including grade levels Kindergarten, Grade 1, Grade 2, Grade 3, Grade 4 and Grade 5 in Reading, Language Usage (2022-2023), and Math. However, student group data was not provided in ELA or Math. In all three years, the charter school appears to not have met the 95 percent participation rate based on norm enrollment compared to growth events.

VII. FURTHER ANALYSIS FOR MIDDLE PERFORMING CHARTER SCHOOLS

Following the review of the foregoing performance data for this charter school placing a greater weight on academic performance on the California School Dashboard and considering Charter School provided verified data that does not include student group reports, and had participation rate concerns, staff determined that the school's ELA requires further review. Please see the *Findings of Fact in Support of Denial of the Charter Petition for Learning by Design Charter* for more details.

VIII. FISCAL MANAGEMENT AND PERFORMANCE

a. Fiscal Condition

Learning by Design Charter's fiscal condition is negative.

	2020-2021 (Audited Actuals)	2021-2022 (Audited Actuals)	2022-2023 (Audited Actuals)	2023-2024 (Audited Actuals)	2024-2025 (Second Interim)
Net Assets	(\$124,908) ¹	\$296,158	\$192,365	(\$220,962)	(\$130,261)
Net Income/Loss	\$291,956	\$421,066	(\$103,793) ²	(\$413,327) ³	\$90,702 ⁴
Transfers In/Out	\$0	\$0	\$0	\$0	\$0
Prior Year Adjustment(s)	\$0	\$0	\$0	\$0	\$0
Norm Enrollment	131	118	105	112	106

¹The negative net assets of (\$124,098) reported for Fiscal Year 2020-2021 was due to the prior years' deficit spending in the organization's first year of school operation. The school reported net income of \$12,205 and \$291,956 in Fiscal Years 2019-2020 and 2020-2021, respectively. The charter secured

short-term borrowings to aid in cash flow needs and had plans to reduce operating costs in order to end with a surplus for the Fiscal Year 2021-2022.

²According to Learning by Design Charter, the net loss of (\$103,793) reported for Fiscal Year 2022-2023 was primarily due to the lower ADA, higher-than-expected expenses, particularly in Special Education, and a delay in receiving the SB740 funds.

³According to Learning by Design Charter, the net loss of (\$413,327) reported for Fiscal Year 2023-2024 was primarily due to the unanticipated expenses for Special Education services.

⁴Though Charter School projected a net income of \$91K in its 2024-2025 Second Interim Report, Learning by Design Charter projected a net loss of (\$391,340) in its 2024-2025 Unaudited Actuals Report, resulting in a financial decline and a negative net asset balance of (\$612,302) as of June 30, 2025. According to Learning by Design Charter and the CSD's review, the net loss was primarily attributed to unanticipated expenses related to Special Education services coupled with continued declines in student enrollment.

b. 2023-2024 Independent Audit Report

Audit Opinion: Unmodified/Unqualified

Material Weaknesses: None Reported

Deficiencies/Findings: None Reported

Lack of a Going Concern: None Reported

c. Other Significant Fiscal Information

For more information, please refer to the *Findings of Fact in Support of Denial of the Renewal Charter Petition for Learning by Design Charter*.

Learning by Design Charter

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CA School Dashboard: Academic Performance - English Language Arts

This report shows the performance levels for the English Language Arts Academic Performance Indicator for all student groups in grades 3-8 and 11. It also shows the participation rate, number of students tested, DFS (status), and performance level (color) for three consecutive years of the CA Dashboard. Performance Levels (colors) have five possible values (Red, Orange, Yellow, Green, Blue). A single asterisk (*) shows that the student group has fewer than 11 students and is not reported for privacy reasons. A cell with "--" means that data is not currently available. For student groups with less than 30 students and scores in the current and prior year, status is reported, but performance level (color) is not reported. Note: Charter Schools are treated as schools (not LEAs) when it comes to reporting Foster Youth and Homeless student groups. Charter schools will need at least 30 or more Foster Youth, or 30 or more Homeless youth, to receive a status level for each student group. The Every Student Succeeds Act requires districts and schools to test at least 95 percent of all students and student groups in English Language Arts and Mathematics. It also requires states to factor the participation rate into the Academic Indicator. For any local educational agency (LEA), school, or student group with less than 95 percent of students tested, the ESSA requires a penalty to be applied to the Academic Indicator. To meet this federal requirement, California assigns the Lowest Obtainable Scale Score (LOSS) to each student needed to bring the participation rate of the school, district, and/or student group to 95 percent. The LOSS assigned to each of these students who did not test will be used in calculating the Distance from Standard (DFS). When comparing school to state, only numerically significant student groups of 30 or more will be compared for accountability purposes.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and California School Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

ELA (Grades 3-8 and Grade 11) Academic Indicator - CA School Dashboard Indicator																						
	Dashboard 2022						Dashboard 2023								Dashboard 2024							
Student Group	Part. Rate	Students w/ Scores	DFS	Status Level	State DFS	School vs State	Part. Rate	Students w/ Scores	DFS	Change	Change Level	Color	State DFS	School vs State	Part. Rate	Students w/ Scores	DFS	Change	Change Level	Color	State DFS	School vs State
All Students	91%	48	-89.4	Very Low	-12.2	Lower	98%	51	-67.4	24.3	Increased Significantly	Yellow	-13.6	Lower	98%	54	-11.9	55.5	Increased Significantly	Yellow	-13.2	Higher
African American/Black	87%	36	-102.6	Very Low	-57.7	Lower	100%	34	-70.1	37.1	Increased Significantly	Orange	-59.6	Lower	97%	29	-27.8	42.4	Increased Significantly	--	-58.9	--
Latino	100%	11	-50.0	Low	-38.6	--	95%	16	-53.6	-3.6	Declined	--	-40.2	--	100%	23	13.5	67.1	Increased Significantly	--	-39.3	--
Socioeconomically Disadvantaged	90%	46	-99.3	Very Low	-41.4	Lower	98%	45	-77.6	25.3	Increased Significantly	Orange	-42.6	Lower	98%	45	-18.7	59.0	Increased Significantly	Yellow	-40.9	Higher

Data Sources: California School Dashboard Research data files.

Learning by Design Charter

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CA School Dashboard: Academic Performance - Math

This report shows the performance levels for the Mathematics Academic Performance Indicator for all student groups in grades 3-8 and 11. It also shows the participation rate, number of students tested, DFS (status), and performance level (color) for three consecutive years of the CA Dashboard. Performance Levels (colors) have five possible values (Red, Orange, Yellow, Green, Blue). A single asterisk (*) shows that the student group has fewer than 11 students and is not reported for privacy reasons. A cell with "—" means that data is not currently available. For student groups with less than 30 students and scores in the current and prior year, status is reported, but performance level (color) is not reported. Note: Charter Schools are treated as schools (not LEAs) when it comes to reporting Foster Youth and Homeless student groups. Charter schools will need at least 30 or more Foster Youth, or 30 or more Homeless youth, to receive a status level for each student group. The Every Student Succeeds Act requires districts and schools to test at least 95 percent of all students and student groups in English Language Arts and Mathematics. It also requires states to factor the participation rate into the Academic Indicator. For any local educational agency (LEA), school, or student group with less than 95 percent of students tested, the ESSA requires a penalty to be applied to the Academic Indicator. To meet this federal requirement, California assigns the Lowest Obtainable Scale Score (LOSS) to each student needed to bring the participation rate of the school, district, and/or student group to 95 percent. The LOSS assigned to each of these students who did not test will be used in calculating the Distance from Standard (DFS). When comparing school to state, only numerically significant student groups of 30 or more will be compared for accountability purposes.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and California School Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

Math (Grades 3-8 and Grade 11) Academic Indicator - CA School Dashboard Indicator																						
	Dashboard 2022						Dashboard 2023								Dashboard 2024							
Student Group	Part. Rate	Students w/ Scores	DFS	Status Level	State DFS	School vs State	Part. Rate	Students w/ Scores	DFS	Change	Change Level	Color	State DFS	School vs State	Part. Rate	Students w/ Scores	DFS	Change	Change Level	Color	State DFS	School vs State
All Students	89%	48	-130.8	Very Low	-51.7	Lower	98%	51	-62.1	75.1	Increased Significantly	Yellow	-49.1	Lower	98%	54	-1.9	60.1	Increased Significantly	Green	-47.6	Higher
African American/Black	85%	36	-139.8	Very Low	-106.9	Lower	100%	34	-62.7	88.4	Increased Significantly	Yellow	-104.5	Higher	97%	29	-1.4	61.3	Increased Significantly	--	-102.2	--
Latino	100%	11	-123.9	Very Low	-83.4	--	95%	16	-52.4	71.5	Increased Significantly	--	-80.8	--	100%	23	0.7	53.2	Increased Significantly	--	-79.2	--
Socioeconomically Disadvantaged	90%	46	-135.0	Very Low	-84.0	Lower	98%	45	-66.8	74.9	Increased Significantly	Yellow	-80.8	Higher	98%	45	-10.8	56.0	Increased Significantly	Green	-78.2	Higher

Data Sources: California School Dashboard Research data files.

Learning by Design Charter

Board District: 1 | Region: South | Location Code: 7572

CA School Dashboard: English Learner Progress Indicator (ELPI)

This report shows the percentage of current English learner (EL) students making progress towards English language proficiency at their school for all student groups in grades 1-12. The English Learner Progress Indicator (ELPI) relies on the results of the Summative English Language Proficiency Assessment (ELPAC), including Summative Alternate ELPAC results, to determine EL student progress. For the EL students taking the Summative ELPAC, those who increase an ELPI level or maintain ELPAC Level 4 are counted as making progress towards English language proficiency. ELPI Change measures the rate at which schools are improving their ability to move their EL students towards English language proficiency. It is the difference between the prior year Status and the current year Status. A single asterisk (*) shows that the student group has fewer than 11 students and is not reported for privacy reasons. A cell with "--" means that data is not currently available. For student groups with less than 30 students and scores in the current and prior year, status is reported, but performance level (color) is not reported.

Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and California School Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

Student English Language Acquisition Results Summative ELPAC									
End Year	Student Group	School				State of California			
		Progressed at Least One ELPI Level	Maintained ELPI Level 4	Maintained ELPI Level 1, 2L, 2H, 3L, 3H	Decreased at Least One ELPI Level	Progressed at Least One ELPI Level	Maintained ELPI Level 4	Maintained ELPI Level 1, 2L, 2H, 3L, 3H	Decreased at Least One ELPI Level
2022	EL	--	--	--	--	47.5%	2.8%	31.4%	18.3%
2023	EL	--	--	--	--	45.7%	2.3%	32.2%	18.3%
2024	EL	--	--	--	--	43.2%	1.9%	34.4%	19.1%

Districts and schools that do not meet the 95 percent participation rate on the Summative ELPAC and Summative Alternative ELPAC and have at least 30 EL students enrolled during the testing window (February 1 to May 31) will receive a modified ELPI rate on the California School Dashboard (Dashboard). For each district and school that does not meet the 95 percent target, the minimum number of students needed to reach a participation rate of at least 95 percent is determined. The resulting number of students will be counted as not making progress in the current ELPI Status calculation.

Summative ELPAC Participation Rate Report									
End Year	Student Group	School				State of California			
		Students Tested During Testing Window	Students Enrolled During Testing Window	Participation Rate	Participation Rate Greater Than 95%	Students Tested During Testing Window	Students Enrolled During Testing Window	Participation Rate	Participation Rate Greater Than 95%
2022	EL	13	13	100.0%	Y	1,052,513	1,088,734	96.7%	Y
2023	EL	16	17	94.1%	N	1,048,300	1,069,515	98.0%	Y
2023	LTEL	--	--	--	--	193,182	202,530	95.4%	Y
2024	EL	20	23	87.0%	N	1,028,083	1,047,977	98.1%	Y
2024	LTEL	--	--	--	--	182,603	190,459	95.9%	Y

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CA School Dashboard: Chronic Absenteeism

This report shows the percentage of students in Kindergarten through grade eight who were absent 10 percent or more of the school year for all student groups in grades TK-8. Please note that good performance on the Chronic Absenteeism indicator means having the lowest percentage of students chronically absent in the current year. A single asterisk (*) shows that the student group has fewer than 11 students and is not reported for privacy reasons. A cell with "—" means that data is not currently available. For student groups with less than 30 students with scores in the current and prior year, status is reported, but no performance level (color) will be reported. When comparing school to state, only numerically significant student groups of 30 or more will be compared for accountability purposes.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and California School Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

Chronic Absenteeism - CA School Dashboard Indicator																			
Student Group	Dashboard 2022					Dashboard 2023							Dashboard 2024						
	Students	Chronic Absenteeism	Status Level	State Chronic Absenteeism	School vs State	Students	Chronic Absenteeism	Change	Change Level	Color	State Chronic Absenteeism	School vs State	Students	Chronic Absenteeism	Change	Change Level	Color	State Chronic Absenteeism	School vs State
All Students	124	1.6%	Very Low	30.0%	Lower	126	44.4%	42.8	Increased	Red	24.3%	Higher	129	57.4%	12.9	Increased	Red	18.6%	Higher
African American/Black	75	2.7%	Low	42.9%	Lower	81	42.0%	39.3	Increased	Red	36.4%	Higher	65	52.3%	10.3	Increased	Red	31.3%	Higher
English Learner	15	0.0%	Very Low	33.6%	--	18	66.7%	66.7	Increased	--	26.3%	--	27	74.1%	7.4	Increased	--	20.1%	--
Latino	36	0.0%	Very Low	35.8%	Lower	43	48.8%	48.8	Increased	Red	28.4%	Higher	61	63.9%	15.1	Increased	Red	21.7%	Higher
Socioeconomically Disadvantaged	105	1.9%	Very Low	37.4%	Lower	108	46.3%	44.4	Increased	Red	29.9%	Higher	103	62.1%	15.8	Increased	Red	23.4%	Higher
Students with Disabilities	8	*	*	39.6%	*	7	*	*	*	*	33.1%	*	13	61.5%	--	--	--	26.3%	--
Two or More	12	0.0%	Very Low	25.1%	--	1	*	*	*	*	21.6%	*	2	*	*	*	*	16.2%	*

Data Sources: California School Dashboard Research data files.

Learning by Design Charter

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CA School Dashboard: Suspension Rate Indicator

This report shows the number of students who have been suspended at least once in the school year for all student groups in grades TK-12. A student is counted as suspended in the suspension rate only once regardless of multiple suspensions or multiple days of suspension. Please note that good performance on the Suspension Rate Indicator means having the lowest percentage of students suspended in the current year. A single asterisk (*) shows that the student group has fewer than 11 students and is not reported for privacy reasons. A cell with "--" means that data is not currently available. For student groups with less than 30 students with scores in the current and prior year, status and change are reported, but no performance level (color) will be reported. When comparing school to state, only numerically significant student groups of 30 or more will be compared for accountability purposes.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and California School Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

Suspension Rate Indicator - CA School Dashboard Indicator																			
Student Group	Dashboard 2022					Dashboard 2023							Dashboard 2024						
	Students	Suspension Rate	Status Level	State Suspension Rate	School vs State	Students	Suspension Rate	Change	Change Level	Color	State Suspension Rate	School vs State	Students	Suspension Rate	Change	Change Level	Color	State Suspension Rate	School vs State
All Students	133	0.8%	Low	3.1%	Lower	127	3.1%	2.4	Increased	Orange	3.5%	Lower	134	6.0%	2.8	Increased	Orange	3.2%	Higher
African American/Black	81	1.2%	Medium	7.9%	Lower	82	4.9%	3.6	Increased	Orange	8.8%	Lower	66	10.6%	5.7	Increased	Red	8.4%	Higher
English Learner	15	0.0%	Very Low	3.2%	--	18	0.0%	0.0	Maintained	--	3.7%	--	29	0.0%	0.0	Maintained	--	3.4%	--
Latino	39	0.0%	Very Low	3.3%	Lower	43	0.0%	0.0	Maintained	Blue	3.8%	Lower	64	1.6%	1.6	Increased	Orange	3.4%	Lower
Socioeconomically Disadvantaged	110	0.9%	Low	4.0%	Lower	109	3.7%	2.8	Increased	Orange	4.5%	Lower	107	6.5%	2.9	Increased	Red	4.0%	Higher
Students with Disabilities	9	*	*	5.4%	*	7	*	*	*	*	5.9%	*	13	23.1%	--	--	--	5.4%	--
Two or More	12	0.0%	Very Low	2.9%	--	1	*	*	*	*	3.3%	*	3	*	*	*	*	3.0%	*

Data Sources: California School Dashboard Research data files.

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Enrollment Report

This report displays CALPADS K-12 enrollment number and percentages of select student groups. Annual enrollment consists of the number of students primarily enrolled on Census Day (the first Wednesday in October). This information was submitted by local educational agencies (LEAs) and charter schools to the California Department of Education (CDE) as part of the annual Fall 1 data submission in the California Longitudinal Pupil Achievement Data System (CALPADS). These data were reviewed and certified in CALPADS as being accurate by authorized district or school personnel. In order to certify data in CALPADS, authorized district or charter school personnel are required to review the accuracy of all data associated with the applicable CALPADS submission. The CDE collects some data on GATE programs through the CALPADS; however, this information is submitted by LEAs on a voluntary basis and it wouldn't necessarily be accurate as per CDE.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and California School Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

Enrollment by Ethnicity and Student Group						
Student Group	2023-2024			2024-2025		
	School	Los Angeles Unified	State of California	School	Los Angeles Unified	State of California
Enrollment	115	529,902	5,837,690	114	516,685	5,806,221
F/R Meal	63.5%	80.6%	61.6%	78.1%	81.9%	62.7%
GATE	0.0%	11.6%	N/A	0.0%	13.0%	N/A
English Learner	24.3%	20.1%	18.4%	14.9%	18.6%	17.4%
Foster Youth	0.9%	0.6%	0.5%	0.0%	0.5%	0.5%
Homeless Youth	3.5%	2.1%	3.6%	0.9%	2.7%	4.0%
Socioeconomically Disadvantaged	67.0%	81.3%	62.7%	79.8%	82.4%	63.6%
Students w/ Disabilities	9.6%	14.8%	13.7%	7.9%	15.6%	14.2%
Migrant Youth	0.0%	0.2%	0.8%	0.0%	0.2%	0.8%
African American/Black	48.7%	7.3%	4.9%	55.3%	7.1%	4.9%
American Indian or Alaska Native	0.0%	0.1%	0.4%	0.0%	0.1%	0.4%
Asian	0.9%	3.4%	9.9%	0.9%	3.3%	10.1%
Filipino	0.0%	1.7%	2.2%	0.0%	1.6%	2.2%
Latino	48.7%	73.8%	56.1%	42.1%	73.6%	56.1%
Native Hawaiian or Pacific Islander	0.0%	0.2%	0.4%	0.0%	0.2%	0.4%
White	0.0%	9.8%	20.3%	0.0%	9.7%	20.0%
Two or More Races	0.0%	2.0%	4.6%	0.0%	2.1%	4.8%
Not Reported	1.7%	1.8%	1.1%	1.8%	2.2%	1.2%

N/A: The CDE does not publish centralized, statewide Gifted and Talented Education (GATE) data.

Data Source: Data Quest, Student and School Downloadable Data Files <https://www.cde.ca.gov/ds/sd/sd/filesenr.asp>

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Long-Term English Learners (LTEL) and “At-Risk”

Note: The “EL Total” column in this report displays the summed total of the disaggregated English Learner (EL) data in the four columns under the “English Learners” heading. The “Total (Ever-EL)” column displays the summed total of the data in the “RFEP” column plus the data in the four columns under the “English Learners” heading OR the data in the “EL Total” column, but not both. The percent values displayed in this report are calculated as a percent of the “Total (Ever-EL)” which fully and more accurately considers what happens to all EL students over time, including those who are Reclassified Fluent English Proficient (RFEP). Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and California School Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

	2022-2023						2023-2024						2024-2025					
	School		Los Angeles Unified		State of California		School		Los Angeles Unified		State of California		School		Los Angeles Unified		State of California	
English Learners	#	%	#	%	#	%	#	%	#	%	#	%	#	%	#	%	#	%
LTEL 6+ Years	0	0.0%	17,921	7.3%	226,508	11.1%	0	0.0%	15,302	6.5%	211,186	10.6%	0	0.0%	13,052	5.9%	198,853	10.4%
At-Risk 4-5 Years	5	41.7%	17,295	7.1%	144,189	7.1%	1	3.4%	15,717	6.7%	136,188	6.8%	1	5.3%	11,406	5.2%	115,009	6.0%
EL 0-3 Years	6	50.0%	60,457	24.7%	505,486	24.8%	21	72.4%	60,574	25.7%	519,651	26.0%	13	68.4%	57,726	26.1%	516,862	26.9%
EL 4+ Years & Not At-Risk or LTEL	0	0.0%	18,850	7.7%	236,319	11.6%	6	20.7%	14,725	6.2%	207,768	10.4%	3	15.8%	13,775	6.2%	178,306	9.3%
EL Total	11	91.7%	114,523	46.8%	1,112,502	54.5%	28	96.6%	106,318	45.0%	1,074,793	53.8%	17	89.5%	95,959	43.3%	1,009,030	52.6%
RFEP	1	8.3%	130,377	53.2%	927,694	45.5%	1	3.4%	129,789	55.0%	924,422	46.2%	2	10.5%	125,465	56.7%	909,298	47.4%
Total Ever EL	12	100.0%	244,900	100.0%	2,040,196	100.0%	29	100.0%	236,107	100.0%	1,999,215	100.0%	19	100.0%	221,424	100.0%	1,918,328	100.0%

Data Source: Data Quest, Student and School Downloadable Data Files <https://www.cde.ca.gov/ds/ad/filesltel.asp>

Learning by Design Charter

Board District: 1 | Region: South | Location Code: 7572

Students with Disabilities Report

This report displays the K-12 enrollment and the number of K-12 students with disabilities total, by incidence category, and by eligibility as reported on the Census Day (First Wednesday in October) CALPADS Fall 1 Certified Student Profile List Report (Report 8.1) submitted by Local Education Agencies (LEAs). LEAs are required to "certify" specified data during submission windows. The CDE uses certified data for state and federal reporting and to develop accountability metrics. Once data are certified by an LEA following the close of the Amendment Window, they are "frozen" and cannot be amended. High Incidence is defined as students in the Other Health Impairment, Specific Learning Disability, and Speech or Language Impairment categories. Low Incidence Students are defined as those in the Autism, Deafness, Emotional Disturbance, Hard of Hearing, Intellectual Disability, Multiple Disabilities, Orthopedic Impairment, Traumatic Brain Injury, and Visual Impairment categories.

Special Education Enrollment by Category												
	2023-2024						2024-2025					
	School			Los Angeles Unified			School			Los Angeles Unified		
Total Enrollment	115			529,902			114			516,685		
Students with Disabilities	# of SWD	% of Total SWD	% of Total Enrollment	# of SWD	% of Total SWD	% of Total Enrollment	# of SWD	% of Total SWD	% of Total Enrollment	# of SWD	% of Total SWD	% of Total Enrollment
Total SWD Enrollment	9	100%	7.8%	78,319	100%	14.8%	9	100%	7.9%	80,505	100%	15.6%
High Incidence	8	88.9%	7%	52,153	66.6%	9.8%	8	88.9%	7%	52,412	65.1%	10.1%
Low Incidence	1	11.1%	0.9%	26,162	33.4%	4.9%	1	11.1%	0.9%	28,084	34.9%	5.4%
Autism	1	11.1%	0.9%	18,713	23.9%	3.5%	1	11.1%	0.9%	20,802	25.8%	4%
Deaf-Blindness	0	0%	0%	4	0%	0%	0	0%	0%	7	0%	0%
Deafness	0	0%	0%	188	0.2%	0%	0	0%	0%	178	0.2%	0%
Emotional Disturbance	0	0%	0%	1,148	1.5%	0.2%	0	0%	0%	1,082	1.3%	0.2%
Established Medical Disability	0	0%	0%	0	0%	0%	0	0%	0%	1	0%	0%
Hard of Hearing	0	0%	0%	971	1.2%	0.2%	0	0%	0%	931	1.2%	0.2%
Intellectual Disability	0	0%	0%	3,393	4.3%	0.6%	0	0%	0%	3,381	4.2%	0.7%
Multiple Disabilities	0	0%	0%	965	1.2%	0.2%	0	0%	0%	1,035	1.3%	0.2%
Other Health Impairment	1	11.1%	0.9%	10,930	14%	2.1%	0	0%	0%	11,596	14.4%	2.2%
Orthopedic Impairment	0	0%	0%	533	0.7%	0.1%	0	0%	0%	434	0.5%	0.1%
Specific Learning Disability	4	44.4%	3.5%	29,615	37.8%	5.6%	4	44.4%	3.5%	29,368	36.5%	5.7%
Speech or Language Impairment	3	33.3%	2.6%	11,608	14.8%	2.2%	4	44.4%	3.5%	11,448	14.2%	2.2%
Traumatic Brain Injury	0	0%	0%	66	0.1%	0%	0	0%	0%	66	0.1%	0%
Visual Impairment	0	0%	0%	185	0.2%	0%	0	0%	0%	175	0.2%	0%

Data Source: CALPADS 8.1 FALL 1 Certified Report. This information was submitted by local educational agencies (LEAs) and charter schools to the California Department of Education (CDE) as part of the annual Fall 1 data submission in the California Longitudinal Pupil Achievement Data System (CALPADS).

**FINDINGS OF FACT IN SUPPORT OF DENIAL OF THE
RENEWAL CHARTER PETITION FOR
LEARNING BY DESIGN CHARTER
BY THE LOS ANGELES UNIFIED SCHOOL DISTRICT**

BOARD OF EDUCATION REPORT
October 14, 2025

I. INTRODUCTION

On July 18, 2025, Learning by Design Charter (“Charter School” or “Petitioners”) submitted a renewal petition application (“Renewal Petition”) to the Charter Schools Division (“CSD”) of the Los Angeles Unified School District (“LAUSD” or “District”), seeking to renew its charter to serve up to 300 students in grades TK-5 for a five-year term, July 1, 2026, to June 30, 2031. (See Exhibit 1, Learning by Design Charter Renewal Petition). Charter School currently operates on a private site (non-District owed facility) at 7019 S. Van Ness Ave., Los Angeles, CA 90047, which is served by Board District 1 and Region South.

Pursuant to the Charter Schools Act (Ed. Code § 47600 *et seq.*) and the adopted *LAUSD Policy and Procedures for Charter Schools* (“LAUSD policy” or “District policy”), LAUSD’s Board of Education (“Board”) has 90 days upon receipt of the renewal petition to either grant or deny the renewal petition unless an extension of an additional 30 days is mutually agreed upon by the parties. No later than 60 days following receipt of the renewal petition, the LAUSD Board must hold an initial public hearing to consider the level of support for the renewal petition by teachers employed by the District, other employees of the District, and parents. At the second public hearing, at which the Board will either grant or deny the charter, the petitioner shall have equivalent time and procedures to present evidence and testimony to respond to District staff’s recommendation and findings. The LAUSD Board must publish all staff recommendations, including the recommended findings regarding the renewal petition, at least 15 days before the public hearing at which the LAUSD Board will either grant or deny the renewal petition.

The District evaluates renewals petitions in accordance with the standards and criteria specified in the Charter Schools Act. Based on a comprehensive review of the Renewal Petition application and the record of performance of Charter School, as described in greater detail below, District staff has determined that Charter School has not met the requirements set forth in Education Code sections 47605, 47607, 47607.2 and/or 47611.5, and therefore recommends denial of the renewal petition.

II. CRITERIA FOR RENEWAL AND GROUNDS FOR NONRENEWAL

Upon submission, District staff comprehensively reviews each renewal petition application to determine whether the charter school has met the requirements for renewal set forth in Education Code sections 47605, 47607, 47607.2 and 47611.5. The renewal criteria prescribed in Education Code sections 47607 and 47607.2 requires a three-pronged analysis:

Criterion 1:

The Charter Schools Act provides that renewals are governed by the standards and criteria described in Education Code section 47605 applicable to initial petitions. The first criterion considered in reviewing a renewal petition requires an analysis of the following:

- Whether the petition includes a sound educational program;
- Whether the petition contains a reasonably comprehensive description of the 15 elements required for petitions;
- Whether the petition contains an affirmation of each of the conditions described in Education Code section 47605(e); and
- Whether the charter school is likely to successfully implement the program set forth in the petition. Education Code section 47607(b) provides that renewals are governed by the standards and criteria described in section 47605 applicable to initial petitions.

While Criterion 1 is similar to the criteria for a new petition, for renewal petitions, there is more information and data regarding past performance since the initial petition for establishment of the charter school was granted. Thus, soundness of the educational program and capacity for implementation are assessed through the past performance of the existing charter school as indicators of likely future performance, including any applicable benchmarks that have been established. The LAUSD Board will examine the charter school's record in four key areas of charter school performance:

- 1) Governance
- 2) Student Achievement and Educational Performance
- 3) Organizational Management, Programs and Operations
- 4) Fiscal Operations

As part of its analysis, the LAUSD Board is to assess the extent to which charter school governing board members and staff have successfully implemented the terms of their charter, addressed deficiencies, and demonstrated capacity to continue to do so in the future based on evidence of past performance.¹

Criterion 2:

The LAUSD Board is required to consider the charter school's performance on the California School Dashboard accountability indicators. Education Code sections 47607 and 47607.2 prescribe three-tiers of performance classification in which a charter school falls within one of the following categories - "high," "middle," or "low" performing. The state will publish an annual list of charter schools and their performance classification.

¹ See LAUSD policy, pp. 28-29.

The three-tier classification considers a charter school's performance on the California School Dashboard accountability indicators, with an emphasis on the measurements of academic performance. "Measurements of academic performance" refers to the state indicators included on the California School Dashboard that are based on statewide assessments in the California Assessment of Student Performance and Progress System (CAASPP), or any successor system, English Learner Progress Indicator (ELPI), or any successor system, and the College/Career Indicator (CCI). A charter school submitting a renewal petition should include in its application all evidence and data related to the charter school's performance on the California School Dashboard.

Middle Performing Charter Schools

For all charter schools that do not meet the High performing or Low performing criteria, the LAUSD Board shall consider the charter school under Middle performing criteria. (Ed. Code, § 47607.2(b)(1).) Pursuant to Education Code section 47607.2(b), the LAUSD Board shall consider the following:

- (1) The schoolwide performance and performance of all student groups of pupils served by the charter school on both the state and local indicators on the California School Dashboard;
- (2) The LAUSD Board shall provide greater weight to the performance on measurements of academic performance on the California School Dashboard;
- (3) Until January 1, 2026, the LAUSD Board shall also consider clear and convincing evidence, demonstrated by verified data, showing either of the following:
 - a. The charter school achieved measurable increases in academic achievement, as defined by at least one year's progress for each year in school, or
 - b. Strong postsecondary outcomes, as defined by college enrollment, persistence, and completion rates equal to similar peers.

Effective January 1, 2021, pursuant to Education Code section 47607.2(c)(2), the State Board of Education adopted criteria to define verified data² and identified an approved list of valid and reliable assessments.³ Staff's review of Charter School's submitted materials will be based on verified data sources and related information adopted by the State Board of Education. (Ed. Code, § 47607.2(c)(3)). Charter schools submitting verified data for this purpose must adhere to the state-approved criteria.

The LAUSD Board may deny a renewal of a Middle performing charter school pursuant to Education Code section 47607.2(b) upon making each of the following written factual findings:

- (1) The charter school has failed to meet or make sufficient progress toward meeting standards that provide a benefit to pupils of the school;

² "Verified data" means data derived from nationally recognized, valid, peer-reviewed, and reliable sources that are externally produced. (Ed. Code, §47607.2(c)(2).)

³ <https://www.cde.ca.gov/sp/ch/verifdatacrit.asp>

- (2) The closure of the charter school is in the best interest of the pupils; and
- (3) The decision provided greater weight to the performance on the measurements of academic performance.

When determining whether to deny a renewal petition under prong 1 or 2, LAUSD will consider the full oversight record of the charter school, providing greater weight to performance on the measurements of academic performance. This consideration will include a comparison to Resident Schools' performance on the measurements of academic performance (e.g., Long-term English Learner (LTEL) rates, and percentage of students Met or Exceeded Standards as measured on the CAASPP as compared to the state averages, California School Dashboard data, four-year cohort graduation rates). A list of Resident Schools is generated, based on students' addresses as reported in CALPADS.

As a Middle performing charter school, if renewed, the chartering authority (LAUSD Board) must grant a renewal for a period of five years. (Ed. Code, § 47607.2(b)(7).)⁴

Criterion 3:

Notwithstanding Criterion 1 and 2, the LAUSD Board will also consider whether the charter school's enrollment or dismissal practices are discriminatory as grounds for nonrenewal. (Ed. Code, § 47607(e).) Additionally, the LAUSD Board shall consider whether the charter school has substantial fiscal or governance factors as grounds for nonrenewal. (*Id.*)

Specifically, the LAUSD Board may deny renewal of any charter petition, regardless of whether the charter school satisfies the High, Middle, or Low performing criteria, upon a finding that either:

- (1) The charter school is demonstrably unlikely to successfully implement the program set forth in the renewal petition due to either:
 - (a) Substantial fiscal factors, or
 - (b) Substantial governance factors.

Pursuant to the District Policy, substantial fiscal factors may include, but are not limited to, issues related to the charter school's fiscal solvency, mismanagement of funds, cash flow concerns, or outstanding financial liabilities owed to the District and/or others (e.g., contractual obligations, judgments/settlements, unpaid bills or debts, fee-for-service arrangements, facilities related costs, Prop. 39 over-allocated space reimbursements, etc.). Substantial governance factors may include, but are not limited to, issues related to the retention of faculty (such as school leadership and teachers) which rise to the level of disruption of delivery of educational programs; conflicts of interest; or, violations of the Brown Act or California Public Records Act.

- (2) The charter school is not serving the pupils who wish to attend.

⁴ See LAUSD policy, p. 35.

Upon a finding that the charter school is not serving all pupils who wish to attend, LAUSD must identify evidence supporting this finding, including aggregate data reflecting pupil enrollment patterns at the charter school. (Ed. Code, § 47607(d).)⁵

Prior to a nonrenewal determination pursuant to number 1 or 2 noted above, LAUSD shall provide the charter school with at least 30 days' notice of the alleged violation and provide the charter school with a reasonable opportunity to cure the violation, including providing an opportunity for the charter school to present a proposed corrective plan. (Ed. Code, § 47607(e).) After providing notice of the alleged violation and reasonable opportunity to cure the violation, the LAUSD Board may deny a renewal petition if it finds that either:

- 1) The corrective action proposed by the charter school has been unsuccessful, or
- 2) The violations are sufficiently severe and pervasive as to render a corrective action plan unviable.

III. FINDINGS OF FACT IN SUPPORT OF DENIAL OF CHARTER RENEWAL

Based on a comprehensive review of Charter School's Renewal Petition application and Charter School's record of academic and fiscal performance, District staff recommends that the LAUSD Board **deny** the renewal and adopt these *Findings of Fact In Support of Denial of the Renewal Charter Petition for Learning by Design Charter* based on the following ground(s):

- Petitioners are demonstrably unlikely to successfully implement the program set forth in the renewal petition due to substantial fiscal factors. (Ed. Code, § 47607(e).) (Criterion 3)
- Petitioners are demonstrably unlikely to successfully implement the program set forth in the Renewal Petition. (Ed. Code § 47605(c)(2).) (Criterion 1)
- The Renewal Petition does not contain reasonably comprehensive descriptions of all required elements. (Ed. Code, § 47605(c)(5).) (Criterion 1)
- As a Middle performing charter school, Learning by Design Charter fails to meet or make sufficient progress toward meeting standards that provide a benefit to pupils of Charter School. (Ed. Code § 47607.2(b).) (Criterion 2)

A. Charter School is demonstrably unlikely to successfully implement the program set forth in the Renewal Petition due to substantial fiscal factors (Ed. Code § 47607(e)), as indicated by the following findings:

On July 15, 2025, the District issued Charter School a Notice of Alleged Violations ("Notice") pursuant to Education Code section 47607(e). (See Criterion 3 above.) The Notice provided facts to identify substantial fiscal factors and concerns regarding Charter School's weak fiscal condition and fiscal insolvency and outlines the legal bases for corrective actions. The

⁵ See LAUSD Policy, pp. 37-38.

District's Notice also indicated that failing to take corrective actions in response to the Notice could lead to LAUSD's recommended denial of Charter School's renewal petition based on either of the following findings: (1) the corrective action has been unsuccessful; or (2) the violations are sufficiently severe and pervasive as to render a corrective action plan unviable. (Ed. Code, § 47607(e).) Attached herein is a copy of the Notice along with the accompanying documentation. (See Exhibit 2, District's Notice of Alleged Violations)

The District requested that Charter School provide a response to the Notice by August 18, 2025, as consistent with the timeline set forth by statute. On August 27, 2025, Charter School responded to the Notice by submitting an updated budget and cash flow projections for the remainder of its charter term, covering Fiscal Year 2025-2026 (based on an enrollment of 175). Charter School's response also included a written statement explaining how the revised financial documents would impact Charter School's instructional program and its ability to meet all of its financial obligations while carrying out school operations, as well as the steps the Charter School's Board would take to monitor the school's fiscal condition. Although Charter School's submitted budget projects a net income of \$238,832 and an ending cash balance of \$269,656, the cash flow projections indicate negative monthly cash balances in 11 of the 12 months, from July 2025 through May 2026. Additionally, based on Charter School's Fiscal Year 2024-2025 Unaudited Actuals negative net assets balance of (\$612,302), Charter School's projected financials would still result in a negative net assets balance at Fiscal Year 2025-2026 year-end. This presents a significant financial concern and leads to the conclusion that Charter School is at high risk of fiscal insolvency, and faces substantial challenges in meeting its day-to-day operational expenses due to the projected cash flow deficiency.

As explained in greater detail below, Charter School has failed to successfully address all relevant corrective actions since 2020-2021, as noted in the District's tiered intervention process. Additionally, and more current, the budget and cash flow projections submitted in August 2025 did not successfully resolve the outstanding fiscal issues identified in the Notice. Moreover, Charter School's most recent financial report (2024-2025 Unaudited Financials) shows a continued financial decline. Thus, Charter School's proposed corrective actions to date (including its response to the Notice) continue to demonstrate that its financial plan has been unsuccessful.

- a. **Weak Fiscal Condition/Negative Net Assets ("Weak fiscal condition" may include, but is not limited to, year-to-year financial fluctuations, significant net losses, and negative net assets in the current or foreseeable future fiscal years.)**

Charter School's fiscal condition is negative based on the most current annual independent audit report. As reflected in the Financial Highlights table below, Charter School reported net losses of (\$103,793) in 2022-2023 and (\$413,327) in 2023-2024, resulting in negative net assets of (\$220,962) as of June 30, 2024. As a result, Charter School did not meet the minimum recommended levels for the fund reserve (reserve for economic uncertainty), cash reserve level, current ratio, and debt ratio for Fiscal Year 2023-2024. Additionally, Charter School's monthly 2024-2025 cash flow projections submitted to the District reflect a need for additional financing, as evidenced by \$300,000 in short-term borrowing from a line of credit. Consequently, the total outstanding loan balance increased to \$410,000 as of May 31, 2025.

Furthermore, Charter School’s 2024-2025 Unaudited Actuals submitted to the District projects a net loss of (\$391,340) and negative net assets of (\$612,302), reflecting a continued financial decline with net losses reported in each of the past three years. Additionally, Charter School is projected **not** to meet any of the District-recommended financial ratio thresholds based on its 2024-2025 Unaudited Actuals. Its current weak fiscal condition and ongoing decline raise significant concerns, as projections indicate a risk of financial insolvency and unsuccessful financial plan.

FINANCIAL HIGHLIGHTS							
Learning by Design Charter	2018-2019 (Audited Actuals)	2019-2020 (Audited Actuals)	2020-2021 (Audited Actuals)	2021-2022 (Audited Actuals)	2022-2023 (Audited Actuals)	2023-2024 (Audited Actuals)	2024-2025 (Unaudited Actuals)
Net Assets	(\$429,069)	(\$416,864)	(\$124,908)	\$296,158	\$192,365	(\$220,962)	(\$612,302)
Net Income / (Loss)	(\$429,069)	\$12,205	\$291,956	\$421,066	(\$103,793)	(\$413,327)	(\$391,340)
Transfers In / Out	\$0	\$0	\$0	\$0	\$0	\$0	\$0
Prior Year Adjustment(s)	\$0	\$0	\$0	\$0	\$0	\$0	\$0
Cash and Cash Equivalents	\$198,636	\$71,447	\$100,619	\$187,002	\$304,256	\$11,450	\$30,824
Unrestricted Net Assets	(\$429,069)	(\$416,864)	(\$124,908)	\$296,158	\$192,365	(\$220,962)	(\$612,302)
Norm Enrollment Reported by the School	35	132	131	118	105	112	106
FINANCIAL RATIO ANALYSIS							
Fund Reserve (Reserve for Economic Uncertainty) (Unrestricted Net Assets/Total Expenditures) 3% - 5% and greater is recommended (depending on the school's ADA)	0.00%	0.00%	0.00%	14.51%	7.91%	0.00%	0.00%
Cash Reserve Level (Cash Balance/Total Expenditures) 5% and greater is recommended	19.02%	4.25%	5.87%	9.16%	12.50%	0.44%	1.17%
Current Ratio (Working Capital Ratio) (Current Assets/Current Liabilities) At least 1.2 or 120% is recommended	72.69%	57.56%	81.84%	152.94%	98.89%	42.90%	36.22%
Debt Ratio (Total Liabilities/Total Assets) Lower than 1.0 or 100% is recommended	252.21%	191.50%	130.90%	63.79%	77.33%	140.20%	264.52%
Note: The ratios highlighted in yellow in the table above indicate the Charter School did not meet the recommended ratios.							

b. Charter School’s Historically Low and Declining Student Enrollment Trend

Charter School’s historically low and declining student enrollment trend raises concerns as to its ability to improve its negative fiscal condition. This trend may further exacerbate financial challenges, as the Local Control Funding Formula (“LCFF”) revenue is directly tied to enrollment and Average Daily Attendance (“ADA”).

Charter School’s reported Norm Enrollment was 131, 118, 105, 112, and 106 students for Fiscal Years 2020-2021 through 2024-2025, respectively. This reflects a cumulative decrease of 25 students (or 19.1%) since Fiscal Year 2020-2021 and a one-year decline of 6 students (or 5.4%) in Fiscal Year 2024-2025. Charter School’s reported Norm Enrollment for Fiscal Year 2024-2025 is 106 students, which is 244 students (or approximately 69.7%) below its approved enrollment capacity in Charter

School's operative charter (i.e., 350 students). Additionally, Charter School reported 2024-2025 P-1 ADA of 101.87 and P-2 ADA of 106.96, respectively.

The tables below summarize Charter School's projected enrollment in its operative charter and its Norm Enrollment since Fiscal Year 2020-2021, reflecting that Charter School has been under-enrolled for four of the five fiscal years. Historically low and declining student enrollment further undermines Charter School's financial plan, as reduced enrollment directly decreases revenue, making its plan and corrective actions unsuccessful, and thus, heightening the risk of fiscal insolvency.

Table 1: Charter School's Enrollment Rollout Plan as Outlined in Its Operative Charter					
Grade Level	2020-2021	2021-2022	2022-2023	2023-2024	2024-2025
TK/K	100	100	100	100	100
1	50	50	50	50	50
2	50	50	50	50	50
3	50	50	50	50	50
4		50	50	50	50
5			50	50	50
Total Projected Enrollment (A)	250	300	350	350	350

Table 2: Charter School's Norm Day Enrollment History					
Grade Level	2020-2021	2021-2022	2022-2023	2023-2024	2024-2025
TK*			5	7	3
K*	17	16	11	15	12
1	24	18	13	19	18
2	20	22	16	15	16
3	19	21	25	15	16
4	28	16	18	25	12
5	23	25	17	16	29
Total Enrollment (B)	131	118	105	112	106
Increase/(Decrease) in the # of Students Enrollment from Prior Year	N/A	(13)	(13)	7	(6)

Table 2: Charter School's Norm Day Enrollment History					
Grade Level	2020-2021	2021-2022	2022-2023	2023-2024	2024-2025
% Increase/(Decrease) in the # of Students Enrollment from Prior Year	N/A	(9.9%)	(11.0%)	6.7%	(5.4%)
Under-Enrollment (Enrollment Rollout Plan vs Norm Day Enrollment) (B)-(A)	(119)	(182)	(245)	(238)	(244)
*Prior to FY 2022-2023, TK (Transitional Kindergarten) and K (Kindergarten) counts were reported together. Therefore, the K counts include the TK counts for the school years prior to 2022-2023.					

See District staff's analysis of Charter School's current enrollment in section B below.

c. Ongoing Financial Sustainability Concerns at Charter School

Due to the anticipated impact of Charter School's current financial trajectory on the sustainability of its operations—along with ongoing fiscal concerns related to its deteriorating financial condition, negative unrestricted net assets, and historically low and declining student enrollment—the District has engaged in tiered intervention and issued multiple notices to Charter School relating to the foregoing. (See the **summary table below**.) The District first issued a Notice of Concern on August 3, 2020, followed by a second Notice of Concern on June 25, 2024, citing Charter School's

weak financial condition and low and declining enrollment. Although Charter School temporarily addressed the concerns identified in these notices at the time, the same or similar issues have since resurfaced and continue to persist. The District remains concerned about Charter School's ability to maintain a positive net assets balance and its ongoing reliance on borrowed funds to sustain adequate cash flow.

Most recently, on March 31, 2025, the District issued a Notice to Cure, requiring immediate action by Charter School's governing board ("Charter School Board") to address the ongoing fiscal and enrollment challenges. On April 21, 2025, the Charter School Board submitted a response that included a revised budget and cash flow projections for Fiscal Years 2024-2025 and 2025-2026. In reviewing Charter School's response and submitted budget and cash flow projections, the District notes that Charter School's assumptions include an enrollment of 132 students and ADA of 126.72 for Fiscal Year 2024-2025. However, Charter School's monthly classification reports submitted to the District show actual enrollments of 121 and 118 students for months nine and ten (April and May 2025), respectively.

Given Charter School's historical enrollment trends, its current revenue projections appear unrealistic and unreasonable, raising concerns about the overall reliability of the revised budget submitted to the District. As noted above, the Fiscal Year 2024-2025 Unaudited Actuals further substantiate these concerns regarding Charter School's financial condition. Consequently, Charter School's budget and cash flow projections lack credibility, do not reflect a viable financial or corrective action plan. This raises serious concerns about Charter School's ability to remain fiscal solvent and meet its operational obligations.

As discussed above, in response to the ongoing oversight concerns since Charter School's inception, the District issued multiple fiscal-related notices, summarized below.

Date	Type of Notice (NOC or NTC)	Issue/Topic	Resolved (Y/N)
8/3/2020	Notice of Concern	Charter School's weak fiscal condition (reporting negative net assets since its inception, from 2018-2019 through 2020-2021).	Yes (temporarily)
10/11/2021	Follow-Up Letter to the 8/3/2020 Notice of Concern, and Charter School's response	Charter School's negative fiscal condition and low enrollment. Based on the enrollment site visit, the District continues to have concerns regarding Charter School's student enrollment. Additionally, Charter School reported a negative net asset balance of (\$109,908) as of June 30, 2021, based on its Unaudited Actuals submitted to the District.	Yes (temporarily)

Date	Type of Notice (NOC or NTC)	Issue/Topic	Resolved (Y/N)
6/25/2024	Notice of Concern	Charter School's deteriorating fiscal condition and low student enrollment issues.	No
3/31/2025	Notice to Cure	Charter School's deteriorating financial condition/negative unrestricted net assets; and low and continued declining student enrollment.	No
7/15/2025	Notice of Alleged Violations	Charter School's weak fiscal condition and low and declined student enrollment (recurring issues), ongoing financial sustainability concerns at the charter school.	No

Charter School's responses to the recent Notices issued in 2024 and 2025 do not appear to present a viable and realistic path to long-term fiscal solvency or enrollment growth/stability. The ongoing and unresolved nature of these issues/factors demonstrates that Charter School's financial plans and corrective actions have been unsuccessful, making it demonstrably unlikely to successfully implement its educational program during the proposed charter term.

d. Lack of Fiscal Management Capacity and Governing Board Oversight

Charter School has demonstrated both a lack of fiscal management capacity and inadequate financial oversight by its governing board. Charter School's Board is ultimately responsible to ensure that Charter School operates in a fiscally sound manner and maintains an appropriate fiscal management system. To date, Charter School has failed to implement effective financial oversight and/or take appropriate corrective actions in response to its ongoing fiscal and enrollment issues. This combination of weak fiscal management and insufficient governance oversight has significantly contributed to Charter School's financial distress, as reflected in its negative net assets, continued reliance on short-term borrowing, and unrealistic financial projections. Charter School's response to the Notice dated July 15, 2025, above did not include supporting evidence of review or approval by Charter School Board prior to submission, highlighting a lack of governance board oversight over significant fiscal concerns raised by the District. These ongoing deficiencies provide supporting evidence that Charter School has not taken appropriate corrective actions to address its financial issues and is demonstrably unlikely to successfully implement the educational program described in its renewal petition due to substantial fiscal factors.

The findings outlined above (subsections a, b, c, and d)—including Charter School's weak financial condition since inception, recurring negative fund balances over the past two school years, ongoing financial decline, historically low and declining student

enrollment, unreliable budget and cash flow projections, and weak fiscal management and insufficient board oversight over significant fiscal concerns raised by the District—present a serious financial risk. These factors suggest that the school faces a high risk of insolvency and may struggle to cover its day-to-day operational expenses due to the projected cash flow shortfall. District staff recommends that the LAUSD Board deny the Renewal Petition for Charter School. Staff’s recommendation is based on supporting evidence that the corrective actions proposed by Charter School have been unsuccessful and the Petitioners are demonstrably unlikely to successfully implement the program set forth in the renewal petition due to substantial fiscal factors. These factors, which have been repeatedly raised and documented (including the Notice) throughout Charter School’s current charter term via LAUSD’s tiered oversight process, remain unresolved and significantly undermine Charter School’s ability to sustain and deliver a stable and effective educational program.

B. Petitioners are demonstrably unlikely to successfully implement the program set forth in the Renewal Petition (Ed. Code § 47605(c)(2)), as indicated by the following findings:

In evaluating whether a petitioner is demonstrably unlikely to successfully implement⁶ the program set forth in the renewal petition, the LAUSD Board assesses a variety of factors. (See LAUSD policy, pgs. 12-13.) Based on the grounds and analyses set forth below, the Petitioners are demonstrably unlikely to successfully implement the program set forth in the Renewal Petition. (Ed. Code, § 47605(c)(2).)

a. Unreasonable Petition Budget and Cash Flow Projections

Petitioners have presented an unreasonable and unrealistic financial plan in support of Charter School’s Renewal Petition application:

- o The budget submitted with the renewal petition relies on overly optimistic enrollment assumptions and revenue projections that are not supported by Charter School’s historical performance trends. Despite a consistent pattern of under-enrollment and a multi-year decline in student numbers (as described in the “Charter School’s Historically Low and Declining Student Enrollment Trend” section above), Charter School projects a significant enrollment increase. Petitioners did not provide a comprehensive evidence-based plan detailing how Charter School intends to achieve the increased enrollment projections for the current year and the upcoming charter term, which directly drive the projected revenue increases. As a result, given Charter School’s current negative financial condition—a fund balance of (\$612,302) according to the 2024-2025 Unaudited Actuals report—it is unlikely that Charter School will meet its financial projections. This, in turn, jeopardizes its ability to meet its financial obligations, sustain operations, and successfully implement its educational program throughout the charter term.

⁶ The policy for "demonstrably unlikely to successfully implement the program" includes factors and guidance promulgated by the State Board of Education. See Title 5 California Code of Regulations, section 11967.5.1.

Charter School's five-year cash flow budget projections, submitted with the Renewal Petition, are based on the following projected student enrollment:

ENROLLMENT ROLLOUT PLAN						
LbD will begin the school year in August 2025 with 175 students in TK-5th grades, adding approximately 21 - 26 students each year until reaching full capacity at 300 students in grades TK/K-5 by 2030-31. While we cannot with 100% accuracy predict enrollment for each year, for purposes of planning our budgets and operations conservatively, the following are our enrollment projections for the term of this charter;						
	2025-26	2026-27	2027-28	2028-29	2029-30	2030-31
TK	25	40	42	45	47	48
Kinder	25	26	50	45	47	48
Grade 1	25	26	26	50	47	48
Grade 2	25	26	26	27	52	50
Grade 3	25	28	26	27	27	52
Grade 4	25	26	26	27	27	27
Grade 5	25	26	26	27	27	27
Total	175	196	222	248	274	300

Charter School projects 175 students for Fiscal Year 2025-2026 in the budget submitted with its Renewal Petition, which represents a 65% increase in enrollment from the previous year (i.e., 106 per the Fiscal Year 2024-2025 Norm Enrollment data). For 2026-2027, Charter School projects 196 students, representing a 12% increase from the 2025-2026 projection. It is important to note that Charter School has experienced an accumulated enrollment decline of 25 students (19.1%) since Fiscal Year 2020-2021, based on the past five years of Norm Enrollment data. Over the past three years, Charter School's actual enrollment has averaged 107 students. Its enrollment projections appear unrealistic, raising concerns that the budget for the renewal charter term may likely be unrealistic and unreasonable.

The Pupil Estimates for New or Significantly Expanding Charter Schools ("PENSEC") report submitted to the District on July 14, 2025, projects a student enrollment of 175, including the reasoning as: "A local charter school closed as of June 30, 2025. They had 300 students enrolled and 30% of those displaced students have already enrolled into Learning by Design Charter School." Based on District staff's student count at the school site on August 28, 2025, 165 students were present, and Charter School reported 17 students absent. While the current enrollment for Fiscal Year 2025-2026 (final year of the current term) is relatively closer to Charter School's projection, which increases from 175 to 300 students for Fiscal Year 2025-2026 through 2030-2031—an increase of over 71% in the five-year renewal charter term—appear overly optimistic and unrealistic, given the historical enrollment trends of both Charter School and the District. Though Charter School's enrollment showed

an increase in Fiscal Year 2025-2026, past trends suggest that Charter School may struggle to sustain or further increase enrollment in the renewal charter term. This raises concerns that the budget submitted for the renewal charter term may likewise be unrealistic and unreasonable.

- O The comparison between Charter School's 2025-2026 Preliminary Budget, submitted to the District in June 2025, and the 2025-2026 budget submitted with the renewal petition in July 2025, shows significant variances—including a 23% increase in total revenue and a 191% increase in net income in the budget submitted with the renewal petition. Given the short timeline between these two submissions, these discrepancies raise serious concerns about the reasonableness and credibility of the submitted budget, particularly with respect to Charter School's solvency.
- O Based on staff's review, the renewal petition projects a beginning cash balance of \$605,298 for Fiscal Year 2025-2026, which is based on the Charter School's May 2025 monthly cash flow report. This projection is based on substantial revenue for June 2025 and appears unrealistic and unreasonable, especially given Charter School's history of overestimating June revenues compared with actual amounts received in prior years. As evidenced by Charter School's Fiscal Year 2024-2025 Unaudited Actuals, submitted in August 2025, the reported cash balance of \$30,824 as of June 30, 2025, presents a significant variance from the \$605,298 cash balance reported to the District in July 2025, as noted above.
- O Additionally, the submitted Renewal Petition budget and cash flow projections contain apparent errors or inconsistencies. The District's review of the cash flow projections identified a discrepancy in the projections for Fiscal Years 2029–2030 and 2030–2031. Specifically, the beginning cash balance for Fiscal Year 2029–2030 does not align with the ending cash balance projected for Fiscal Year 2028–2029. These inconsistencies significantly affect the projected cash balances in the subsequent years and raises concerns about the overall reliability of the cash flow projections. As a result, the submitted budget and cash flow projections appear inaccurate and fiscally unreliable.
- O Based on staff's review, the cash flow projections submitted with the renewal petition does not account for any financing activity related to Charter School's line of credit, which carried an outstanding balance of \$410,000 as of May 31, 2025. According to Charter School's May 2025 monthly financial report, a partial repayment of \$290,000 was projected to be made in June 2025. However, this payment is not reflected in the budget or cash flow projections submitted with the renewal petition, and it remains unclear whether the payment was made, as well as the current status or remaining balance of the line of credit.

Therefore, as established above, the Petitioners are demonstrably unlikely to successfully implement the program set forth in the Renewal Petition. (Ed. Code, § 47605(c)(2).)

C. The Renewal Petition does not contain reasonably comprehensive descriptions of all required elements. (Ed. Code, § 47605 (c)(5).) (Criterion 1)

A renewal petition must contain a reasonably comprehensive description of each of the 15 elements required by Education Code section 47605(c)(5). Reasonably comprehensive descriptions are expected to be substantive, address all aspects of the elements, and be specific to the renewal petition being proposed. The Renewal Petition does not contain reasonably comprehensive descriptions in compliance with the law, as discussed in greater detail below. (See Exhibit 1, Learning by Design Charter Renewal Petition)

a. Educational Program (Element 1)

The Renewal Petition fails to describe how Charter School's educational program will fully support the needs of its students. More specifically, the Local Control Funding Formula (LCFF) tables do not contain descriptions of all the State's Priorities. The narrative does not contain the required allocation for Designated English Language Development time for English Learners.

b. Description of the Charter School's Governance Structure (Element 4)

The Renewal Petition does not provide an adequate description of the governance structure including what constitutes a quorum for governing board action.

c. Description of the Charter School's Admission Policies and Procedures (Element 8)

The Renewal Petition does not adequately identify and explain Charter School's lottery preferences and procedures and fails to include any supporting rationale, methods of communication, open enrollment periods, and priority criteria.

d. Description of the Charter School's Student Suspension and Expulsion Procedures (Element 10)

The Renewal Petition fails to address due process for suspensions and expulsions, tiered behavior intervention, Restorative Justice Practices, and alternatives to suspensions.

D. Learning by Design Charter failed to meet or make sufficient progress toward meeting standards that provide a benefit to pupils of Charter School. (Ed. Code § 47607.2(b).) (Criterion 2)

Charter School has been identified by the California Department of Education (CDE) as a Middle performing charter school.⁷ While giving greater weight to Charter School's performance on the measurements of academic performance, the District staff finds that Charter School has failed to meet or make sufficient progress toward meeting standards that provide a benefit to the pupils of Charter School, and that closure of Charter School is in the best interest of pupils.

⁷ The list of charter schools and their respective performance categories, as determined by the criteria outlined in AB 1505, published by CDE's Charter Schools Division is available at <https://www.cde.ca.gov/sp/ch/cspformcategory.asp>.

1. Academic Performance Analysis

a. California School Dashboard English Language Arts Indicator

In 2022 and 2023 in English Language Arts (ELA), the charter school's Distance from Standard (DFS) was lower than the state for All Students, and lower than the state for all numerically significant student groups. In 2024 in ELA, the charter school's DFS was higher than the state for All Students, and higher than the state for all numerically significant student groups. Overall, the charter school performed lower than the state in ELA. (See Exhibit 3, Learning by Design ELA California Dashboard Data Set).

Learning by Design Charter - English Language Arts Indicator - 2021-2022

Student Group	Charter Participation Rate	Charter Level	Charter ELA (DFS)	State Level	State ELA (DFS)	Charter to State Comparison (DFS)
All Students	Not Met	Very Low	-89.4	Low	-12.2	Lower
Black or African American	Not Met	Very Low	-102.6	Low	-57.7	Lower
Socioeconomically Disadvantaged	Not Met	Very Low	-99.3	Low	-41.4	Lower

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

Learning by Design Charter - English Language Arts Indicator - 2022-2023

Student Group	Charter Participation Rate	Charter Color	Charter ELA (DFS)	Charter Change	State Color	State ELA (DFS)	Charter to State Comparison (DFS)
All Students	Met	Yellow	-67.4	24.3	Orange	-13.6	Lower
Black or African American	Met	Orange	-70.1	37.1	Orange	-59.6	Lower
Socioeconomically Disadvantaged	Met	Orange	-77.6	25.3	Orange	-42.6	Lower

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

Learning by Design Charter - English Language Arts Indicator - 2023-2024

Student Group	Charter Participation Rate	Charter Color	Charter ELA (DFS)	Charter Change	State Color	State ELA (DFS)	Charter to State Comparison (DFS)
All Students	Met	Yellow	-11.9	55.5	Orange	-13.2	Higher
Socioeconomically Disadvantaged	Met	Yellow	-18.7	59.0	Orange	-40.9	Higher

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

2. Charter School's Verified Data Does Not Provide Clear and Convincing Evidence of Measurable Increases in Academic Achievement.

In addition to considering the schoolwide performance and performance of numerically significant student groups of pupils served by Charter School on both the state and local indicators on the California School Dashboard, and providing greater weight to the performance on measurements of academic performance on the Dashboard as part of the renewal consideration, the District must

also consider clear and convincing evidence, *demonstrated by verified data*, showing that Charter School achieved measurable increases in academic achievement, as defined by at least one year's progress for each year in school.

Charter School provided data from "MAP Growth by NWEA, Grades K-12" (NWEA) *Student Growth Summary Report* in Reading, Language Usage (2022-2023), and Math. NWEA is an adopted academic progress indicator approved by the State Board of Education (SBE) to be on the verified data list. Per NWEA, this assessment only reports data disaggregated by grade levels.

Per Education Code section 47607.2 (c)(2), the State Board of Education established criteria to define verified data. To be eligible for inclusion as verified data, a data source (e.g., assessment or postsecondary outcome) must include the results of at least 95 percent of eligible students. The *Student Growth Summary Report* provided by Charter School in Reading does not provide a participation rate on the report, however it does include the total number of "growth events"⁸ on the reports. In 2024-2025 Charter School had a norm enrollment of 106 students and the NWEA Reading report indicates that the school had 65 growth events (61.3%) In 2023-2024 and 2022-2023, the participation rates were approximately, 65.2% and 70.5%, respectively. Thus, the assessment data for all three years does not appear to include at least 95% of eligible students.

Per the California SBE's May 2023 Agenda Item #02, publisher guidance states, "A CGI range of -0.2 to 0.2 (or greater) could be used as an approximation of one year's growth (or more) in a subject, as the overall average growth of students would be generally consistent with the amount of growth observed by students in the same grade and subject with the same starting achievement level receiving a similar amount of instructional exposure."

English Language Arts

Reading

Charter School provided data for 2022-2023, 2023-2024 and 2024-2025 (Fall to Spring administration) for Grade Levels Kindergarten, Grade 1, Grade 2, Grade 3, Grade 4, Grade 5. Charter School did **not** provide student group reports for consideration as verified data. (See Exhibit 4, Learning by Design Charter NWEA Reading Verified Data)

The 2024-2025 disaggregated data outcomes are represented in the table below showing overall Grade 1 and Grade 2 Met one year's progress.

MAP Growth Reading 2024-2025				
Student Groups	Total Number of Growth Events	Map Growth CGI Range	Reading: Conditional Growth Index (CGI)	One Year's Progress
Kindergarten	*	-0.2 to 0.2	*	*
Grade 1	14	-0.2 to 0.2	0.41	Met
Grade 2	13	-0.2 to 0.2	0.94	Met
Grade 3	14	-0.2 to 0.2	-0.33	Not Met

⁸ Total Number of Growth Events: The number of students with valid growth-based test events for both terms.

MAP Growth Reading 2024-2025				
Student Groups	Total Number of Growth Events	Map Growth CGI Range	Reading: Conditional Growth Index (CGI)	One Year's Progress
Grade 4	*	-0.2 to 0.2	*	*
Grade 5	*	-0.2 to 0.2	*	*

Note: An asterisk (*) indicates that the student group consists of less than 11 students, the minimum size for reporting.

Charter School also submitted verified data using NWEA for the 2022-2023 and 2023-2024 school years. Based on NWEA's CGI range of -0.2 to 0.2, Charter School Met the one year's progress for a majority of grade levels.

English Language Arts Language Usage

Charter School provided data for Language Usage from "MAP Growth by NWEA, Grades K-12" (NWEA) *Student Growth Summary Report* for 2022-2023 (Fall to Spring administration) for Grades Grade 2, Grade 3, Grade 4 and Grade 5. Based on NWEA's CGI range of -0.2 to 0.2, Charter School did not meet the one year's progress for a majority of grade levels, and the participation rate was approximately 51.4%, which is significantly less than at least 95% of eligible students. Charter School did **not** provide student group reports for consideration as verified data. (See Exhibit 5, Learning by Design Charter NWEA Language Usage Verified Data)

3. Closure of Charter School is in the best interest of pupils.

The District weighed various factors in determining whether closure of Charter School is in the best interests of students. Following consideration of Charter School's schoolwide performance and performance of its numerically significant student groups on the Dashboard, while providing greater weight to performance on measurements of academic performance, and considered the lack of clear and convincing evidence showing Charter School achieved measurable increases in academic achievement, especially in ELA, defined as one year's progress for each year of the school, the District conducted a further analysis and has also considered the performance of Resident Schools where students may otherwise attend, and determined that non-renewal and closure of Charter School is in the best interest of its students.

The District's consideration included a comparison to Resident Schools' performance on the measurements of academic performance, including California School Dashboard data and California Assessment of Student Performance and Progress (CAASPP). Based on the charter school's performance on California School Dashboard in ELA and the submitted verified data by the charter school, Staff conducted a further analysis of ELA in comparison to the Resident Schools Median (RSM).⁹ (See Exhibit 6, Learning by Design Charter 3 year RSM Data Set).

⁹ Per LAUSD Policy, a Resident Schools Median analysis is conducted for charter schools classified as Middle Performing, when determining whether closure of the charter school is in the best interest of pupils, among other factors.

a. Resident School Medians CA School Dashboard Indicator Student Group Comparison Analysis

English Language Arts RSM

As reflected in the tables below, in 2022 and 2023, Learning by Design Charter was lower than the RSM for All Students, and for a majority of numerically significant student groups. In 2024, Learning by Design Charter was higher than the RSM for All Students and for its one numerically significant student group.

Learning by Design Charter 2021-2022 English Language Arts (Grades 3-8 and Grade 11) Academic Indicator Medians - CA School Dashboard Indicator							
Student Group	Number of Students with Scores	Charter Status Level	Charter (DFS)	Resident Schools Number of Students with Scores	Resident Schools Median Status Level	Resident Schools Median (DFS)	Charter to Resident Schools Median Comparison (DFS)
All Students	48	Very Low	-89.4	430	Low	-55.9	Lower
Black or African American	36	Very Low	-102.6	124	Low	-76.7	Lower
Socioeconomically Disadvantaged	46	Very Low	-99.3	407	Low	-57.2	Lower

Data Sources: California School 2022 Dashboard Research data files. 2024-2025 Resident Schools used for comparison.

Learning by Design Charter 2022-2023 English Language Arts (Grades 3-8 and Grade 11) Academic Indicator Medians - CA School Dashboard Indicator							
Student Group	Number of Students with Scores	Charter Color	Charter (DFS)	Resident Schools Number of Students with Scores	Resident Schools Median Color	Resident Schools Median (DFS)	Charter to Resident Schools Median Comparison (DFS)
All Students	51	Yellow	-67.4	430	Orange	-54.4	Lower
Black or African American	34	Orange	-70.1	134	Orange	-83.2	Higher
Socioeconomically Disadvantaged	45	Orange	-77.6	405	Orange	-55.4	Lower

Data Sources: California School 2023 Dashboard Research data files. 2024-2025 Resident Schools used for comparison.

Learning by Design Charter 2023-2024 English Language Arts (Grades 3-8 and Grade 11) Academic Indicator Medians - CA School Dashboard Indicator							
Student Group	Number of Students with Scores	Charter Color	Charter (DFS)	Resident Schools Number of Students with Scores	Resident Schools Median Color	Resident Schools Median (DFS)	Charter to Resident Schools Median Comparison (DFS)
All Students	54	Yellow	-11.9	454	Yellow	-48.1	Higher
Socioeconomically Disadvantaged	45	Yellow	-18.7	425	Yellow	-49.7	Higher

Data Sources: California School 2024 Dashboard Research data files. 2024-2025 Resident Schools used for comparison.

b. California School Dashboard Chronic Absenteeism Indicator

In 2022, on the Chronic Absenteeism Indicator, Charter School's rate of chronic absenteeism was lower than the state for All Students and for all numerically significant student groups. However, in 2023 and 2024, the charter school's rate was higher than the state for All Students, and for all numerically

significant student groups. Of particular concern is that the data in 2024 demonstrates increases for All Students and all numerically significant students groups. Furthermore, All Students increased from 1.6% in 2022 to 57.4% in 2024. The percentage of chronically absent students by student group is also concerning, ranging from 52.3% to 74.1%. For the last two years, the number of students who were absent 10% or more of the school year at Learning by Design was substantial.

Chronio Absenteeism - CA School Dashboard Indicator																			
	Dashboard 2022					Dashboard 2023					Dashboard 2024								
Student Group	Students	Chronio Absenteeism	Status Level	State Chronio Absenteeism	School vs State	Students	Chronio Absenteeism	Change	Change Level	Color	State Chronio Absenteeism	School vs State	Students	Chronio Absenteeism	Change	Change Level	Color	State Chronio Absenteeism	School vs State
All Students	124	1.6%	Very Low	30.0%	Lower	126	44.4%	42.8	Increased	Red	24.3%	Higher	129	57.4%	12.9	Increased	Red	18.6%	Higher
African American/Black	75	2.7%	Low	42.9%	Lower	81	42.0%	39.3	Increased	Red	36.4%	Higher	65	52.3%	10.3	Increased	Red	31.3%	Higher
English Learner	15	0.0%	Very Low	33.6%	—	16	66.7%	66.7	Increased	—	26.3%	—	27	74.1%	7.4	Increased	—	20.1%	—
Latino	36	0.0%	Very Low	35.8%	Lower	43	48.8%	48.8	Increased	Red	28.4%	Higher	61	63.9%	15.1	Increased	Red	21.7%	Higher
Socioeconomically Disadvantaged	105	1.9%	Very Low	37.4%	Lower	108	46.3%	44.4	Increased	Red	29.9%	Higher	103	62.1%	15.6	Increased	Red	23.4%	Higher
Students with Disabilities	8	—	—	39.6%	—	7	—	—	—	—	33.1%	—	13	61.5%	—	—	—	26.3%	—
Two or More	12	0.0%	Very Low	25.1%	—	1	—	—	—	—	21.6%	—	2	—	—	—	—	16.2%	—

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardsources.asp?tabsection=3>)

c. CAASPP Standard Met or Exceeded Analysis

English Language Arts RSM

The review of the CAASPP Standard Met or Exceeded data for RSM indicates that Learning by Design Charter performed lower than the RSM in 2022 and 2023, and higher in 2024.

Learning by Design Charter English Language Arts/Literacy									
Grade	2021-2022 Charter Standard Exceeded and Standard Met %	2021-2022 Resident Schools Median Standard Exceeded and Standard Met %	2021-2022 Charter to Resident Comparison	2022-2023 Charter Standard Exceeded and Standard Met %	2022-2023 Resident Schools Median Standard Exceeded and Standard Met %	2022-2023 Charter to Resident Comparison	2023-2024 Charter Standard Exceeded and Standard Met %	2023-2024 Resident Schools Median Standard Exceeded and Standard Met %	2023-2024 Charter to Resident Comparison
3	14.3	23.9	Lower	21.7	23.5	Lower	56.2	31.2	Higher
4	23.1	27.1	Lower	0.0	23.5	Lower	31.0	18.2	Higher
5	9.1	26.2	Lower	46.7	28.6	Higher	47.4	29.5	Higher

IV. RECOMMENDATION

Based on the foregoing, District staff recommends that the LAUSD Board deny Charter School's Renewal Petition. The recommendation for denial is based on findings that Petitioners are demonstrably unlikely to successfully implement the program set forth in the Renewal Petition due to substantial fiscal factors; and the petitioners are demonstrably unlikely to successfully implement the educational program set forth in the Renewal Petition; and Charter School does not meet the criteria for renewal as a Middle performing charter school based on failure to meet or make sufficient progress towards meeting standards that provide a benefit to pupils of Charter

School. Additionally, the recommendation for denial is based on District staff findings that the Renewal Petition does not contain reasonably comprehensive descriptions of all fifteen required elements.

In order to deny the Renewal Petition on the grounds set forth above, the LAUSD Board must make written findings setting forth specific facts to support the denial of the renewal petition. (Ed. Code § 47605(c); Ed. Code, § 47607(e); Ed. Code, §47607.2(b)(6).) Should the LAUSD Board decide to deny renewal of the Charter School's charter, District staff recommends that the Board adopt these *Findings of Fact in Support of Denial of the Renewal Charter Petition for Learning by Design Charter* as the Board's written findings of fact in support of the denial.

Exhibits available for perusal at the following link:

<https://drive.google.com/drive/folders/1Az2JXVix7y13CliHJn0Rjb2OZXbDqK0W?usp=sharing>

EXHIBIT 1



LEARNING
BY
DESIGN

Learning by Design Charter School Charter Renewal Petition

Submitted to

Los Angeles Unified School District
Board of Education



July 18, 2025

Renewal for Five-Year Term
July 1, 2026 – June 30, 2031

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ASSURANCES, AFFIRMATIONS, AND DECLARATIONS

Learning by Design Charter School (also referred to herein as “LbD”, “District Affiliated Charter School” and “Charter School”) shall:

- Be nonsectarian in its programs, admission policies, employment practices, and all other operations. (California Education Code (hereinafter “Ed. Code”) § 47605(e)(1).)
- Not charge tuition. (Ed. Code § 47605(e)(1).)
- Not discriminate against any pupil on the basis of disability, gender, gender identity, gender expression, nationality, race or ethnicity, religion, sexual orientation, or any other characteristic that is contained in the definition of hate crimes set forth in Section 422.55 of the Penal Code, including immigration status, in any program or activity conducted by an educational institution that receives, or benefits from, state financial assistance, or enrolls pupils who receive state student financial aid.. (Ed. Code § 47605(e)(1); Ed. Code § 220.)
- Except as provided in Education Code section 47605(e)(2), admission to a charter school shall not be determined according to the place of residence of the pupil, or of the pupil’s parent or legal guardian, within this state, except that an existing public school converting partially or entirely to a charter school under this part shall adopt and maintain a policy giving admission preference to pupils who reside within the former attendance area of that school. (Ed. Code § 47605(e)(1).)
- Admit all pupils who wish to attend Charter School. (Ed. Code § 47605(e)(2)(A).)
- Except for existing pupils of Charter School, determine attendance by a public random drawing if the number of pupils who wish to attend Charter School exceeds Charter School’s capacity. Preference shall be extended to pupils currently attending Charter School and pupils who reside in the Los Angeles Unified School District (also referred to herein as “LAUSD” and “District”). Preferences shall not result in limiting enrollment access for pupils with disabilities, academically low-achieving pupils, English learners, neglected or delinquent pupils, homeless pupils, or pupils who are economically disadvantaged, as determined by eligibility for any free or reduced-price meal program, foster youth, or pupils based on nationality, race, ethnicity, or sexual orientation, and shall not require mandatory parental volunteer hours as a criterion for admission or continued enrollment. (Ed. Code § 47605(e)(2)(B).)

- Charter school shall not encourage a pupil currently attending the Charter School to disenroll from the Charter School or transfer to another school for any reason, including, but not limited to, academic performance of the pupil or because the pupil exhibits any of the characteristics described in Education Code section 47605(e)(2)(B)(iii). (Ed. Code § 47605(e)(4).)
- If a pupil is expelled or leaves Charter School without graduating or completing the school year for any reason, Charter School shall notify the superintendent of the school district of the pupil's last known address within 30 days, and shall, upon request, provide that school district with a copy of the cumulative record of the pupil, including a transcript of grades or report card, and health information. (Ed. Code § 47605(e)(3).)
- Meet all statewide standards and conduct the pupil assessments required pursuant to Education Code sections 60605 and 60851 and any other statewide standards authorized in statute or pupil assessments applicable to pupils in non-charter public schools. (Ed. Code § 47605(d)(1).)
- Consult, on a regular basis, with Charter School's parents, legal guardians, and teachers regarding the school's educational programs. (Ed. Code § 47605(d)(2).)

Charter School hereby declares that the Los Angeles Unified School District is and shall be the exclusive public school employer of the employees working at or assigned to Charter School for the purposes of the Educational Employment Relations Act (EERA), Chapter 10.7 (commencing with Section 3540) of Division 4 of Title I of the Government Code.

NOTE: This Charter contains specific "Federal, State and District Required Language" (FSDRL), including the *Assurances, Affirmations, and Declarations* section above. The FSDRL should be highlighted in gray within each Charter element or section. The final section of the Charter provides a consolidated addendum of the FSDRL. This intentional redundancy facilitates efficient charter petition review while ensuring ready access to the FSDRL for any given section of the Charter. To the extent that any inconsistency may exist between any provision contained within the body of the Charter and the FSDRL contained in the addendum, the provisions of the FSDRL addendum shall control.

Element 1 - The Educational Program

“The educational program of the charter school, designed, among other things, to identify those whom the charter school is attempting to educate, what it means to be an “educated person” in the 21st century, and how learning best occurs. The goals identified in that program shall include the objective of enabling pupils to become self-motivated, competent, and lifelong learners.” (Ed. Code § 47605(c)(5)(A)(i).)

“The annual goals for the charter school for all pupils and for each subgroup of pupils identified pursuant to Section 52052, to be achieved in the state priorities, as described in subdivision (d) of Section 52060, that apply for the grade levels served, and specific annual actions to achieve those goals. A charter petition may identify additional school priorities, the goals for the school priorities, and the specific annual actions to achieve those goals.” (Ed. Code § 47605(c)(5)(A)(ii).)

“If the proposed charter school will serve high school pupils, a description of the manner in which the charter school will inform parents about the transferability of courses to other public high schools and the eligibility of courses to meet college entrance requirements. Courses offered by the charter school that are accredited by the Western Association of Schools and Colleges may be considered transferable and courses approved by the University of California or the California State University as creditable under the “A” to “G” admissions criteria may be considered to meet college entrance requirements.” (Ed. Code § 47605(c)(5)(A)(iii).)

GENERAL INFORMATION

GENERAL INFORMATION	
The contact person for Charter School is:	Charla N. Austin-Harris Executive Director
The contact address for Charter School is:	7019 S. Van Ness Ave. Los Angeles, CA 90047
The contact phone number for Charter School is:	323-903-5712
The current address of the Charter School is:	7019 S. Van Ness Ave. Los Angeles, CA 90047
This location is in LAUSD Board District:	1
This location is in LAUSD Local District:	West
The grade configuration of Charter School is:	TK/K-5
The number of students in the first year will be:	175
The grade level(s) are:	TK/K-5
The total enrollment capacity is:	300
The type of instructional calendar is:	Traditional
The regular bell schedule for Charter School is:	8:00 - 3:00 (M, T, Th, F) 8:00 - 1:15 (W)
The term of this charter shall be from:	July 1, 2026 – June 30, 2031

Local Control Funding Formula (LCFF) Requirements

Charter School acknowledges and agrees that it must comply with all applicable laws and regulations related to AB 97 (2013) (Local Control Funding Formula) in accordance with District policies and procedures, as they may be amended from time to time. Charter School shall comply with all requirements of Education Code section 47606.5, including but not limited to the requirement that Charter School “shall consult with teachers, principals, administrators, other school personnel, parents, and pupils in developing the local control and accountability plan and annual update to the local control and accountability plan.” (Ed. Code § 47606.5(d).)

Curriculum and Instruction

Charter School shall have autonomy in their instructional programs and choice of curricular materials pursuant to District policy and consistent with the requirements of section 60000, et seq. of the Education Code, the *Williams* settlement, and aligned with California content and performance standards, including the Common Core State Standards, and CAASPP.

Transitional Kindergarten

Charter School shall comply with all applicable requirements and District policy regarding transitional kindergarten. For purposes of admission to Charter School, transitional kindergarten shall be considered a part of kindergarten, and therefore students enrolled in transitional kindergarten at Charter School shall be considered existing students of Charter School for purposes of Charter School’s admissions, enrollment, and lottery.

Academic Calendar and Schedules

Charter School shall offer, at a minimum, the number of minutes of instruction set forth in Education Code section 47612.5, and the number of school days required by California Code of Regulations, Title 5, section 11960. Charter School shall comply with all applicable District policies and procedures and provisions of LAUSD collective bargaining agreements (CBAs), as they may change from time to time, including but not limited to provisions related to work year, academic calendars, and schedules.

Mathematics Placement Act

Charter School shall comply with all applicable requirements of the California Mathematics Placement Act of 2015.

WASC Accreditation

If Charter School serves students in grades 9-12, before Charter School graduates its first class of students, Charter School shall obtain, and thereafter maintain, Western Association of Schools and Colleges (WASC) accreditation.

PROFESSIONAL DEVELOPMENT

As a District affiliated charter school, Charter School shall comply with and implement required District policies and procedures related to staff professional development.

English Learners

As a District affiliated charter school, Charter School shall implement the provisions of the District's *Master Plan for English Learners and Standard English Learners*, as it may change from time to time, and comply with all applicable federal and state laws and District policies and procedures related to the implementation of the *Master Plan for English Learners and Standard English Learners*

Gifted and Talented Students and Students Achieving Above Grade Level

Charter School shall continue to use LAUSD's Gifted and Talented Education (GATE) student identification process, adhere to District policies and procedures regarding GATE, and reimburse the District for GATE testing and processing on a fee-for-service basis

Students with Disabilities

Special Education

The District shall continue to serve the needs of students with disabilities enrolled in District affiliated charter schools in the same manner as at any other public school of the District and shall be responsible for adhering to the provisions of the IDEA, California special education laws and regulations, and District policies and procedures for special education to ensure that all students with disabilities are accorded a free appropriate public education ("FAPE") as is required of all District authorized schools.

Conversion Affiliated Charter

1. District Affiliated Charter School's Special Education Responsibilities

a. General Requirements

The District Affiliated Charter School will adhere to the provisions of the IDEA and California special education laws and regulations to ensure that all students with disabilities are accorded a free appropriate public education ("FAPE") as is required of all District authorized schools. The District Affiliated Charter School will also ensure that no student otherwise eligible to enroll in the District Affiliated

Charter School will be denied enrollment, or be required to waive their right to enrollment and/or continued attendance in a settlement agreement, on the basis of their special education status.

The District Affiliated Charter School will comply with Sections 504 and 508 of the Federal Rehabilitation Act of 1973, the Americans with Disabilities Act, and all Office of Civil Rights mandates for students enrolled in the District Affiliated Charter School.

The District Affiliated Charter School will use District forms to develop, maintain, and review assessments and Individualized Education Programs (“IEPs”) in the format required by the District and will enter accurate assessment and IEP data into the District’s designated data system (Welligent) in accordance with LAUSD policies and procedures. The District Affiliated Charter School will maintain copies of assessments and IEP materials for District review and submit to the District all required reports.

The District Affiliated Charter School shall keep daily attendance for each student which shall be reported and certified according to District policies and procedures.

The District Affiliated Charter School will participate in the state quality assurance process for special education (i.e., verification reviews, coordinated compliance self-reviews, complaints monitoring, procedural safeguards, and the local plan). The District Affiliated Charter School will participate in internal validation review (“DVR”).

The District Affiliated Charter School is responsible for the management of its personnel, programs, and services. All employees shall be hired by the District and maintain the same relationships with and through all respective bargaining units as other District employees at non-charter schools. The District Affiliated Charter School will implement the programs and services, including providing related services, required by the IEPs of the students enrolled at the District Affiliated Charter School.

b. Transferring Students

For students transferring to the District Affiliated Charter School from other school districts, District-operated schools or District authorized charters, the District will provide those related services required by the students’ IEPs immediately upon the students’ enrollment regardless of the types of service provider (i.e., school-based, NPA, or private). District Affiliated Charter School will ensure that IEP team meetings for such students will be held within thirty (30) days of the student’s enrollment in accordance with federal and state law and District policies and procedures.

c. Assessments

Unless circumstances indicate otherwise, the referral process shall include Student Support and Progress Team (SSPT) meetings to review prior interventions, accommodations, and modifications and to recommend further interventions as appropriate. The referral process shall be supported by the Response to Intervention (RtI) model approach using data to identify student strengths and weaknesses. Upon review of accumulated data, observation and review of records, the District Affiliated Charter School may determine that assessment is necessary to determine possible eligibility for special education programs and related services.

Upon a teacher or other staff member's request for assessment, the District Affiliated Charter School shall develop an assessment plan in Welligent for each student with suspected disabilities within the 15 day timeline.

Upon a parent/guardian's request for assessment, the District Affiliated Charter School will either (1) develop an assessment plan in Welligent for each student with suspected disabilities within the 15 day timeline; or (2) within 15 days convene an SSPT meeting to review and discuss the request in light of student records, acquired data and student performance. If at the end of the SSPT meeting parent/guardian agrees to waive the request for assessment, the District Affiliated Charter School shall document the agreement in writing and may attempt general education interventions through the SSPT process. If the parent/guardian does not agree to waive the request for assessment, then the District Affiliated Charter School shall develop an assessment plan in Welligent for each student with suspected disabilities within the 15 day timeline.

The LAUSD assessment plan describes the types of assessments that may be used to determine the eligibility of students for special education instruction and services. Assessments will be conducted, within legal timelines, after receiving the parents' written consent. The District Affiliated Charter School shall conduct an IEP team meeting that includes required team members within mandated timelines for each student assessed to discuss results, determine eligibility, and (if eligible) specify special education instruction and services. The District Affiliated Charter School will make decisions regarding eligibility, goals, program, placement, and exit from special education through the IEP process according to federal, state and District timelines.

d. Alternative Placements

Under limited circumstances when a District Affiliated Charter School student's needs may not be provided at the District Affiliated Charter School, the District Affiliated Charter School will consult with the District to discuss placement and service alternatives. The IEP team convened at the District Affiliated Charter School shall have the authority to make offers of a FAPE and decisions regarding the staffing and methodology used to provide special education and related services at the District Affiliated Charter School pursuant to an IEP.

e. Least Restrictive Environment

The District Affiliated Charter School will support movement of students with disabilities into less restrictive environments and increase interactions of students with disabilities with non-disabled students. The District Affiliated Charter School general program of instruction for students with disabilities shall be responsive to the required sequence of courses and related curricular activities provided for all students in the District Affiliated Charter School. Assessment and standardized testing procedures shall be implemented, including guidelines for modifications and adaptations, to monitor student progress.

f. Inclusion

The Charter is committed to achieving population balance that includes students with disabilities. The Charter will conduct outreach activities to attract and enroll a range of mild to severe special education students that is diverse and comparable with resident schools with similar demographics. The District Affiliated Charter School's outreach efforts should be geared toward aligning with the District-wide average. The District Affiliated Charter School may not refuse to admit a student based on special education eligibility, needs or services identified in the student's IEP and may not refuse or require waiver of enrollment rights based on a student's eligibility for special education. The District will make available to the District Affiliated Charter School reports indicating range of services and number of students served at individual District affiliated charter schools.

g. Staffing Requirements

The District Affiliated Charter School shall participate in available appropriate District trainings to support access by students with disabilities to the general education classroom, general education curriculum, integration of instructional strategies and curriculum adaptations to address the diverse learner, and interaction with non-disabled peers.

The District Affiliated Charter School will maintain responsibility for monitoring progress towards meeting IEP goals. The District Affiliated Charter School will assess, develop, and implement Individual Transition Plans to help students with disabilities transition to adult living in accordance with District policies and procedures.

h. Student Discipline

The District Affiliated Charter School will ensure that it makes the necessary adjustments to comply with the mandates of state and federal laws, including the

IDEA regarding discipline of students with disabilities. Discipline procedures will include positive behavioral interventions and the District's Discipline Foundation Policy. Prior to recommending expulsion and/or prior to the eleventh day of cumulative suspension for a student with disabilities, the District Affiliated Charter School will convene a manifestation determination IEP as set forth in the District's Policies and Procedures Manual. The District Affiliated Charter School will collect data pertaining to the number of special education students suspended or expelled.

2. Procedural Safeguards/Due Process Hearings

The District on behalf of and/or in conjunction with the District Affiliated Charter School may invoke dispute resolution provisions set out in the charter petition, initiate due process hearings, and/or utilize other procedures applicable to the District Affiliated Charter School if the District determine that such action is legally necessary to ensure compliance with federal and state special education laws and regulations.

In the event that a parent or guardian of a student attending the District Affiliated Charter School initiates due process proceedings, the District will be named as respondent-s. Whenever possible, the District and the District Affiliated Charter School shall work together in an attempt to resolve the matter at an early stage (informal settlement or mediation).

3. Complaints

The District will investigate and respond to all special education complaints the District receives pertaining to the District Affiliated Charter School including the District's Uniform Complaint Procedures, Office for Civil Rights and California Department of Education Special Education Compliance. The District Affiliated Charter School will cooperate with the District in any such investigations and provide the District with any and all documentation that is needed to respond to complaints.

4. Funding of Special Education

The District Affiliated Charter School will adhere to all District policies and procedures regarding special education and special education funding, as they may be amended from time to time. The District shall retain all state and federal special education funding for District Affiliated Charter School students which is allocated to the SELPA. The District shall be responsible for providing all appropriate special education and related services in accordance with all applicable state and federal laws.

5. District Responsibilities Relating to District Affiliated Charter School Special Education Program

As long as charter schools operate as public schools within the District, the District shall provide information to the school regarding District special education decisions, policies,

and procedures to the same extent as they are provided to other schools within the District.

At its discretion, the District will make available training opportunities and/or information regarding special education to District Affiliated Charter Schools.

All District schools, including District affiliated charter schools, are required to implement the District's integrated student information system which is referred to as My Integrated Student Information System (MiSiS). MiSiS is a suite of applications which is designed to capture all District student data. All District affiliated charter schools are required to utilize MiSiS.

SELF REFLECTION FOR LEARNING BY DESIGN CHARTER SCHOOL

Learning by Design (LbD) has had an overall successful journey for the past 7 years as indicated in each annual Oversight Audit Report which shows consistent growth and improvement and stability. As well, LbD has responded to feedback from CSD cooperatively and has made adjustments as needed to systems and programs knowing this feedback would ultimately result in the improvement and success of overall school functions and systems.

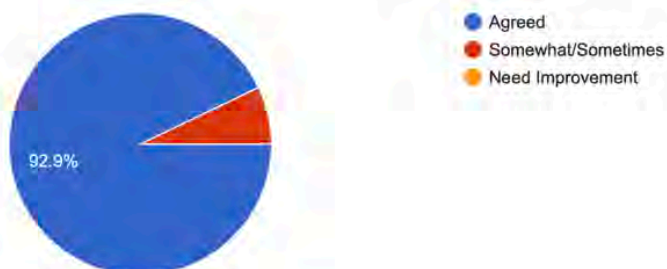
Oversight Scores

	Student Achievement	Board Governance	Organizational Management	Fiscal Operations
2018-2019	No Rating	2	1	1
2019-2020	2	2	3	1
2020-2021	No Rating	3	3	1
2021-2022	No Rating	2	3	2
2022-2023	2	3	3	2
2023-2024	2	3	3	2
2024-2025	3	2	3	*1

* Area of challenge and plan for growth and improvement

LbD has successfully and with fidelity implemented all components of its Progressive and Innovative Educational Model resulting in marked improvement in student achievement, overall family and student satisfaction, improved socio-emotional awareness and mental health of students as they consistently demonstrate their ability to access and utilize mindful problem solving skills and appropriate socio-emotional skills each day.

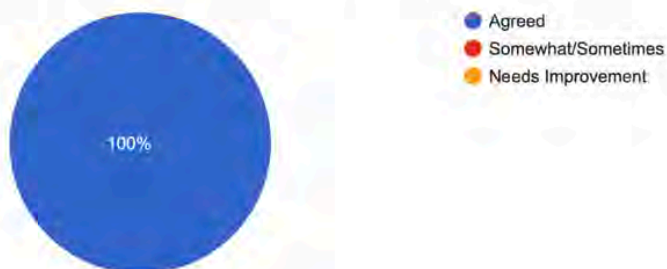
Personalized Learning Program: Learning by Design meets each student where they are and creates a plan to support both their personal growth and ac...with parents, Adaptive Online Learning solutions).



Project-Based Learning: Learning by Design provides hands-on and authentic learning opportunities for all students in varieties of ways. (i.e. Music, D... Enrichment and Clubs, Garden, Innovation, Theater).

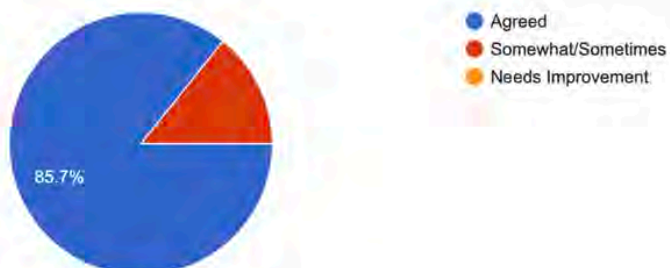


Restorative Practices: Learning by Design offers a nurturing, safe, and restorative learning environment inclusive of conflict resolution and pr...nces, Conferencing and Partnerships with parents).



Parent and Stakeholder Feedback

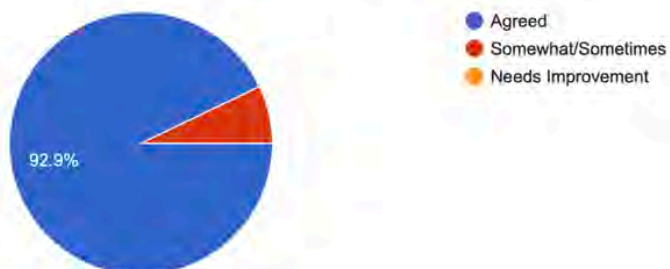
School-wide Communication: Learning by Design provides information and school updates and also responds to inquiries and concerns in a timely and c...alls, responds to emails, flyers and letters home).



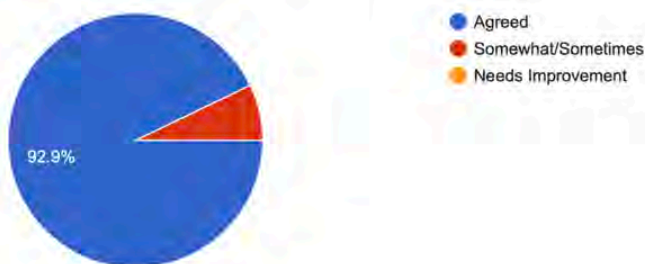
Technology: Learning by Design provides adequate access to technology for both instructional and enrichment purposes. (i.e. Chromebook, Promethean Boards, Internet).



Curriculum and Instruction: Learning by Design offers a standards-based curriculum that is accessible to all students and that supports stude...eading, Math, Science, Social Studies, Enrichment)



Intervention and Support: Learning by Design offers intervention support to students as needed and on a regular and consistent basis. (i.e. Tutoring, Individual Support in the classrooms, Foster Grandparents.)



Parent/Community Engagement: Learning by Design provides opportunities for parents and the community to engage in activities, events and decisions, fundraising, attending events and celebrations).



Socio-Emotional and Mental Health Support: Learning by Design provides opportunities for students and families to receive counseling and enrichment. (Mental Health services, workshops and trainings).



Below you will find evidence and data demonstrating the growth and improvement Learning by Design has experience in student achievement particularly over the past 2 years.

Academic Performance Data and Other Absolute and Comparative Performance Indicators

As noted in the Ed Code, “The determination made pursuant to this paragraph shall be based upon all of the following: (i) Documented and clear and convincing data; (ii) Pupil achievement data from assessments, including, but not limited to, the Standardized Testing and Reporting Program established by Article 4 (commencing with Section 60640) of Chapter 5 of Part 33 for demographically similar pupil populations in the comparison schools; (iii) Information submitted by the charter school.” (Cal. Ed. Code § 47607(b)(4)(B)).

Academic Data:

Learning by Design Charter School is Middle Performing:

CAASPP 2023-24: English Language Arts (ELA)

In ELA, the report indicates that the school “Increased” 55.5 points for All Students group and shows -11.9 points below standard. The report shows the state “Maintained” at 0.4 points and shows 13.2 points below standard. According to the report, the school has one (1) numerically significant student group; Socioeconomically Disadvantaged. In ELA, the Socioeconomically Disadvantaged student group “Increased” +59 points.

ELA	2022 Average DFS	2023 Average DFS	2024 Average DFS
LbD All Student Groups:	-89.4	-67.4 (+24.3 Increase)	-11.9 (+55.5 Increase)
LbD Socio-Disadvantaged:	-99.3	-77.6 (+25.3 Increase)	-18.6 (+59 Increase)
STATE All Students	-12.2	-13.6 (-1.4 Decrease)	-13.2 (+0.4 Increase)

LbD “All Student Groups” performed **Higher** than the State. We attribute this to our progressive project-based educational model, rigorous instructional practices and comprehensive test preparation plan.

CAASPP 2023-24: Math

In Math, the report indicates that the school “Increased” 60.1 points for All Students group and shows 1.9 points below standard. The report shows the state “Maintained” at 1.5 points and shows 47.6 points below standard. In Math, one (1) out of one (1) numerically significant student groups; Socioeconomically Disadvantaged student group “Increased” 56 points.

Math	2022 Average DFS	2023 Average DFS	2024 Average DFS
LbD All Student Groups:	-130.8	-62.1 (+75.1 Increase)	-1.9 (+60.1 Increase)
LbD Socio-Disadvantaged:	-135.0	-66.8 (+74.9 Increase)	-10.8 (+56 Increase)
STATE All Students	-51.7	-49.1 (+2.6 Decrease)	-47.6 (+1.5 Increase)

NWEA 2023-24 Results:

In Language Arts: Reading for Fall 2023 - Spring 2024, Grades 1st -5th students with growth projections met or exceeded their Growth Projections meaning they achieved 1-years growth. More specifically, 22% of Kinder students met/exceeded, 56% of 1st grade students met/exceeded, 85% of 2nd grade students met/exceeded, 45% of 3rd grade students met/exceeded, and 77% of 4th grade students met/exceeded their Growth Projections. **Overall, over 56% of all students met/exceeded** their Growth Projections meaning 56% of students showed 1-year or more growth in Language Arts: **Reading**. This shows that we are trending in the right direction with the efforts being made to improve student achievement. We will continue with plans and strategies as stated in the “Strategic Academic Plan for Increasing Test Scores.”

In Math for Fall 2023 - Spring 2024, Grades 2nd -5th students with Growth Projections met or exceeded their Growth Projections meaning they achieved 1-years growth. More specifically, 55% of Kinder students met/exceeded, 33% of 1st grade students met/exceeded, 78% of 2nd grade students met/exceeded, 92% of 3rd grade students met/exceeded, 70% of 4th grade students met/exceeded, and 75% of 5th grade students met/exceeded their Growth Projections. **Overall, over 67% of all students met/exceeded their Growth Projections meaning 67% of students showed 1-year or more growth in Math**. This shows that we are trending in the right direction with the efforts being made to improve student achievement. We will continue with plans and strategies as stated in the “Strategic Academic Plan for Increasing Test Scores.”

Success of Key and Innovative Features:

- **Garden** - Functional, sustainable, edible and flourishing school community garden where all students and families come to participate in the planing, pruning and harvesting of fruits and vegetables. These foods are used to in Culinary Arts classes where students prepare meals for family and friends for special events.
- **MakerSpace/ Innovation Lab** - where students partake in Robotics, Engineering, Coding, 3D printing, circuitry. Our students are participating in annual local Robotics competitions now and just recently placed 4th in a city wide competition.
- **School-wide Projects** - LbD students are showing their concern and expressing their ability to problem solve by engaging in this year’s school wide project which was to reimagine how you would redesign LA City to be fire resistant or provide safe spaces and escape routes for families if fires were to ever happen again. This resulted in a full panoramic display of fire resistant

homes and buildings, support buses and safe havens for animals. Students integrated design, engineering, circuitry and coding into the projects that were on display at our annual Spring Student Exhibition.

- *Speaking/Presentations* - This year, 5th grade students narrated their own graduation ceremony with speeches, presentations, writings and photo journals of their school experience on display at the graduation. The graduation was a fully immersive experience for the students and their families as they were able to see, read, and hear the students share their graduation dreams and aspirations.
- *Music/Choir* - Students played keyboards and violins and sang as a collective for the Spring Student Exhibition showcasing their musical talent developed over the school year.
- *Enrichment* - All Students have access to Music, Innovation Lab, Garden, Athletics/Sports, Mindfulness, Gymnastics, Chess providing a well-rounded and comprehensive learning experience for every child.

Success of the charter school's educational program in meeting the specific needs of its student population, including but not limited to students in numerically significant student groups:

- The culture of the school is collaborative, supportive, and collegial among all stakeholders. Everyone talks of "Family" and relationships and community. Decisions are made with input from all stakeholders. "Voice and Choice" atmosphere.
- The student-centered Constructivist philosophy supports the school's SLO's, Vision, and Mission statements. Students are happy.
- Co-and extra-curricular activities give students unique learning opportunities.
- Support for professional development and acquisition of educational materials is designed to enhance student learning. Opportunities for personal growth and advancement at all levels.
- Teachers are highly qualified and trained in the most recent educational research and instructional practices. They share professional development training and support each other to enhance student learning.
- LbD utilizes data tools giving teachers accurate and consistent information on how students are progressing, what their academic needs are, and how to move them forward toward proficiency.
- Targeted intervention support is provided daily via the Interventionists
- Kumon partnership supports students achievement by adding additional supports 2x's per week.

Challenges:

As noted above, Learning by Design has shown a steady trajectory towards growth and improvement overall. This, however, has not been without some setbacks as noted in the Oversight scores in Governance and Fiscal Management. While our Board of Directors remain actively engaged, supportive of our school, and responsive to the feedback from CSD, holding fiduciary responsibility, the fiscal condition automatically impacts Governance. However, their engagement, support and responsiveness have never compromised. Their Oversight "score" for 2024-25 is a byproduct of the School's Fiscal condition.

- *School Fiscal Condition*
 - There have been no findings of wrongdoing, mismanagement, or

misappropriation of funds in any audits Learning by Design has completed.

- As a small school, enrollment has been a challenge particularly in a climate when most schools in the area are experiencing declining enrollment. This challenge is not unique to Learning by Design. However, in 2023 and 2024, Learning by Design experienced several unfortunate circumstances that put additional financial burden on the school's finances:
 - o SB740 was not awarded to Learning by Design in 2023 due to no fault of the school's. This had a significant impact on the school's revenue and cashflow.
 - o In addition, LbD enrolled several students with extensive Special Needs. As required to do so, Learning by Design serviced the students while working with LAUSD, assessors, specialists, SPED service providers, DCFS, therapists, and attorneys to figure out to how find the appropriate placement for these students. While the goals of finding an appropriate placement was eventually met, this was after a year of trying while providing the services the students needed and paying for extensive legal fees. This ultimately cost the school over \$400,000 obviously having tremendous negative impacts on the schools fiscal condition.
 - o Attendance is also a common struggle for many schools. Inconsistent student attendance also cost the school in revenue.
 - o These 3 unfortunate circumstances left LbD in a deficit of over -\$400,000.
- HOW IS LBD ADDRESSING THIS AND IMPROVING ?
 - o LbD learned of the County's initiative to utilize Independent Study to help with capturing ADA. LbD opted to use this option and saw a marked increase in ADA for this school year.
 - o LbD also learned of the SE25 form that can be used if/when students have extensive Special Needs that the school may not be able to accommodate. If ever the school enrolls students of such significant need, we can consider the SE25 form to help expedite the process for helping with the students placement in a more appropriate setting that can adequately support their needs.
 - o We are also aware of the new option to utilize Saturday School to help capture ADA. We are planning to exercising this option along with Independent Study for 2025-26 to capture more ADA for students that struggle to attend school regularly.
 - o At this time, LbD has 175 students enrolled for the 2025-26 school year. This enrollment number will significantly improve the schools fiscal position. A **PENSEC** application has already been submitted for this enrollment and we anticipate receiving the

advancement for this enrollment.



Logoff

Pupil Estimates for New or Significantly Expanding Charters (PENSEC)

Data Submission

2025-26 Fiscal Year

(Submission deadline 7/31/2025)

County:	Los Angeles
District:	Los Angeles Unified
Charter	Learning by Design Charter School
School:	
CDS Code:	19-64733-0137513
Charter	1959
Number:	

Section 4 - Review, Submit and Certify the Data

Refer to the [instructions](#) for assistance with the items in this Section.

You have completed the data entry portion of the PENSEC report. Next you will review the report, submit the data on-line to the California Department of Education (CDE) and, if applicable, certify the data. Submissions, including signed certifications, are due to the CDE by 7/31/2025.

Data Successfully Submitted

Your school's PENSEC report was submitted on-line to the CDE on 7/14/2025 10:38:24 AM.

ADA data was not included in your report so a signed certification is not required. Your PENSEC submission is complete.

If changes to your data are subsequently needed, contact Principal Apportionment Section at csspecialadvance@cde.ca.gov or 816-324-4541.

WASC

While not required for elementary schools, LbD also will strive to achieved accreditation from the Western Association of Schools and Colleges (WASC) in 2026 school year as additional certification of the school's authenticity and satisfactory function.

ENROLLMENT ROLLOUT PLAN

LbD will begin the school year in August 2025 with 175 students in TK-5th grades, adding approximately 21 - 26 students each year until reaching full capacity at 300 students in grades TK/K-5 by 2030-31. While we cannot with 100% accuracy predict enrollment for each year, for purposes of planning our budgets and operations conservatively, the following are our enrollment projections for the term of this charter:

	2025-26	2026-27	2027-28	2028-29	2029-30	2030-31
TK	25	40	42	45	47	48
Kinder	25	26	50	45	47	48
Grade 1	25	26	26	50	47	48
Grade 2	25	26	26	27	52	50
Grade 3	25	26	26	27	27	52
Grade 4	25	26	26	27	27	27
Grade 5	25	26	26	27	27	27
Total	175	196	222	248	274	300

GOALS AND PHILOSOPHY

MISSION AND VISION

MISSION

Learning by Design is designed to foster educational equity and cultivate diverse students becoming thoughtful and courageous change makers and problem solvers of tomorrow, through a dynamic 21st Century learning experience with an emphasis on personalized and experiential/hands-on learning.

VISION

LbD envisions establishing a "school of the future" where innovative and authentic learning opportunities are the norm, not the exception. We envision a school that dramatically shifts the old paradigm of school created more than 100 years ago during the industrial revolution and instead embraces Re-imagining, Re- thinking, and Re- designing school to meet the needs of today's children and the world's rapidly changing global and tech-based economy.

AN EDUCATED PERSON IN THE 21st CENTURY

In prior years, a successful student or "educated person" had been considered one that achieved "high marks" on assignments and standardized tests and behaved in accordance to classroom and/or school wide rules. Our educational system, designed during the Industrial Age, has not

evolved on pace with changes in the workplace. Today, simply producing a student that follows directions well is far from sufficient.

It is now well-settled that the “Information Age” and now the “Knowledge Age” have dramatically impacted our world – the ways in which people communicate, access and distribute information, process and analyze data, create and express ideas and so much more have been changed forever. Rote knowledge and even complex calculations can be accessed in a matter of seconds on a handheld device. Yet the “democratization of technology” – with iPhones already 10 years old – has led to far more discussion than actual change in the ways in which we educate children and prepare them for this new world. In an ever-increasingly “flat” world, students must also be able to understand, appreciate, and effectively communicate with other cultures and societies; recognize how the decisions and practices of one group can affect the conditions of another; and comprehend how the actions of all of humanity affect the well-being of the planet that we inhabit. An education that equips students for the 21st century must foster traits such as creativity,⁵ curiosity, a thirst for learning, discernment, and interdisciplinary thinking.

Dr. Tony Wagner, the acclaimed “Expert In Residence” at Harvard University’s new Innovation Lab and a Senior Research Fellow at the Learning Policy Institute, founded by Linda Darling-Hammond in 2015, has defined a list of seven characteristics students need in the new global economy in order to build successful careers and be “good citizens,” based on conversations with “several hundred business, nonprofit, philanthropic, and education leaders” and observations of successful classrooms. The seven “survival skills” students need to master for this new world of work are:

1. **Critical Thinking and Problem Solving**

To compete in the new global economy, companies need their workers to think about how to continuously improve their products, processes, or services. . . . [T]he heart of critical thinking and problem solving is the ability to ask the right questions. . . . “Yesterday’s answers won’t solve today’s problems.” . . . “The challenge is this: How do you do things that haven’t been done before, where you have to rethink or think anew? It’s not incremental improvement any more. The markets are changing too fast.”

2. **Collaboration and Leadership**

Teamwork is no longer just about working with others in your building, [with “virtual teams” across the nation or globe.] . . . “Kids just out of school have an amazing lack of preparedness in general leadership skills and collaborative skills,” he explained. “They lack the ability to influence.”

3. **Agility and Adaptability**

[A worker today] “has to think, be flexible, change, and use a variety of tools to solve new problems. We change what we do all the time. I can guarantee the job I hire someone to do will change or may not exist in the future, so this is why adaptability

and learning skills are more important than technical skills.”

4. Initiative and Entrepreneurialism

“I say to my employees, if you try five things and get all five of them right, you may be failing. If you try 10 things, and get eight of them right, you’re a hero. You’ll never be blamed for failing to reach a stretch goal, but you will be blamed for not trying. One of the problems of a large company is risk aversion. Our challenge is how to create an entrepreneurial culture in a larger organization.

5. Effective Oral and Written Communication

“We are routinely surprised at the difficulty some young people have in communicating: verbal skills, written skills, presentation skills. They have difficulty being clear and concise; it’s hard for them to create focus, energy, and passion around the points they want to make. If you’re talking to an exec, the first thing you’ll get asked if you haven’t made it perfectly clear in the first 60 seconds of your presentation is, ‘What do you want me to take away from this meeting?’ They don’t know how to answer that question.”

6. Accessing and Analyzing Information

Employees in the 21st century have to manage an astronomical amount of information daily. . . . “There is so much information available that it is almost too much, and if people aren’t prepared to process the information effectively it almost freezes them in their steps.” It’s not only the sheer quantity of information that represents a challenge, but also how rapidly the information is changing. Quick—how many planets are there?

7. Curiosity and Imagination

“People who’ve learned to ask great questions and have learned to be inquisitive are the ones who move the fastest in our environment because they solve the biggest problems in ways that have the most impact on innovation.” Daniel Pink, the author of *A Whole New Mind*, observes that with increasing abundance, people want unique products and services: “For businesses it’s no longer enough to create a product that’s reasonably priced and adequately functional. It must also be beautiful, unique, and meaningful.” Pink notes that developing young people’s capacities for imagination, creativity, and empathy will be increasingly important⁶ for maintaining the United States’ competitive advantage in the future.

5. Thomas L. Friedman, *The World is Flat*, 2005.

6. Wagner, T., *Even Our “Best” Schools Are Failing To Prepare Students For 21st-Century Careers And Citizenship*. first published in *Educational Leadership*, October 2008 (citing Pink,

D. (2005). *A Whole New Mind: Moving From The Information Age To The Conceptual Age*. New York: Riverhead Books, pp. 32-33.)

We believe in this expanded definition of student success in the 21st Century that goes beyond performance on standardized tests to include a student's ability to articulate, construct, reason, design, debate, revise, express, critique, analyze, and prove his/her ideas and perspectives. Each of these behaviors demonstrates higher levels of thinking and deeper levels of understanding that are not necessarily be captured on a standardized test, even under the new California Common Core standards (CCSS) and Next Generation Science Standards (NGSS). LbD's definition of an educated person in the 21st century is reflected in our core values:

- **Integrity** - All the work we engage in moves us toward our goals without compromise. We work with clarity, transparency and honesty at all times.
- **Commitment** - We have an unwavering dedication and sense of responsibility to successfully achieving our goals.
- **Community and Connectedness** - We believe that we are our brother's keeper. Therefore, we can only effectively achieve our goals if we not only embrace the work, but also embrace the community for whom and with whom we are working.
- **Disruption, Unconventionality and Creativity** - We are willing to consistently challenge the status quo, step out of our comfort zone and step into the unknown – including risking failure -- to discover, improve, invent and create.
- **Growth Mindset** - We are constantly striving to grow, learn and improve by consistently holding ourselves accountable for the work that we do and the quality and impact of our efforts.

HOW LEARNING BEST OCCURS

LbD's progressive model of learning simultaneously is innovative and based on some of the most proven and successful strategies and methodologies in education. In order to ensure all of our students -- from diverse cultural and socio-economic backgrounds, but also diverse in their ways of learning and individual needs – master state content standards and our goals for an educated person in the 21st century, LbD's founder and faculty will rely on the thinking of experts such John Dewey, Jean Piaget, Lev Vygotsky, Tony Wager, Seymour Papert, Linda Darling-Hammond, and more. As John Dewey said nearly 100 years ago: "Education should be child centered; we should begin planning the lesson by looking at where the child is developmentally."⁷ At LbD, with a largely underserved population, meeting each child's needs through a personalized approach ensures that we are doing just as Dewey has suggested. Personalized learning overlaps with a number of long-established instructional philosophies, frameworks and practices.

We believe that learning should not entail a teacher delivering knowledge onto a student, but rather that people should work *with* one another in **constructing** (building upon and deepening)

knowledge.⁸ Authentic mastery of state content standards best occurs when students are given the means to explore, solve problems, reflect on situations and demonstrate their knowledge individually and in groups, allowing learners to construct their own meaning. When children actively challenge their existing beliefs, theories and perceptions, make mistakes, try again, and are engaged through conversation, hands-on activities, or experiences, meaningful learning occurs. “[T]o understand is to discover, or reconstruct by rediscovery, and such conditions must be complied with if in the future individuals are to be formed who are capable of production and creativity and not simply repetition.”⁹

We believe learning can best occur when teachers scaffold and support individual students through customized instruction to foster their individual growth. As Lev Vygotsky described in *Mind in Society: The Development of Higher Psychological Processes*, the key to a learning experience within a student’s zone of proximal development is “problem-solving under adult guidance or in collaboration with more capable peers.” Vygotsky’s zone of proximal development, defined in the 1930’s, describes the space between what a learner can do independently, and what he or she can do with support. “‘It’s the Goldilocks of cognitive challenge for students -- you don’t want it too hot, you don’t want it too cold, you want it just right,’ explains [John] Reyes, director of educational technology for the Archdiocese of Los Angeles]. ‘If we’re able to scaffold through prior knowledge, the structure of the activity and the timeframe, then we’re able to hit the cognitive sweet spot.’”¹⁰

⁷ Dewey, *Experience and Education*, 1938.

⁸ Freire, 1972.

⁹ Jean Piaget, *To Understand is to Invent* (1973).

¹⁰ Kaplan, M., *Let Learners Get in Their Zone (of Proximal Development)*, EdSurge, Aug. 1, 2017 (<https://www.edsurge.com/news/2017-08-01-let-learners-get-in-their-zone-of-proximal-development>).

We believe in developing student agency.

A 2015 Harvard University Achievement Gap Initiative report commissioned by the Raikes Foundation states that student agency “is the capacity and propensity to take purposeful initiative,” and that students who possess a high level of agency are not passive participants in their learning but active participants engaged in seeking experiences, meaning and purpose that help them achieve the accomplishments they desire.

In student-centered schools, agency means that students have a level of control and autonomy in their learning as they make choices about what, where and how they learn and show mastery

of their outcomes. Action, therefore, is the operative word in authentic student agency.¹¹

We believe that hands-on, constructivist learning and project-based learning are interactive, engaging and meaningful ways for teachers to facilitate deepen learning experiences for each student. “[T]o understand is to discover, or reconstruct by rediscovery, and such conditions must be complied with if in the future individuals are to be formed who are capable of production and

creativity and not simply repetition.”¹² Modern cognitive research has found that students learn best when they are given the opportunity to actively incorporate what they are studying into their own experiences, concepts, and understanding of how the world works. A 2005 report highlights that project-based learning is beneficial because it engages students in problem-solving and teamwork. Satchwell & Loepp indicate that students learn best when they are involved in constructing their own knowledge of the world around them.¹³14 We plan to integrate project-based instructional approaches across the curriculum, coupled with the use of technology. We believe that learning how to think and learning subject matter content are not separate processes, but rather are best developed within an authentic context. In a thinking curriculum, skills are best acquired in the context of meaningful learning experiences that build on a child’s interests.

We believe that engaging children’s natural curiosities and integrating subject content to their real world experiences helps students contextualize their learning and make it personal and

meaningful.¹⁵ If what students “know and believe is not engaged, learners may fail to grasp the new concepts and information that are taught, or they may learn for purposes of a test but not be able to apply them elsewhere, reverting to their preconceptions outside the classroom. This means that teachers must understand what students are thinking and how to connect with their prior knowledge if they are to ensure real learning.”¹⁶

We believe students must feel safe, nurtured and supported in order to learn. Students’ psycho-social development and sense of “belonging” is critical to their development as compassionate, empathetic members of society. Schools should “promote the growth of students as healthy, competent, moral people . . . [including] the discourse of responsibility, interdependent sociality, community, and commitment . . . the topics that arise in common human experience.”¹⁷

11

<http://www.gettingsmart.com/2017/04/student-agency-creating-an-integrated-and-authentic-k-12-approach/>

12

Piaget, *To Understand is to Invent*, 1973.

13.Fortus, D., Krajcikb, J., Dersheimerb, R. C., Marx, R. W., & Mamlok-Naamand, R. (2005).

Design-based science and real-world problem solving. *International Journal of Science*

Education, 855–879

14. Satchwell, R., and Loepp, F. L. (2002-Spring). Designing and Implementing an Integrated Mathematics, Science, and Technology Curriculum for the Middle School.

15 Freire, *Pedagogy of the Oppressed*, 1970.

16 Darling-Hammond, 2008.

We believe children must be fluent in technology and media as critical tools for their own learning and communication. Seymour Papert, who worked under Piaget and is regarded as “the world’s foremost expert on how technology can provide new ways for children to learn,”¹⁸ wrote:

[Looking forward, . . . we can formulate new arguments beyond the imagination of 19th-century thinkers, who could hardly have conjured images of media that would provide modes of accessing and manipulating knowledge radically different than those offered by the [three] R’s. . . . In the past, education adapted the mind to a very restricted set of available media; in the future, it will adapt media to serve the needs and tastes of each individual mind. (Wired Magazine, 2003.)

and

Many children are held back in their learning because they have a model of learning in which you have either ‘got it’ or ‘got it wrong.’ But when you program a computer you almost never get it right the first time. Learning to be a master programmer is learning to become highly skilled at isolating and correcting bugs ... The question to ask about the program is not whether it is right or wrong, but if it is fixable. If this way of looking at intellectual products were generalized to how the larger culture thinks about knowledge and its acquisition we might all be less intimidated by our fears of ‘being wrong.’¹⁹

GOALS FOR ENABLING PUPILS TO BECOME AND REMAIN SELF-MOTIVATED, COMPETENT, AND LIFELONG LEARNERS

The LbD learning model has been carefully designed to develop students to be self-motivated and competent, who view themselves as life-long learners:

- Self-motivated learners: Research has found that three elements are needed for students to be self-motivated: autonomy, mastery, and a sense of purpose. (Pink, 2010.) Through our student-centered, personalized, hands-on instruction, (autonomy) each student comes to understand that they can achieve and they can experience the rewards and confidence that come with personal achievement (mastery). As students develop confidence in their own abilities they approach

learning enthusiastically, for their own benefit and the benefit of others (purpose), fostering an authentic *self-motivation* to learn.

- Competent learners: With our focus on student achievement using real-time data to customize and personalize instruction, teachers will ensure that learning objectives are mastered by each student, ensuring competency for all students. Even our youngest students will be asked to reflect on their own learning during conferencing with teachers. Throughout their elementary years, this ongoing process will help them gain an understanding of the way they learn best, while also helping them gain the confidence to set their own learning goals and ask for what they need to ensure academic success. Students who can effectively express how they learn best can ‘own’ their education and be successful and enthusiastic life-long learners.
- Life-long Learners: Beyond mastering specific skills and facts, students will learn *how* to learn. As students actively participate in their own learning, they see the relevance and applications of their education to their daily lives. Thus, well beyond the mastery of specific skills and knowledge, students will know how to apply their learning to real-life, authentic situations in turn, developing a lifelong ability to continue to apply their learning throughout their lives.

17 Noddings, 2005.

18 Rifkin, G., *Seymour Papert, 88, Dies: Saw Education's Future in Computers*, The New York Times, August 1, 2016.

19 *Mindstorms: Children, Computers and Powerful Ideas*, 1980.

THE REQUIREMENTS OF EDUCATION CODE § 47605(c)(5)(A)(ii)

LbD will pursue the following school wide and subgroup outcome goals, based on the state priorities detailed in California Education Code § 52060(d). Student performance and achievement of school- wide, subgroup and individual student progress is measured by multiple and varied summative and formative assessments that are aligned to state and federal standards (including the new Common Core) and reflect proficiency measures required by the new California Assessment of Student Performance and Progress (CAASPP), as well as state priorities detailed in California Education Code § 52060(d).

The following chart details the Charter School’s goals as of this petition submission, for all pupils (including statistically significant subgroups) pursuant to California Education Code § 52052, for each of the eight (8) state priorities identified in California Education Code § 52060(d), including specific annual actions the school will take to achieve each of the identified annual goals. We

note that as required under the California Education Code, LbD stakeholders engage in a collaborative process each year to update and prepare an annual Local Control and Accountability Plan (LCAP) as a basis for prioritizing allocation of funds. The following is intended to be illustrative of the goals and actions LbD anticipates at this point in time.

LCFF STATE PRIORITIES (Charter Term Commencing Julv 1. 2026)	
LbD will ensure optimal conditions for learning with highly-qualified and appropriately credentialed teachers, full implementation of state standards and a safe, clean and welcoming school facilities.	Related State Priorities: ☒ 1 ☐ 4 ☒ 7 ☒ 2 ☐ 5 ☐ 8 ☐ 3 ☐ 6
	Local Priorities: ☐ :

Specific Annual Actions to Achieve Goal

Priority 1 (Basic Services)

Priority 1 Outcome 1 - Degree to which teachers are appropriately assigned pursuant to Education Code section 44258.9, and fully credentialed in the subject areas and for the pupils they are teaching.

- LbD will hire, supervise, evaluate and retain qualified teaching staff.
- LbD will ensure verification of proper credentials and DoJ clearance prior to start of employment.
- LbD will actively recruit diverse teachers and staff that reflect student demographics.

Priority 1 Outcome 2 - Pupils have access to standards-aligned instructional materials pursuant to Education Code section 60119.

- LbD will provide appropriate, standards-aligned (including CA CCSS and the academic content and performance standards) textbooks/curriculum materials.
- LbD will review alignment of instructional materials to standards.
- LbD will maintain an annual inventory of instructional materials and respective purchase of materials.
- LbD budget will be reviewed every year to ensure adequate budget for instructional materials is in place, including materials for students with special needs (EL, SpEd, GATE).

Priority 1 Outcome 3 - School facilities are maintained in good repair pursuant to Education Code section 17002(d).

- LbD facilities will be maintained and cleaned by custodial staff
- LbD will do annual and monthly facility inspections to screen for safety hazards.
- LbD will utilize Site Inspection Lists and provide daily general cleaning and spot checks by custodial staff

Priority 2 (Implementation of State Standards)

Priority 2 Outcome 1 - Implementation of academic content and performance standards and English language development standards adopted by the state board for all pupils, including English learners.

- LbD will participate in ongoing professional development on the implementation of CCSS and new CCSS-aligned assessments.
- LbD will provide CCSS-aligned ELA and math instruction using integrated and designated ELD instructional strategies to all students, including ELs.
- LbD will provide PD to teachers in collecting and examining CAASPP, NWEA MAPs, and other state and internal assessment scores via the Illuminate data system and regularly review progress to implement data-driven decision making.

Priority 7 (Course Access)

Priority 7 Outcome 1 - Pupil enrollment in a broad course of study that includes all of the subject areas described in Education Code section 51210 and subdivisions (a) to (i), inclusive, of Section 51220, as applicable. (Priority 7)

- LbD will ensure all academic areas will be available to all students, inclusive of all subgroups, and all grades.
- LbD will provide 2:1 technology (tablets) for students in TK-1 and 1:1 technology (Chromebooks) for

Expected Annual Measurable Outcomes
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Priority 1 Outcome #1: All teachers will be properly certificated and assigned.

Metric/Method for Measuring: % of teachers at LbD appropriately assigned and with appropriately credentialed personnel.

A P P I	Baseline (Based on most recent data available)	Year 1	Year 2	Year 3 of Term (Not applicable if categorized as Low)	Year 4 of Term (Not applicable if categorized as Low)	Year 5 of Term (Not applicable if categorized as Low)
Priority 1 Outcome #2: All LbD students (including all statistically significant subgroups) will have access to standards-aligned materials and technology Metric/Method for Measuring: % of LbD students who will have sufficient access to						
A P P	Baseline (Based on most recent data available)	Year 1	Year 2	Year 3 of Term (Not applicable if categorized as Low)	Year 4 of Term (Not applicable if categorized as Low)	Year 5 of Term (Not applicable if categorized as Low)
Priority 1 Outcome #3: LbD facilities will be maintained and cleaned by custodial staff and include daily spot checks and Site Inspection Lists, pursuant to Education Code section 17002(d). Metric/Method for Measuring: % of items on the Site Inspection Lists and daily spot checks						
A P P	Baseline (Based on most recent data available)	Year 1	Year 2	Year 3 of Term (Not applicable if categorized as Low)	Year 4 of Term (Not applicable if categorized as Low)	Year 5 of Term (Not applicable if categorized as Low)
Priority 2 Outcome #1: LbD will ensure the implementation of academic content and performance standards for all core subjects with 100% math and ELA Common Core Implementation. Metric/Method for Measuring: Purchased curriculum; curriculum pacing and lesson plans; teacher						
A P P	Baseline (Based on most recent data available)	Year 1	Year 2	Year 3 of Term (Not applicable if categorized as Low)	Year 4 of Term (Not applicable if categorized as Low)	Year 5 of Term (Not applicable if categorized as Low)
Priority 7 Outcome #1: All LbD students, including all significant subgroups, will have access to a broad course of student (English Language Arts, Math, Social Studies, Science, Health/PE, and the arts) outlined in the charter petition.						
A P	Baseline (Based on most recent data available)	Year 1	Year 2	Year 3 of Term (Not applicable if categorized as Low)	Year 4 of Term (Not applicable if categorized as Low)	Year 5 of Term (Not applicable if categorized as Low)

LbD will provide a personalized education to each student and	Related State Priorities: ☐ 1 ☒ 4 ☐ 7 ☐ 2 ☐ 5 ☒ 6

support student mastery of grade level content standards and the school's learning objectives.	Local Priorities: 
Priority 4 (Pupil Achievement) <i>Priority 4 Outcome 1 – Performance on standardized tests and overall schoolwide assessments such as the new state dashboard</i> - LbD will provide highly qualified instructional personnel and Resource/Support Specialists to implement high-quality instruction with continuous monitoring by the Principal. - LbD will provide comprehensive professional development to support student achievement. - LbD will analyze CAASPP, CAST, CAA, NWEA MAPs, and other state and internal assessment scores at least quarterly to review progress towards annual targets. <i>Priority 4 Outcome 2 – Share of English learners that become English proficient</i> - See above; plus: LbD will implement the LAUSD English Learner Master Plan. - LbD will provide high qualified and experienced teachers with appropriate EL authorization who will continuously monitor instruction and achievement of ELs - LbD will identify English Learners by proficiency level, ensure ELD instruction is aligned to the new standards, and monitor student progress in program implementation. - LbD will provide professional development related to EL support, including ELPAC training and redesignation criteria. - LbD will ensure re-designated ELs will continue to be supported via a multi-tiered system including support for struggling readers. <i>Priority 4 Outcome 3- English learner reclassification rate</i> - Same as Priority 4 Outcome 2 above, plus: - LbD budget will be reviewed every year to ensure adequate budget for appropriate EL instructional materials is in place. - LbD will add additional supports for our EL students through exam preparation, differentiation, teacher coaching, and additional tutoring to meet EL student instructional needs Priority 8 (Other Pupil Outcomes) <i>Priority 8 Outcome 1 - LbD will offer all students, including all subgroups, a broad course of study that includes engaging, hands-on, project-based and maker-centered learning experiences with technology and arts integration to help develop critical 21st century competencies.</i> - LbD will provide professional development to teachers on integrating hands-on/project-based/maker- centered learning across the curriculum.	
- LbD will provide resources, time and materials for all students to engage in meaningful, hands-on/project- based/maker-centered learning.	

Expected Annual Measurable						
Priority 4 Outcome 1: LbD students, including all significant subgroups, will meet or exceed targets for growth once set by the State on the CAASPP (and comparable assessments for students with special needs) in the areas of ELA and Mathematics. Metric/Method for Measuring: Scale scores and proficiency/growth targets for all students, including all numerically significant student subgroups, in ELA and Math on the CAASPP assessment system based on prior year data						
A P P	Baseline (Based on most recent data)	Year 1	Year 2	Year 3 of Term (Not applicable if categorized as Low)	Year 4 of Term (Not applicable if categorized as Low)	Year 5 of Term (Not applicable if categorized as Low)
AllStudents(Schoolwide)	50% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	55% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	60% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	65% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	70% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	75% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math
English Learners	50% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	55% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	60% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	65% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	70% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	75% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math

Socioecon. Disadv./Low Income Students	50% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	55% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	60% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	65% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	70% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	75% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math
English Learners	NA	NA	NA	N	NA	NA
Students with Disabilities	25% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	30% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	35% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	40% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	45% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	50% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math

African American Students	50% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	55% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	60% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	65% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	70% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	75% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math
American Indian/Alaska Native Students	NA	NA	NA	NA	NA	NA
Asian Students	NA	NA	NA	NA	NA	NA

	...	...	...	...	...	...
Latino Students	50% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	55% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	60% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	65% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	70% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math	75% of school wide and all significant subgroups met or exceeded targets for growth on the CAASPP in ELA and Math
Native Hawaiian/Pacific Islander Students	NA	NA	NA	NA	NA	NA

Priority 4 Outcome 2: EL students will advance at least one level on the ELPAC each year. Metric/Method for Measuring: EL proficiency rates will meet or exceed the rates of						

A P P L	Baseline (Based on most recent data available)	Year 1 of	Year 2	Year 3 of Term (Not applicable if categorized as Low Performing)	Year 4 of Term (Not applicable if categorized as Low Performing)	Year 5 of Term (Not applicable if categorized as Low Performing)
English Learners	10% of students who achieve one level of growth on the ELPAC each year will meet or exceed District rate.	10% of students who achieve one level of growth on the ELPAC each year will meet or exceed District rate.	10% of students who achieve one level of growth on the ELPAC each year will meet or exceed District rate.	10% of students who achieve one level of growth on the ELPAC each year will meet or exceed District rate.	10% of students who achieve one level of growth on the ELPAC each year will meet or exceed District rate.	10% of students who achieve one level of growth on the ELPAC each year will meet or exceed District rate.
Priority 4 Outcome 4: LbD will ensure EL reclassification rate will meet or exceed the District's reclassification rate. Metric/Method for Measuring: EL reclassification rates						
A P P L	Baseline (Based on most recent data available)	Year 1 of	Year 2	Year 3 of Term (Not applicable if categorized as Low Performing)	Year 4 of Term (Not applicable if categorized as Low Performing)	Year 5 of Term (Not applicable if categorized as Low Performing)
All Students (Schoolwide)	NA	NA	NA	NA	NA	NA

English Learners	10% of students who achieve one level of growth on the ELPAC each year will meet or exceed District rate.	10% of students who achieve one level of growth on the ELPAC each year will meet or exceed District rate.	10% of students who achieve one level of growth on the ELPAC each year will meet or exceed District rate.	10% of students who achieve one level of growth on the ELPAC each year will meet or exceed District rate.	10% of students who achieve one level of growth on the ELPAC each year will meet or exceed District rate.	10% of students who achieve one level of growth on the ELPAC each year will meet or exceed District rate.
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Priority 8 Outcome 1: LbD will offer all students, including all subgroups, a broad course of study that includes engaging, hands-on, project-based/maker-centered learning experiences with technology and arts integration

to help develop critical 21st century competencies.

Metric/Method for Measuring: % of students with access to hands-on/PBL/MCL; teacher PD

logs/receipts; materials inventory lists and receipts; teacher lesson plans; classroom observations

A P	Baseline (Based on most)	Year 1	Year 2	Year 3 of Term	Year 4 of Term	Year 5 of Term

LCFF STATE PRIORITIES	
LbD will foster parent, community and student engagement in school life and high rates of stakeholder satisfaction.	Related State Priorities: ☐ 1 ☐ 4 ☐ 7 ☐ 2 ☒ 3 ☐ 6
	Local Priorities: ☐ 7

Priority 3 (Parental Involvement)

Priority 3 Outcome 1 – Efforts to seek parent engagement and input in decision making.

- *LbD will engage parents in a series of relevant and interesting workshops related to their child's success*
- *LbD will maintain school website as a communication tool for the community.*
- *LbD will communicate the most important website items via a monthly newsletter (translated into Spanish and other languages as necessary) that is sent home via a hardcopy.*

Priority 5 (Pupil Engagement)

Priority 5 Outcome 1 – School attendance rates and Chronic absenteeism

- *LbD parent outreach and communications will continue to stress the importance of attendance and arriving at school on time each day*
- *LbD's Office Manager and Resource Specialists will help improve attendance and decrease habitual truants through home calls, meetings with students and families, home visits, and positive reinforcement incentives.*

Priority 6 (School Climate)

Priority 6 Outcome 1 - pupil suspension rates

- *LbD will provide training and support for Way of Council and restorative justice practices*
- *LbD will establish classroom management procedures, foster positive relationships, and help create an atmosphere of trust, respect, and high expectations.*

Priority 6 Outcome 2 – pupil expulsion rates

- *LbD will provide training and support for Way of Council and restorative justice practices*
- *LbD will establish classroom management procedures, foster positive relationships, and help create an atmosphere of trust, respect, and high expectations.*

Priority 6 Outcome 3 – other local measures including surveys of pupils, parents and teachers on the sense of safety and school connectedness

Expected Annual Measurable						
Priority 3 Outcome 1: LbD will encourage parents to attend at least 3 events each year (specific goal to be set annually in LCAP). Metric/Method for Measuring: # of parents attending 3+ events annually						
A P P I	Baseline (Based on most recent data available)	Year 1 of	Year 2 of	Year 3 of Term (Not applicable if categorized as Low Performing)	Year 4 of Term (Not applicable if categorized as Low Performing)	Year 5 of Term (Not applicable if categorized as Low Performing)
All Students (Schoolwide)	Increase parent participation rate annually	Increase parent participation rate annually	Increase parent participation rate annually	Increase parent participation rate annually	Increase parent participation rate annually	Increase parent participation rate annually

Priority 3 Outcome 2: LbD will establish a Parent Advisory Council that will be promoted, and supported to be fully operational and self-sustaining Metric/Method for Measuring: analysis of attendance, Sign In sheets, consistent membership						
A P P L	Baseline (Based on most recent data available)	Year 1 of	Year 2 of	Year 3 of Term (Not applicable if categorized as Low Performing)	Year 4 of Term (Not applicable if categorized as Low Performing)	Year 5 of Term (Not applicable if categorized as Low Performing)
Priority 5 Outcome 1: LbD will maintain a high attendance rate and low rate of students who are chronically absent Metric/Method for Measuring: Attendance and chronic absenteeism rates						
A P P L	Baseline (Based on most recent data available)	Year 1 of	Year 2 of	Year 3 of Term (Not applicable if categorized as Low Performing)	Year 4 of Term (Not applicable if categorized as Low Performing)	Year 5 of Term (Not applicable if categorized as Low Performing)

All Students (Schoolwide)	Maintain high attendance rate (>95%) or increase annually as needed; Maintain low chronic absenteeism or decrease annually as needed	Maintain high attendance rate (>95%) or increase annually as needed; Maintain low chronic absenteeism or decrease annually as needed	Maintain high attendance rate (>95%) or increase annually as needed; Maintain low chronic absenteeism or decrease annually as needed	Maintain high attendance rate (>95%) or increase annually as needed; Maintain low chronic absenteeism or decrease annually as needed	Maintain high attendance rate (>95%) or increase annually as needed; Maintain low chronic absenteeism or decrease annually as needed	Maintain high attendance rate (>95%) or increase annually as needed; Maintain low chronic absenteeism or decrease annually as needed
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Priority 6 Outcome 1: LbD will maintain a low suspension rate that is $\leq 1\%$. Metric/Method for Measuring: % of student suspensions						
A P P L	Baseline (Based on most recent data available)	Year 1 of	Year 2 of	Year 3 of Term (Not applicable if categorized as Low Performing)	Year 4 of Term (Not applicable if categorized as Low Performing)	Year 5 of Term (Not applicable if categorized as Low Performing)
Priority 6 Outcome 2: LbD will maintain a low expulsion rate that is $\leq 0.5\%$.						

A P P	Baseline (Based on most recent data)	Year 1 of Term	Year 2 of Term	Year 3 of Term (Not applicable if categorized as Low Performing)	Year 4 of Term (Not applicable if categorized as Low Performing)	Year 5 of Term (Not applicable if categorized as Low Performing)
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AllStudents(Schoolwide)						
Priority 6 Outcome 3: LbD will have high student, parent, and staff participation rates in the school experience survey and high approval rating on school experience surveys of students, parents, and staff. <i>Metric/Method for Measuring: % of participation in school climate survey and survey results</i>						
APPLICABLE STUDENT GROUPS	Baseline (Based on most recent data available)	Year 1 of Term	Year 2 of Term	Year 3 of Term (Not applicable if categorized as Low Performing)	Year 4 of Term (Not applicable if categorized as Low Performing)	Year 5 of Term (Not applicable if categorized as Low Performing)
AllStudents(Schoolwide)	10%	Increase rate of participation (overall and by stakeholder group) as needed over previous year (estimated target 5-10% annually)	Increase rate of participation (overall and by stakeholder group) as needed over previous year (estimated target 5-10% annually)	Increase rate of participation (overall and by stakeholder group) as needed over previous year (estimated target 10-15% annually)	Increase rate of participation (overall and by stakeholder group) as needed over previous year (estimated target 10-15% annually)	Increase rate of participation (overall and by stakeholder group) as needed over previous year (estimated target 10-15% annually)

INSTRUCTIONAL DESIGN

CURRICULAR AND INSTRUCTIONAL DESIGN OF THE EDUCATIONAL PROGRAM: KEY EDUCATIONAL THEORIES AND RESEARCH

LbD provides a standards-based curriculum that is both skills-based and experiential, in order to ensure each and every student meets our high expectations for success, well beyond achieving proficiency on state standards. The following provides a more detailed description of our instructional methodologies:

- Personalized Learning
 - Personalized Learning Plans
 - Flex-Rotational Model
 - Online Curriculum/Blended Learning
 - Mastery-Based Learning
- Experiential Learning
 - Constructivism
 - Project-Based Learning
 - Maker-Centered Learning
- Socio-Emotional and Democratic Learning
 - Social-Emotional Learning
 - Mindfulness and Self-Awareness
 - Restorative Practices
 - Community Circles

PERSONALIZED (BLENDED) LEARNING

According to iNACOL, a nonprofit formed in 2003 to “advance the work of teachers, administrators and public policymakers in the field of online learning, personalized learning is defined as:

“Tailoring learning for each student’s strengths, needs and interests—including enabling student voice and choice in what, how, when and where they learn—to provide flexibility and supports to ensure mastery of the highest standards possible.”

The purpose of personalized learning is to open student pathways and encourage student voice and choice in their education. Differentiation is a key part of personalized learning, and it is essential in education. In personalized learning environments, educators seek to meet each student within their own zone of proximal development. Without personalization, there is a gap between the individual student, their learning, and the support they need to succeed in a way that makes sense to his/her interests.

(<https://www.inacol.org/news/what-is-personalized-learning/>)

Based on yearly surveys of thousands of practitioners, iNACOL identifies the following core elements of personalized learning:

1. Student agency
2. Differentiated instruction
3. Immediate instructional interventions and supports for each student on-demand as needed
4. Flexible pacing
5. Individual student profiles (Personalized Learning Plans - PLP)
6. Deeper learning and problem solving to develop meaning
7. Frequent feedback from instructors and peers
8. Standards-based knowledge and skills
9. Anywhere, anytime learning
10. Performance-based assessments (project-based learning, portfolios, etc.) (Ibid.)

PERSONALIZED LEARNING PLANS: At LbD, each student has a personalized education experience tailored to meet his/her learning needs, defined in a Personalized Learning Plan (PLP) each trimester. The PLP defines the student's specific academic goals for the term, based on ongoing assessments and input from teachers, parents, students and, as appropriate, resource specialists/ELD staff. Each student's PLP guides the teachers and student in determining specific assignments, pacing, differentiation, demonstrations of learning/assessments and, as needed, interventions and supports. During common planning time each week, teachers collaboratively review students' PLPs and ongoing data, updating pacing plans and assignments in students' play lists and planning interventions and supports. PLP management will be an ongoing part of teacher professional development and coaching by school leaders to ensure consistency across the school. The PLP details current levels of proficiency across core subjects as well as target goals for growth. PLP Portfolios collect samples of student work; as they grow, students learn to select their "best" work as well as examples of areas of challenge. Specific instructional supports through LbD's Response to Intervention (RTI) model are included in the PLP, as well as a pacing plan for the student to achieve his/her goals for the trimester.

Throughout the week, teachers conference briefly (5-10 minutes) with each student to review their progress against PLP targets. The teacher uses this time to check for understanding and determine if learning goals have been met by reviewing online data, PLP Portfolios, and talking/working with students to assess mastery of particular concepts/content strands. This practice becomes more in- depth and more student driven as students age. More choice, voice, and agency is given as the student grows and demonstrates ability to make sound decisions for their learning. Students (with teacher guidance) may note that during rotational class time they will spend more time with a teacher/TA in a small group setting, engage in more online practice or more independent practice, or work with a peer/partner. The PLP is the foundation for the conferencing time and it is modified/updated at each conferencing session to document both goals that have been accomplished and new upcoming goals. Teachers continuously make adjustments to pacing, curricula delivery methods and supports.

FLEX-ROTATIONAL MODEL: A critical tool in our effort to personalize learning for each student is the use of blended learning through a "flex-rotation model." Each class has both a certificated

Teacher and a Teacher's Associate/Assistant when possible in order to effectively implement our personalized learning model. During ELA and Math instructional time, in addition to whole class instruction and activities, students rotate through three different learning modules: (1) online, interactive curriculum via customized “playlist” assignments in their PLP for each student; (2) independent or pair work such as reading books from the leveled library, writing in response to prompts, solving math problems with manipulatives or pencil and paper and more; and (3) Learning Hubs – small group instruction led by the teacher or teacher associate/assistant. During this time, the teacher is meeting individually with students with their PLPs, checking in on progress and modifying and updating the PLPs.

ONLINE CURRICULUM/BLENDED LEARNING: Students at LbD use the ever-growing body of rich on-line curriculum to practice skills and engage in engaging learning that adapts continuously to their individual needs. For our youngest students, we start with direct instruction in using these tech-based resources, including basic keyboard skills, proper care of the technology, and familiarity with processes ranging from the basics of logging on and off to monitoring one's own progress by reviewing the results/ data generated in each program. LbD utilizes purchased, standards-aligned online curriculum such as Lexia Core 5 Reading, IXL and Eureka Math. Standards-aligned instruction in phonetics, reading, math, science, history and much more can also be found on free websites such as [khanSchool.org](https://www.khanSchool.org), www.nasa.gov, pbskids.org, and other Open Education Resources such as SAS Curriculum Pathways (https://www.sas.com/en_us/software/curriculum-pathways.html).

Through this interactive software, learning is easily differentiated as students choose (agency) from different instructional activities selected by teachers, based on their level and area of need, and then as they engage in the curriculum, the system gives them instant feedback (e.g., praise for correct answers, or encouragement to try again) as they master the content. In many programs, the technology adjusts to meet student needs so that students who are ready to proceed rapidly through content get increasing levels of difficulty automatically, while those who need more time on a specific task do not advance as rapidly. Teachers can continuously review real-time data on students' progress, tied to standards, and adjust each student's digital “play list” of assignments accordingly while also providing additional supports.

Several of these programs have been shown to be particularly effective with English Learners and students with special needs by including images and visual content, sound and more. Programs such as, Lexia Core 5's literacy program include specific ELD support, including instructions given via audio in multiple languages and targeted strategies in developing phonological awareness, vocabulary and comprehension skills. Blended learning is also particularly impactful as it allows for teachers to most effectively provide targeted one-on-one and small group instruction to students in real time while other students work online with the support of the teacher's assistants.

While the field of online learning is rapidly developing, the following are some of the core programs we use:

Platform	Subject	Description
Amplify Science	Science	Focuses on Basic Science content providing a more interactive and online Project-based experience
Eureka Math	Math	Online adaptive K-5 math curriculum that is problem- based with embedded visual learning and an emphasis on conceptual understanding.
TCI - Social Studies Alive	Social Studies	Instructional Content Platform provides online engagement and learning in Social Studies.
Lexia Core 5	Language Arts	Online system for differentiated reading practice, embedded assessment and targeted instruction designed for K-5. The on-line activities are designed to be multisensory games with engaging settings and characters.
IXL	ELA and Math	Online curriculum that aligns with NWEA data to provide a streamlined learning path for each student based on benchmark data

It is important to note that explicit instruction – particularly in core foundational subjects such as reading, writing and mathematics – will play a crucial role within the overall delivery of instruction, both via whole class instruction and Learning Hubs, based on student needs and the particular lessons involves. Foundational skill-specific academic needs will be identified through formative and summative assessments and subsequently addressed through direct instruction. Phonics, reading fluency, reading comprehension, sentence structure, grammar, and arithmetic are examples of skill areas that will be introduced and reinforced explicitly by teachers working with students individually, in small groups, and as a whole class.

Through whole-class, Learning Hub (small group) and individual/partner learning time off-line, LbD will use a variety of proven curriculum to develop student mastery of California Common Core State Standards (CA CCSS) in English and Math, as detailed further below in the section on Curriculum.

LbD currently has a 2:1 tablet ratio for all students (TK-5) in the school. We provide students with safe and secure internet access for learning. Our faculty is trained in implementing and using on-line curriculum and assessment tools. Parents are offered training to ensure equitable access to these tools – through various grant programs we hope to provide computers for families to use at home, but we also will ensure parent access to computers on our campus.

MASTERY-BASED LEARNING

Mastery-based learning is the critical “cousin” to personalized learning suggesting that as curriculum is customized for each student, each student is also given the time and space needed

to master that content.

Most current applications of mastery learning stem from the work of Benjamin S. Bloom (1971, 1976, 1984), who considered how teachers might adapt the most powerful aspects of tutoring and individualized instruction to improve student learning in general education classrooms.

Bloom suggested that although students vary widely in their learning rates and modalities, if teachers could provide the necessary time and appropriate learning conditions, nearly all students could reach a high level of achievement.

In using [Bloom's *mastery learning*] strategy, teachers organize the important concepts and skills they want students to acquire into learning units, [culminating in] a *formative* assessment (Bloom, Hastings, & Madaus, 1971) that identifies precisely what students have learned well and where they still need additional work. [After completing "corrective" work] to master the desired learning outcomes [. . .] student take a second, parallel formative assessment that addresses the same learning goals of the unit but includes somewhat different problems, questions, or prompts. The second formative assessment verifies whether the correctives were successful in helping students remedy their individual learning difficulties. It also serves as a powerful motivational tool by offering students a second chance to succeed.

Along with the corrective activities, Bloom recommended that teachers plan enrichment or extension activities for students who demonstrate their proficiency on the first formative assessment. Enrichment activities give these students exciting opportunities to broaden and expand their learning.

Bloom believed that nearly all students, when provided with the more favorable learning conditions of mastery learning, could truly master academic content (Bloom, 1976; Guskey, 1997a). A large body of research has borne him out: When compared with students in traditionally taught classes, students in well-implemented mastery learning classes consistently reach higher levels of achievement and develop greater confidence in their ability to learn and in themselves as learners (Anderson, 1994; Guskey & Pigott, 1988; Kulik, Kulik, & Bangert-Drowns, 1990).²⁰

Today, online-solutions facilitate this type of customized curriculum and personalized lessons in an optimal way. Students are able to proceed at their own pace, without the competition and fear of failure that comes when all students are expected to learn and master the same content at the same time. For struggling students, mastery-based learning offers time to "pause" and practice until they authentically understand the material. For those who grasp concepts quickly, there is an opportunity to move ahead or engage in deeper learning activities for challenge. Mastery-based learning ensures authentic proficiency for all students.

EXPERIENTIAL LEARNING

LbD embraces a project-based/ constructivist/hands-on approach to learning, with a particular emphasis on Maker-Centered Learning as a means of engaging students in deeper understandings of core content, while integrating the arts and technology.

CONSTRUCTIVISM

Students in a constructivist model are given the means to explore, solve problems, reflect on situations and demonstrate their knowledge individually and in groups, allowing learners to “construct” their own meaning. Through group learning, students have the opportunity to interact with and learn from other students on more complex tasks than they could engage in alone, providing immediate feedback, encouraging them to explore their own and other students’ ideas, and helping develop communication and interpersonal skills. Learners work actively with concrete materials, try out ideas, ask essential questions, solve problems, make mistakes and correct them, and have opportunities to stop and reflect. The more actively engaged children are in the learning process, the more effectively and deeply they will understand and retain concepts and skills that are delineated in the state standards.

Constructivism, a concept developed by Jean Piaget, calls for the learning experience to be

authentic, real and relevant, while being driven by students.²¹ While specific definitions of constructivism vary, “One of the common threads of constructivism that runs across all these definitions is the idea that development of understanding requires the learner actively engage in meaning-making. . . . Constructivists argue that ‘knowledge is not passively received but built up by the cognizing subject’ (Von Glasersfeld, 1995). Thus, constructivists shift the focus from

knowledge as a product to knowing as a process.”²² This begins with acknowledging and embracing each learner’s level of understanding and then guiding students through building knowledge via inquiry and research, then expressing this knowledge through a variety of methods, including project presentations and demonstrations. This method of teaching learning not only deepens the learning, but ultimately leads to greater mastery of CCSS/NGSS content standards.

Research shows that students who attend schools that employ constructivist methodologies gain

critical thinking skills, deeper understandings, and learning that lasts.²³ Carol Tomlinson asserts that student motivation increases when they can build on topics of interest, as “modifying instruction to draw on student interests is likely to result in greater student engagement, higher levels of intrinsic motivation, higher student productivity, greater student autonomy, increased achievement, and an improved sense of self-competence.” (Tomlinson, 2003.)

PROJECT-BASED LEARNING

Project-Based Learning (PBL) builds on these critical elements of a Constructivist approach and expands the hands-on concept into a deeper, integrated approach that is reflective of the real world. Rather than studying each subject as an isolated silo, PBL allows students to see the

interactions between language arts and science and history and math, while also incorporating the arts, technology and more. Learning how different content areas interact represents real understanding (Cajete, 1994). In collaborative PBL, students interact with and learn from other students on more complex tasks than they could engage in alone, providing immediate feedback, encouraging them to explore their own and other students' ideas, and helping develop communication and interpersonal skills.

At LbD, PBL is central to science and social science/history blocks of learning, with integrating of English Language Arts, math, the arts and technology into this learning time. During common planning time teachers collaboratively create projects using a common project planning template and resources from experts such as the PBL Works. They use ongoing student achievement data to continuously refine their plans to ensure the needs of each individual student are being met. Projects are designed to illustrate the real-world implications of the academic skills and knowledge students are mastering. As even the youngest students develop and apply problem-solving, critical and creative thinking, communication, collaboration, and other crucial skills in a variety of practical contexts and settings, they come to see how adults use these skills in the everyday workplace.

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Guskey, T., *Lessons of Mastery Learning*, Interventions That Work, Oct. 2010;
<http://www.ascd.org/publications/educational-leadership/oct10/vol68/num02/Lessons-of->

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Mastery-Learning.aspx

Piaget, J., *Biology and Knowledge*, 1967

22

Jones, M.G., Brader-Araje, L., *The Impact of Constructivism on Education: Language, Discourse, and Meaning*, American Communication Journal, Volume 5, Issue 3, Spring 2002
 University of North Carolina at Chapel Hill

During projects, students may engage in a variety of learning activities including:

- ☐ Asking and Exploring Essential questions (to be answered/solved)
- ☐ Reading, researching and investigating
- ☐ Guessing, hypothesizing and discussing
- ☐ Experimenting/testing the hypothesis
- ☐ Analyzing, evaluating and reflecting on outcomes
- ☐ Documenting outcomes (essays, graphs and charts)
- ☐ Creating (design) visual presentations

To encourage collaboration, student engagement, leadership, and student agency during projects, students will work in small teams during projects. Each student within the team will be assigned a role and responsibility: scribe, leader, organizer, researcher, presenter. Each student's role will be critical to the completion and overall success of the project. Students will rotate through these roles and responsibilities during different projects throughout the school year. In this way, projects help students become self-directed and motivated. Engaging in

hands-on, real-world projects helps learners:

- Gather, organize, and make sense of information,
- Become cognitively engaged and internally motivated to achieve, and
- Experience learning as a dynamic process of creating and changing.²⁴

Through project-based learning, students engage in multiple modes of instruction within one class period, therefore meeting the needs of diverse learners. PBL inherently facilitates multiple modes of input and output, with built-in visuals and realia to contextualize new learning – a boon to English Learners in particular.

MAKER-CENTERED LEARNING

Maker Education (a term coined by Dale Dougherty in 2013), or Maker-Centered Learning, is an approach to constructivism and project-based learning that relies upon hands-on, often collaborative, learning experiences as a method for solving authentic problems.²⁵ The concept is rapidly taking hold:

At last year's Maker Faire in San Mateo, California, more than 150,000 children and adults gathered over a weekend to make things, show off, challenge one another, laugh, play, invent, tinker, solve problems and inspire. In this magical environment full of fire-breathing sculptures; cupcake cars; bicycle-powered rock bands; soda and Mentos-propelled fountains; and workshops in programming, soldering, welding, lock-picking, knitting, crocheting and robot making, it is expertise — rather than the age of the expert — that is the coin of the realm.

²³ Marlowe and Page, 1998; Sagor & Cox, 2003. *At-Risk Students: Reaching and Teaching Them*; Pransky, 2002. "To meet your students where they are, first you have to find them."

²⁴ Betty Garner, *Getting to Got It!: Helping Struggling Students Learn How to Learn* (2007).

²⁵ See, e.g., Clapp, E. et al, Maker Centered Learning: Empowering Young People to Shape Their Worlds, 2016 (published by the Agency Team at Harvard Graduate School of Education's Project Zero).

Makers are constructing knowledge as they build physical artifacts that have real-world value.²⁶

Makerspace builds on a constructivist ideology to form a constructivist and constructionist

approach to education, as introduced by Jean Piaget and developed by Seymour Papert. “These theories explain the remarkable accomplishments of young makers and remind educators that every classroom needs to be a place where, as Piaget taught, “knowledge is a consequence of experience.” Papert’s [constructionist] theory of learning provides the theoretical basis for making, which is a stance toward learning that is predicated on the active construction of a shareable artifact. Making asks teachers to create settings where students are, for example, mathematicians rather than passive receivers of math instruction.”²⁷ The primary goal of both constructivism and constructionism is to have learners create their own knowledge by creating and interacting with physical objects. It has clear connections to media literacy as well as to self-directed learning.

Maker-Centered learning is a complementary approach to PBL that typically employs STEAM-themed skills and knowledge to empower students to design, create, engineer and prototype new ideas in a “maker space” or lab environment. Maker-Centered Learning, while aligning with core standards, emphasizes invention, innovation and creativity, typically via collaboration. Maker-Centered learning reinforces the ideas of student agency and empowerment by taking students from being just consumers of information to empowering them to be curious creators and inventors of and contributors to new information and knowledge.

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Martinez, S. and Stager, G., *The Maker Movement: A Learning Revolution*, International Society for Technology in Education (7/20/2014);
<https://www.iste.org/explore/articleDetail?articleid=106>

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<https://www.iste.org/explore/articleDetail?articleid=106>

At LbD, Maker-Centered Learning includes both stand-alone Maker-space activities and experiences, as well as activities integrated into core content areas. For instance, students may create and apply equations/codes to build/3-D print a construct to help them learn equivalent ratios/proportionality.

While many associate Maker Education with “high tech” tools and outputs such as 3-D printing, robotics and coding, Maker-Centered Learning also includes far more accessible and resourceful “low or no tech” tools. The following are the resources LbD uses for Maker-Center learning:

Learning by Design Maker Space Materials and Resources

Low Tech Materials	Medium or High Tech Materials	Maker Programs and Curricula	Online Resources (i.e. coding, sample maker projects)	Tools
Recyclables/Found Objects, Cardboard boxes, Straws, Pipe Cleaners, Toothpicks, Plastic Water bottles, Construction Paper, Paper clips, Cork, Cotton balls, Popsicle sticks, Gears, Rubber bands, Paper/Plastic cups, Aluminum Foil, Legos, Yarn/String, Wood, Toilet paper roles, Blank CD/DVDs, Newspaper, Milk Cartons, Marbles, Golfballs, Playdoh, Copper Tape Foil, K'Nex	Ipad or Chromebook 3D Printer 3D Pens Sewing Machine Arduinos/Circuit Boards Cameras LEDs Raspberry Pi	Lego Education Makey Makey Snap Circuits Squishy Circuits	code.org ITCH Coding Scratch Kodable iStop Motion The Foos	Hammers Drills Scissors Saws Wood cutters

A typical process utilized to “make,” known as the Design Thinking Process, is as follows:

- Empathize with the user and his/her problem
- Define/Articulate the Problem for clarity
- Ideate (think about and sketch/ create solutions)
- Prototype (make the designed solution)
- Test
- Iterate (remake as needed until it is right)

The following graphic illustrates the process teachers use to create a successful Design

Thinking Challenge: 28

CREATING A DESIGN CHALLENGE

(IN 5 MINUTES BY USING THE DESIGN PROCESS)

The framing of a Design Challenge sets the stage for student teams to explore characters and problems within a situation. The best framing does not constrain them to one problem to solve nor leave it too broad that they have trouble finding tangible problems.

Step 1

Plan Empathy ->

List Settings that are both interesting to your students and have the potential to embed curricular content. Each setting should have between 3 and 6 potential Characters and at least 4 Potential Problems. It is common during the course of the Design Challenge for students to discover unanticipated problems.

Settings

Ex. A local park

Characters

Kids who play there
Parents
Animals

Potential Problems

Litter
Habitat disruption
Park financial viability

Step 2

Develop Define/Ideate ->

Chose a setting and write 3 versions of a statement that captures the situation. Use the scaffolds to the right to help. If you get stuck, try a new setting.

Redesign the ____ (situation) ____ experience.
Design a way for ____ (specific group of people) ____ to better ____ (situation) ____.
How might we help ____ (achieve some goal) ____?
Ex. How might we keep the park clean? Design a way for people at the park to better support native animal life.

Step 3

Prototype and Test ->

Pick one of the statements you generated and test it to make sure that it is properly scoped for a rich design challenge. The questions on the right are helpful in testing that a challenge is properly scoped.

By working with the statement above will students have the opportunity to address multiple characters, problems and character needs?

If not, make the statement more broad.

By working with the above statement will students be able to find similarities between characters, problems, and needs?

If not, make the statement more narrow.

When you feel you have a Design Challenge, write it down and begin.

This process allows for students to think deeply about a concept they are learning and encourages them to explore various perspectives around that concept, and create/design ways in which to engage with that concept or solve a perceived problem regarding that concept.

Maker-Centered Learning deepens the learning experience (deeper levels of Blooms) and makes learning more aligned and relevant to what the 21st Century is asking and requiring of the current labor force as well as contributors to society overall. Learning knowledge, skills and concepts more deeply can ensure a student's ability to recall and apply this learning more effectively on assessments and standardized tests. Maker-Centered Learning helps students see themselves as people who can effectively take action in the world by making, hacking and redesigning the objects and systems in their lives. The frameworks on which constructivism are built are closely aligned to Common Core and

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An Educator's Guide to Design Thinking, the k12 Lab Wiki, https://dschool-old.stanford.edu/sandbox/groups/k12/wiki/14340/attachments/e55cd/teacher%20takeaway.pdf?sessionID=c85_b670208fde73cab552d4757ad4f368f20d455

higher/deeper levels of thinking (i.e. Bloom's Taxonomy and Webb's Depth of Knowledge). Thus, maker-centered learning as an added element to Project-based Learning supports 21st Century skills preparing students to be successful in school, college, career and beyond.

DEMOCRATIC LEARNING ENVIRONMENT

Just as we support our students in being well-prepared for rigorous elementary and secondary schools, college and meaningful 21st century careers, we devote time and attention to helping them develop their social-emotional capacity for lifelong success. Our faculty is trained to establish a Democratic Learning environment, which in essence is a most ideal environment within which personalized learning and project-based learning are likely to be most effective, resulting in more successful outcomes.

Students who are more self-aware and confident about their learning capacities try harder and persist in the face of challenges (Aronson, 2002; cited in Durlak et al., 2011). Students who set high academic goals, have self-discipline, motivate themselves, manage stress, and organize their approach to work learn more and get better grades (Duckworth & Seligman, 2005; Elliot & Dweck, 2005; cited in Durlak et al., 2011). Finally, students who use problem-solving skills to overcome obstacles and make responsible decisions about studying and completing homework do better academically (Zins & Elias,

2006; cited in Durlak et al., 2011).

All staff are trained in "Responsive Classroom," an evidence-based approach to elementary and middle school teaching that focuses on the strong link between academic success and social-emotional learning (SEL). Professional development in the Responsive Classroom approach strengthens educators' ability to:

- Design lessons that are active and interactive

- ❑ Use effective teacher language to promote academic and social growth
- ❑ Encourage engagement by giving students meaningful choices
- ❑ Start each day in a way that sets a positive tone for learning
- ❑ Set high expectations and teach students how to meet them
- ❑ Establish routines that promote autonomy and independence
- ❑ Build a sense of community and shared purpose
- ❑ Teach students 21st century skills such as critical thinking, problem-solving, communication, collaboration, creativity, and innovation.

29 Vega, V., 2012 <http://www.edutopia.org/sel-research-learning-outcomes#definition>.

30 <https://www.responsiveclassroom.org/about/>

31 Blum & Libby, 2004; Hamre & Pianta, 2006; Hawkins, Smith, & Catalano, 2004; Jennings & Greenberg 2009; cited in Durlak, et al., 2011, Marzano, 2003

We also implement the Ojai Foundation's acclaimed Way of Council, a community building practice of authentic expression and empathic, non-judgmental listening and receptivity in place at many LAUSD schools that provides tools and strategies for effective and positive communication. (<http://councilinschools.org/>).

Council has many applications in schools. As a relational practice, council is a powerful social and emotional learning strategy that promotes an environment of trust and respect in the classroom and school. Council invites students to share stories from their personal lives that establish connections and appreciation of differences among students and between students, teachers, and other adults at the school. As a mindfulness practice, council helps students become more aware of themselves and others. As an instructional approach, council creates a context for exploring standards-based curricula and making it relevant to students. As a leadership strategy, council provides opportunities for educators to mine the collective wisdom of groups and take informed, considered action. As a community-building tool, council also serves as the foundation for CIS's approach to restorative justice.

These are all philosophies and ways of managing classrooms and learning environments that are focused more on personal development, student empowerment, socio-emotional wellness, community awareness, fairness and justice versus a more controlled, punitive and rigidly structured learning environment.

CURRICULUM AND INSTRUCTION

CURRICULUM/KEY FEATURES BY SUBJECT AREA

LbD implements an academically challenging and integrated curriculum, incorporating California standards, including the new Common Core State Standards and Next Gen Science Standards.

Purchased curricular materials are used as a basis upon which teachers build, using the subject-specific *Frameworks for Instructional Design* to guide curriculum pacing, planning, assessments and differentiation.

Through our highly personalized, project-based approach, tailored to meet the needs of our students, we know that all children can and will achieve state standards mastery. Our instructional staff is challenged to know each child and develop an appropriate means for each student's success through the methodologies and strategies detailed here.

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http://councilinschools.org/?page_id=90

ENGLISH LANGUAGE ARTS – CORE AND COLLEGE PREPARATORY

The English Language Arts (ELA) curriculum is based on California Common Core State Standards for English Language Arts, along with *Reading / Language Arts Framework; A Look At Kindergarten Through Grade Six in California Public Schools*. Our personalized approach with an emphasis on mastery emphasizes reading fluency and comprehension and writing across the curriculum, not just during scheduled ELA periods.

Instruction in ELA relies heavily on the acclaimed Readers' and Writers' Workshop Programs from Lucy Calkins and Teachers College in New York. This core curriculum is supplemented with online programs such as Lexia Core 5 Reading which students work on both during class time and at home. These programs are supplemented with leveled readers and books from the CDE-recommended reading lists.

Reading

Reading instruction incorporates four main components: (1) Shared Reading, (2) Guided Reading, (3) Letter and Word Study and (4) Independent Reading. Within this framework, teachers are able to incorporate different strategies and approaches daily in order to meet the diverse needs of students. Students receive direct instruction, work with partners and in small learning groups and engage in independent work. Teachers explicitly teach reading comprehension skills and strategies, and then provide a myriad of opportunities for students to practice and apply their new skills.

As students progress, reading instruction shifts to "reading to learn" rather than "learning to read." Personalized instruction is the focus as students rotate through small groups, independent practice and customized individual playlists for online learning. Teachers, intervention specialists,

teacher associates/assistants and trained parent and community volunteers all work to move struggling students towards grade-level reading proficiency and overall language arts mastery.

Shared Reading: Focusing on comprehension, teachers choose text for a particular purpose, then demonstrate using and applying a particular comprehension strategy. In the early grades, shared reading may focus heavily on applying decoding strategies, in addition to those used to construct meaning. Texts used may include big books, trade books, decodable texts, magazines and newspapers, anthologies, poems, and selections from social studies and science texts in both hard copies and on-line forms. During shared reading, teachers model the appropriate use of strategies by employing “think alouds” to allow students the chance to explicitly learn what is generally a more implicit process. Students are given the appropriate vocabulary to identify the strategies they are learning and using, and teachers reinforce and encourage students to share their thinking processes and articulate what strategies they are using. Teachers might also teach particular comprehension skills during shared reading by demonstrating the use of a specific graphic organizer such as a thinking maps to chart and organize ideas or a Venn Diagrams to compare and contrast.

Guided Reading: Teachers target instruction based on the individual needs of students through guided reading. As a whole class, reading instruction might be focused on the reading strategy of asking questions. During guided reading time, the teacher chooses text that provide opportunities to guide students in the use of this strategy based on the appropriate instructional levels of individual students. Students work on the same objective, but using different texts to remain consistent with personalizing learning. At other times, reading groups might be working on different strategies, again based on need. Because students are more likely to reveal questions, tentative hypotheses, inferences and connections to past learning in small groups rather than in front of the whole class (Rhodes and Shanklin, 1993), teachers regularly observe and assess the reading habits and progress of students. In the upper grades, in addition to guided reading, teachers employ literature circles and discussion groups. Both of these activities encourage student exploration of complex themes in text, enhance oral language and higher-level cognition, provide a chance for students to freely explore ideas, deepen students’ understanding of what they read, while creating more enthusiastic and engaged readers. The cooperative and heterogeneous grouping practices used in these activities are also beneficial to English Learners who may be less hesitant to practice and perform in smaller groups where peer interaction is more natural and comfortable.

In all grades, letter and word study include spelling instruction and targeted vocabulary development. Spelling lists are grouped by pattern (sound, visual, or meaning) and presented in a systematic sequence. Targeted vocabulary development at all levels will be aimed at making sure students acquire new word knowledge and increase their depth of knowledge over time. Explicit instruction in word-learning strategies allows students to determine meanings of unfamiliar words encountered while reading, such as using dictionaries (print and online). As students get older, they learn and apply more

sophisticated strategies such as identifying examples, restatements, and comparisons in order to clarify word meanings.

Independent Reading: Throughout the day, students have time to choose and enjoy reading books that are of interest to them, an integral part of our curriculum at all levels. Classroom libraries are stocked with high-interest books of various genres at a variety of levels as well. Teachers explicitly teach students how to select books appropriate to their level and interests. Teachers create special book boxes or areas of the room stocked with books that relate to current themes in the classroom (e.g., first graders learning about seasons have access to a variety of fiction and nonfiction texts relating to weather and seasons, including poetry and magazine articles). To motivate students to read, to give students more opportunities to apply new learning, and to help instill a love of literature, students are given opportunities to talk about or respond to the books they read. Kindergarteners may draw a picture of their favorite part of a favorite story and tell why they

liked it, while 3rd grade students complete reflection forms to evaluate books read.

Readers Workshop Unit Titles

Grade Level	Unit Summaries
TK/K	☐ We Are Readers ☐ Super Powers: <i>Reading with Print Strategies and Sight Word Power</i> ☐ Bigger Books, Bigger Reading Muscles ☐ Becoming Avid Readers
1 st Grade	☐ Building Good Reading Habits ☐ Learning About the Word: <i>Reading Nonfiction</i> ☐ Readers Have Big Jobs to Do: <i>Fluency, Phonics, and Comprehension</i> ☐ Meeting Characters and Learning Lessons: <i>A Study of Story Elements</i>
2 nd Grade	☐ Second-Grade Reading Growth Spurt ☐ Becoming Experts: <i>Reading Nonfiction</i> ☐ Bigger Books Mean Amping Up Reading Power ☐ Series Book Clubs
3 rd Grade	☐ Building a Reading Life ☐ Reading to Learn ☐ Character Studies ☐ Research Clubs: <i>Elephants, Penguins, and Frogs, Oh My!</i>

4 th Grade	☐ Interpreting Characters: <i>The Heart of the Story</i> ☐ Reading the Weather, Reading the World ☐ Reading History: <i>The American Revolution</i> ☐ Historical Fiction Clubs
5 th Grade	☐ Interpretation Book Clubs: <i>Analyzing Themes</i> ☐ Tackling Complexity: <i>Moving Up Levels of Nonfiction</i> ☐ Argument and Advocacy: <i>Researching Debatable issues</i> ☐ Fantasy Book Clubs: <i>The Magic of Themes and Symbols</i>

In all grade levels, students read closely to determine what the text says explicitly and to make logical inferences from it, and cite specific textual evidence when writing or speaking to support conclusions drawn from the text. Students also determine central ideas or themes of a text and analyze their development and summarize the key supporting details and ideas. Furthermore, analyze how and why individuals, events, and ideas develop and interact over the course of a text.

Students develop understanding in the craft and structure of all types of texts, interpreting words and phrases as they are used, including determining technical, connotative, and figurative meanings, and analyze how specific word choices shape meaning or tone. Students in grades TK-5 analyze the structure of texts, including how specific sentences, paragraphs, and larger portions of the text (e.g., a section, chapter, scene, or stanza) relate to each other and the whole. They also assess how point of view or purpose shapes the content and style of a text. As students integrate knowledge and ideas they read, they evaluate content presented in diverse formats and media, including visually and quantitatively, as well as in words. They also delineate and evaluate the argument and specific claims in a text, including the validity of the reasoning as well as the relevance and sufficiency of the evidence. As students progress in their range of reading and level of text complexity, they analyze how two or more texts address similar themes or topics in order to build knowledge or to compare the approaches the authors take.

Students learn to understand complex text and ideas as well as reason, analyze, persuade, and problem solve. Students encounter a significant representation of the best classic and contemporary literature including novels, biographies, essays and plays.

Beginning in kindergarten, students listen to stories and informational text and begin learning research strategies, completing reports based on multiple sources to demonstrate their comprehension. As students advance in reading levels, they both listen to and read a variety of texts, and learn to use reading comprehension strategies (predicting, connecting, questioning, monitoring, clarifying, summarizing, inferring and visualizing) in concert to analyze, evaluate, and interpret what they read.

Reading strategies are posted on classroom walls for teacher reference during reading instruction to help students with metacognition (the ability to understand the thinking process). Teachers use strategies such as think-alouds, wherein they use reading strategies, model them aloud, and then have students practice them during read-alouds, shared reading, guided reading, reciprocal reading and independent reading. Guided reading groups use books organized by reading levels to facilitate targeted instruction based on the needs of the individual students. Read alouds are frequently connected to integrated curriculum units as they are taught in the classroom. Teachers use a diversity of print and digital sources so that students integrate and evaluate content, visually and quantitatively, as well as in words.

English Learners and students who are struggling are provided access to reading materials through use of leveled libraries with high-interest books at all levels, reading conferences with teachers, one-on-one reading tutoring; and partner reading. Since students develop more quickly as fluent readers and writers if they have had numerous opportunities to listen to fluent readers, students will listen to fluent readers frequently through shared reading, read-alouds, books on tape, and listening centers.

In addition, students at all grade levels are sometimes required to read nightly and keep a reading log that is signed by their parents. This outside reading will be rewarded with various incentives such as reading parties where students celebrate their reading success and enjoyment.

Writing

Hand in hand with the school's reading program is a structured daily writing program, which is directly aligned to the CCSS emphasis on writing. The chief component of the writing program will be Writer's Workshop, based on the Lucy Calkins'/Teachers College Writer's Workshop model. Writer's Workshop, which is based on the constructivist principle that learning to write is as much about the process as the product, is used to teach students in all grade levels how to enjoy writing and at the same time reach the goal of becoming competent writers.

The Writer's Workshop design consists of three components that occur daily: the Mini-lesson or direct instruction, independent writing time and share time. Mini lessons can relate to craft (applications, content, or strategies), skills (conventions and editing) or procedures relating to workshop. During independent writing time, students choose writing topics, a strategy that helps develop personal investment in the writing process. They apply learning from mini lessons, move themselves through the writing process and may engage in partner talk to help focus and develop ideas. Students understand the rituals and procedures of the workshop including how to access materials and information from around the room (charts, posters, model authors) and to organize their writers' notebooks and folders. The sharing component of workshop occurs at the end of workshop and provides another opportunity for teaching and reinforcing the content of the mini-lesson. Sharing takes a variety of forms, including Author's Chair, pair-share, or popcorn around the room. During this time the teacher can also address listening and speaking standards. Teachers model the process that teaches students to use the language of the genre and the standards, to refer to the author's text to support comments and to provide specific feedback to

help peers move forward.

The writing conference is an integral part of workshop. These frequent, on-going conferences allow teachers the opportunity to further provide personal, targeted instruction that equips all students with the necessary tools to develop their authorship. The teacher's role is to understand where an individual writer is at a particular moment in time, to determine the goals/needs of that student along with an appropriate course of action and then to guide the student toward those goals. The teacher reinforces the child's strengths and motivates the child to push himself/herself by applying new learning. Teachers keep detailed conference notes in order to evaluate students' progress and determine next steps for instruction. Additional support for students demonstrating difficulties might include scaffolding in the form of graphic organizers or sentence frames, more frequent meetings with the teacher or instructional aide and peer support in the form of a specific writing partner. Teachers might also allow students struggling to articulate their thoughts on paper to dictate their ideas to them in order to facilitate the writing process until students become more confident in their abilities.

Beginning in kindergarten, teachers in every grade guide students through this process so that students become independent writers who can write on demand for a variety of audiences and purposes, namely opinion/argument pieces, informative/ explanatory texts, and narratives. Students write routinely over extended time frames (time for research, reflection, and revision) and shorter time frames (a single sitting or a day or two) for a range of tasks, purposes, and audiences. They write arguments to support claims in an analysis of substantive topics or texts, using valid reasoning and relevant and sufficient evidence; informative/explanatory texts to examine and convey complex ideas and information clearly and accurately through the effective selection, organization, and analysis of content; and narratives to develop real or imagined experiences or events using effective technique, well-chosen details, and well- structured event sequences.

Examples of Increasing Levels of Depth and Complexity within Text Types & Purposes Standard 2: Write informative/explanatory texts:

Grade	Complexity
TK/K	Use a combination of drawing, dictating, and writing to name what they are writing about and supply some information about the topic.
1 st	Name a topic, supply some facts about the topic, and provide some sense of closure.
2 nd	Introduce a topic, use facts and definitions to develop points, and provide a concluding statement or

3 rd	Examine a topic and convey ideas and information clearly. • Introduce a topic and group related information together; include illustrations when useful to aiding comprehension. • Develop the topic with facts, definitions, and details. • Use linking words and phrases (e.g., also, another, and, more, but) to connect ideas within categories of information. • Provide a concluding statement or section.
4 th	Examine a topic and convey ideas and information clearly. • Introduce a topic clearly and group related information in paragraphs and sections; include formatting (e.g., headings), illustrations, and multimedia when useful to aiding comprehension. • Develop the topic with facts, definitions, concrete details, quotations, or other information and examples related to the topic. • Link ideas within categories of information using words and phrases (e.g., another, for example, also because). • Use precise language and domain specific vocabulary to inform about or explain the topic. • Provide a concluding statement or section related to the information or explanation presented.
5 th	Examine a topic and convey ideas and information clearly. • Introduce a topic clearly, provide a general observation and focus, and group related information logically; include formatting (e.g., headings), illustrations, and multimedia when useful to aiding comprehension. • Develop the topic with facts, definitions, concrete details, quotations, or other information and examples related to the topic. • Link ideas within and across categories of information using words, phrases, and clauses (e.g., in contrast, especially). • Use precise language and domain specific vocabulary to inform about or explain the topic. • Provide a concluding statement or section related to the information or explanation presented.

Students learn descriptive, narrative, expository, and persuasive writing, which are then broken into subcategories:

- Argumentative Writing - This form of persuasive writing has a primary purpose of making a statement that the reader will disagree with, then supporting the statement with specific details that will convince the reader of the truth of the statement.
- Business Writing - This form of expository writing has a primary purpose of communicating with others in the work place.
- Comparison and Contrast Writing - This form of expository writing has a primary purpose of showing the similarities and differences between two subjects.
- Expressive Writing - This form of creative writing has a primary purpose of sharing thoughts, ideas, and feelings on the topic.
- Informative Writing - This form of expository writing has a primary purpose of

- providing information in a clear, concise manner.
- Literary Response - This form of expository writing has a primary purpose of providing a personal reaction to a piece of literature.
- Personal Narrative Writing - This form of narrative writing has a primary purpose of sharing an experience or event from the author's own life.
- Poetry - This form of creative writing has a primary purpose of imaginatively reflecting on a subject, idea, or event. This is usually done in stanzas rather than paragraphs.
- Process Writing - This form of expository writing has a primary purpose of explaining the steps or procedure of something.
- Reaction Writing - This form of expository writing has a primary purpose of providing a personal response to something.
- Research Writing - This form of expository writing has a primary purpose of reporting new information that has been learned by studying available resources.
- Technical Writing - This form of expository writing has a primary purpose of conveying technical information in a simple, no-nonsense manner.

Writers Workshop Unit Titles

Grade Level	Unit Summaries
TK/K	☐ Launching the Writing Workshop ☐ Writer for Readers ☐ How-to Books: Writing to Teach Others ☐ Persuasive Writing of All Kinds: Using Words to Make a Change
st 1 Grade	☐ Small Moments: Writing with Focus, Detail, and Dialogue ☐ Nonfiction Chapter Books ☐ Writing Reviews ☐ From Scenes to Series: Writing Fiction
nd 2 Grade	☐ Lessons from the Master: Improving Narrative Writing ☐ Lab Reports and Science Books ☐ Writing About Reading ☐ Poetry: Big Thoughts in Small Packages
rd 3 Grade	☐ Crafting True Stories ☐ The Art of Information Writing ☐ Changing the World: Persuasive Speeches, Petitions, and Editorials ☐ Upon a Time: Adapting and Writing Fairy Tales

th 4 Grade	☐ The Arc of Story: Writing Realistic Fiction ☐ Boxes and Bullets: Personal and Persuasive Essays ☐ Bringing History to Life ☐ The Literary Essay: Writing About Fiction
th 5 Grade	☐ Narrative Craft ☐ The Lens of History: Research Reports ☐ Shaping Tests: From Essay and Narrative to Memoir ☐ The Research-Based Argument Essay

Speaking

In all classrooms, teachers provide students with multiple opportunities to explore oral communication in the classroom. For example, students develop active and responsive listening skills through class and small group discussions. Classes will take turns presenting and performing at monthly school meetings and daily class meetings (Council sessions). Each teacher uses scaffolding strategies to help English Learners build confidence in communicating information and ideas. Additional structured speaking activities in class include Author's Chair and literature circles where students discuss and analyze elements of books as well as relate reading experiences to their own lives. Students practice speaking clearly and using complete sentences during formal oral reports and presentations.

Teachers develop specific rubrics based on ELA and ELD standards that they share with students in order to communicate expectations. These rubrics will provide students with an understanding of the components of effective speaking enabling them to reflect on their own performance and from the presentations of their peers.

Listening

Based on the ELA and ELD standards for listening, students are taught that active, effective listening is a habit to develop and the foundation of effective communication. Students are taught how to focus their attention, avoid distractions, use body position to signal their interest, express appreciation and appropriately pose questions. Some of the ways in which active listening skills are practiced include: following oral directions, answering questions after read-aloud, critiquing shared pieces in Writer's Workshop, writing dictated sentences and repeating rhythms through movement and clapping. In second grade, to address the standard that requires students to give and follow multi-step directions, teachers will create projects that require partners to listen to each other's directions in order to correctly complete a task. Partner A learns how to complete part of the task and gives directions to Partner B, then they switch roles. Success depends on careful listening on the part of both students.

ENGLISH LANGUAGE DEVELOPMENT

Based on the enrollment at nearby schools, we anticipate that the English Learner (EL) population

will include students who predominantly come from Spanish-speaking families.. The ELD program will implement both the California ELD Standards and the new *English Language Arts/English Language Development Framework for California Public Schools* (ELA/ELD Framework). Our ELD goals are directly aligned with the goals detailed in the ELD Standards and Framework to “ensure that ELs are fully supported as they:

- Read, analyze, interpret, and create a variety of literary and informational text types;
- Develop an understanding of how language is a complex, dynamic, and social resource for making meaning;
- Develop an understanding of how content is organized in different text types across disciplines using text organization and structure, language features, and vocabulary depending on purpose and audience;
- Become aware that different languages and varieties of English exist;
- Recognize their home languages and cultures as resources to value in their own right and to draw upon in order to build proficiency in English;
- Contribute actively to class and group discussions by asking questions, responding appropriately, and providing useful feedback;
- Demonstrate knowledge of content through oral presentations, writing, collaborative conversations, and multimedia; and
- Develop proficiency in shifting registers based on task, purpose, audience, and text type.” (ELA/ELD Framework p. 9-10).

EL students, like their English-fluent counterparts, are expected to gain progress in each of the ELA strands -- Listening, Speaking, Reading, and Writing. The Principal will monitor EL progress through formal and informal assessments including grades, standardized test scores, and ongoing communications with classroom teachers and the student’s parents/guardians. (See English Learner section below for more details about support/ELD instruction, assessment, reclassification and monitoring of ELs.)

MATHEMATICS – CORE/COLLEGE-PREPARATORY

Learning objectives and outcomes are aligned to the rigorous CA CCSS mathematics standards. Teachers use the *Mathematics Frameworks for California Public Schools* for planning and guidance. The goal of the math curriculum is to make students fluent with numbers, to build mathematical reasoning skills, to develop a strong math vocabulary and to apply algebraic concepts to problem solving.

Teachers provide direct instruction in new skills, along with hands-on activities and online learning time in math. Eureka Math, IXL and other Open Education Resources enable customization of instruction along with real-time data for teachers on specific standards and strands as students proceed through the online learning exercises and activities. Through Eureka Math’s blended learning program (online, print and manipulatives), students engage in adaptive online learning that react to students’ actions to meet them at the right level—with personalized instruction that

promotes student decision making and strategy development. An engaging, environment motivates students to persist in a fun learning setting. The standards-aligned curriculum is evidence-based to promote student growth and conceptual understanding by encouraging different pathways to solving problems. The program includes embedded differentiation and support for EL students. Like many online learning tools today, Eureka Math provides teachers with real-time data and academic insights to inform learning and differentiation for student

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needs. Units in Eureka include the following:

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http://assets.pearsonschool.com/asset_mgr/current/201633/MatBro581M416EVMOverNonCC_Medresingle.pdf

Eureka Math

Grade	Description
TK/K	Counting and Cardinality - Know number names and the count sequence. Count to tell the number of objects Measurement and Data - Classify objects and count the number of objects in each category Operations and Algebraic Thinking - Understand addition as putting together and adding to, and understand subtraction as taking apart and taking from Geometry - Identify and describe shapes squares, circles, triangles, rectangles, hexagons, cubes, cones, cylinders, and spheres Number and Operations in Base Ten - Work with numbers 11-19 to gain foundation for place value)

1st Grade	Measurement and Data • Measure lengths indirectly and by iterating length units Tell and write time Operations and Algebraic Thinking • Understand and apply properties of operations and the relationship between addition and subtraction Geometry • Reason with shapes and their attributes Number and Operations in Base Ten • Use place value understanding and properties of operations to add and subtract. Extend the counting sequence
2nd Grade	Measurement and Data • Work with time and money; Measure and estimate lengths in standard units Relate addition and subtraction to length Represent and interpret data Operations and Algebraic Thinking • Work with equal groups of objects to gain foundations for multiplication Represent and solve problems involving addition and subtraction Geometry • Reason with shapes and their attributes) Number and Operations in Base Ten • Use place value understanding and properties of operations to add and subtract
3rd Grade	Measurement and Data • Solve problems involving measurement and estimation of intervals of time, liquid volumes, and masses of objects Geometric measurement • Recognize perimeter as an attribute of plane figures and distinguish between linear and area measures Operations and Algebraic Thinking • Solve problems involving the four operations, and identify and explain patterns in arithmetic. Understand properties of multiplication and the relationship between multiplication and division Geometry • Reason with shapes and their attributes Number and Operations in Base Ten • Use place value understanding and properties of operations to perform multi-digit arithmetic Number and Operations – Fractions • Develop understanding of fractions as numbers

4th Grade	Measurement and Data - Solve problems involving measurement and conversion of measurements from a larger unit to a smaller unit. - Geometric measurement: Understand concepts of angle and measure angles Operations and Algebraic Thinking - Use the four operations with whole numbers to solve problems. Gain familiarity with factors and multiples - Generate and analyze patterns Geometry - Draw and identify lines and angles, and classify shapes by properties of their lines and angles Number and Operations in Base Ten - Generalize place value understanding for multi-digit numbers - Use place value understanding and properties of operations to perform multi-digit arithmetic Number and Operations - Fractions - Build fractions from unit fractions by applying and extending previous understandings of operations on whole numbers - Extend understanding of fraction equivalence and ordering - Understand decimal notation for fractions, and compare decimal fractions
5th Grade	Measurement and Data - Convert like measurement units within a given measurement system - Geometric measurement: understand concepts of volume and relate volume to multiplication and to addition - Represent and interpret data Operations and Algebraic Thinking - Write and interpret numerical expressions Analyze patterns and relationships Geometry - Graph points on the coordinate plane to solve real-world mathematical problems Classify two-dimensional figures into categories based on their properties Number and Operations in Base Ten Understand the place value system - Perform operations with multi-digit whole numbers and with decimals to hundredths Number and Operations - Fractions - Use equivalent fractions as a strategy to add and subtract fractions - Apply and extend previous understandings of multiplication and division to multiply and divide fractions

Hands-on math activities are also a focus of learning, particularly in the earliest grades. Daily math sessions will incorporate a daily warm-up activity focused on applying previously learned skills (spiral review) to solve a problem situation. The teacher will reinforce math vocabulary during the warm-up by requiring students to prepare a brief written or oral summary of the steps they took to solve the problem.

As part of our emphasis on writing and listening/speaking skills and on problem solving in the mathematics curriculum, the mathematics curriculum frequently requires students to explain, orally or in writing, their methods of solving a problem and their rationale for choosing those methods.

Assessment of mathematics standards will be based on evaluation of these presentations as well as on more traditional mathematics assessments from the state adopted textbook. Students will

also use math skills, particularly statistics and data analysis, to enhance oral and written presentations required in other subject areas.

Maker-Centered Learning practices also encourages students to apply math concepts to tangible and authentic experiences where students will be asked to create, design, engineer and/or prototype objects that represent their learning

Curriculum and software tools include online curriculum comparable to Eureka Math and IXL Our partners at Engineer Factory and SOLA Robotics, both organizations that are well-versed and highly knowledgeable in the integration of “making” with core curriculum, will help train our teachers on integrating Maker-Centered learning into the curriculum.

SCIENCE – CORE AND COLLEGE PREPARATORY

Science instruction at LbD is driven by the new Next Generation Science Standards (NGSS) with an emphasis on how to apply the scientific method to design controlled experiments; the ability to analyze and interpret qualitative and quantitative data; how to apply scientific writing skills to communicate conclusions from scientific data; and the ability to apply scientific knowledge and research to current social and world issues.

The implementation of our standards-based Science curriculum is driven by the constructivist belief that students learn best in an inquiry-based, hands-on, investigative environment that builds upon the knowledge of previous learning. Our students will work in cooperative groups to advance through the stages of the scientific process. It is through these cooperative groups that our students learn how to work together to solve a problem.

The project-based/constructivist-driven Science instructional program encourages students to learn content at higher levels of Bloom’s Taxonomy (3, 4, 5 and 6 – see below for more details about teachers’ use of Bloom’s in their teaching strategies) as students have opportunities to apply their knowledge as well as analyze, synthesize, evaluate and create information. While NGSS set the learning foundation, the actual project is the framework through which all of the teaching and experiential learning will take place. Students learn concepts via active engagement in the project. Projects are problem-, inquiry-, experiment-, or design- focused ultimately making the learning more authentic and student- centered. Projects will also focus on “real-life”, current, possibly community- based problems (i.e. understanding, responding to, and designing a solution for the water drought). Students are responsible for presenting their project outcomes in front of their peers and sometimes the larger school community.

FOSS Science Kits are a primary curricula source for our faculty in science. Full Option Science Systems (FOSS) is an inquiry-based hands-on science curriculum, with 3-5 units that align to the new NGSS standards for each elementary grade level. FOSS integrates all three dimensions of the NGSS: Disciplinary Core Ideas, the Science and Engineering Practices, and the Crosscutting Concepts, leading to enduring experiences that lead to deeper understanding of the natural and designed world. FOSS builds understanding of the core ideas of science.

Each module or course is composed of multiple investigations. The modules are connected and build upon one another across each strand and each grade, progressively moving students toward the big ideas of science.

Grade	Physical Science	Earth Science	Life Science
5	Mixtures and Solutions	Earth and Sun	Living Systems
4	Energy	Soils, Rocks, and Landforms	Environments
3	Motion and Matter	Water and Climate	Structures of Life
2	Solids and Liquids	Pebbles, Sand and Silt	Insects and Plants
1	Sound and Light	Air and Weather	Plants and Animals
K	Materials and Motion	Trees and Weather	Animals Two by Two

(<https://www.deltaeducation.com/foss/next-generation>)

Our teachers also will embed science into interdisciplinary projects (using Buck Institute of Education processes and templates) and Maker Space learning, to help deepen the authenticity of the learning.

SOCIAL STUDIES – CORE AND COLLEGE PREPARATORY

The Social Studies curriculum is based on a holistic approach to develop students' critical understanding of history and their own identity; as the new California standards are released, LbD implements them in all grade levels. Teachers utilize literature from around the world, non-fiction resources, and primary resources to foster a culturally sensitive perspective rooted in civic-mindedness. Instruction is aligned to the classroom theme, providing opportunities for students to explore and celebrate history, community, diversity, and multiculturalism. LbD's teachers incorporate CDE-approved curricular programs like Social Studies Alive! (K-5), which includes age-appropriate themes for each grade level:

Kindergarten	Me and My World explores the relationships in students' lives with their families, friends, teachers, and neighbors. Students learn that people live differently in different places and that they can help care for the world.
1st Grade	My School and Family introduces the structures of schools and families. Students learn how to get along with classmates, follow school rules, and identify people who work at a school.

nd 2 Grade	My Community teaches students the basics of geography, economics, and citizenship in the context of learning about their local community.
rd 3 Grade	Our Community and Beyond broadens students' awareness about the local and global communities in which they live. Students learn the fundamentals of geography and explore different cultures and public service roles.
th 4 Grade	Regions of Our Country presents five regions of the United States through the lens of four social sciences — economics, geography, political science, and history.
th 5 Grade	America's Past covers American history from the first migrations into the Americas through the 20th century. Intense interaction with the personalities, places, and events that structured our nation leads students to be both keen observers of and informed participants in U.S. history.

(<https://www.teachinci.com/social-studies/elementary-school/>)

Teachers provide students with access to primary and secondary historical sources, maps, charts, and timelines from which to draw information about the historical time periods and cultures studied. In teaching social science, teachers will use a variety of graphic organizers, charts, and visual aids to support students' developing analytic skills and to assist English language learners. To further increase understanding and motivation, social science will be taught with an emphasis on the stories of the groups of people and individual historical figures who particularly impacted their times.

Broad social studies themes and content cover topics of family life, cultures, community, the environment, the study of California, geography, economics, United States and world history with connections to mathematics, science, visual art, music, dance, and drama. Learning activities engage students in reading rich literature as well as original source documents across all content areas. Our teachers will invite experts from the community to speak to students. For example, during a second grade study of the Neighborhood, we can have firemen, policemen, bankers, librarians, doctors, etc. —interviewed by our second graders. When third grade is studying government, field representatives from our councilman, assemblyman, and senator's office can speak with students and share materials. Students experience daily opportunities to develop listening, speaking, research, and writing skills across the content areas and to develop proficiency in the use of the arts as tools for learning, creative thinking, and problem solving as well as assessment.

As with Science, Social Studies/History also follows a project-based format relying more on the higher levels of Blooms (Analysis, Evaluation and Creation). Using learning standards as the foundation for the learning, this instructional program will engage students in Socratic questioning methods, dialectic methods, inquiry, research, and debate, while they explore and examine historical and current as well as community and global events.

Additional integration of social science curriculum will occur in the math and science, when students may study the scientific and mathematical contributions of cultures they are studying. At all grade levels, the curriculum is enhanced whenever possible with maker-centered, multimedia resources, hands-on experiences (e.g. artifacts from cultures studied) and field trips. While covering the social science standards, teachers also focus on reinforcing and employing reading comprehension, writing, and listening speaking standards through social science content. For example, students will apply reading comprehension and vocabulary strategies to their social studies text and will complete assessments in which they demonstrate social studies content knowledge along with writing and speaking standards.

Equally as important, students learn/experience how their lives and efforts have an impact on their school and larger community. Projects are developed to allow students to actively and authentically respond to/solve local and global issues. Students work in Learning Hubs to complete projects and each student is assigned a role and responsibility for helping the project progress successfully.

Students have access to both digital and hard copy resources for research such as Gale Resources. Students also use technology to document and design their presentations.

INNOVATION, ENRICHMENT AND TECHNOLOGY

Students participate in Innovation/Enrichment blocks each day, at all grade levels. Teachers work with our Innovation partners to plan the integration of the arts, technology and maker-centered learning projects with core content, as well as support with creating curriculum to support student digital/media literacy and fluency that will take place during the Innovation/Enrichment Block of the school day. Our Innovation partners design and implement the “Making” curriculum and manage the Maker Mobile Carts that will house all the Making materials and other low and high-tech tools to be used for class projects to support core content or to be used during the Innovation/Enrichment scheduled time during the day. (See Maker-Centered Learning section above for a detailed list of materials and resources that will be included on these carts). Making activities include opportunities for students to tinker, code, engineer, 3D print, design and prototype their inventions.

PHYSICAL EDUCATION and WELLNESS (Garden)

Physical Education: LbD provides Physical Education for all students, 200 minutes for every 10 school days. The importance of a healthy mind and body is emphasized at the LbD. Through the support of our PE Teacher our goal is for all students to improve their motor skills, understand good sportsmanship, and gain self-confidence and body awareness as they continue to grow and develop over time, while also preparing them to excel on the California PFT assessments. Our commitment to building a community of respect continues on the field and court. As students learn the rules of games, good sportsmanship is promoted and fair play will be explicitly taught. They begin at an early age developing self-control and gross motor skills and then move toward contributing to a team working collaboratively. P.E. will include structured game play,

cardio/aerobic activity and strength training and conditioning in engaging, age-appropriate activities. Students are exposed to a myriad sports and physical activities (facilities and fundraising permitting) and also will include Yoga and Mindfulness practices and activities as this not only builds physical strength and agility but also develops in students the strategies and techniques for monitoring, regulating and managing their emotions and behaviors.

Wellness (Garden): Gardening also will be an important part of our curriculum, combining concepts in wellness, science, math, arts, history, writing and more into enriching experiences for our urban students. LbD's Garden volunteer works with teachers to integrate gardening with other subjects. Across grade levels, students learn to gather data about dynamic processes happening in the garden, and report on their data via increasingly complex means as growing scientists. Students may learn math by calculating germination rates, estimating seed production, measuring garden beds, and mapping the natural ecosystems. Art may be incorporated when the students create botanical illustrations in a scientific way. Students may learn about the cultural significance of plants in different time periods throughout history. Students keep garden journals that include record keeping of their experiments and reflections on their experiences in the garden. Through this hands-on gardening experience, students strengthen their observation and classification skills and see natural patterns such as the food chain, the seasonal cycles of growth, watershed study, decomposition, and soil differences in their real-life context.

Our students will be involved in the care and maintenance of the garden on our campus. The purpose of the students maintaining the gardens is not just to take ownership and pride in the campus, but also that they may experience important teachable moments such as the life cycle of plants and vegetation. Our students incorporate what they learn in gardening to understanding how food affects the body. It is incredibly powerful and meaningful to plant a seed, watch it grow over time, and understand that the nutrients going into that plant will provide nourishment as a part of a balanced diet. As they have these learning experiences at the LbD, it is our hope that our students will continue making healthy choices and thrive.

In addition to owning the power that comes from growing food, LbD hosts a Farmers Market where students are able to sell the foods they have grown to others making the garden experience a holistic and comprehensive experience building garden beds, green houses and planters, planting seeds and growing food, regularly tending to the garden, cooking the food they have grown, and now selling the food they have grown.

INNOVATIVE CURRICULAR COMPONENTS OF THE EDUCATIONAL PROGRAM

As detailed throughout this petition, LbD's personalized, experiential education program is designed to ensure that the instructional program meets each individual student's needs and that all of our students are engaged in their learning. Our infusion of technology and collaborative,

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project-based work – including Maker-Center Learning -- helps students master critical 21 century skills while further bolstering engagement. Our Mastery-Based approach ensures that students progress onto the next lesson only when they truly have learned and “mastered” the current content, ensuring at this critical age that learning that builds upon previous lessons does not leave a child further and further behind. Our preferred small school size and integration of parents into school activities as volunteers and participants in celebrations of learning all ensure students experience a strong sense of community and social support.

INTERVENTION AND ENRICHMENT PROGRAMS

See sections above regarding Enrichments in the Arts, Media and Technology as well as P.E./Wellness. Intervention and supports for students in need are detailed below.

CURRICULAR AND INSTRUCTIONAL MATERIALS

The academic program at LbD begins with the CCSS/NGSS. Teachers use standards-aligned, research proven curricula (textbook, online and curricular kits) for the core academic subjects. Core course curricula is selected based on review and recommendation of the department and/or grade level team based on the CCSS and CDE Frameworks for each subject. Specific purchased curriculum will be selected by the faculty and school leaders based on specific student needs.

At this time, we plan to use the following key textbooks and online curricular resources:

English Language Arts	Reader’s & Writer’s Workshop (and related Lucy Calkins materials) Lexia Core 5 Learning IXL
Mathematics	Eureka Math IXL
Science	FOSS Science Kits (K-5) Amplify Science Scholastic News
Social Studies/History	Social Studies Alive! (K-5) Scholastic News

English Language Development	Lexia Core 5 Learning SDAIE strategies IXL
Innovation and Arts	Teacher-created curriculum based on standards
P.E. Education	Teacher-created curriculum based on standards

COURSE LIST (N/A TO ELEMENTARY SCHOOLS)

INSTRUCTIONAL METHODS AND STRATEGIES

LbD will utilize instructional methods that incorporate one or more of the nine components found
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to have a positive effect on student learning, as described by Marzano. These include:

- ☐ Small projects and other ways of experiencing real-world problems
- ☐ Collaborative investigations and demonstrations
- ☐ Mini-lessons that address specific skills within the context of larger projects
- ☐ Giving guidance and adequate time to self-reflect and self-assess
- ☐ Democratic classrooms and school structure
- ☐ Authentic assessments
- ☐ Direct instruction
- ☐ Research based projects
- ☐ Cooperative group work and projects

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Marzano, R. Classroom Instruction that Works: Research-based Strategies for Increasing Student Achievement. 2001.

To ensure success for each LbD student, teachers use multiple means of engaging and reaching students—relying first on each student’s identified learning preferences and cultural styles, and gradually stretching each student to adapt to a variety of teaching styles that might present themselves in secondary and post-secondary education. The core instructional methods discussed above – project- based/constructivist learning, online learning, Maker-Centered Learning and so on help to ensure that each student accesses and masters the content standards in a meaningful way.

Backwards Design and Differentiation of Instruction

According to Robert Marzano, successful school models employ accountability measures to ensure that all standards are covered throughout the course of the school year. LbD utilizes backwards planning as a strategy to ensure that all students receive instruction in all standards. In backwards planning, teachers start with the desired results (goals or standards) and then work backwards to derive the curriculum based upon the evidence of learning called for by the standards and the teaching needed to equip students to perform. Teachers first “unpack” and prioritize the content standards and identify desired results of student learning, and design or select assessments to measure those results. Teachers then differentiation instruction to meet each learner’s needs.

Our mastery-based approach supports students to progress at their own pace and receive targeted support and instruction to ensure they master content before moving on. Differentiated instruction “is to recognize students’ varying background knowledge, readiness, language,

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preferences in learning, and interests, and to react responsively.” The intent is to maximize each student’s growth and individual success by meeting each student where he or she is, and assisting then them in the learning process.

Through differentiated and highly personalized instruction, all LbD students – including our special needs populations (English learners, At-Risk/Low Achieving, GATE, economically disadvantaged, Special Education) – receive focused attention to their needs and strengths as teachers implement individualized instruction based on data-driven assessments.

Universal Design for Learning

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Instruction is also based on the Universal Design for Learning (UDL) approach. The purpose of UDL is not simply to help students master a specific body of knowledge or a specific set of skills, but to help them master learning itself—in short, to become expert learners. Expert learners are: 1) strategic, skillful, and goal directed; 2) knowledgeable; and 3) purposeful and motivated to learn more. Developing tailored instruction using UDL allows teachers to remove potential barriers that could prevent learners from meeting these important goals.

Because each student is unique when it comes to learning, teachers use a variety of methods when differentiating instruction. These include varying modes of curriculum delivery, offering students choices in materials, and/or allowing different ways for students to demonstrate knowledge and content mastery. Diverse learning and teaching styles, multiple intelligences, and cultural preferences will be taken into account when developing plans to address each student’s learning needs.

Each student’s PLP articulates their learning assets (strengths to build upon), preferred learning styles, challenges, and strategies to address learning challenges. Each student reflects upon

his/her individual academic and social talents, passions and needs, and long-term goals. As students progress, they are challenged to stretch beyond their most comfortable modalities so that they are prepared for what they may encounter in secondary school, college and/or careers.

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Hall, T. Strangman, N., & Meyer, A. (2009). Differentiated instruction and implications for UDL implementation. Wakefield, MA: National Center on Accessing the General Curriculum. Retrieved 10/16/10 from [http://www.cast.org/publications/ncac_diffinstructu dl.html](http://www.cast.org/publications/ncac_diffinstructu%20dl.html)

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Ibid

Bloom's Taxonomy

Teachers at LbD receive training on using Bloom's Taxonomy as a way of thinking about the mastery students achieve in their learning. ³⁷

In the 1950's, Benjamin Bloom created The Taxonomy of Educational Objectives as a means of expressing qualitatively different kinds of

³⁸ thinking. As shown in the table below, the revised Bloom's Taxonomy identifies and classifies different levels of thinking about a concept or skill from "Remembering" through "Creating and Evaluating." At LbD, teacher-designed rubrics for project-based work and Maker-Centered learning are collaboratively designed in grade level teams, based on these different stages.

A Taxonomy for Learning, Teaching, and Assessing: A Revision of Bloom's Taxonomy of Educational Objectives.

Competencie s	Emerging (Remember) 1	Capable (Understand) 2	Bridging (Apply) 3	Proficient (Analyze) 4	Advanced (Create/ Evaluate) 5
------------------	-----------------------------	------------------------------	--------------------------	------------------------------	-------------------------------------

	Choose Define Describe Identify Label List Locate Memorize Recognize Select	Classify Confirm Differentiate Discuss Explain Give example Infer Interpret Match Predict Prepare Show Summarize	Assumptions Categorize Compare Demonstrate Dramatize Examine Investigate Order Relate Solve Survey Use	Appraise Compare Consider Debate Defend Inspect Judge Question Recommend Weigh Evidence	Assess Generalize Combine Compose Construct Create Critique Design Develop Formulate Hypothesize Originate Synthesize
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Data-driven instruction utilizing a data management system such as PowerSchool or other admin created data tracking tool, school leaders track individual, subgroup, classroom and whole school academic growth and identify and analyze any gaps or patterns. School leaders are also able to access teacher efficacy in real-time, ensuring that teachers who are struggling to achieve intended outcomes in specific subject areas, or with specific students, receive targeted training, support and professional development to improve their teaching practice. Grade level teams are provided with common planning time that they use to examine data at least monthly. Any problematic data trends are directly addressed through meetings with individual teachers, and through the examination of policies or practices that may need to be changed.

The various online curriculum we utilize provide a rich array of data points about each student in real time, including mastery of specific content strands and standards, while helping teachers identify which students need extra support or intervention, including re-teaching.

Powerschool, Lexia, and Google Classroom also allows parents and students real-time access to student's grades, both cumulative and on an assignment-by-assignment basis, and student attendance records. As students become self-directed learners, they learn to track their own progress and reflect on their accomplishments and challenges in meeting their own goals for each quarter.

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Anderson, L.W., & Krathwohl (Eds.). (2001). *A Taxonomy for Learning, Teaching, and Assessing: A Revision of Bloom's Taxonomy of Educational Objectives*. New York: Longman

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Bloom, B., *The Taxonomy of Educational Objectives* (2nd Ed. 1984. Boston: Addison Wesley Publishing)

HOW THE SCHOOL'S INSTRUCTIONAL METHODOLOGIES AND CURRICULUM ENSURES STUDENT MASTERY OF THE CALIFORNIA CCSS AND OTHER STATE CONTENT STANDARDS

As detailed above, the entire content of LbD's curriculum start with the California state standards, including CCSS and NGSS, as its foundation. Units are explicitly designed to ensure all grade-level standards are met. LbD recognizes the importance of regular, ongoing professional development in the continued implementation of the CCSS and realizes the importance of keeping abreast of CCSS developments, new publications and requirements.

HOW THE INSTRUCTIONAL PROGRAM SUPPORTS STUDENT DEVELOPMENT OF TECHNOLOGY-RELATED SKILLS AND STUDENT USE OF TECHNOLOGY

Technology is fully integrated into our instructional program, as we view computers as a basic learning tool, much like a pencil or box of crayons, that gives both students and teachers valuable ways to explore, deepen, extend, and communicate skills and ideas. Students use computers and tablets to gather and share information, as well as practice and develop a variety of academic skills. Teachers use technology to design many of their projects, assignments, and handouts. Technology projects go far beyond researching on the Internet and typing stories, as our students create things such as podcasts, animations, and video games to enrich their learning experiences. The three fundamental philosophical principles for using computers are:

- Computers are used as a knowledge medium rather than an instructional delivery system.
- Computers are used to create mental bridges between hands-on knowledge and symbolic knowledge.
- Technology is driven by the curricular needs and classroom use. Computers serve as an amplifying medium for the concepts brought forth from the curriculum.

All students have access to Chromebooks for school use (2:1). Our youngest students become comfortable with technology through fun, interactive game-based programs with dynamic visuals that develop core content knowledge simultaneously with technology usage skills. Basic keyboarding skills, document, presentation and online database skills are taught both explicitly and inherently as students engage with the curriculum. Students will use these devices to support their personalized on-line learning as well as for creating documents, coding lessons, storing work in digital portfolios, and other projects that can be enhanced using digital devices. Staff set benchmarks in technical knowledge to be mastered in each grade level – including principles of digital citizenship and online responsibility and integrity -- within the existing curriculum – these skills are explicitly taught both during Innovation/Enrichment Blocks as well as core subject courses (e.g., an English class might include specific instruction on internet research and citation skills, using Word, etc.). These benchmarks will be referenced against ISTE standards and will incorporate California's new Computer Science standards when these are released (expected 2019).

19. NOT APPLICABLE

TRANSITIONAL KINDERGARTEN PROGRAM

LbD incorporates a strong transitional kindergarten (TK) program for any student whose fourth birthday falls between September 1st and December 1st, with curriculum, Tools of the Mind, that is aligned to the California Preschool Learning Foundations (Foundations) developed by the California Department of Education, (Senate Bill (SB) 858 (Chapter 32, Statutes of 2014)).

LbD complies with teacher credential requirements for TK classrooms, specifically, teachers assigned to a TK classroom after July 1, 2015, must have been issued at least one credential by the Commission on Teacher Credentialing (CTC), and shall, by August 1, 2020, have one of the following:

- ☐ At least 24 units in early childhood education, or childhood development, or both; or
- ☐ As determined by the LEA [Charter School] employing the teacher, professional experience in a classroom setting with preschool age children that is comparable to the 24 units of education described above
- ☐ A child development permit issued by the CTC.

ACADEMIC CALENDAR AND SCHEDULES

ACADEMIC CALENDAR

The school calendar shares nearly all vacations and holidays with the Los Angeles Unified School District and includes 180 days of school instruction and more than the minimum minutes of instruction for each grade level (36,000 for Kindergarten; 50,400 minutes for grades 1-3; and 54,000 for grades 4-5). The following is a preliminary Academic Calendar for the, 2026-2027 school year:



LEARNING
BY
DESIGN

Academic Calendar | 2026 - 2027

August 2026						
S	M	T	W	T	F	S
						1
2	3	4	5	6	7	8
9	10	11	12	13	14	15
16	17	18	19	20	21	22
23	24	25	26	27	28	29
30	31					

September 2026						
S	M	T	W	T	F	S
		1	2	3	4	5
6	7	8	9	10	11	12
13	14	15	16	17	18	19
20	21	22	23	24	25	26
27	28	29	30			

October 2026						
S	M	T	W	T	F	S
				1	2	3
4	5	6	7	8	9	10
11	12	13	14	15	16	17
18	19	20	21	22	23	24
25	26	27	28	29	30	31

November 2026						
S	M	T	W	T	F	S
1	2	3	4	5	6	7
8	9	10	11	12	13	14
15	16	17	18	19	20	21
22	23	24	25	26	27	28
29	30					

December 2026						
S	M	T	W	T	F	S
		1	2	3	4	5
6	7	8	9	10	11	12
13	14	15	16	17	18	19
20	21	22	23	24	25	26
27	28	29	30	31		

January 2027						
S	M	T	W	T	F	S
					1	2
3	4	5	6	7	8	9
10	11	12	13	14	15	16
17	18	19	20	21	22	23
24	25	26	27	28	29	30
31						

February 2027						
S	M	T	W	T	F	S
	1	2	3	4	5	6
7	8	9	10	11	12	13
14	15	16	17	18	19	20
21	22	23	24	25	26	27
28						

March 2027						
S	M	T	W	T	F	S
	1	2	3	4	5	6
7	8	9	10	11	12	13
14	15	16	17	18	19	20
21	22	23	24	25	26	27
28	29	30	31			

April 2027						
S	M	T	W	T	F	S
				1	2	3
4	5	6	7	8	9	10
11	12	13	14	15	16	17
18	19	20	21	22	23	24
25	26	27	28	29	30	

May 2027						
S	M	T	W	T	F	S
						1
2	3	4	5	6	7	8
9	10	11	12	13	14	15
16	17	18	19	20	21	22
23	24	25	26	27	28	29
30	31					

June 2027						
S	M	T	W	T	F	S
		1	2	3	4	5
6	7	8	9	10	11	12
13	14	15	16	17	18	19
20	21	22	23	24	25	26
27	28	29	30			

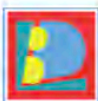
Trimester 1	Trimester 2	Trimester 3
August 12	November 9	March 8
to	to	to
November 6	March 5	June 4
(60 days)	(62 days)	(58 days)

	First/Last Day of School
	Holiday/No School
	Pupil Free Day/Professional Development
	Parent Conferences/Report Cards
	Final Report Card

SAMPLE DAILY SCHEDULES

Each Wednesday, students in all grades are dismissed at 1:15pm so that teachers can participate in two hours of professional development and common planning time.

One note about the schedule: our schedule includes long blocks of learning time to accommodate our flex-rotational model, yet we also recognize that young bodies need to move and young brains need a break. “Brain Breaks” in the middle of the core instructional block each day will include fun, active, physical yet educational games and activities that get the children moving and help to break up the morning.³⁹ Teachers may have students toss a rubber band ball from one to the next, each calling out a letter to spell the word the teacher said, or do a dance that involves a



Learning by Design Charter School
Bell Schedule
2024-2025

PRIMARY BELL SCHEDULE TRANSITIONAL KINDERGARTEN, KINDERGARTEN, FIRST GRADE, SECOND GRADE					
	Monday	Tuesday	Wednesday	Thursday	Friday
8:00am - 8:15am	Morning Meeting	Morning Meeting	Morning Meeting	Morning Meeting	Morning Meeting
8:15am - 9:45am Literacy Block	English Language Arts	English Language Arts	English Language Arts	English Language Arts	English Language Arts
9:45am - 10:05am	Snack Recess	Snack Recess	Snack Recess	Snack Recess	Snack Recess
10:05am - 11:05am Math Block	Math	Math	Math	Math	Math
11:05am - 12:05pm	PBL/Social Studies/ Science	PBL/Social Studies/ Science	PBL/Social Studies/ Science	PBL/Social Studies/ Science	PBL/Social Studies/ Science
12:05pm - 12:45pm	Lunch Recess	Lunch Recess	Lunch Recess	Lunch Recess	Lunch Recess
12:45pm - 3:00pm Rotations Block	Rotations: Arts Enrichment/ Innovation Lab/PE/ Garden/Study Hall	Rotations: Arts Enrichment/ Innovation Lab/PE/ Garden/Study Hall	12:45pm – 1:15pm Study Hall *1:15pm Dismissal	Rotations: Arts Enrichment/ Innovation Lab/PE/ Garden/Study Hall	Rotations: Arts Enrichment/ Innovation Lab/PE/ Garden/Study Hall

INTERMEDIATE BELL SCHEDULE 3RD GRADE, FOURTH GRADE, FIFTH GRADE					
	Monday	Tuesday	Wednesday	Thursday	Friday
8:00am - 8:15am	Morning Meeting	Morning Meeting	Morning Meeting	Morning Meeting	Morning Meeting
8:15am - 10:05am Literacy Block	English Language Arts	English Language Arts	English Language Arts	English Language Arts	English Language Arts
10:05am - 10:25am	Snack Recess	Snack Recess	Snack Recess	Snack Recess	Snack Recess
10:25am - 11:25am Math Block	Math	Math	Math	Math	Math
11:25am - 12:25pm	PBL/Social Studies/ Science	PBL/Social Studies/ Science	PBL/Social Studies/ Science	PBL/Social Studies/ Science	PBL/Social Studies/ Science
12:25pm - 1:05pm	Lunch Recess	Lunch Recess	Lunch Recess	Lunch Recess	Lunch Recess
1:05pm - 3:00pm Rotations Block	Rotations: Arts Enrichment/ Innovation Lab/PE/ Garden/Study Hall	Rotations: Arts Enrichment/ Innovation Lab/PE/ Garden/Study Hall	*1:15pm Dismissal	Rotations: Arts Enrichment/ Innovation Lab/PE/ Garden/Study Hall	Rotations: Arts Enrichment/ Innovation Lab/PE/ Garden/Study Hall

math pattern.

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See, e.g., <https://www.weareteachers.com/21-awesome-ways-to-get-your-students-moving-during-learning-center-time/>

INSTRUCTIONAL MINUTES

LbD exceeds the required number of instructional minutes set forth in the California Education Code. LbD will offer 180 total days of instruction.

Grades	Grades Offered	Number of Regular Days	Number of Instr. Minutes Per Regular Day	Number of Early Dismissal Days	Number of Instr. Minutes Per Early Dismissal Day	Number of Minimum Days	Number of Instr. Minutes Per Minimum Day	Number of [Other] Days	Number of Instr. Minutes Per [Other] Day	Total Number of Instr. Days	Minutes Req'd Per State Law	Total Number of Instr. Minutes	Number of Instr. Minutes Above/ Below State Req't.
TK/K	Yes	144	350	36	250					180	36000	59400	23400
1	Yes	144	350	36	250					180	50400	59400	9000
2	Yes	144	350	36	250					180	50400	59400	9000
3	Yes	144	350	36	250					180	50400	59400	9000
4	Yes	144	350	36	250					180	54000	59400	5400
5	Yes	144	350	36	250					180	54000	59400	5400
6	Select Y/N									0	54000	0	-54000
7	Select Y/N									0	54000	0	-54000
8	Select Y/N									0	54000	0	-54000
9	Select Y/N									0	64800	0	-64800
10	Select Y/N									0	64800	0	-64800
11	Select Y/N									0	64800	0	-64800
12	Select Y/N									0	64800	0	-64800

EARLY COLLEGE (NOT APPLICABLE)

PROFESSIONAL DEVELOPMENT

Professional development and coaching is a critical aspect of operations. LbD believes in providing ample time, support and resources to teachers through a high-quality Professional Learning Committee (PLC) model, where internal expertise is continuously shared with other teachers regarding curriculum, instruction, assessment, and behavior management as well as

open-ended discussions about how the

school might best promote student success. The PLC model fosters collaboration to continually improve learning, develop shared values and norms, and ensure greater accountability for results. Through PLCs, instructional staff will analyze student achievement data, conduct reflective inquiry, actively seek and cooperatively implement solutions, and evaluate learning outcomes. PLCs will be a regular and ongoing function of staff meetings. LbD's Principal will lead training in how to conduct and participate effectively in PLCs.

LbD instructional staff will meet for two hours weekly on Wednesdays (early release) with school leaders. Teachers engage in collaborative planning and professional development for two weeks prior to the school first opening in August 2018, and three full days of professional development (PD) throughout the school year. In subsequent years, one week of teacher PD and collaborative planning time occurs each summer. During summer PD, emphasis is placed on ensuring all of our teachers have comprehensive understanding of our instructional methodologies and are able to plan and implement lessons that incorporate our model consistently across classrooms. During the initial weeks of each school year, instructional leaders spend more intensive time visiting classrooms and coaching teachers on pedagogy and instructional methods.

PD is led by our staff, most commonly the Education Director and Executive Director, but also by teachers who develop specific expertise or attend off-site trainings and then in turn train their peers. Outside consultants are also retained to lead teacher PD as needed. PD topics include:

- ☐ Charter Petition review and understanding the LbD model and mission
- ☐ Common Core State Standards
- ☐ Project-Based Learning Overview (based on PBL Works methods)
- ☐ Personalized/ Blended learning and small group instruction
- ☐ SEL, PBIS and Restorative Practices for Positive Behavior and Discipline
- ☐ Responsive Classrooms: Social-Emotional curriculum and strategies
- ☐ Formative and summative assessments, including state standardized tests
- ☐ RTI Model, Role of the SST, identification of students with special needs, the IEP process, modifications for students with disabilities, available resources (e.g., counseling) for students and families in need
- ☐ Strategies for English learners including SDAIE
- ☐ Using PowerSchool data system; Collecting, analyzing and using student achievement data to drive classroom instruction
- ☐ Health and Safety policies and procedures including emergency protocols, mandated reporter, blood borne pathogens and first aid/CPR training
- ☐ School administrative policies and procedures (attendance reporting, student discipline, etc.)
- ☐ Way of Council Connection Circles (discipline and classroom management)

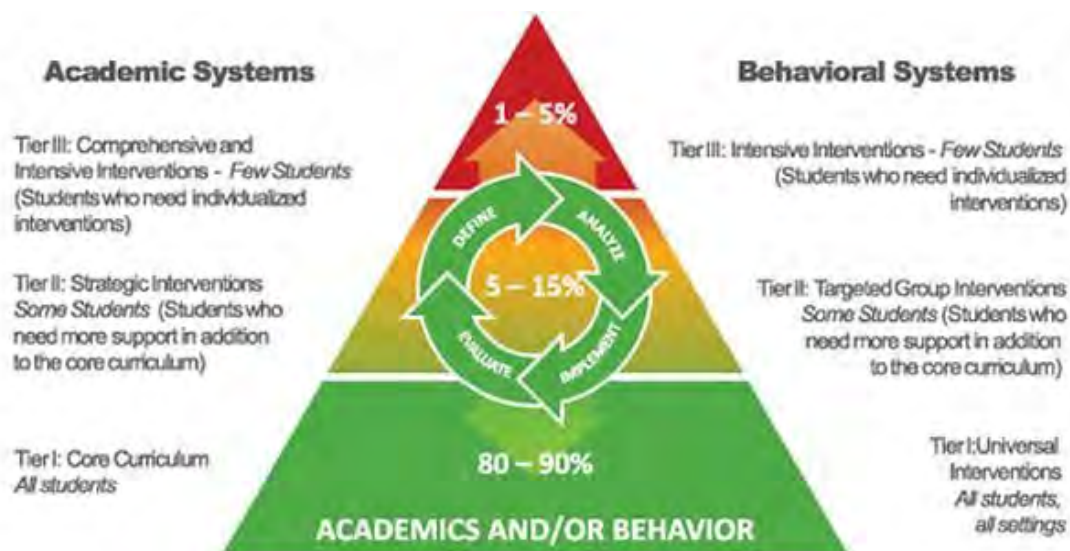
Staff work with school leaders to develop curriculum and assessments, review student

achievement data (with a focus on subgroup performance), and discuss individual students. PDs are utilized in which the teachers come together as a professional learning community to examine student work, lesson or unit plans and give each other supportive and critical feedback. Through ongoing classroom observations, grade level teacher meetings, facilitated discussions around best practices, PLC meetings, analyzing data, and academic planning), teachers continuously collaborate to meet individual, subgroup, grade level and whole school student needs. Teachers also attend off-site training as approved by the Education Director.

MEETING THE NEEDS OF ALL STUDENTS

LbD is built upon a premise of equity – giving each student what they need via a personalized learning experience that supports his/her individual growth and development towards success. As noted above, each student at LbD will have a Personalized Learning Plan, developed in a collaborative effort by the student, teacher and parents/guardians. Through regular check-ins and conferences, teachers and school leaders will continuously monitor the progress of each student toward the goals stated in the PLP, and be able to quickly intervene if additional supports or interventions become necessary. This process is the first step in intervention. Should more supports be needed, LbD will implement its RTI Model of Intervention.

LbD's Response to Intervention Model with integrated systems of leveled support are designed to ensure that the school and community are doing everything possible to make students successful at school. The Response to Intervention (RTI) process is used to provide multi-tiered systems of support for academic and behavioral instruction; where these supports and interventions are not successful in achieving desired results, students may be referred for evaluation for potential special education services and an IEP. The RTI system of support constructs interventions, programs, and services based on student data and student outcomes.



Tier 1 interventions involve providing all students with high quality, differentiated instruction as

part of the regular core instruction in the classroom. As detailed above, through student's individual PLPs, customized "play lists," small Learning Hub groups and more, instruction at LbD is inherently differentiated for all students.

Students who need additional time beyond the regular classroom instruction and who have failed to meet standards, based on formative and diagnostic assessments, will be referred to the Student Support Progress Team (SSPT) and provided Tier 2 interventions. A request for consult with the SSPT can be made by a teacher, administrator, parent or guardian. Tier 2 provides targeted interventions for students who need additional support in addition to core instruction, including more focused time in Learning Hubs, individual and small group tutoring, differentiated materials in their play lists for online learning, and other targeted supports. The SSPT's recommendations, strategies or actions typically will be implemented for a six to eight week progress monitoring period. Progress monitoring and data collection are part of both Tier 1, and Tier 2 intervention. The student progress and data is then analyzed to determine the level of support based on the student outcomes from the interventions.

A small percentage of students require additional support beyond the Tier 2 intervention and are eligible for Tier 3 intervention that is generally more intensive and longer term and occur after and before school. Tier 3 – also coordinated by the SSPT -- provides intensive interventions for students with significant academic or behavioral needs. Tier 3 interventions include "pull out" instruction during enrichment blocks.

The SSPT meetings are coordinated by the Education Director who schedules and oversees all SSPT meetings including inviting parents/guardians to participate – and monitor student progress and follow-up. During the SSPT meeting, the core team (parent, guardian, school personnel, and student) review test scores from current and previous years, review data and progress monitoring from interventions and review student's current behavior, academic, attendance, and social progress. The team identifies student strengths and successes, and then discuss concerns. A copy is given to team members, and a record is put in an SSPT folder in student's cumulative file. During the SSPT meeting, measures are made to ensure the process is individualized with appropriate next steps assigned. The six to eight week RTI progress monitoring is the time to identify student strengths/challenges, work to create solutions, and set or revise goals. A follow up meeting may be scheduled if needed to reevaluate goals or consider Special Education testing as part of the RTI process.

ENGLISH LEARNERS (EL)

Based upon the data from the surrounding neighborhood schools, we expect approximately 22 % of students to be English Learners (ELs), with the vast majority being Spanish speaking. We have structured our program to meet the needs of ELs with a goal that they gain fluency in English as quickly as possible in a supportive setting. LbD teachers, staff and school leaders communicate to parents in Spanish as needed—but use English instruction for the content areas in the classroom.

We have structured our program to meet the needs of ELs with a goal that they gain fluency in English as quickly as possible in a supportive setting. LbD teachers, staff and school leaders will communicate to parents in their home language as needed—but will use English instruction for the content areas in the classroom.

IDENTIFICATION OF ENGLISH LEARNERS

LbD's EL program, which models from the LAUSD English Learner Master Plan, is designed to ensure English Learners (including those who are reclassified) have equal access to instructional materials and supports in order to achieve grade-level CCSS mastery and English-language proficiency.

In order to identify EL students in a timely fashion and to provide appropriate instructional support and services, all parents are required to complete a *Home Language Survey* upon enrollment at the school. (Cal. Education Code § 52164.1) Students whose primary language is not English will be assessed using the English Language Proficiency for California (ELPAC) assessment aligned to the CA ELD Standards if he or she has not previously been identified as an English learner by a California public school or if there is no record of prior ELPAC test results. The ELPAC assessment will take place within 30 days of the start of the school year or within two (2) weeks after the date of the student's first enrollment at LbD.

The Intervention/EL Coordinator assesses English language proficiency of all currently enrolled English learners in accordance with California Education Code guidelines. Students with disabilities will be permitted to take the test with the accommodations listed in the Education Code if they are specified in the student's IEP or Section 504 plan. An alternate assessment for English language proficiency is administered to students who are unable to participate in the ELPAC, according to the guidelines set forth in the student's IEP. The school notifies parents of the school's responsibility to conduct ELPAC testing and will inform parents of ELPAC assessment results within 30 calendar days following receipt of results from the test contractor.

Students are monitored in conjunction with the four new Performance Level Descriptors (PLDs) approved by the State Board of Education:

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This document provides the general performance level descriptors (general PLDs) for the English Language Proficiency Assessments for California. These general PLDs take into account the categories of Emerging, Expanding, and Bridging. The language in the description draws from the language used to describe those categories on page 20 of the [2012 California English Language Development Standards: Kindergarten Through Grade 12](#) (PDF).

Following the field tests for the initial assessment (IA) and summative assessment (SA), the specific performance level threshold score recommendations will be submitted to the State Board of Education (SBE) for approval pursuant to California *Education Code* Section 60810(2) after the IA and SA standard settings. These general PLDs are structured so that for the summative assessment, a recommendation to consider an English learner for reclassification would be based on the threshold between level 3 and level 4. For the IA, a student whose IA results fall at or above the threshold between level 3 and level 4 would be considered Initial Fluent English Proficient (IFEP). These recommendations for IFEP and reclassification will be reconsidered by the SBE upon adoption of the specific threshold scores.

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Previously, under the CELDT test, there were five proficiency levels. A chart located on the CDE website provides a helpful comparison of the old CELDT test standards compared to the

new ELPAC: <http://www.cde.ca.gov/ta/tg/ep/celdtelpaccompare.asp>.

4	English learners at this level have fully functional receptive (listening and reading) and productive skills (speaking and writing). They can use English to learn and communicate in meaningful ways that are appropriate to different tasks, purposes, and audiences in a variety of social and academic contexts. They may need occasional linguistic support to engage in familiar social and academic contexts;
3	English learners at this level have moderately functional receptive (listening and reading) and productive skills (speaking and writing). They can sometimes use English to learn and communicate in meaningful ways in a range of topics and content areas. They need light to minimal linguistic support to engage in familiar social and academic contexts; they need moderate support to communicate on less
2	English learners at this level have somewhat functional receptive (listening and reading) and productive skills (speaking and writing). They can use English to meet immediate communication needs but often are not able to use English to learn and communicate on topics and content areas. They need moderate-to-light linguistic support to engage in familiar social and academic contexts; they need substantial-to-
1	English learners at this level have limited functional receptive (listening and reading) and productive English skills (speaking and writing). They tend to rely on learned words and phrases to communicate meaning at a basic level. They need substantial-to-moderate linguistic support to communicate in familiar social and academic contexts: they need substantial linguistic support to communicate on less

<http://www.cde.ca.gov/ta/tg/ep/elpacqpld.asp>

Parents are notified of their rights and their child's ELPAC scores each year, and will be encouraged to participate in the reclassification process. Parents will be notified when a student is being considered for reclassification and again when they are officially reclassified.

EDUCATIONAL PROGRAM FOR ENGLISH LANGUAGE ACQUISITION

All EL students learn with all other students in the classroom during instructional time. In addition, EL students have designated English language instructional time in small groups daily. Teachers use modeling, graphic organizers and visuals to support students' recognition of essential information in all academic subjects. Teachers are mindful of the stages of language acquisition and differentiate instruction within the classroom to meet the needs of each student.

All LbD teachers are trained to use Specially Designed Academic Instruction in English (SDAIE) techniques to meet the needs of ELs. The instructional design model used by LbD will place a

heavy emphasis on differentiating instruction to meet the needs of ELs based on their academic and language readiness. LbD's philosophy of personalizing instruction for all students also benefits ELs by providing entry points learning tasks and outcomes that are tailored to the student's needs.

Sheltered instruction/SDAIE is grounded in a pedagogical commitment to meeting the needs of diverse learners, in this case particularly those students who are English learners. Teachers will engage in the following practices to support universal access of subject matter content for all

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students:

- During lesson planning and preparation, teachers will identify lesson objectives aligned with state and local standards.
- Teachers will link new content to students' background experiences and introduce unfamiliar vocabulary to facilitate comprehension.
- Teachers will use controlled vocabulary, sentence structure, visuals, and gestures as necessary and appropriate to make the presentation of content comprehensible.
- Teachers will provide students with a variety of strategies for organizing and retaining information associated with effective learning, such as graphic organizers and note taking.
- Teachers will provide students with regular opportunities to interact with their peers through collaborative learning activities, such as think/pair/share, partner and group projects.
- Teachers will provide students with regular opportunities to use new language skills in context.
- Teachers will pace lessons appropriately to allow for the participation and active engagement of all students.
- Teachers will utilize language-based as well as content-based assessments.

SDAIE instruction also focuses on strategies for taking students Into, Through, and Beyond the topics covered. For example, SDAIE-enhanced instruction might proceed as follows:

- i. **Into:** Determining what the students know about the topic of study. Possible SDAIE strategies for "Into":

Anticipatory Guide: Students are given a series of statements that relate to concepts they will be studying in their unit on Ancient Greece. Students indicate AGREE or DISAGREE. After the information has been presented, students check to see if they were correct.

Brainstorming - Students work in small groups. Each group begins with a stimulus such as a word, phrase, picture, or object related to the topic of Ancient Greece. A recorder records all responses to that stimulus and ideas from each group are shared with the class.

- ii **Through:** The teacher enhances direct instruction on the topic by utilizing realia, manipulatives, visuals, graphic organizers, and various modes of interaction between students. In addition to reading the text and listening to information presented by the teacher, students take responsibility for learning by participating in group-work and sharing understanding with others. Possible SDAIE strategies for “Through”:

Graphic Organizers – Students complete a variety of graphic organizers as they read or listen to information. Graphic organizers used might include:

Comparison-Contrast Matrix–Students determine similarities and differences between two topics studied

Flowcharts – Students sequence important events in the content studied.

Cause and Effect Chart – Students chart the ways in different characteristics effect change and impact others.

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Based on the eight broad elements of sheltered instruction described by Echevarria, Vogt, and Short. *Making content comprehensible for English language learners: The SIOP model*. Boston: Allyn and Bacon (2004).

Reciprocal Teaching - Two students work together to read a passage in the social science text. Student A reads one paragraph aloud, then asks Student B one or two good questions based on the reading. Student B answers. Students A and B discuss questions and answers and repeat the process.

Picture This – Following the introduction of several key vocabulary terms related to the unit, a blank paper is divided into eight sections. Students draw pictures or symbols to represent words or major concepts. They then exchange papers with a partner and try to correctly label each other's drawings.

Reading Guide - Students work in small groups to read a longer section of the social science textbook. Students first take turns reading the headings of the reading. Then, with their group, students predict what will be discussed in those sections. Students write their answers on a prediction chart. In their groups, students take turns reading the first page aloud, and finish reading the selection in silence. They write "yes" or "no" on the prediction chart to indicate whether or not their predictions were correct. Finally, students write one thinking question (Why..., How..., Compare..., What if...), and exchange papers to answer each other's questions.

- iii **Beyond:** To create further understanding, students go beyond rote memorization and demonstrate real-world application of the learned information. This process requires higher-level critical-thinking skills. Possible SDAIE strategies for “Beyond”:

Roam the Room - In groups, students write down their individual answers to a higher-level question posed by the teacher (e.g. if only one idea or invention from the Greek culture could be passed on to subsequent cultures, what should it be and why?). Students share their answers within their group and the group comes up with and records on chart paper one “best” answer for their group. Groups then walk around to view other groups’ answers.

Quotes – Students identify quotes from a fictional text related to the unit. They create a chart listing the quote and the point they feel the quote illustrates.

HOW THE PROGRAM MEETS THE NEW STATE ELD STANDARDS AND USES THE RESULTS OF THE ELPAC

LbD bases its English Learner support program on the new 2012 California ELD Standards. The California English Language Development Test (CELDT), aligned to the 1999 ELD Standards, will be replaced by the English Language Proficiency Assessments for California (ELPAC) system in 2018, which will be aligned to the 2012 revised CA ELD Standards.

As guided by the CA ELD Standards, LbD teachers and instructional consultants provide instruction grounded in the best available research on supporting ELs in an English Immersion environment. Students will be expected to advance at least one ELD level annually. Our Intervention/EL Coordinator will partner with the classroom teachers to include ELD goals on students’ learning plans, including specific goals to be met during daily Designated ELD instruction. Additionally, our Intervention/EL Coordinator will assess student progress towards attainment of the standards using standards-based portfolios.

If students are not making sufficient academic progress as indicated through ELPAC data, we will modify our EL program as needed.

LbD will ensure that teachers are qualified and supported to meet the needs of ELs. We will hire teachers that are CLAD/BLAD certified, and will place a priority on hiring teacher(s) that are bilingual and can provide strong instruction within a structured immersion classroom. We also support teachers by providing professional development on structured immersion instruction, specially designed academic instruction in English (SDAIE) teaching strategies, language development, monitoring, and assessment of ELs. We commit to monthly professional development specifically addressing the instructional effectiveness, reviewing assessment data and revising curriculum to meet our EL students’ needs.

Parents are notified regarding their child’s English Language Development along with ELPAC

scores every progress report or every trimester and/or as often as needed.

SERVICES AND SUPPORTS FOR ENGLISH LEARNERS, INCLUDING INSTRUCTIONAL STRATEGIES AND INTERVENTION

See above. Teachers will have access to ELD assessment results to inform program placement, reclassification, and instruction. LbD will use assessment interpretation resources to help teachers and administrators use student results to inform English learners and their parents or guardians about student progress.

LbD provides high quality professional learning opportunities for all its educators to ensure that every English Learner has access to teachers who are prepared to accommodate individual instruction to meet the levels of rigor and depth required by the CA ELD Standards. Professional development focuses on enhancing teacher's knowledge of how to teach English learners to read and write as well as how to address the achievement gap by providing pedagogical tools to ensure that all ELs can meet the CA ELD Standards. All teachers are authorized to teach English Learners and receive training in the effective implementation of techniques such as SDAIE and scaffolding. Our Intervention/EL Coordinator also communicates the specific language needs of our EL students. Strategies such as front-loading content, using visuals and other means of organizing information, and pairing ELs with more capable peers further ensure student access to academic content. As noted above, EL students will have English language tutoring time in small groups twice weekly during the regular ELA period, with focused time devoted to SDAIE strategies incorporated in regular classroom instruction.

PROCESS FOR ANNUAL EVALUATION OF THE SCHOOL'S ENGLISH LEARNER PROGRAM

The Education Director at LbD is responsible for ensuring the quality and success of all instructional programs, and reports to the Board on progress towards academic goals, including serving EL students. The Education Director conducts regular classroom observations and provides feedback and coaching. In addition, the Education Director works with relevant staff annually to review summative data on student progress, including our annual ELPAC scores. This data analysis is followed by conversation and, if necessary, additional staff training. We expect our English Learners to show proficiency in content areas and that our ELs will improve at least one ELD level annually as measured by the ELPAC.

Teachers are expected to evaluate student progress by reviewing EL data from formative and summative assessments weekly and monthly, respectively. Teachers use the results of this data to change their instructional practices to better serve each student. In order to document progress, all teachers will receive an ELD folder for each of their EL students that is used to monitor individual progress at their targeted ELD level. These folders will include the new ELD standards by level 1-4. Teachers use these folders to collect student work samples, and check of mastery towards each ELD standard.

PROCESS AND SPECIFIC CRITERIA FOR RECLASSIFICATION

LbD monitors student mastery of the ELD standards through the use of portfolios. The portfolio is used as a guide that, when implemented systematically and consistently, ensures the implementation of a quality ELD program as defined by the LAUSD Master Plan. (LAUSD Reference Guide, 2004). Teachers select assessments and work samples that accurately represent the student's current level of performance based on the CA ELD standards in listening, speaking, reading, writing and language.

As English Learners progress, work samples that no longer characterize the student's best work are replaced with more representative samples. By the time an ELD portfolio is complete, it contains at least one sample for each domain. The Intervention/EL Coordinator reviews EL portfolios at the end of each reporting period and EL students will receive ELD grades in addition to ELA grades in reading, writing, listening, and speaking.

The following assessments are examples of EL portfolio evidence:

- Publisher ELD assessments
- End-of-unit assessments from state-adopted ELD programs
- Teacher/grade-level created performance tasks
- Checklists to informally observe student performance in everyday activities
- Core content area assignments scored using an ELD standards-based scoring rubric

It is the responsibility of the Education Director, in collaboration with the Intervention/EL Coordinator, to ensure that classroom teachers carry out the EL Master Plan. The Intervention/EL Coordinator maintains EL portfolios, monitors classroom instruction, updates ELD levels in the LbD Student Information System (PowerSchool), places ELs according to ELD level, reviews EL monitoring rosters to ensure ELs are advancing a minimum of one ELD level per year, reviews ELD grades to ensure that students and parents receive updated information of ELD progress at each reporting period, and checks readiness for promotion, reclassification or need for intervention. The Intervention/EL Coordinator works with teachers to make the final decision regarding progression to the next ELD Proficiency Level.

Students scoring Level 3 or 4 on the ELPAC are considered for possible reclassification. If a student scores below Level 3 on any subtest (Listening, Speaking, Reading, Writing), he/she is no longer considered for reclassification despite an overall score of Level 3 or Level 4. Teachers submit ELD folders and work samples for each student that was administered the ELPAC regardless of score.

Annual Review of Student Progress begins mid spring, after ELPAC scores become available and just after the second submission of ELD folders and work samples. All student ELD folders will be initially reviewed by the ELD coordinator. If the standards check off sheet and work samples indicate Average Progress or Advanced Progress for their identified ELD level and ELPAC scores also meet the requirements listed above, the student will move forward on to the second step of the Reclassification process.

The reclassification team (which includes the teacher, an Administrator, and may include a parent) reviews the information listed above as well as teacher recommendations and overall successful classroom performance in academic areas as indicated by report cards, and benchmark/summative assessment type tests. The reclassification team also discusses if the student has met sufficient goals. If a student has satisfied all of these requirements they will then be recommended for reclassification pending the release of CAASPP scores for that year. If a student Meets or Exceeds standards on the ELA test, he/she will be officially reclassified, and their file will be updated to reflect R-FEP in that academic year. A student will continue to be monitored by the reclassification team for two years after official reclassification.

PROCESS FOR MONITORING PROGRESS OF ENGLISH LEARNERS AND RECLASSIFIED (RFEP) STUDENTS

In order to meet the individual needs of each English learner, the Intervention/EL Coordinator carefully monitors student performance on both classroom assignments and standardized testing. Students scoring at the lowest levels of the ELPAC provides supplemental English Instruction, focusing on skills, vocabulary and information that support both their oral and written English language acquisition. The goal is to ensure a daily designated and integrated ELD instruction that enables English Learners to attain English proficiency, achievement of all learning plan goals, and to have full access to the range of educational opportunities that LbD provides for all students.

Students are monitored in conjunction with the new CA ELD Standards Proficiency Level Descriptors (PLDs). The PLDs describe student knowledge, skills, and abilities across a continuum, identifying what ELs know and can do at early stages and at exit from each of three proficiency levels: Emerging, Expanding, and Bridging. These descriptors guide LbD teachers as they provide ELs with targeted instruction in English language development as well as

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differentiated instruction in academic content areas :

Emerging: Students at this level typically progress very quickly, learning to use English for immediate needs as well as beginning to understand and use academic vocabulary and other features of academic language.

Expanding: Students at this level are challenged to increase their English skills in more contexts, and learn a greater variety of vocabulary and linguistic structures, applying their growing language skills in more sophisticated ways appropriate to their age and grade level.

Bridging: Students at this level continue to learn and apply a range of high-level English language skills in wide variety of contexts, including comprehension and production of highly technical texts. The “bridge” alluded to is the transition to full engagement in grade-level academic tasks and activities in a variety of content areas without the need for specialized ELD instruction.

However, ELs at all levels of English language proficiency fully participate in grade level tasks in all content areas with varying degrees of scaffolding in order to develop both content knowledge and English.

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<http://www.cde.ca.gov/sp/el/er/documents/sbeoverviewpld.pdf>

English learners continue to be re-evaluated annually using the ELPAC assessment until such time as they have demonstrated that they are able to compete effectively with English-speaking peers in mainstream classrooms and are reclassified as fluent English proficient (RFEP). LbD will set a demanding reclassification target annually as part of the Local Control Accountability Plan (LCAP) goal setting process. The Intervention/EL Coordinator serves as the ELPAC testing coordinator and meets periodically with teachers to discuss the progress of English learners toward mastery of the CA ELD standards. The testing coordinator continues to monitor students who are re-designated as RFEP during a period of two years, by meeting regularly with their teachers and reviewing their benchmark assessments and standardized testing results to ensure that they are able to keep up with their peers.

PROCESS FOR MONITORING PROGRESS AND SUPPORTS FOR AT-RISK ENGLISH LEARNERS

Under California law, Long Term English Learners (LTELs) are defined as those students who have spent seven years or more in California schools, score Far Below Basic or Below Basic on the state academic exams in English Language Arts (or presumably equivalents under the new CAASPP testing) and are failing to progress on the state's English language proficiency exam (AB 2193, Lara). As LbD will only serve six grade levels (TK-5), we will not officially have any designated LTELs. That said, we closely monitor each EL's progress and any instances in which a student is not making sufficient progress towards reclassification. The Intervention/EL Coordinator and classroom teachers work together to identify the reasons why a student has not acquired English at an expected rate and determine the best support system for that student moving forward. LbD will prioritize resources (e.g. curriculum for ELD instruction) for students at risk of being identified as LTELs. Students and parents will be made aware of the risks associated with LTEL status, as well as specific barriers to reclassification and ways to address them.

GIFTED AND TALENTED STUDENTS AND STUDENTS ACHIEVING ABOVE GRADE LEVEL

The philosophy of the school is that within a heterogeneously grouped classroom, each student is challenged at his or her own level. This includes gifted students, thus LbD will not segregate GATE students from their peers. LbD will use its beginning of the year diagnostic exams that are administered to all new students as a measure of whether a student is achieving substantially above grade level.

Students identified as potentially gifted are referred for additional evaluation. Teachers, administrators and parents may request an assessment. LbD administers the Otis-Lennon School Ability Test (OLSAT) to all second grade students. Ultimately, the Education Director, in consultation with teachers, review a variety of data and then determines GATE designation. Parents are notified both in writing and in an in-person meeting about the designation and ways in which they can support their child's learning. The progress of gifted and talented students is tracked and monitored by faculty and by school leaders, just as the progress of all students is monitored. Project-Based Learning and Maker-Center Learning is well-suited to GATE students, as is our personalized online learning program that will enable students to progress more quickly as they master content online.

According to Carol Ann Tomlinson, a recognized expert in the field of education for gifted students, "a class is not differentiated when all students are doing the same thing and no adjustments are being made to the difficulty levels of the assignments that are given." (Tomlinson, 1995.) LbD will employ many of the strategies recommended by Tomlinson and others for effective teaching in mixed-ability classrooms, such as:

- Providing alternative and/or extension activities for students who have already mastered the content being taught;
- Allowing gifted and high achieving students to work at an accelerated pace;
- Providing opportunities for students to work in flexible groups with other intellectual peers
- Creating graduated task rubrics and product criteria negotiated jointly by the student and teacher;
- Asking open-ended questions, both in the classroom and on homework assignments, that stimulate critical thinking;
- Incorporating a variety of the levels of thinking described in Bloom's taxonomy – including the higher levels of analysis, evaluation, and synthesis – into lesson content and student work products;
- Opportunities for leadership roles and mentoring outside of the classroom.

As a result of program differentiation using the strategies just described, the unique learning needs of advanced learners will be met within the regular classroom program.

STUDENTS ACHIEVING BELOW GRADE LEVEL

Students are identified as low achieving by multiple measures, including state standardized assessments, in-house benchmarks (NWEA/MAP), or DIBELS scores for K-1 students, teacher observations, low achievement on curriculum assessments, parent input or SSTP recommendations. At-risk students are targeted for specific areas of growth by student goals. The teachers monitor progress using the multiple measures mentioned for students who are identified as academically low achieving that do not show progress after the first quarter review. Students will be recommended to the SST, where appropriate intervention staff will consult for additional interventions and supports through the RTI model, and determine next steps.

Targeted Tier 2 and Tier 3 support for students who are academically low achieving may include:

- ❑ Early intervention in reading during ELA;
- ❑ Tutoring;
- ❑ Focused attention – prepared in consultation with the student and the parent/guardian, if needed in the context of the SSTP process, regarding specific strategies and supports;
- ❑ Individual contract with the student detailing clear and achievable responsibilities and benchmarks for the student to achieve;
- ❑ Other program modifications and supports as determined by the classroom teacher;
- ❑ More frequent parent-teacher communication and parent involvement;
- ❑ Access to technology at home and school for mastery of target areas of growth (i.e., Lexia Core 5, MyON).

Classroom modifications also may be made to support academically low-achieving students, including using different materials (visual aids, manipulatives, audio materials), using different methods (reading written material aloud to student, guided note-taking, visual cues/modeling), differentiated pacing and assignments, environment changes, testing accommodations and more.

SOCIO-ECONOMICALLY DISADVANTAGED STUDENTS

As demonstrated by the success of countless schools in California and beyond serving students who are socio-economically disadvantaged, income is not a determinate factor in a student's ability to succeed academically. If students that are socioeconomically disadvantaged also are academically low achieving or struggle with learning differences or are identified as English Learners, LbD will utilize strategies described in other sections of this petition. LbD will identify SED students based on free/reduced meal forms at the time of enrollment. Like all other subgroups, school leaders and faculty will monitor the progress of SED students throughout the year by disaggregating test and other assessment data.

Our teachers and staff will all receive training on recognizing symptoms and behaviors indicative of a child's need for additional supports, including issues relating to hunger, extreme poverty, and individual families' challenges to meet their child's needs. Our SST will be responsible for identifying students and families who might need additional resources or supports, including referrals to community service organizations. Parents will be able to drop-off their children starting at 7:30 a.m. and after-care will be provided (pending funding) until 6:00, both to best serve our students' needs and accommodate working families. In addition, we will connect with local non-profit agencies for referrals for social services if needed by our families.

STUDENTS WITH DISABILITIES

See District Required Language at the beginning of Element 1.

STUDENTS IN OTHER SUBGROUPS

LbD offers a variety of support for students with extraordinary needs, such as foster youth, homeless youth, and more that will be managed by the Senior Manager of Student Supports in the Wellness Center. Our extensive intervention program provides several levels of guidance depending on the need of the student. The SSPT and student's teacher collaborate closely with a student's wrap around team (social workers, etc.) and ensure close communication with external service providers (as appropriate) regarding a student's welfare and progress in school.

As detailed above, our SSPT process and teacher training will ensure that all students with special needs are promptly identified and provided the supports they need, including referrals for students and their families to outside support organizations.

Element 2 - Measurable Pupil Outcomes and Element 3 - Method By Which Pupil Progress Toward Outcomes Will Be Measured

"The measurable pupil outcomes identified for use by the charter school. "Pupil outcomes," for purposes of this part, means the extent to which all pupils of the school demonstrate that they have attained the skills, knowledge, and attitudes specified as goals in the school's educational program. Pupil outcomes shall include outcomes that address increases in pupil academic achievement both schoolwide and for all pupil subgroups served by the charter school, as that term is defined in subdivision (a) of Section 52052. The pupil outcomes shall align with the state priorities, as described in subdivision (d) of Section 52060, that apply for the grade levels served by the charter school." (Ed. Code § 47605(c)(5)(B).)

"The method by which pupil progress in meeting those pupil outcomes is to be measured. To the extent practicable, the method for measuring pupil outcomes for state priorities shall be consistent with the way information is reported on a school accountability report card." (Ed. Code § 47605(c)(5)(C).)

MEASURABLE GOALS OF THE EDUCATIONAL PROGRAM

Charter School shall meet all statewide content and performance standards and targets. (Ed. Code §§47605(d)(1), 60605.)

Charter School shall work toward aligning all applicable District goals, including but not limited to the school and student outcome goals set forth in the LAUSD's Local Control and Accountability Plan (LCAP) and Strategic Plan, as they may be amended, updated, and/or replaced by the District, throughout the term of the Charter.

Charter School shall comply with all applicable laws, regulations, and District policies and procedures related to AB 97 (2013) (Local Control Funding Formula) and AB 484 (2013), as they may be amended from time to time, including all requirements pertaining to pupil outcomes.

STANDARDIZED TESTING

Charter School agrees to comply with and adhere to state requirements for participation and administration of all state mandated tests, including computer-based assessments. As a District affiliated charter school, Charter School shall test with the District and adhere to District testing calendars and procedures for all state mandated assessments. Charter School shall submit and maintain up-to-date and accurate school and student data in MiSiS, and other data systems used or required by the District, and otherwise ensure that Charter School reports complete, accurate, and up-to-date data for all purposes related to the California Longitudinal Pupil Achievement Data System (CALPADS) in accordance with District policies and procedures and the requirements of California Code of Regulations, title 5, section 861.

MEASURING PUPIL OUTCOMES: SUMMATIVE ASSESSMENT PERFORMANCE TARGETS

At LbD, we believe that assessment of student progress is an essential tool for teacher growth and school-wide improvement. We envision a system of assessment that will bring teachers together to talk about teaching, help teachers learn to teach better, and provide students the opportunity to monitor their growth. At LbD, consistent student assessment – *both formal and informal* – will be emphasized for monitoring student success and meeting content and performance standards. Using a combination of assessment tools, data will be collected and analyzed codifying student progress in all core academic areas.

In order to support our standards based instructional programs and meet our identified student outcomes, assessment measures will take various forms:

- 1) Formative assessments in the form of teacher developed or selected metrics;
- 2) LbD benchmark program assessments;
- 3) National normed referenced assessment (NWEA MAP)
- 4) State Standardized testing and reporting (CAASPP).

MEASURING PUPIL PROGRESS TOWARD OUTCOMES: FORMATIVE ASSESSMENT

As a District Affiliated Charter School, Charter School shall meet or exceed the District standards and guidelines for implementing diagnostic, screening, periodic and/or benchmark assessments. Charter School shall be responsible to pay all costs related to the implementation of any alternate and/or replacement diagnostic, screening, periodic and/or benchmark assessments.

In our Mastery-Based approach to learning, formative and summative assessments work hand-in-hand. Students will complete summative assessments (publisher and teacher-created) to demonstrate their mastery of content before they move on to the next lesson or unit. Formative assessments are used as *part of the learning process*, where students (and teachers) see which strands and skills they have mastered and which they need to complete. Whether through online

curricula and ongoing assessments, or through teacher-designed rubrics, even our young students will learn to measure their own performance and progress as they move through the curriculum. Students who fail to demonstrate mastery of a particular skill or competency are given the opportunity to relearn the material in different ways or engage in more practice, including online curricula/skills practice (with either the same, or different items as determined by their teacher), working with teachers in small groups or one-on-one, alternative kinds of scaffolding and support provided by teachers. Students then try once again to demonstrate mastery. This ability to “pause” on material that is challenging before moving on is instrumental in long-term student success.

In this way, our faculty uses a variety of assessments to measure individual students’ attainment of state content standards and the objectives of our curriculum. Students will participate in several formal assessments each year, including the NWEA MAP diagnostic assessments. Official checklists and rubrics from the published curriculum programs and online resources will play a major role in teachers’ determination of student achievement of standards mastery. More informal assessment techniques will also play a major role including teacher observation, homework samples, written work, project- based rubrics and more.

As students become increasingly able to produce independent work samples such as journal entries, written reports, project work and presentations, these products will also be evaluated by teachers. By the end of the third grade we expect that most students will Meet/Exceed standards in ELA and Math according to the school’s identified assessment measures. Ongoing assessment of daily work and formal evaluation using online assessments, scoring guides, tests and checklists will provide the teacher, parent and student with feedback on student achievement and progress. As students progress towards middle grades, student evaluation will become more formal, including student-produced projects, final draft writing, science experiments and presentations of research. Portfolios and projects will be used to assess student growth and to assist both the student and the teacher in identifying the next steps for growth. Students will be assessed in a summative manner on a weekly basis in the form of a quiz, test (both written and online), essay, research paper, presentation or project.

To make certain that the school’s primary goal of increased academic achievement for all students is met, student achievement data obtained from standardized assessments is disaggregated annually to clearly identify the academic performance of students by sub-groups (e.g., by ethnicity, gender, English Learners, socioeconomically disadvantaged students, and students with disabilities).

Additional internal assessments, such as teacher-created, publisher and online assessment tools, will be analyzed individually by teachers and in collaborative groups during weekly planning in order to target student needs, identify program strengths and gaps, and to plan subsequent instruction. Throughout the year benchmark student achievement data will be analyzed among the school faculty during pupil-free professional development days.

The following chart illustrates the types of assessments administered by subject, grade level, and frequency.

Assessment, Purpose, Grade Levels and Administration Timeline

Assessment	Purpose	Grade	Administration Timeline
Internally-Created Tests and Rubrics for Performance-Based Tasks and Projects	Measure standards mastery in each subject	TK-5	Daily and /or weekly
Publisher-Designed Assessments (Online and paper-based)	Assess standards mastery	TK-5	End of each unit
Writing Rubrics	Assess mastery of grade-level writing	TK-5	Daily and/or weekly
CAASPP	State Criterion-Based Assessment in ELA and Math	3-5	Once a year
California Science Test (CAST)	State Assessment in Science	5	Once a year
NWEA MAPs	National Normed-Referenced Assessment in ELA and Math	K-5	Beginning, mid- and end-of-year
DIBELS/DRA	Reading Assessment	TK-1	Beginning and end of year
ELPAC	Measure language acquisition	TK-5	Upon enrollment; twice annually
Presentations of Learning	Measure mastery of grade-level content	3-5	End of each quarter

DATA ANALYSIS AND REPORTING

LbD utilizes the highly customizable and integrated Illuminate management system to track and monitor students' progress on classroom and state standardized assessments. PowerSchool includes student information such as registration, attendance, demographics, emergency contacts and more. We will also will utilize Illuminate to collect, analyze, and communicate to parents and other stakeholders a variety of reports on student achievement, including school-wide and subgroup analyses. While the Education Director has primary responsibility for overseeing all student achievement data entry, analysis, reporting and reflection on data, all teachers will receive intensive training on student achievement data and effective usage of Illuminate.

Administrators and teachers regularly analyze student data to identify strengths and weaknesses and create action plans for instruction and determine areas for intervention. This analysis will be done for individual students, as well as subgroups, whole classes, grade levels and schoolwide to help fuel continuous improvements at every level. School leaders and the Board review student achievement data and other metrics (attendance, behavior, survey results, etc.) at least quarterly to assess whether LbD is meeting its annual goals and what additional resources or changes may be needed to ensure the school's success. Through individual report cards, school newsletters/website, Board meeting agendas and minutes and other "official" documents (the LCAP, SARC, etc.) the school will distribute information about the school's progress, successes and challenges to all stakeholders.

The Education Director monitors the progress of all subgroups (particularly English language learners and special education students), and patterns of academic achievement that may indicate declining progress or inequitable outcomes among different sub groups. Any problematic data trends will be directly addressed through meetings with individual teachers, and through the examination of policies or curriculum that may be contributing to declining achievement or inequities.

Data review also will be used by school leaders to assess teacher efficacy in real-time, ensuring that teachers who are struggling to achieve intended outcomes in specific subject areas, or with specific students, receive targeted training, support and professional development to improve their teaching practice.

All teachers consistently analyze standards-based curriculum-embedded data at monthly grade level meetings and staff development sessions. Released time is also be provided on as needed basis. The staff then decides on curriculum calibration (*how well the materials reflect the standards*), and make instructional decisions. Teachers collaborate and design effective small group and differentiated instruction focused on specific strategies.

Grading, Progress Reporting, and Promotion/Retention

As a District affiliated charter school, Charter School shall adhere to and implement District policies and procedures regarding grading, progress reporting, and promotion/retention.

LbD's grading policy is based on demonstration of mastery of CCSS. Grades include student performance on in-class work, homework, assessments (tests/quizzes – online and offline -- written work, project work), and other components such as participation in group projects and in-class participation. Teachers will formally report student progress to parents four times each year (at the end of each quarter) using progress reports. Teachers will conduct parent conferences twice annually (fall/spring) so that parents have regular opportunities to discuss their child's progress and update the student's PLP personally with his or her teacher. For students that need additional support, an additional parent conference may be held. In addition, parents have access to Illuminate at all times and can login and receive up to the minute, real time grades for their

student.

Student achievement will be evaluated against state standards and the school's stated outcomes and will reflect student progress on a continuum toward mastery of the concepts and skills at each grade level. The progress reports will include a score on a scale of 1-4 indicating the student's level of mastery in each standard:

Score	Mastery Level
1	Not yet mastered
2	Nearly mastered
3	Achieved mastery
4	Exceeded mastery

The goal is for every student to prove mastery on each standard, indicated by a score of 3. If a student proves mastery above and beyond grade level, the student will earn a 4 on that standard. In addition to a scale score on a continuum toward mastery, teachers will include verbal narrative evaluations regarding the completeness, quality, and level of understanding of student work as well as descriptions of attitudes and behaviors at school during parent teacher conferences.

During the summer prior and into the first month of the school's operation, the Education Director and teachers will collaboratively review the report card format, policies and procedures that will be used to report student progress. All instructional staff will receive detailed training about the preparation of these reports during professional development sessions during summer and throughout the year.

Despite various interventions and extra supports (detailed extensively above), if students are still far below grade level (scores of "1" on the grade scale), another possible intervention will be retention. LbD views this as a last resort when, in spite of the aforementioned ongoing interventions, a student cannot exhibit mastery of grade level standards. Parents will be informed through SSPT meetings and in written reports of student progress about possibility of retention by the end of the third quarter (March). Although parents will be informed throughout the process, the final decision for retention rests with the LbD Principal and will be made on a case-by-case basis by the last instructional week in May.

PROMOTION/RETENTION POLICY AND PROCEDURES

Philosophy

The Philosophy of LbD is that all students can learn. We believe that each student is an individual who grows and matures within his/her own unique pattern of development. Varying rates of time are, therefore, needed to accommodate differing developmental growth patterns. This may necessitate a retention or promotion. In promoting or retaining students, decisions for placement will support the opportunity for maximum growth and development of all students.

Implementation

Decisions will be based upon a careful study of individual student needs. A decision will be reached through conference procedures with a standing committee of at least one general education teacher and the Principal.

Other teachers and support staff may become a part of this team as needed. A parent communication plan will be established to inform them of the student's progress throughout the year and strategies that support learning. When a parent is notified that a child is being considered for retention, the parent must be advised of the child's right to a Special Education Evaluation.

The areas of the student's growth which must be considered before recommending retention or promotion are academic progress, social development, emotional development, and physical development. Early elementary (K-2) is the optimum time for retention. A student may be retained only once in grades K – 5. If retention is not sufficient, alternative strategies should be investigated and implemented. A written educational plan will be developed by the Retention/Promotion Committee for the student who is recommended for retention or promotion. Timelines and documentation will be followed as outlined. Special situations such as dramatic changes in behavior or the transfer of a student may cause these timelines and/or documentation to be waived at the discretion of the Committee and/or the Principal.

The responsibility of the Retention/Promotion SSPT Committee is to make sure that a recommendation concerning a child's retention or promotion is based on these procedures. In all instances of retention or promotion, parental opinions will be considered. The decision to implement any of the above shall be placed upon the professional judgment of the Retention/Promotion Committee. The Principal will advise parents of the appeal process in accordance with the established policy.

Element 4 - Governance

“The governance structure of the charter school, including, but not limited to, the process to be followed by the charter school to ensure parental involvement.” (Ed. Code § 47605(c)(5)(D).)

GENERAL PROVISIONS

As a District Affiliated Charter School, Charter School is subject to the governance and control of the LAUSD Board of Education. Governance at the school site level shall be in accordance with the provisions of this Charter and shall be consistent with all applicable state, federal laws and regulations, District policies, and provisions of LAUSD collective bargaining agreements (CBAs). Adoption of any governance structure or model in conflict with the above shall be null and void unless the appropriate parties have agreed to a waiver or exemption. Absent agreed upon waivers between the District and UTLA, Charter School shall adhere to the requirements of Article XXVII of the LAUSD-UTLA CBA, as it may be amended from time to time, including but not limited to provisions related to Local School Leadership Council composition and responsibilities, and provisions regarding councils and committees (e.g., Title I School Site Councils).

If the charter school has a separate charter school Governing Council **[N/A]**

Charter School shall adhere to and implement all applicable District policies and procedures for compliance with California open meetings laws (i.e., the Brown Act and the Greene Act, as applicable) and the California Public Records Act.

All staff and representatives of Charter School, including members of Charter School's Governing Council, members of school committees and other councils, and school administrators, shall comply with federal and state laws, nonprofit integrity standards, and LAUSD's charter school policies, regarding ethics and conflicts of interest.

Charter School shall ensure that, at all times throughout the term of the Charter, the bylaws of its Governing Council are and remain consistent with applicable laws, District policy, the provisions of LAUSD collective bargaining agreements (CBAs), any applicable District-UTLA waiver(s), and the provisions of this Charter.

The District reserves the right to appoint a non-voting single representative to Charter School's Governing Council.

LEGAL AND POLICY COMPLIANCE

Charter School shall comply with all applicable federal and state laws and local regulations, and District policies and procedures, as they may change from time to time.

In coordination and consultation with the District, Charter School shall comply with all applicable federal and state reporting requirements, including but not limited to the requirements of CBEDS, CALPADS, the Public Schools Accountability Act of 1999, and Education Code section 47604.33.

Charter School shall notify parents, guardians, and staff in writing within 72 hours of the issuance of a Notice of Violation, Notice of Intent to Revoke, Final Decision to Revoke, Notice of Non-Renewal, or equivalent notice, by the LAUSD Board of Education.

TITLE IX, SECTIONS 504 AND 508, AND UNIFORM COMPLAINT PROCEDURES

As a District affiliated charter school, Charter School shall comply with and implement all District policies and procedures related to its responsibilities under Title IX of the Education Amendments of 1972 (Title IX), Sections 504 and 508 of the Rehabilitation Act of 1973 ("Section 504" and "Section 508"), and the District's Uniform Complaint Procedures.

As a District affiliated charter school, Charter School shall adhere to all applicable federal and state laws and regulations, and District policies and procedures, regarding pupil fees, including but not limited to procedures related to complaints filed pursuant to Education Code section 49013.

Charter School shall comply with the requirements of Education Code section 52075 and District policies and procedures regarding the filing of complaints related to certain provisions of the Local Control Funding Formula legislation.

RESPONDING TO INQUIRIES

Charter School shall promptly respond to all District inquiries, including but not limited to inquiries regarding financial records, and shall cooperate with the District regarding any inquiries. Charter School acknowledges that it is subject to audit by LAUSD, including, without limitation, audit by the District Office of the Inspector General.

If an allegation or other evidence of waste, fraud, abuse, or other material violation of law related to Charter School's operations, or breach of the Charter, is received or discovered by the District, Charter School shall cooperate with any resulting inquiry and/or investigation undertaken by the District and/or the Office of the Inspector General Investigations Unit.

NOTIFICATION OF THE DISTRICT

Charter School shall provide the appropriate Region and the Charter Schools Division with copies of all collective bargaining waivers and/or exemptions within 10 days of the execution date of the waiver/exemption.

Charter School shall notify the appropriate Region and the Charter Schools Division in writing of any citations or notices of workplace hazards, investigations by outside regulatory or investigative agencies, lawsuits, or other formal complaints or notices, within one week of receipt of such notices by Charter School. Charter School shall also notify the appropriate Region in writing of any internal investigations within one week of commencing investigation. Charter School shall notify the appropriate District office(s) and Region immediately of any dire emergency or serious threat to the health and safety of students or staff.

STUDENT RECORDS

Charter School shall comply with and implement all District policies and procedures related to the creation, use, maintenance, storage, and transfer of student records.

When a student transfers for any reason from Charter School to any other school district, Charter School shall notify the superintendent of the school district of the student's last known address within 30 days, and shall, within 10 school days of receiving a records request, provide that school district with a copy of the student's cumulative record, including a transcript of grades or report card and health information. Charter School shall comply with the requirements of California Code of Regulations, title 5, section 3024, regarding the transfer of student special education records.

PARENT ENGAGEMENT

Charter School shall not require a parent or legal guardian of a prospective or enrolled student to perform volunteer service hours, or make payment of fees or other monies, goods, or services in lieu of performing volunteer service, as a condition of their child's admission, continued enrollment, attendance, or participation in the school's educational activities, or otherwise discriminate against a student in any manner because their parent/guardian cannot, has not, or will not provide volunteer service to Charter School.

The Charter School may encourage parental/guardian involvement, but shall notify the parents and guardians of applicant students and currently enrolled students that parental/guardian involvement is not a requirement for acceptance to, or continued enrollment at, the Charter School. (Education Code section 47605(n).)

FEDERAL PROGRAM COMPLIANCE

As a District Affiliated Charter School, Charter School shall comply with and implement all applicable District policies and procedures related to the Elementary and Secondary

Education Act (ESEA, also known as Every Student Succeeds Act (ESSA)) and other applicable federal programs.

GOVERNANCE STRUCTURE

LbD is a direct-funded independent charter school, operated by Learning by Design, Inc. (LbD, Inc.), a California Nonprofit Public Benefit Corporation with 501(c)(3) status from the IRS, pursuant to California law. LbD will be governed by the LbD Board of Directors (“Board”) in accordance with California’s Charter Schools Act, the Nonprofit Public Benefit Corporation Law, the corporation’s Bylaws and the terms of this charter.

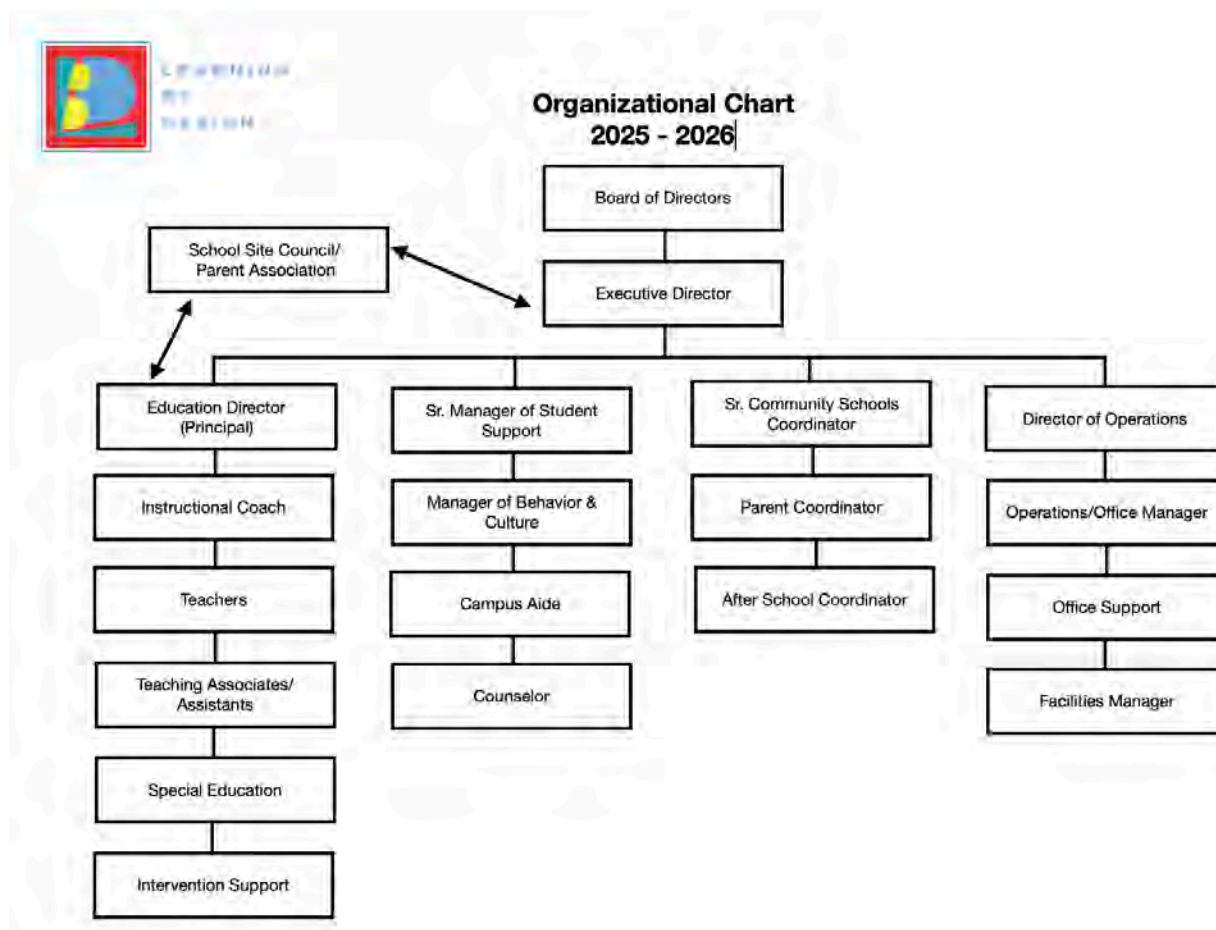
LbD operates autonomously from LAUSD with the exception of the supervisory oversight as required by statute and other contracted services as negotiated between the District and LbD.

LbD is governed by the Board of Directors, which maintains active and effective governance in accordance with its charter petition and its adopted corporate bylaws that shall be consistent with the terms of this charter.

The LbD Board of Directors is a policy-making board and supervises the leadership of the school. The Board delegates all school management decisions such as hiring teachers and school staff, day-to-day school management and adherence to Charter School policy to the Executive Director.

The LbD Board of Directors has created a functioning structure that supports educational goals through a vigorous process of decision-making and consensus building, in which representatives from all stakeholder groups such as parents, teachers, community and staff are present. The Board shall have ultimate responsibility for the overall operation of the school, while the Executive Director manages the day-to-day activities of the school. The primary method for executing their responsibility is the adoption of policies that offer guidance and interpretation of the charter and procedures to assist the staff in facilitating the implementation of such policies.

1. ORGANIZATIONAL CHART



Major Roles and Responsibilities

Board of Directors

The LbD Board of Directors is fully responsible for the operation and fiscal affairs of LbD including, but not limited to, the following:

- Hire and evaluate the Executive Director
- Approve all contractual agreements and purchases over \$25,000. The Executive Director approves invoices and purchases for \$25,000 or less.
- Approve and monitor the implementation of general policies of LbD.
- Approve and monitor LbD's annual budget.
- Act as a fiscal agent. This includes the receipt of funds for the operation of Charter School in accordance with its laws and the receipt of grants and donations consistent with the mission of LbD and the establishment of investment procedures.
- Contract with an external auditor to produce an annual financial audit according to generally accepted accounting practices. An Audit Committee may be convened for this purpose.
- Regularly review progress of both student and staff performance. Develop, review, or revise LbD's accountability and mission.

- Approve the school calendar and schedule of Board meetings.
- Develop Board policies and procedures.
- Participate in the dispute resolution procedure and complaint procedures when necessary.
- Approve charter amendments.
- Approve annual fiscal audit and performance report.
- Appoint an administrative panel to act as a hearing and determining body on recommended student expulsions.
- Execute all other responsibilities provided for in the California Corporations Code.

The Board may initiate and carry on any program or activity or may otherwise act in a manner which is not in conflict with or inconsistent with or preempted by any law and which is not in conflict with the purposes for which LbD is established.

The Board may execute any powers delegated by law to it and shall discharge any duty imposed by law upon it and may delegate to an employee of LbD any of those duties with the exception of budget approval or revision, approval of the fiscal audit and performance report, and the adoption of Board policies. The Board however, retains ultimate responsibility over the performance of those powers or duties so delegated. Such delegation will:

- Be in writing;
- Specify the entity designated;
- Describe in specific terms the authority of the Board of Directors being delegated, any conditions on the delegated authority or its exercise and the beginning and ending dates of the delegation; and
- Require an affirmative vote of a majority of Board members.

The LbD Board of Directors attends an annual in-service for the purposes of training individual Governing Board on their responsibilities, including compliance with the Brown Act, Conflicts of Interest, and fiscal and academic oversight.

The implementation of the Board's decisions is carried out by the Executive Director and the School's administration, such as Education Director and the Director of Operations and Financial Manager.

The Executive Director reports to the Board and is specifically responsible for strategic development, implementation, and management of all aspects of the Charter School's performance and operations, including:

- Implementing and overseeing the instructional program in alignment with the charter.
- Providing teachers professional development and instructional support and facilitating weekly professional development/staff meetings.
- Developing and implementing a plan that ensures student achievement which is supported by evidence through assessments such as benchmarks, classroom data, parent and student feedback and a plan to address students who are struggling.
- Providing individual student support by designing and evaluating student intervention plans, attending IEPs and designing a process for measuring and evaluating student growth.
- Working to build and maintain a strong, positive, results-oriented school culture.

- Planning, facilitating and attending school functions such as parent meetings, open house, parent teacher conferences, fundraisers, etc.
- Develop annual budgets with school site stakeholders for Board approval, oversee finance, payroll and other fiscal operations.
- Support annual audit.
- Oversee compliance including special education, insurance, human resources, and more.
- Develop and manage strong business functions (finance, operations, budgeting, compliance, human resources, facilities management, marketing, IT).
- Develop and manage school programs, procedures, and policies in alignment with organizational mission.

Full job descriptions and Qualifications for each position are included in Element 5, below.

Governing Board and Member Selection

Composition of the Board

The LbD Board of Directors will consist of at least five (5) and no more than nine (9) voting community representatives including one parent representative.

LbD Board of Directors have diverse and broad experiences in education, school finance, fundraising, facilities, government, and business and legal practices to benefit the Charter School.

Criteria and Process of Selection

Board of Directors shall be selected at an annual meeting of the Board. When a vacancy occurs, as detailed in the LbD Bylaws, a Nominating Committee, comprised of two or more directors, will be appointed by the Chairperson of the Board to identify qualified candidates from the community. Any member of the community may recommend a candidate for consideration to the Nominating Committee. The Nominating Committee shall review the qualifications of candidates, interview them, and determine if the candidate's qualifications meet the current needs of the Board. The Nominating Committee will present a report to the Board with qualifying candidates.

The qualifications for directors are generally: the ability to attend Board meetings, a willingness to actively support and promote LbD, and a dedication to the LbD mission and vision. The Board of Directors must also bring a desired strength to the Board, which the Board may identify (i.e. experience in educational leadership, a background in law, finance or business, organizational management or experience with non-profit organizations).

LbD Board of Directors serve for a renewable term of three (3) years. The District reserves the right to appoint a single representative to the LbD board pursuant to Education Code section 47604(b). No employees of LbD will serve on the Board and no persons serving on the Board may be an "interested person" as specified in the bylaws. All Board Members shall have full voting rights, including any representative appointed by the District as consistent with Education Code Section 47604(b). If the District appoints a representative to serve on the Board of Directors, the Board may appoint an additional member to ensure that the Board is maintained with an odd number of directors. All directors, except for the representative appointed by the District, shall be designated by the existing Board of Directors.

Officers are elected by the Board of Directors. Neither the secretary nor the treasurer may serve concurrently as the president.

As indicated in applicable governance documents, LbD will comply with conflict of interest laws and District policies related to public entities including Govt. Code 1090 and Political Reform Act.

Board Meetings and Duties

LbD Board of Directors will meet at least five times per year. The annual meeting calendar is prepared and approved by the Board at its annual meeting. This calendar is posted on the school's website. Additional meetings may be scheduled on as needed basis. All meetings will comply with the Brown Act.

All meetings are held within the boundaries of the school community. All meetings are scheduled in advance. All meeting dates, times and agendas are posted in the LbD website and office at least 72 hours prior to the meeting and 24 hours prior to a special meeting. Furthermore, all LbD parents receive notices of the meeting. All Board meeting minutes are recorded, saved on word file, uploaded to the school's website after approval, and kept in a binder in LbD's main office. Board committee meetings will also be held in compliance with the Brown Act requirements.

Except for the initial Board of Directors, each director shall hold office unless otherwise removed from office in accordance with these bylaws for three (3) years and until a successor director has been designated and qualified. Terms for the initial Board of Directors shall be staggered. The initial Board shall consist of at least one (1) Directors who shall serve a one-year term, at least two (2) Directors who shall serve a two-year term, and at least two (2) Directors who shall serve a three-year term. The initial Board of Directors shall be as follows:

Per the Bylaws, the Board's Nominating Committee will be responsible for designating qualified candidates for the Board. The Chairman of the Board of Directors, if none, the President will appoint a committee to designate qualified candidates for the election to the Board of Directors at least thirty (30) days before the date of any election of directors. The nominating committee shall make its reports at least seven (7) days before the date of such designation or at such other times as the Board of Directors may set and the Secretary shall forward to each Board member, with the notice of meeting required by these bylaws, a list of all candidates nominated by the committee. Current Board members will have looked into local professional networks and other sources and will have reviewed potential board members resumes and backgrounds. Potential board members will be interviewed by current board members. eSelection of future members will be by consent of the Board (via election) to expressly fill positions that work within the needs of LbD and its Board of Directors. Directors will be voted on the Board based on their experience, qualifications and commitment to the mission and vision of LbD. The Board shall strive to include directors who have expertise in education, law, finance, non-profit management, and more. Although not required, the Board will strive to create an odd number of Directors for voting purposes. In the event of a tied vote, per Robert's Rule of Order, the Board of Directors will continue to vote until a consensus is met. The Board will strive to seat new Directors as promptly as possible upon any vacancy or change in the Board's designated number of directors.

LbD, Inc. will comply with conflict of interest laws related to public entities including Govt. Code

1090 and Political Reform Act.

BOARD MEETINGS AND DUTIES

The Board meets at least five times per year. Additional meetings may be called as necessary. The annual meeting calendar is prepared and approved by the Board at its annual meeting. This calendar is posted on the school's website. Additional meetings may be scheduled on as needed basis. All meetings will comply with the Brown Act.

All meetings are held within the boundaries of the school community. All meetings are scheduled in advance. All meeting dates, times and agendas are posted in the LbD website and office at least 72 hours prior to the meeting and 24 hours prior to a special meeting. Furthermore, all LbD parents receive notices of the meeting.

All Board meeting minutes are recorded, saved on word file, uploaded to the school's website after approval, and kept in a binder in LbD's main office. Board committee meetings will also be held in compliance with the Brown Act requirements.

Agenda Posting

Agendas for regular Board meetings shall be posted 72 hours in advance of such meetings at the School office for public preview and on the Charter School's website. Special meeting agendas shall be posted at least 24 hours in advance of such meetings.

Agenda Distribution

The Board agenda with supporting information for a regular Board meeting will be delivered via email to Board of Directors as soon as is practicable but preferably 72 hours prior to the meeting. For special Board meetings, the agenda and supporting information will be delivered at least 24 hours prior to the meeting. The secretary of the Board is responsible for the distribution of Board packets (which include the official agenda and all supporting information).

In addition to provision of agendas, the Board's complete public agendas shall be provided to those persons or parties who have requested to be placed upon the School's mailing list.

For purposes of providing proper notice under the Brown Act the Board shall comply with the Title III of the Americans with Disabilities Act.

Board of Directors Decision Making Procedures

A majority of the voting of the Board shall constitute a quorum of the Board which is necessary for the Board to transact business. Every decision made by a majority of the Governing Board present at a meeting, duly held, at which a quorum is present is an act of the Board. Governing Board may take action by voting yes, no, or abstaining from voting.

To the extent permitted under the Brown Act, directors of the Board may participate in a meeting through the use of conference telephone, electronic video screen communication, or other

communications equipment. Participation in a meeting through use of conference telephone constitutes presence in person at that meeting, so long as all participating in the meeting are able to hear one another. Teleconference participation complies with all requirements of the Brown Act (i.e., agendas specifying location of teleconference participants and providing opportunity for the public to address the Board, posted at publicly accessible location with teleconference capabilities, at least a quorum of directors must participate from within LAUSD

Directors may participate in a meeting through use of conference telephone, or other electronic transmission in compliance with the Bylaws so long as:

- 1) Each director participating in the meeting can communicate with all of the other directors concurrently and;
- 2) Each director is provided with the means of participating in all matters before the Board, including the capacity to propose, or to interpose an objection specific to, a specific action to be taken by the corporation.
- 3) For any meeting with board member telephonic participation, the agenda identifies the teleconferenced location and that location is open to the public. The agenda is also posted at the teleconferenced location. All votes taken at a meeting with telephone participation shall be roll call vote. At least a quorum of the board must be present within the jurisdiction of the corporation.

The majority of the authorized directors then in office constitutes a quorum. All matters shall be decided by the vote of a majority of directors present at a meeting duly held at which a quorum is present, and every such act or decision shall be the act of the Board, unless a greater number is required by the California Nonprofit Public Benefit Corporation Law or by the Articles of Incorporation or Bylaws, except that a meeting at which a quorum is initially present may continue to transact business and when there's less than an a quorum and a decision needs a vote, the meeting will be adjourned to a future date.

STAKEHOLDER INVOLVEMENT

The following committees and councils are a function of the school and serve under the leadership of the administration. They are selected by their respective peers and are not nominated by the Board of Directors. Therefore, these committees and councils are not required to adhere to the Brown Act.

Stakeholder Involvement Process

School-based decision-making at LbD is designed to:

- Ensure that all decisions regarding policy and practice made at LbD have a single focus: to achieve the learning outcomes delineated for students in the charter.
- Ensure that staff is involved in the decision-making process at LbD.

- Ensure that stakeholders (parents, community, and all school personnel) are involved as active partners in the decision-making process.
- Ensure long-term effectiveness of local school control and accountability.
- Ensure that a collaborative, consensus building model is applied to all decision-making processes at LbD.
- Ensure that LbD principal be an integral part of the decision-making process throughout discussions on key issues on a daily basis. If consensus from the Administrative team (Principal and Assistant Principal) on an issue cannot be reached, the Board of Directors will have final authority.

Role of Parents and Staff

To provide opportunities for parents and staff to participate in the decision-making process, the school has established the following council and committees that serve under the direct supervision of the Education Director of the school and are not considered Board of Directors committees.

- School Site Council
- ELAC
- Friends of LbD

Role of Council and Committees

The role of the Education Director in all councils and committees is to help support and maintain the school's vision and also be the conduit to the LbD Board for recommendations or requests. In the interest of creating a large base of input from the staff, and to ensure that grade level and program needs are met, a different representative will be selected for each of the 3 Councils.

During the first 6 weeks of the school year new representatives are elected for the committees by school staff or parents (as appropriate). Recognizing that the first year of teaching is a crucial one, first year teachers are not required to serve on committees, but may do so voluntarily. Interested teachers will be nominated or nominate themselves and the teaching staff will select their representatives. All parents are notified in writing of the opportunity to serve. Individuals who are nominated are elected by secret ballot of the committee.

School Site Council

The day-to-day decisions of LbD will be managed by the School Principal. School Site Council (SSC) recommendations are strictly limited to issues such as: school-wide decision making that supports the vision, student achievement, assessment dates, instructional program review, consensus building, student traffic flows, lunch schedules, etc. This committee advises the Education Director on the aforementioned matters.

SSC teacher representatives, elected by the Education Director and teachers, are committed to serve for a two-year period. Classified and parent representatives are elected once every two years. Classified representatives are elected by their peers and parent representatives will be elected by the parents of LbD. The Friends of LbD representative will facilitate the elections.

SSC meetings are scheduled monthly and on as needed basis.

LbD's underlying belief about shared decision making is that consensus is crucial to building stakeholder buy-in. All recommendations made by the SSC will be made by consensus.

The School Site Council includes:

- 1 Education Director
- 1 Administrative Designee
- 1 or 2 Teacher representatives
- 1 Classified representative
- 1 or 2 Parent representatives

Each year, the Education Director also engages parents, teachers and staff in formulating the school's annual LCAP updates and goal setting through focus groups, surveys and open meetings in which stakeholders are invited to participate in reviewing the school's annual progress and establishing goals – and allocating resources – for the coming years. The Charter School solicits feedback from parents, teachers and staff via annual surveys, meetings regarding the LCAP, SARC and other reports of progress, and a variety of web based applications like PowerSchool. The Charter School website is used to house all important documents (LCAP, SARC etc.) providing 24/7 access.

English Learner Advisory Committee (ELAC)

State law mandates each school site with 21 or more students of Limited English Proficiency in attendance, regardless of language, to form a functioning English Learner Advisory Committee. The ELAC will be formed at LbD when the site has 21 or more students of LEP. The ELAC members will include: Parents of ELs (at least the same percentage of the ELAC membership as ELs constitute of the Charter School's total student population), Charter School staff, and /or community as long as the minimum percentage requirement for EL parents is maintained. The ELAC advises the Education Director and staff on programs and services for English Learners, and participate in annual goal setting and evaluation of EL achievement and needs (including the LCAP).

PARENT MEETINGS

Friends of LbD (Friends)

The Friends of LbD acts as an advisory body to the Education Director. Parents are partners in the education of LbD and are encouraged to actively participate in decision making processes of the school. The purpose of Friends is to coordinate all parents' involvement in the parent center, on campus, as well as participation in parent training workshops. Additionally, Friends recruit volunteers, engage parents in educational issues that affect the school, families, and students, and assist in the fundraising activities for the school. Every enrolled family is welcome to become a member of this group and is encouraged to participate in meetings and activities. Elections will be held once every two years. Friends will be elected by their peers. The Friends meet monthly or as needed.

The Friends of LbD includes:

- 1 Education Director/Administrative Designee
- All parents
- 1 Classified Employee

Friends facilitates open communication among the entire LbD community through monthly meetings where parents share information and have the opportunity to learn more about school activities and educational programming. Meetings feature updates on committee work, parent education events conducted by LbD staff and outside guest speakers, and opportunities for open discussion and mutual support. Friends encourages community participation in school activities

including performances, fundraisers, site beautification projects and other volunteer opportunities. A president of the Friends of LbD will be elected by the membership.. Friends leaders collaborate with the Education Director to maintain a comprehensive list of volunteer opportunities including but not limited to the following:

- Playground supervision before and after school and during recess
- Assisting during school celebrations and events
- Assisting in an enrichment class
- Hospitality (hosting a visiting teacher candidate or speaker)
- Service as “Class Parent”
- Coordinating and chaperoning field trips
- Assisting with fundraisers
- Assisting in the office

While all parents will be encouraged to volunteer to support the school and help foster a strong community, no child will be excluded from the school or any school activities due to the failure of his or her parent or legal guardian volunteer.

In addition, LbD strives to ensure frequent and comprehensive home-school communications. LbD will use a variety of means to communicate effectively with parents, including, but not limited to: Website, Facebook, Newsletter, email, monthly breakfast meetings with Education Director and many other opportunities to connect including family nights and parent training.

Parents, students and staff will use PowerSchool, a school-wide system that allows ready access to students' attendance, grades, and teacher assignments. We believe that the parent portal will transform the collaborative process among parents and teachers, enabling them to focus on the crux of the student information system - student performance and achievement.

Parents and students are invited to monthly meetings that will include topics such as:

- Preparing your student for success in school
- Common struggles for elementary school students

As detailed in Element 1, the Charter School will engage all stakeholders annually in the development and adoption of the LCAP, including review of progress, goal-setting, and resource allocation.

ELEMENT 5 – EMPLOYEE QUALIFICATIONS

“The qualifications to be met by individuals to be employed by the charter school.” (Ed. Code § 47605(c)(5)(E).)

EQUAL EMPLOYMENT OPPORTUNITY

Charter School acknowledges and agrees that all persons are entitled to equal employment opportunity in accordance with all applicable legal and District requirements. Charter School shall not discriminate against applicants or employees on the basis of race, color, religion, sex, gender, gender expression, gender identity, sexual orientation, pregnancy, national origin, ancestry, citizenship, age, marital status, physical disability, mental disability, medical condition, genetic information, military and veteran status, or any other characteristic protected by California or federal law. Equal employment opportunity shall be extended to all aspects of the employer-employee relationship, including but not limited to recruitment, selection, hiring, upgrading, training, promotion, transfer, discipline, layoff, recall, and dismissal from employment.

STAFFING

Charter School shall comply with and implement all applicable state and federal laws and regulations, District policies, and LAUSD collective bargaining agreements related to staffing, credentialing, and assignment of teachers to grade levels, department, subjects, and classes. Charter School shall be subject to all District decisions regarding reduction in force, mandated furloughs, layoffs, and any other District decisions related to salaries, classifications, qualifications, and assignments. Unless the District has assigned all employees in a classification to a specific basis, Charter School will have autonomy in assigning positions to specific working bases.

Selection of the principal shall remain the purview of the LAUSD Superintendent or designee.

Certificated Personnel

Charter School shall comply with federal and state laws and regulations, District policies and procedures, and applicable collective bargaining agreements in the selection and assignment of certificated staff. Charter School will have the autonomy to interview and select teachers and school-funded support staff from District-approved lists of eligible candidates as determined by the LAUSD Human Resources Division, which may be limited to Priority Placement Lists (displaced teachers) and Rehire Lists depending on current hiring conditions in each subject area. While every effort will be made to avoid assigning any certificated employee to any Charter School campus, the District retains the right to make such assignments in cases in which no other alternative is available or when an administrative transfer is necessary as determined by the Region administrator (e.g., in order to provide reasonable accommodation in compliance with the Americans with Disabilities Act).

Classified Personnel

Charter School shall comply with applicable federal and state laws and regulations, including but not limited to the merit system provisions of the Education Code, Personnel Commission Rules, and applicable collective bargaining agreements in the selection and assignment of classified staff. Unless valid reemployment lists exist, Charter School will have the autonomy, when selecting classified employees for regular assignment, to select from the top three eligible candidates on current valid eligibility lists promulgated by the Personnel Commission. Affiliated charters with staff selection autonomy will be provided with the ability to select classified staff in accordance with Personnel Commission Rules and statutory requirements.

Employees' job duties and work basis will be negotiated in individual contracts. General job descriptions have been developed for the administrative staff, teachers, other certificated staff, office personnel, and classified staff.

The vision and mission of Learning by Design must be embraced by all stake-holders in its goals for educational excellence for all students. Every stakeholder is accountable for the academic and social growth of our students. LbD shall comply with the requirements for hiring of teachers and paraprofessional as specified by state and federal law.

All teachers at LbD shall be required to possess a CTC credential, permit or other document equivalent to that which in other public schools would be required to hold. Teachers will meet the requirements for employment as stipulated by the California Education Code 47605(1).

EMPLOYEE QUALIFICATIONS AND RESPONSIBILITIES

EXECUTIVE DIRECTOR

Reports to: Board of Directors

The Executive Director serves as the leader of the Charter School and assumes responsibilities for the direction of the instructional program, the public image of the organization, and all aspects of operations. This includes continuing to oversee the development and design of the school education program in close collaboration with the Principal, ensuring all efforts and purchases align with the intended mission and vision of the school. The Executive Director will continue fundraising, community outreach, and partnership development. As needed, the Executive

Director takes on the role and responsibilities of the Education Director. The Executive Director will oversee and ensure that all charter school requirements are met, act as the primary liaison with the school district, and oversee all facility matters.

The Executive Director reports directly to the Board of Directors and supervises all charter school programs and operations in accordance with the approved charter petition and Board policies.

Although the Executive Director may delegate appropriate powers and duties so that operational decisions can be made at various administrative levels, he/she is responsible for the execution of these powers and duties.

Qualifications:

- A Master's Degree from accredited college or university.
- Evidence of successful administrative experience.
- Teaching and/or supervisory experience in educational programs serving students and their families.
- Demonstrated track record to quality education and creative approaches to program management, development and implementation.
- Demonstrated commitment to working with diverse students and families.
- Demonstrated knowledge of evidence based curriculum for grades TK-5.
- A California Teaching Credential or its equivalent.
- A California Administrative Credential or equivalent in experience
- Five years of full-time teaching service.

Preferred Knowledge, Skills, Abilities, and Personal Characteristics:

- Understanding of the Charter School's philosophy and approach to education.
- Knowledge of and ability to recognize and implement the impact of the Charter School Petition, and applicable state and federal laws and regulations.
- A commitment to Charter School's mission and vision and to working collaboratively with staff, parents and Board members to make the best policy decisions possible for the success and longevity of the school and its students.
- Understanding of and sensibility towards a diverse, multi-cultural population of students and experience conducting parent/community outreach.
- Knowledge of the relationship between the Charter school, the authorizing district, the state and federal agencies.
- Knowledge of evidence-based practice for TK/K-5 curriculum, teaching and management techniques, with a focus of achieving basic and advanced academic performance for all students.
- Knowledge of and skill in effective budgetary processes and school finance.
- Ability to establish and maintain cooperative working relationships with community at large, including potential donors and community/stakeholders: staff, faculty, parents, Board, LAUSD.
- Ability to select, train, supervise and support, and evaluate staff and a commitment to continued staff development as a means to improve the school's program.
- Ability to integrate Charter School's vision in order to build on and develop its educational program.
- Entrepreneurial ability to manage change and be responsible to community needs.

- Ability to motivate and lead individuals and groups.
- A firm commitment and demonstrated record to quality education and efficient approaches to program management, development and implementation

Responsibilities:

- Oversees adherence to the Charter School's philosophy, mission and vision and serves as the chief administrator of the Charter School.
- Makes reports to the Board on all facets of Charter School operations; advises the Board on the need for new and/revised policies and makes policy recommendations based on data and input from stakeholders and expert consultants (back-office, legal, etc.); collaborates with the Board in strategic planning and goal setting for the charter schools.
- Provide input on the Board meeting agenda and help ensure Brown Act compliance, in conjunction with the Board Chairperson.
- Attend District Board meetings as necessary, as the Charter School representative, and serve as Charter School's primary contact with District representatives.
- Propose policies for adoption by the Board and provide comments and recommendations regarding policies presented by others to the Board.
- Establish Charter School procedures designed to carry out Board policies and oversee staff regarding compliance with applicable laws and Charter School policies, including Health and Safety policies and procedures.
- Communicate with legal counsel and any outside consultants.
- Approve all purchase orders and contracts up to \$25,000 (LbD Board of Directors approve purchase orders and contracts over \$25,000), pay warrants and requisitions and, upon approval, forward on for processing.
- Develop the Charter School budget and any necessary revisions in collaboration with the Principal, Back-Office services provider and stakeholders, and submit to the Board for review and approval.
- Oversees and supports Charter School's Education Director in implementing instructional programs, realizing student achievement goals for grades TK-5.
- Serves as the point person with LAUSD, County, State and other governmental entities; and other community partners, ensuring effective communication and timely reporting.
- Ensures compliance at school site and through all operations with all applicable laws, regulations and District/County/State policies regarding public charter schools.
- Oversees operating budgets, seeks and identifies sources of income and funding resources for school.
- Oversees facilities development and management.
- Attracts new resources to the school.
- Oversees charter renewal process and any necessary Material Revision requests along with the Education Director and Director of Operations and Financial Manager.
- Oversees all required reporting to the District, County, State and other relevant entities (e.g., grant funders), including leading the annual LCAP process.
- Other duties as assigned by the Board.

In Collaboration with the Education Director:

- Recruit, hire, supervise, evaluate, train, discipline and terminate all school site staff in accordance with Board policies and employment contracts.
- Oversee Instructional program and student achievement.
- Guide professional development for staff and faculty.
- Providing effective communication with the community, families and community partners.

EDUCATION DIRECTOR

Reports to: The Executive Director

The LbD Education Director will be an educator with proven, successful results in serving underserved students. He or she will practice a constructivist/project-based approach to curriculum design, and be a collaborative individual who will engage students, parents and teachers at LbD. He or she will be a leader and learner who practices 21st Century skills as outlined in our charter and the California State Frameworks and one who models and believes in service to the community, whether local or global, as the pathway to a successful society.

The Education Director shall act as the instructional leader at LbD and shall be responsible for helping students achieve outcomes as outlined in the educational program. The Education Director, along with the Executive Director, Senior Manager of Student Supports and Senior Community Programs Coordinator, develop and lead professional development as well as oversee the strategic planning of LbD. The Executive Director reports to the Executive Director and the Board.

Qualifications:

- Possession of Elementary Teaching Credential preferred
- Master's Degree from accredited college or university
- 5 years of successful full-time public school certificated service, with no fewer than 3 years as a teacher
- At least one year of administrative experience in a school-based position

Responsibilities:

- Serve as the instructional leader of the Charter School and oversee all instructional staff at the school site and co-supervise all administrative/operational staff in collaboration with the Executive Director.
- Recruit, hire, supervise, evaluate, train, discipline and terminate all school site staff in collaboration with the Executive Director and in accordance with Board policies and employment contracts.
- Support with Testing Coordination
- Organize and lead professional development for teachers and staff.
- Provide leadership for and facilitate collaboration with all stakeholders on identifying goals for student achievement; assess progress toward meeting the goals.
- Provide guidance, supervision, and assistance in instructional practices and curriculum and assessment development that is standards-aligned and culturally relevant and responsive to the language, social, and the academic needs of the student population.
- Develop annual performance target goals as part of the LCAP planning and update process in collaboration with school stakeholders; lead ELAC, Advisory Council and all

- other parent committees/councils.
- Provide input on the Board meeting agenda to the Executive Director and attend all Board meetings and provide regular updates on student achievement and progress towards annual goals.
- Participate in the dispute resolution procedure and the complaint procedure when necessary.
- Oversee outreach and recruitment, lottery and enrollment, and student/family orientation.
- Attend SST and IEP meetings when necessary.
- Address discipline issues in coordination with teachers and staff, including entering discipline information into student records.
- Coordinate the administration of Standardized Testing, EL program and reclassification.
- Oversee all parent/student/teacher relations, school events, parent communications and workshops and parent volunteers.
- Other duties as assigned by the Board of Directors.

SENIOR COMMUNITY SCHOOLS COORDINATOR

Reports to: Executive Director

The Senior Community Program Coordinator is responsible for all school-based and community programs, partnerships, events and celebrations. This person will engage in fundraising as well as marketing and outreach efforts in collaboration with the Executive Director. This person maintains relationships with vendors and partners and attends community events, council meetings to keep a pulse on community affairs and potential partnerships for the school. This person also serves as the Parent Coordinate and works closely with the Education Director to support parent and stakeholder groups and committees.

Qualifications:

- Bachelor's degree or comparable in experience
- Three years or more of full-time work experience in the field of Community Programs
- Demonstrated success with similar populations
- Entrepreneurial spirit

Responsibilities:

- Plans, executes, oversees and manages LbD Schools and Community Programs, including working closely with all teachers, families and community partners.
- Supports the Education Director with managing parent and stakeholder groups such as SSC, ELAC and Friends of LbD
- Supports with all Fundraising efforts including grant writing
- Manages all community partnerships and vendor relations
- Plans, executes and manages all school-based and community programs, events, and celebrations
- Manages parent volunteers
- Manages all recruitment and outreach efforts
- Creates Marketing and outreach materials and campaigns to increase school visibility and awareness

SENIOR MANAGER OF STUDENT SUPPORTS

Reports to: Executive Director

The Senior Manager of Student Supports will be responsible for providing Counseling and Behavioral Therapy as needed while also designing and implementing the Mental Health Supports and Socio-Emotional Wellness Education Programs school wide.

Qualifications:

- A multi-subject credential or Appropriate Counseling or Behavioral Support certification
- BA or BS (as appropriate) degree
- Understanding of subjects/grade levels assigned
- Knowledge and awareness of innovative and progressive curriculum and instructional learning communities
- Demonstrated success with similar populations

Responsibilities:

The Senior Manager of Student Supports is responsible for developing and implementing school wide programs, systems and processes that support/promote students' Socio-Emotional growth and development, positive behavior and social engagement, emotional regulation, and effective problem solving skills. This person will oversee staff that support student positive behaviors and will work to maintain a positive and restorative school culture and community:

- Lead Professional Development in Restorative Practices, Trauma informed Practices, Connection Circles, Positive Classroom Management methods and systems.
- Work with small groups of students to support with positive behavior development and emotional regulation
- Provides Behavioral Therapy and Counseling as needed (given parental consent)
- Monitor student behaviors and respond/intervene in real time as needed
- Provide support with student and families as needed
- Manage the Zen Den/ Wellness Center
- Manage a team of MSW Fellows and Campus Aides providing training and support in restorative practices and positive behavioral supports
- Lead assemblies for students and families in positive behavior expectations

TEACHERS

Reports to: Education Director

Teachers at LbD are selected based on their experience with and commitment to achieving successful results in serving underserved students. Teachers will practice a constructivist/project-based approach to curriculum design, and be collaborative individuals who will engage students,

parents and their peer teachers at LbD. Teachers report to the Principal. Teachers at LbD are responsible for implementing the instructional mission and vision of the Charter School including:

- *Personalized Curriculum:* Teachers will be responsible for reviewing and analyzing real-time data in order to customize learning paths and create student Playlists to adequately address each student's learning needs and ensure Mastery.
- *Standards-Based Curriculum:* LbD Charter School will offer a rigorous education for all students in alignment with the California State Standards.
- *Technology Integration:* By implementing technology with the curriculum, students will be digitally literate and fluent while using also learning how to effectively utilize technology to successfully pursue academic goals.
- *Community Council:* Students will be given the opportunity to work in small cohort groups as well as connect with their peers during Council to develop their socio-emotional and community awareness and capacity. Teachers will draw from curricula and programs such as Responsive Classrooms, Character Lab and Way of Council to develop and implement this practice in their classrooms and school wide.
- *Interdisciplinary Curriculum:* Students will understand how subjects relate to each other while achieving proficiency in the core subjects and becoming critical thinkers.
- *Project-Based/Maker-Centered Learning:* Teachers will engage students by organizing curricula around central ideas, building on students' prior knowledge, connecting learning to students' lives, and empowering students to demonstrate and express their learning via creations and inventions of their own design.

Qualifications:

Teachers shall meet or exceed all state requirements as applicable. Accordingly, a teacher of core academic subjects must have:

- A current Californian multi-subject credential or have an Intern Credential for no more than three years while actively working toward completion of their state credential, and demonstrated expertise; SpEd teachers must possess an appropriate Special Ed credential; teachers must possess their EL Authorizations.
- Bachelor's degree
- Understanding of subjects/grade levels assigned
- Knowledge of curriculum and instruction
- Demonstrated success with similar populations

Teachers assigned to a TK classroom after July 1, 2015, must have been issued at least one credential by the Commission on Teacher Credentialing (CTC), and shall, by August 1, 2020, have one of the following:

- At least 24 units in early childhood education, or childhood development, or both.
- As determined by the local educational agency employing the teacher, professional experience in a classroom setting with preschool age children that is comparable to the 24 units of education described in paragraph (1).
- A child development permit issued by the CTC.

Responsibilities:

- Responsible for conducting a professional, organized, and learner-centered classroom
- Teach core subjects and enrichments according to curriculum goals developed by the grade level teams. Collaborate with other faculty in delivery of appropriate instructional approaches, working to serve the various learning needs of LbD students.
- Implement curriculum and instruction in a manner consistent with LbD model and mission statement, including understanding, modeling and fostering independent thinking skills, creative problem solving and abstract reasoning. Show empathy and understanding of students.
- Implement data-driven instruction using online learning platforms and differentiation based on data.
- Develop with parents and students a cooperative partnership based on mutual respect and encourage parents to be contributors to their students' education
- Hold parent/student/teacher conferences
- Collaborate as a member of a team, that can include experts from the community, in the design of projects, curriculum and student outcomes
- Implement LbD's classroom management and discipline strategies and keep clear and specific documentation of all intervention taken to correct student behavior before referring a student out of class
- Maintain records for attendance, submit grades and completed report cards on time, and complete school-wide assessments on time
- Participate in all school community professional development as well as individual professional development in areas identified through evaluations
- Provide leadership to before and after school activities and act as the teacher liaison to select committees
- Follow policies established by LbD Board of Directors as well as applicable laws and regulations
- Other duties as assigned, including evening events at school sit

LEAD TEACHER (when applicable) will assume all responsibilities of the teachers including some of the responsibilities of the Education Director and will participate in the School Advisory Committee meetings and activities.

TEACHING ASSOCIATES/ASSISTANTS**Reports to: Education Director****Qualifications**

- High school diploma and minimum 60+ credits towards college degree in Education or AA preferred.
- Basic knowledge of innovative curriculum and instructional practices including online

learning options and experiential learning practices

- Ability to communicate effectively, both orally and in writing
- Oral and written proficiency in Spanish preferred
- Prior teaching assistant experience preferred
- Strong proficiency with the Microsoft Office suite

Responsibilities

- Assist the teacher in planning and implementing lessons and activities with students
- Work with individual or small group of students to support the implementation of Personalized Learning Plans
- Support the implementation and management of Projects and Maker activities
- Assist Curriculum and Innovation Specialist with planning, implementation and integration of Project-based and Maker-Centered lessons and activities in the classroom
- Support with the management and maintenance of the Maker Carts
- Establish and maintain effective, working relationships with children, parents, staff, and program
- Helps monitor and manage flex-rotation during Core learning
- Support the Wellness Coordinator with the implementation of PE, Health and Gardening lessons and activities
- Assists the teacher in planning and maintaining a safe, clean, learning environment and in ensuring the well-being and safety of the children in his/her care.
- Maintains a cooperative attitude of working together with the teacher, volunteers, parents, and program specialists in planning and implementing activities.
- Plans with and assists the teacher in preparing materials and supplies in advance for activities. Assists the teacher in maintaining confidential child classroom portfolios, by collecting monthly samples of children's work.
- Assists the teacher in maintaining a confidential assessment binder, consisting of developmental assessments, individual goals, and observations of progress toward meeting goals. Shares in the development and implementation of written lesson plans with the teacher.
- Performs any other task deemed necessary by the teacher and/Principal.

INTERVENTION/EL COORDINATOR

Reports to: Education Director

The Intervention/EL Coordinator bears full responsibility for the planning and implementation of intervention support to individual and/or groups of students. Also administers all aspects of the English Learner (EL) program. Coordinator is responsible for working with teachers to improve student learning and teacher practice. In close collaboration with the Education Director, the Intervention/EL coordinator plans and implements individual and group professional learning that will expand and refine student understanding.

Qualifications

- Five or more years of classroom experience
- Bachelor's Degree in Education or related field
- Multiple Subject teaching credential
- Must be Bilingual (E/S); BCLAD preferred
- Demonstrate a proven record of success with providing effective intervention supports to students resulting in student growth and achievement
- Experience and demonstrated success with developing and implementing SDAIE strategies and supporting ELD
- Some knowledge and experience with IEP process
- Knowledge of resources available to parents to support intervention efforts.
- Ability to provide in-service training, including curriculum resource to teachers.
- Ability to monitor and evaluate pupil progress by observation and informal assessment.
- Experience and commitment to working collaboratively with staff, parents, and the community.

Responsibilities:

- Develop and implement appropriate educational curriculum and strategies for students with intervention needs, including providing faculty with program and testing modifications
- Work with teachers to design, modify and implement curriculum to meet the individual learning needs of students with disabilities, English Learners (ELs) and other students with special needs.
- Provide direct instruction to individuals and small groups as needed
- Monitor student progress towards achieving instructional objectives and goals on the IEPs
- Coordinate and administer all aspects of the English Learner (EL) program
- Develop, maintain, and participate in Student Support Team meetings for students with special needs, including ELs, students with low academic achievement or behavioral issues, and all students who struggle with access to core curriculum.
- Conduct diagnostic tests and timely assessments of students including completion of the Evaluation Report (ER) and Individual Education Plan (IEP) related paperwork, ELPAC testing and other benchmark and alternative assessments for students with special needs.
- Report quarterly progress on each student to team teachers
- Meet with parents/guardians to communicate results of assessment so that parents can fully understand the assessment results and contribute fully to the SSPT and IEP meetings about their child
- Create welcoming environment for parents participating in any meetings with school personnel regarding student performance
- Participate in the shared decision-making through which the program is administered

by attending faculty meetings and collaborating with others on staff to make the best decisions for the overall school program

- Participate in determining appropriate classroom placement for incoming and transitioning students
- Supervise assigned staff/volunteers/classroom supports effectively.
- Ensuring compliance with state and federal mandates for EL students and students with IEPs

INTERVENTION SUPPORT

Reports to: Education Director

Under the direction of the Intervention/EL Coordinator, the Intervention Support Staff will provide support to student(s) that need academic and EL supports and intervention. The Intervention Support Staff will implement comprehensive academic (literacy and numeracy) intervention plans using proven strategies, deliver small group and independent instruction, participate as a member of the educational team, and assist in designing and implementing all components of the student's individual program. The Intervention Support Staff will dually report to the Intervention/EL Coordinator and School Leadership team.

Qualifications:

- High school diploma required
- 60+ credit hours or a B.A. degree in a field such as education
- Experience working with students with IEPs and with EL students
- Must have knowledge and ability to incorporate academic interventions into daily instruction
- Ability to establish and maintain positive working relationships with teachers, school administrators, parents and students
- Ability to address a wide range of instructional and academic objectives to allow student to successfully access the classroom curriculum and routine
- Basic computer skills
- Good oral and written skills
- Bi-lingual Spanish/English preferred

Responsibilities:

- Adapt classroom activities, assignments and/or materials under the direction of the Teacher and Intervention/EL Coordinator to provide greater access to class activities
- Assist teacher in classroom instruction and with one-on-one intervention support
- Confer with Intervention/EL Coordinator and teacher(s) on a regular basis to assist in evaluation of student progress and/or implementation of student individual progress goals and objectives
- Maintain appropriate documentation, records, and reports
- Maintain confidentiality of students and families as mandated by district, state and

- federal regulations
- Participate in school and regional trainings, in-services, and meetings
- Establish and maintain cooperative working relationships with students, staff, and parents
- Other duties as assigned by the Intervention/EL Coordinator or School Administrator.

MANAGER OF BEHAVIOR AND CULTURE

Reports to: Senior Manager of Student Support

Manages and sets the tone for school-wide Positive Culture and behaviors by students. Opens the school in the morning and monitors the playground and classrooms to provide guidance and supervision for students to maintain positive interactions throughout the day. Works collaboratively with the Senior Manager of Student Supports to document behaviors that may require additional attention or triage.

Qualifications:

- 60+ credit hours or a B.A. degree in a field such as education
- Knowledge of PBIS and Restorative Practices
- Knowledge of safety rules and conditions to be maintained by students.
- Knowledge of standards of courtesy and behavior expected of students.
- Ability to maintain acceptable standards of behavior among students.
- Ability to maintain poise, and exercise tact and good judgment.
- Ability to work effectively with school personnel, community representatives, parents, and students.

Responsibilities:

- Perform regularly scheduled non-classroom supervision duties, supervise students in the cafeteria, indoor assembly areas, outdoor eating areas, halls, restrooms, on the playground, and in other areas to which assigned.
- Enforce activity and safety rules in school buildings and on school property.
- Report problems of a serious nature, including recurring behavior problems and safety hazards to the Senior Manager of Student Supports or other designated certificated employee.
- Work with the school staff in alleviating behavior problems occurring during supervision period.
- Assume responsibilities in inclement weather as assigned by the Education Director or other designated certificated employee.
- Support with After School management

CAMPUS AIDE

Reports to: Manager of Behavior and Culture

Qualifications:

- High School Diploma or Equivalent
- Knowledge of safety rules and conditions to be maintained by students.
- Knowledge of standards of courtesy and behavior expected of students.
- Knowledge of games and sports in which students participate.
- Ability to maintain acceptable standards of behavior among students.
- Ability to maintain poise, and exercise tact and good judgment.
- Ability to work effectively with school personnel, community representatives, parents, and students.

Responsibilities:

Assists in maintaining proper environment and student control at school including:

- Perform regularly scheduled non-classroom supervision duties, supervise students in the cafeteria, indoor assembly areas, outdoor eating areas, halls, restrooms, on the playground, and in other areas to which assigned.
- Enforce activity and safety rules in school buildings and on school property.
- Report problems of a serious nature, including recurring behavior problems and safety hazards to the Education Director or other designated certificated employee.
- Work with the school staff in alleviating behavior problems occurring during supervision period.
- Assume responsibilities in inclement weather as assigned by the Principal or other designated certificated employee.
- Perform other duties as assigned including office support as needed.
- Support with After School management

DIRECTOR OF OPERATIONS**Reports to: Executive Director**

The Director of Operations will support the day-to-day financial and operational activities of LbD.

Qualifications:

- Bachelor's degree
- Minimum of 2 years of professional experience required
- Spanish language skills preferred
- Prior school or non-profit experience preferred
- Excellent organizational, planning, and implementation skills
- Excellent written and verbal communication skills.
- Ability to multi-task, adapt to changing priorities and meet deadlines
- Highly detail-focused and results-oriented
- Ability to communicate and interact effectively with multiple constituencies including parents, faculty, staff and students
- Highly proficient in Microsoft Excel, PowerPoint, and Word

- Demonstrated initiative, leadership, and tenacity

Responsibilities:

- Serve as Financial Manager for day to day school operations including budgets, monitoring AP spreadsheets and adhere to the Fiscal Policies and Procedures Handbook.
- Compliance Reporting
- Manage HR and benefits
- Develop and implement clerical and administrative procedures for daily school operations.
- Manage/monitor/supervise office operations.
- Prepare correspondence, reports, bulletins, files, forms, memorandums.
- Act as a liaison between the Administration, Board of Directors and the back-office provider.
- Maintain and execute the Charter School's emergency and safety plans.
- Manage all school-based procurement.
- Track expenses and communicate trends in spending.
- Collect payments, manage deposits, and process credit card recaps.
- Oversee and manage school's food service program.
- Coordinate special events such as field trips and school based fundraisers
- Coordinate travel arrangements as needed
- Manage incident reporting process for student/staff injuries, property loss/damage, and other claims.
- Report payroll, coordinate with benefits provider and act as liaison between employees and benefits providers.
- Serve as a liaison between the school and vendors.
- Maintain and update online student enrollment.
- Organize public lottery.
- Other duties as assigned.

OPERATIONS/OFFICE MANAGER

Reports to: Director of Operations

Qualifications

- High School Diploma; Associate's degree preferred
- Oral and written proficiency in Spanish required
- Prior school administrative experience preferred
- Strong proficiency with the Microsoft Office suite
- Experience in proper office procedures including filing, answering the telephone professionally, photocopying, greeting all visitors cordially, and handling information with confidentiality
- Excellent communication skills, both oral and written
- Strong organizational and interpersonal skills

- Ability to communicate and interact effectively with multiple constituencies

Responsibilities

- Answer telephones and greet guests
- Organize, secure, and maintain the reception area
- Attend to student needs and injuries
- Clear student absences, run Illuminate reports, make daily attendance calls
- Assist with student enrollment and lottery
- Prepare correspondence, reports, bulletins, files, forms, memorandums, and perform other clerical and administrative duties as assigned by the Principal or Office Operations and Finance Manager
- Maintain student emergency cards and health records and ensure confidentiality
- Request, send, and maintain cumulative records
- Other duties as assigned.

FACILITIES MANAGER

Reports to: Director of Operations

Maintains assigned areas of buildings and grounds in a clean, sanitary, and safe condition.

Qualifications

- High School Diploma

Responsibilities

- Sweeps, dusts, cleans, scrubs, strips, seals, waxes, polishes, and mops floors in classrooms, kitchen, cafeteria, bathrooms, offices, and similar facilities.
- Operates equipment, such as floor polishing and scrubbing machines, wall washing machines, steam shampooers, vacuum cleaners, yard vacuums, lawn mowers, lawn edgers, weed eaters, and power sweepers.
- Services soap dispensers, towel boxes, and similar facilities.
- Sweeps and hoses blacktops, playgrounds, sidewalks, and parkways.
- Receives, checks, and delivers custodial and instructional supplies
- Locks and unlocks doors, gates, windows, transoms, and storerooms. Assists in providing security for buildings and grounds, contacts proper authority for assistance as needed, and may escort authorized and unauthorized persons in and from buildings and grounds.
- Keeps records relative to equipment and furniture.
- Identifies and reports information regarding vandalism, theft, fire damage, and floods, and identifies, records, and reports maintenance needs.
- Makes minor repairs to building hardware, plumbing, woodwork, building equipment, and furniture.
- Performs related duties as assigned.

ELEMENT 6 – HEALTH AND SAFETY PROCEDURES

“The procedures that the charter school will follow to ensure the health and safety of pupils and staff. These procedures shall require all of the following:

(i) That each employee of the charter school furnish it with a criminal record summary as described in Section 44237.

(ii) The development of a school safety plan, which shall include the safety topics listed in subparagraphs (A) to (K), inclusive, of paragraph (2) of subdivision (a) of Section 32282. For schools serving pupils in any of grades 7 to 12, inclusive, the development of a school safety plan shall also include the safety topic listed in subparagraph (L) of paragraph (2) of subdivision (a) of Section 32282. (iii) That the school safety plan be reviewed and updated by March 1 of every year by the charter school.” (Ed. Code § 47605(c)(5)(F).)

GENERAL PROVISIONS

Charter School shall comply with all federal, state, county, and local laws and regulations, and District policies and procedures, related to health, safety, and emergency response and preparedness, as they may be changed from time. Charter School shall comply with and implement all District policies and procedures related to protecting the health and safety of students and staff, including but not limited to policies and procedures related to child abuse and neglect reporting and awareness training, and allegations of employee-to-student sexual abuse.

HEALTH, SAFETY AND EMERGENCY PREPAREDNESS PLAN

As a District Affiliated Charter School, Charter School shall comply with and implement all District policies and procedures related to health, safety, and emergency response and preparedness, including but not limited to the required creation, maintenance, and implementation of an Integrated Safe School Plan. Charter School shall ensure that its staff receives annual training on Charter School's health, safety, and emergency procedures, and shall maintain a calendar for, and conduct, emergency response drills for students and staff in accordance with District policies and procedures.

Charter School shall periodically review, and modify as necessary, its Health, Safety and Emergency Preparedness Plan (Integrated Safe School Plan) and keep it readily available for on-site use. Charter School shall provide a copy of the Health, Safety, and Emergency Preparedness Plan for review upon CSD request.

FAMILY EDUCATIONAL RIGHTS AND PRIVACY ACT (FERPA)

Charter School, including its administrators, other staff, and representatives, shall comply with the Family Educational Rights and Privacy Act (FERPA) and Education Code section 49060 *et seq.*, as well as applicable District policy, at all times.

CRIMINAL BACKGROUND CLEARANCES AND FINGERPRINTING

As a District Affiliated Charter School, in order to protect and promote the health and safety of students and staff, Charter School, including its staff, contractors (vendors), and volunteers, shall adhere to the policies and procedures of the District related to fingerprinting and criminal background clearances.

IMMUNIZATION AND HEALTH SCREENING REQUIREMENTS

As a District Affiliated Charter School, in order to guarantee the health and safety of students and staff, Charter School shall ensure that all staff, vendor/contracting entity employee who may have frequent or prolonged contact with students, and volunteers adhere to the policies and procedures of the District related to tuberculosis risk assessment, examination and clearance. Charter School shall comply with and implement all District policies and procedures related to the immunization and health screening of its students, including but not limited to the immunization of students as a condition of attendance and screening for vision, hearing, and scoliosis. Charter School shall create, use, maintain, store, transfer, and dispose of student health records in accordance with District policies and procedures.

SAFE PLACE TO LEARN ACT

Charter School shall comply with all applicable requirements of the Safe Place to Learn Act. Education Code section 234 *et seq.* and related District policies and procedures.

SUICIDE PREVENTION

As a District Affiliated Charter School, Charter School shall comply with all applicable District policies and procedures related to suicide prevention and the requirements of AB 2246 (2016), codified in Education Code section 215.

CUSTODIAN(S) OF RECORDS

The Executive Director will serve as the Custodian of Records for LbD.

The Executive Director will serve as the Custodian of Records and the Director of Operations will serve as a secondary Custodian of Records.

STUDENT HEALTH AND WELLNESS

Pursuant to the Healthy, Hunger-Free Kids Act of 2010, LbD will offer the National School Lunch Program, and provides a nutritious breakfast, hot lunch and snack program via a third-party vendor. LbD will provide Wellness Education for all students, including P.E. for 200 minutes for every 10 school days. The importance of a healthy mind and body is emphasized at the LbD. Through the support of our Wellness Coordinator, our goal is for all students to improve their motor skills, understand good sportsmanship, and gain self-confidence and body awareness as they continue to grow and develop over time. Gardening also will be an important part of our curriculum, combining concepts in wellness, science, math, arts, history, writing and more into enriching experiences for our urban students. LbD's Wellness Coordinator will work with teachers to integrate gardening with other subjects.

AT LbD we believe in teaching students healthy habits. We partner with Schools in Action to provide healthy, balanced meals and snacks. Our students are provided meals with whole grains, quality protein, high vegetable content, and fresh fruit. Sodium, fat, and sugar are limited in student meals. There are no artificial colors, flavors, or sweeteners, high fructose corn syrup, artificial trans fats, or hydrogenated oils in these kid-friendly meals. We have a lunch and snack policy for students bringing their own food, and share our rationale with families at our parent orientation. We also provide them with suggestions and tips to help with meal planning. The Charter School shall provide each needy student, as defined in Education Code Section 49552, with one nutritionally adequate free or reduced-price meal, as defined in Education Code Section 49553(a), during each school day. Food and beverages served at the Charter School will meet the nutrition recommendations of the U.S. Dietary Guidelines for Americans.

Physical Education is an important component of our instructional program. We believe it is important for students to be active and to build healthy habits from a young age. Scholars participate in 200 minutes of PE in every ten (10) days. This program not only involves physical activity, but health instruction to teach students how to keep their hearts and minds healthy. The importance of a healthy mind and body is emphasized at the LbD. Through the support of our Wellness Coordinator, our goal is for all students to improve their motor skills, understand good sportsmanship, and gain self-confidence and body awareness as they continue to grow and develop over time. Gardening also will be an important part of our curriculum, combining concepts in wellness, science, math, arts, history, writing and more into enriching experiences for our urban students. LbD's Wellness Coordinator will work with teachers to integrate gardening with other subjects.

School Comprehensive Safety Plan

The Charter School shall adopt a School Comprehensive Safety Plan, to be reviewed and updated by March 1 of every year, which shall include identifying appropriate strategies and programs that will provide or maintain a high level of school safety and address the Charter School's procedures for complying with applicable laws related to school safety, including the development of all of the following pursuant to Education Code Section 32282(a)(2)(A)-(H):

- child abuse reporting procedures
- routine and emergency disaster procedures
- policies for students who committed an act under Section 48915 and other Charter School-designated serious acts leading to suspension, expulsion, or mandatory expulsion recommendations
- procedures to notify teachers of dangerous students pursuant to Education Code Section 49079
- a discrimination and harassment policy consistent with Education Code Section 200
- provisions of any schoolwide dress code that prohibits students from wearing “gang-related apparel,” if applicable
- procedures for safe ingress and egress of pupils, parents, and employees to and from the Charter School
- a safe and orderly environment conducive to learning
- the rules and procedures on Charter School discipline
- procedures for conducting tactical responses to criminal incidents.

ELEMENT 7 – MEANS TO ACHIEVE RACIAL AND ETHNIC, SPECIAL EDUCATION, AND ENGLISH LEARNERS, INCLUDING REDESIGNATED FLUENT ENGLISH PROFICIENT PUPILS BALANCE

“The means by which the school will achieve a balance of racial and ethnic pupils, special education pupils, and English learner pupils, including redesignated fluent English proficient pupils, as defined by the evaluation rubrics in Section 52064.5, that is reflective of the general population residing within the territorial jurisdiction of the school district to which the charter petition is submitted.” (Ed. Code § 47605(c)(5)(G).)

COURT-ORDERED INTEGRATION

Charter School shall comply with all requirements of the Crawford v. Board of Education, City of Los Angeles court order and the LAUSD Integration Policy adopted and maintained pursuant to the Crawford court order by the District’s Student Integration Services (collectively the “Court-ordered Integration Program”). The Court-ordered Integration Program applies to all schools within or chartered through LAUSD.

Charter School shall take all reasonable steps to attract and maintain a racially integrated student body in a manner consistent with the Court-ordered Integration Program, applicable law, and District policy. Any provision of Integration Program resources to Charter School (e.g., Magnet, Permits with Transportation, and/or Transportation resources) is subject to change, in whole or in part, for budgetary and/or other reasons, at the sole discretion of the District.

COURT-ORDERED INTEGRATION

Recruitment Method

LbD makes every effort to recruit students of various racial and ethnic groups so as to achieve a balance reflective of the general population residing within the territorial jurisdiction of LAUSD.

We have identified the following local organizations in Hyde Park for targeted outreach efforts:
Marcus Garvey Pre-School

- Hyde Park Children's Center
- From the Heart Preschool & Enrichment Center Academy for Early Learning Inc.
- Viewpark Brighter Future
- Hidden Gems Pre School and Enrichment Center Ivy League Christian Preschool
- Buckner Educational Christian
- Golden Day Schools
- Definitely Learning Infant Center and PreSchool Milestones Preschool
- Cii-Chesterfield Head Start-State Preschool Child Care A Bright Beginning Preschool
- Flores Family Child Care Music Garden Child Care Candy Lane Child Care Center
- Sleepytime 24 Hour Child Care Margie's Day Care
- Children Youth and Family Youth Justice Coalition Urban City Youth

- West Angeles Youth Center Alvin Leonard Youth & Family Youth N Motion
- People Who Care Youth Ctr Eggelston Family Service Community Build Inc.
- 50th Street Girl & Boy Scouts
- House of God Apostolic Church Inc. Church of Nazarene
- Lincoln Memorial Congregation Church Ebenezer Inglesia Adventista del Septimo Saint Cecilia Catholic Church
- Apostolic Faith Church Crusaders Christian Community
- The Church of Jesus Christ of Latter-day Saints Blessed Family Covenant Church
- St. John Chrysostom Church Blessed Family Covenant Church Shabach Four Square Church Robbins Memorial Church of God Inglewood Community Church

Recruitment efforts will include, but are not necessarily limited to:

- An enrollment process that is scheduled to include a timeline that allows for a broad-based recruiting process, including several months of outreach activities, open houses and informational meetings (August – March); an application period with a clearly published deadline; lottery (as necessary); and enrollment period.
- The development of promotional and informational material (i.e. a school brochure, flyers, a website, and advertisements for local media) that is easily transmittable to all of the various racial and ethnic groups represented in the District.
The appropriate development of promotional and informational materials in languages other than English, including Spanish, to appeal to limited English proficient populations.
- The distribution of promotional and informational materials to a broad variety of community groups, day care/preschools (including Head Start), agencies, neighborhood youth organizations, social service providers, churches, grocery stores, public libraries, and legislators that serve the various racial, ethnic, and interest groups represented in the district.

Hosted Community Open Houses

Learning by Design Charter School holds Open Houses and tours that are open to the general public and will equip parents to make informed decisions about enrolling their children at the school. Interested families will be invited to provide information including names, addresses, telephone numbers and email addresses. Translation services will be provided on as needed basis.

Electronic Media

LbD will post on its website recruitment materials as well as online registration materials. The location, date and time of the open forums and presentations will be posted on the school's website at (www.araratcharterschool.com) In addition, posted on the website will be information about the school's instructional model as well as contact information for parents seeking more information.

LbD realizes that students and their families are the best ambassadors of the program. As the school grows and develops, LbD families will be asked to tell their friends, neighbors, and community about the new school. Local events, local media, fliers and more will all help to spread

the word; school staff will meet with leaders of local preschools and day care centers to inform them about the new school.

LbD will maintain an accurate accounting of the ethnic and racial balance of students enrolled in the school. LbD will also document the efforts made to achieve racial and ethnic balance in accordance with the charter petition and standards of charter legislation.

ELEMENT 8 – ADMISSION POLICIES AND PROCEDURES

“Admission policies and procedures, consistent with subdivision (e).” (Ed. Code § 47605(c)(5)(H).)

GENERAL PROVISIONS

Charter School shall admit all students who wish to attend the school. (Ed. Code § 47605(e)(2)(A).) As an existing District school that has converted to become a District Affiliated Charter School, Charter School’s first priority is to admit students who reside in the former attendance area (boundary) of the school. (See Ed. Code § 47605(e)(1).) If the number of students who wish to attend Charter School exceeds its operational capacity, as determined annually by the District, Charter School shall conduct a public random drawing/lottery. (Ed. Code § 47605(e)(2)(B).) Charter School’s existing students (regardless of residence or any other factor) shall be exempt from the lottery. Prospective students who reside within the former attendance area (boundaries) of Charter School (“resident students”) shall have first priority admission preference at all times and are thus deemed exempt from the lottery as well. (See Ed. Code § 47605(e).)

If, at any time during the school year, the total enrollment of Charter School approaches its operational capacity and Charter School appears potentially unable to enroll new students who reside within the former attendance area (boundary) of Charter School, Charter School shall immediately consult and coordinate with its Region administration as well as the District’s School Management Services and Student Integration Services, to manage its enrollment so that Charter School remains in compliance with all applicable laws and legal obligations (e.g., Crawford v. LAUSD) and that, to the maximum extent possible, Charter School is and remains able to enroll, at all times throughout the year, any and all students who reside within Charter School’s former attendance boundary who wish to attend.

If Charter School determines, in accordance with applicable law and District policies and procedures, that any student/parent/guardian used fraudulent address information to establish resident status within Charter School’s former attendance boundary to gain enrollment prior to the school’s conversion to a District Affiliated Charter School, or to gain enrollment through an admission preference in Charter School’s lottery and enrollment process, the student may be withdrawn and referred back to their school of residence in accordance with District policy and applicable law. If, at that time or any time subsequent, the student seeks re-enrollment in Charter School, Charter School shall make its admissions determination in compliance with applicable law and the terms of this Charter.

Student Recruitment

LbD will make every effort to encourage and recruit students of various racial and ethnic groups, socioeconomically disadvantaged students, students with disabilities, students with a history of low academic performance, as well as girls who traditionally have not been drawn to the

technology field. LbD will maintain an outreach program to inform prospective students about the opportunities at LbD and will continuously monitor the success of specific efforts and the broader program to ensure that “hard to reach” students are included.

As detailed in Element 7, LbD’s outreach plan includes, but is not limited to, the following elements or strategies which focus on achieving and maintaining a racial, ethnic balance among students that is reflective of the general population of the District, with a focus on targeted recruitment of students who are academically low achieving and SpEd students who may benefit from our alternative, personalized model, as well as socio-economically disadvantaged residents (the majority of residents in our target neighborhood):

Advertisements about LbD informational meetings and Open Houses will be placed in local English and Spanish language newspapers in the late summer. Informational meetings for interested families will be held August - March.

Application Procedures

Resident Boundary Students

Resident attendance boundary students go directly to the school main office to enroll.

Prospective students who reside within the former attendance area (boundaries¹) of Charter School (“resident students”) shall have **first** admission preference and thus are deemed exempt from the lottery.

Non-Resident Boundary Students

The Charter School will follow LAUSD’s Choices process and deadlines for non-resident applicants. If there is more interest than the number of spaces available, a random public lottery will be conducted for non-resident boundary students as described below. Charter School’s non-resident lottery applications will be made available each year through the On-Time LAUSD Choices Process (Choices Brochure & Application and GoTo.LAUSD.Net). The six week On-Time application window spans the first week in October through the first week in November. Multiple birth applicants (e.g., twins, triplets) must reside at the same address and apply to the same program in the same year in order to be placed consecutively in the selection process.

Lottery Preferences and Procedures

In conducting its admissions lottery, Charter School shall provide the following admission preferences, in the stated order of priority:

¹ For all District Affiliated Charter Schools, which are conversion charter schools, the term “former attendance area (South Los Angeles)” includes those sending areas designated under the District’s Permits with Transportation (PWT) and Capacity Adjustment Program (CAP) programs.

- **LAUSD Students**

- Siblings

Prospective students who (a) are siblings of students enrolled in grades TK-4 at Charter School at the time of the lottery and (b) reside within LAUSD boundaries, but not within the former attendance area (boundaries) of Charter School, shall have **second** admission preference.

- Other LAUSD Students

All other prospective students who reside within LAUSD boundaries, but not within the former attendance area (boundaries) of Charter School, shall have **third** admission preference.

- **California Students**

- Siblings

Prospective students who (a) are siblings of students enrolled in grades TK-4 at Charter School at the time of the lottery and (b) reside in the State of California but not within LAUSD boundaries, shall have **fourth** admissions preference.

- Other California Students

Prospective students who reside in the State of California, but not within LAUSD boundaries shall have fifth admissions preference.

Students who participate in the lottery but are not selected for admission during the lottery shall be placed on a waitlist in the same priority order as above. As seats become available, Charter School shall fill the seats from the waitlist. This waitlist shall be effective until the end of the programmatic year to which it pertains.

During the month of February, after receiving the list of interested applicants from the Choices Program, the Charter School shall conduct its public random drawing (lottery) for non-resident boundary students only, if applicable. Information regarding the date and procedures of the lottery shall be posted on Charter School's website (i.e., at least two weeks prior to the lottery) and made readily available in the main office.

Charter School shall hold its lottery in the auditorium or equivalent alternative space on campus. Affiliated Charters, as aligned to District guidance, may opt to include a virtual option for families at the same time and/or in addition to the in-person lottery. Any interested party or member of the public may attend, but attendance is not required to participate in the lottery. At the designated place, date, and time of the lottery, (see page 147).

Parent/guardians of applicants being offered admission through the lottery will be notified in writing by email or mail, depending on method of application submission, in accordance with the Choices notification timelines and will accept the offered seat in accordance with the Choices timelines. Parent/guardians of student applicants who are placed on the waitlist resulting from the lottery may call or visit the school to find out their child's priority number on the waitlist. Parent/guardians of student applicants on the waitlist who are offered admission at any time subsequent to the lottery will receive notification by telephone call and will have to contact the parent/guardian a minimum of three times to accept the offered seat.

Non-resident boundary students who apply for admission after the On-Time application window will be added to the bottom of the waitlist in the order in which their applications are received. Choices Late Applications are processed on a first come, first-served basis beginning February 1st through norm day of the following school year. The school is responsible for contacting waitlisted and late applicants.

SCHOOLS FOR ADVANCED STUDIES (SAS) PROGRAM

If Charter School offers an SAS Program, it shall not consider any student's eligibility or interest in the program in determining admission to Charter School. Once a student has been admitted/enrolled in Charter School, Charter School may accept and process an application from the student per SAS Program participation guidelines.

MAGNET PROGRAM

If an affiliated charter school is a full magnet or has a District-approved Magnet Center, selection to the Magnet Program (school or center) shall be determined in accordance with the rules and procedures established by District's Student Integration Services.

Students enrolled in the magnet program may take part in all programs and activities available to students at the Affiliated Charter school where they are enrolled.

HOMELESS AND FOSTER YOUTH

Charter School shall adhere to the provisions of the federal McKinney-Vento Homeless Assistance Act and ensure that each child of a homeless individual and each homeless youth has equal access to the same free, appropriate public education as provided to other children and youths. Charter School shall provide specific information, in its outreach materials, websites, at community meetings, open forums, and Regional Center meetings, that notifies parents/guardians that Charter School is open to enroll and provide services for all students. Charter School shall comply with all applicable federal and state

laws and related District policies and procedures regarding homeless and foster youth, including but not limited to the provisions of AB 379 (2015) and Chapter 5.5 (commencing with Section 48850) of Part 27 of Division 4 of Title 2 of the Education Code, as amended from time to time.

NON-DISCRIMINATION

Charter School shall not require a parent/guardian/student to provide information regarding a student's disability, gender, gender identity, gender expression, nationality, legal or economic status, primary language or English Learner status, immigration status, race or ethnicity, religion, sexual orientation, or any other characteristic that is contained in the definition of hate crimes set forth in Section 422.55 of the Penal Code, including immigration status, or any other information that would violate federal or state law, prior to admission, participation in any admissions or attendance lottery, or pre-enrollment event or process, or as a condition of admission or enrollment. Charter School may request, at the time of, and as part of, conducting its lottery process, the provision of information necessary to apply specific admissions preferences, if any, set forth in this Charter.

Charter School shall not request or require submission of a student's IEP, Section 504 Plan, or any other record or related information prior to admission, participation in any admissions or attendance lottery, or pre-enrollment event or process, or as a condition of admission or enrollment.

Charter School shall adhere to the District's policy consistent with the model policy developed by the California Attorney General addressing the Charter School's response to immigration enforcement, notify parents/guardians of their children's right to a free public education regardless of immigration status or religious beliefs, prohibit the collection of information or documents regarding the immigration status of students or their family members, and fulfill other requirements of Education Code section 234.7.

DOCUMENTATION OF ADMISSIONS AND ENROLLMENT PROCESSES

Charter School shall maintain complete and accurate records of its annual admissions and enrollment processes, including but not limited to documentation (i.e., District application portal) of implementation of lottery and waitlist criteria and procedures in accordance with the terms of the Charter. These records shall be made available to the District upon request.

ADMISSION REQUIREMENTS & PREFERENCES

LbD is an open enrollment, tuition-free public school with no specific requirements for admission (e.g., minimum grade point average, test scores, discipline records, etc.). Enrollment to the school is open to any resident of the State of California.

Admission eligibility will not be determined by the place of residence of a pupil, except as otherwise required by law.

LbD will enroll all pupils who wish to attend to the extent that space allows. CA Ed. Code § 47605(d)(2)(A).

Learning by Design Charter School is fully committed to serving all students who wish to attend, regardless of socio-economic status, race/ethnicity, academic achievement, special education needs or other “risk factors.” If the number of students who wish to attend the school exceeds the openings available, entrance shall be determined by single random public drawing in accordance with Education Code §47605(d)(2) and all federal requirements

STUDENT RECRUITMENT

LbD will make every effort to encourage and recruit students of various racial and ethnic groups, socioeconomically disadvantaged students, students with disabilities, students with a history of low academic performance, as well as girls who traditionally have not been drawn to the technology field. LbD will maintain an outreach program to inform prospective students about the opportunities at LbD and will continuously monitor the success of specific efforts and the broader program to ensure that “hard to reach” students are included.

As detailed in Element 7, LbD’s outreach plan includes, but is not limited to, the following elements or strategies which focus on achieving and maintaining a racial, ethnic balance among students that is reflective of the general population of the District, with a focus on targeted recruitment of students who are academically low achieving and SpEd students who may benefit from our alternative, personalized model, as well as socio-economically disadvantaged residents (the majority of residents in our target neighborhood):

Advertisements about LbD informational meetings and Open Houses will be placed in local English and Spanish language newspapers in the late summer. Informational meetings for interested families will be held August - March.

LOTTERY PREFERENCES AND PROCEDURES

Should the number of pupils who wish to attend LbD exceed space available, a public random lottery will take place to determine the school enrollment in accordance to Education Code section 47605(d)(2)(B) and all federal requirements. Students currently attending the school are exempt from the lottery and their siblings will be given preference from the lottery.

Preferences

In the event at a public random drawing is necessary to determine admission to LbD, the Charter School will utilize admission preferences in order of priority:

1. Siblings of admitted students
2. Children of teachers and staff not to exceed 10% of total enrollment
3. Residents of the District

No other admissions preferences will be given.

Procedures

LbD will use the following procedures for any admission lottery:

- Only applications received prior to the deadline will be included in the public random drawing.
- The lottery will be held on at the LbD facilities.
- All prospective applicants will be notified on the Lottery Application Form of the date and the time of the lottery.
- Applicants will be drawn publicly at random. During the same public random drawing, once enrollment is reached, the remaining names will continue to be drawn and will be placed on a waiting list in the order drawn. If vacancies occur during the school year, the vacancies will be filled according to the waiting list.
- All families will be notified via email and online posting of the results within one week after the lottery date. The notification will indicate whether the child was accepted or waitlisted, and if waitlisted, the number of the seat the child occupies on the waiting list. Within two weeks following the lottery, students who are offered spots are notified via email and are asked by the Office Staff to complete an Enrollment Packet within two weeks to secure their spot. School staff are available to assist families in completing this paperwork if needed. Students who are on the wait list are notified of their status via email and posting on the school website.
- Those who apply after the lottery deadline are added to the end of the lottery waitlist in the order they are received. Openings that occur during the school year are filled according to the wait list order determined during the lottery drawing. When an offer occurs during the school year, families are contacted by the Office Staff in the order of the wait list and are given 48 hours to decide whether or not to verbally accept a space at the school. In the event that no such wait list exists where the space is available, the space will be made available on a first come, first served basis to the next interested family at the appropriate grade level.
- The waitlist for the current school year remains active until the end of the school year and does not “roll over”; applicants must reapply for the lottery annually if the school is unable to offer them admission for the current year.
- All lottery related records will be kept on file.

School staff will be available to assist families in completing this paperwork if needed. Students

who are placed on the wait list will be notified of their status in writing. Upon enrollment, the following is required:

- Parent signature of Parent/Student Handbook agreement form
- Completion of Emergency Medical Information Form
- Proof of minimum age requirements, e.g. birth certificate
- Completion of a student enrollment form
- Proof of Immunizations
- Home Language Survey
- Parent attendance at a school orientation meeting is encouraged but not required for enrollment.

ELEMENT 9 – ANNUAL FINANCIAL AUDITS

“The manner in which annual, independent financial audits shall be conducted, which shall employ generally accepted accounting principles, and the manner in which audit exceptions and deficiencies shall be resolved to the satisfaction of the chartering authority.” (Ed. Code § 47605(c)(5)(l).)

As a District Affiliated Charter School, Charter School will not provide for a separate audit but will be included in the annual audit for LAUSD.

ANNUAL AUDIT PROCEDURES

As required under Ed. Code § 47605 (b)(5)(l), each fiscal year an independent auditor conducts an audit of the financial affairs of LbD to verify the accuracy of the Charter School’s financial statements, attendance and enrollment accounting practices, and internal controls.

Procedures:

- The Board will appoint an Audit Committee by January 1 of each year.
- The Audit Committee may include persons who are not members of the board, but may not include any staff of the corporation.
- In addition, any person with expenditure authorization or recording responsibilities within the organization may not serve on the committee.
- The Audit Committee will be responsible for contracting with an audit firm from the State Controller’s list of approved charter school auditors by March 1 of each year, unless the existing contract is a multi-year contract.
- The Executive Director will work with the auditor and back-office firm to ensure the auditor receives all requested information.
- At the conclusion of the audit, the Principal and the Audit Committee will be responsible for reviewing the results of the annual audit, identify any audit exceptions or deficiencies, and report them to the Board of Directors with recommendations on how to resolve them.
- The Board will review and approve the audit no later than December 15.
- The Board will submit a report to the District describing how the exceptions or deficiencies (if any) have been or will be resolved to the satisfaction of the District along with an anticipated timeline.
- The Principal will provide a final copy of the audit to LAUSD, LACOE and the CDE as required, by the December 15 annual deadline.

ELEMENT 10 – SUSPENSION AND EXPULSION PROCEDURES

“The procedures by which pupils can be suspended or expelled.” (Ed. Code § 47605(c)(5)(J).)

“The procedures by which pupils can be suspended or expelled from the charter school for disciplinary reasons or otherwise involuntarily removed from the charter school for any reason. These procedures, at a minimum, shall include an explanation of how the charter school will comply with federal and state constitutional procedural and substantive due process requirements that is consistent with all of the following:

(i) For suspensions of fewer than 10 days, provide oral or written notice of the charges against the pupil and, if the pupil denies the charges, an explanation of the evidence that supports the charges and an opportunity for the pupil to present the pupil’s side of the story.

(ii) For suspensions of 10 days or more and all other expulsions for disciplinary reasons, both of the following:

(I) Provide timely, written notice of the charges against the pupil and an explanation of the pupil’s basic rights.

(II) Provide a hearing adjudicated by a neutral officer within a reasonable number of days at which the pupil has a fair opportunity to present testimony, evidence, and witnesses and confront and cross-examine adverse witnesses, and at which the pupil has the right to bring legal counsel or an advocate.

(iii) Contain a clear statement that no pupil shall be involuntarily removed by the charter school for any reason unless the parent or guardian of the pupil has been provided written notice of intent to remove the pupil no less than five schooldays before the effective date of the action. The written notice shall be in the native language of the pupil or the pupil’s parent or guardian or, if the pupil is a foster child or youth or a homeless child or youth, the pupil’s educational rights holder, and shall inform the pupil, the pupil’s parent or guardian, or the pupil’s educational rights holder of the right to initiate the procedures specified in clause (ii) before the effective date of the action. If the pupil’s parent, guardian, or educational rights holder initiates the procedures specified in clause (ii), the pupil shall remain enrolled and shall not be removed until the charter school issues a final decision. For purposes of this clause, “involuntarily removed” includes disenrolled, dismissed, transferred, or terminated, but does not include suspensions specified in clauses (i) and (ii).

(iv) A foster child’s educational rights holder, attorney, and county social worker and an Indian child’s tribal social worker and, if applicable, county social worker shall have the same rights a parent or guardian of a child has to receive a suspension notice, expulsion notice, manifestation determination notice, involuntary transfer notice, and other documents and related information.” (Ed. Code § 47605(c)(5)(J).)

GENERAL PROVISIONS

As a District Affiliated Charter School, Charter School shall comply with and implement all District policies and procedures related to student discipline and behavior, suspension, and expulsion.

Charter School shall provide due process for all students, including adequate and timely notice to parents/guardians and students of the grounds for all suspension and expulsion recommendations and decisions and their due process rights regarding suspension and expulsion, including rights of appeal.

Charter School shall ensure that its staff is knowledgeable about and complies with the District's Discipline Foundation Policy and/or current equivalent policy. Charter School shall comply with the terms of the School Discipline Policy and School Climate Bill of Rights resolution adopted by the LAUSD Board of Education on May 6, 2013.

Charter School shall implement alternatives to suspension and expulsion, especially in response to attendance-related concerns, e.g., truancy or excessive tardiness.

Charter School acknowledges that the District's Student Discipline and Expulsion Support Unit provides technical assistance to schools considering recommendations for expulsion, ensures that students recommended for expulsion are afforded a fair and impartial hearing and all other due process rights, and provides for post-expulsion placement/rehabilitation plans and services as required by law.

STUDENTS WITH DISABILITIES

Charter School shall implement District policies and procedures ensuring compliance with federal and state laws and regulations regarding the discipline of students with disabilities. If a student is recommended for expulsion and the student receives or is eligible for special education, pending the completion of the expulsion process, Charter School shall identify and provide special education programs and services at an appropriate interim alternative educational placement, to be determined in coordination with the LAUSD Division of Special Education.

In the case of a student who has an Individualized Education Program ("IEP"), or a student who has a Section 504 Plan, Charter School shall ensure that it follows correct disciplinary procedures to comply with the mandates of state and federal laws, including IDEA and Section 504 of the Rehabilitation Plan of 1973, and District policies and procedures. An IEP team will meet to conduct a manifestation determination and to discuss, if appropriate, alternative placement utilizing the District's Special Education Policies and Procedures Manual. Prior to recommending expulsion for a student with a Section 504 Plan, Charter School's administrator will convene a Section 504 Link Determination meeting to ask the following two questions:

- A. Was the misconduct caused by, or directly and substantially related to the student's disability?

- B. Was the misconduct a direct result of the Charter School's failure to implement Section 504?

NOTIFICATION OF STUDENT'S DISTRICT OF RESIDENCE

Upon the expulsion of any student, if the student is a resident of a school district other than LAUSD, Charter School must notify the Superintendent of the student's district of residence within 30 days of the expulsion. Additionally, upon request of the receiving school district, Charter School shall forward student records no later than 10 school days from the date of the request as stated in Education Code sections 49068 (a) and (b). Charter School shall comply with the requirements of California Code of Regulations, title 5, section 3024, regarding the transfer of student special education records.

OUTCOME DATA

Charter School shall gather and maintain all data related to placement, tracking, and monitoring of student suspensions, expulsions, and reinstatements, in the District's Student Information System and shall make such outcome data readily available to the Charter Schools Division upon request.

READMISSION

Charter School shall comply with all District policies and procedures related to requests for readmission by students expelled from Charter School.

GUN-FREE SCHOOL ZONE ACT

Charter School shall comply with the Gun-Free School Zone Act and other applicable state and federal law.

DISCIPLINE POLICY

LbD will adhere to a positive behavior philosophy consistent with the District's discipline policy, with modeling and reinforcement of positive behavior and lifestyle choices. While based on LbD's successful discipline policies for students at the high school level, in order to ensure stakeholder "buy-in," the school-wide discipline policies at LbD will be developed with considerable input from parents, teachers and students regarding their opinions on how to create a safe and healthy school environment, modifications will be discussed with LAUSD's CSD staff to determine whether a material revision to this charter petition may be required. This policy will include, but is not limited to the students' rights and responsibilities while on school grounds as well as the school's suspension and expulsion policies. LbD will focus on a positive school climate consistent with the District's School Climate Bill of Rights resolution. We use alternatives to suspensions to support students when behavioral missteps occur, including advising and counseling students,

detention during and after school, and the use of alternative educational environments. The discipline policy is not discriminatory, arbitrary or capricious, and follows the general principles of due process.

Upon enrollment and at the beginning of each school year, LbD families will each receive a copy of the Student and Parent Information Packet sent to each family at the beginning of the school year. School staff also will review the discipline policy with new students and parents at the commencement of school each year.

Teachers will be trained during professional development meetings to use effective classroom management strategies to maximize instruction and minimize student misbehavior and how to understand, distinguish, and address different types of behaviors. Management strategies focus on proactive, rather than reactive strategies, and will focus on empowering students to evaluate their own behaviors and make responsible decisions. The discipline system is designed to create a culture of learning and the Code of Conduct is created to be preventative. Teachers will use a range of lower-level consequences (non-verbal cues, conferencing with student, loss of privileges, etc.) before resorting to more serious consequences. However, we will have clear policies governing suspension and expulsion.

Students who do not adhere to stated expectations for behavior and who violate the school's rules may expect consequences for their behavior. Consequences may include, but are not limited to:

- Warning, verbal and/or written
- Individual conference with the teacher
- Loss of privileges
- Individual behavior contract
- Referral to the Principal or other school staff member
- Notices to parents by telephone or letter
- Parent conference, at school or during a home visit
- Detention during or after school
- Suspension
- Expulsion

Staff shall enforce disciplinary rules and procedures fairly and consistently among all students.

Corporal punishment shall not be used as a disciplinary measure against any student. Corporal punishment includes the willful infliction of or willfully causing the infliction of physical pain on a student. For purposes of the policy, corporal punishment does not include an employee's use of force that is reasonable and necessary to protect the employee, students, staff or other persons or to prevent damage to school property.

Suspended students shall be excluded from all school and school-related activities unless otherwise agreed by the Principal during the period of suspension.

Any student who engages in repeated violations of the Charter School's behavioral expectations,

or a single severe infraction, will be requested to attend a meeting with the Principal or his/her designee and the student's parents. The Principal (or his/her designee) will prepare a specific, written agreement outlining future student conduct expectations, timelines, and consequences for failure to meet the expectations which may include, but are not limited to, suspension or expulsion.

Certain offenses will result in in-school suspension while other more serious violations will result in out- of-school suspensions. Only the most egregious violations will be considered grounds for expulsion.

Suspended students will also be responsible for making up all missed work within specified timetable.

In creating the LbD discipline policy, the Charter School has reviewed Education Code Section 48900 *et seq.* which describes the non-charter schools' list of offenses and procedures to establish its list of offenses and procedures for suspensions and expulsions. The language that follows closely mirrors the language of Education Code Section 48900 *et seq.* The Charter School is committed to annual review of policies and procedures surrounding suspensions and expulsions and, as necessary, modification of the lists of offenses for which students are subject to suspension or expulsion; modifications will be discussed with LAUSD's CSD staff to determine whether a material revision to this charter petition may be required.

CAUSE FOR SUSPENSION AND EXPULSION

A student may be suspended or expelled for –conduct related to school activity or school attendance occurring anytime including but not limited to any of the following: a) while on school grounds; b) while going to or coming from school; c) during the lunch period, whether on or off the school campus; d) during, going to, or coming from a school-sponsored activity.

Mandatory Expulsion/Suspension: It is a federal mandate that a school expel, for a period of not less than one year any student who is determined to have brought a firearm to school.

In accordance with California Education Code § 48915, the following reasons shall constitute mandatory grounds for immediate suspension and recommended expulsion:

- possession of a firearm
- brandishing of a knife
- possession of a controlled substance
- sexual assault or battery, and
- possession of an explosive
- sexual assault/battery: Any student who commits or attempts to commit a sexual assault or who commits a sexual battery must be recommended for expulsion, regardless of grade level. In some instances, sexual harassment, sexual battery or sexual assault may also constitute child abuse. Child abuse reporting procedures, sexual harassment policies and procedures, and disciplinary policies and procedures must be effected in a coordinated manner. If child abuse is

suspected or alleged, a suspected child abuse must be reported immediately by first calling the local law enforcement agency that has the jurisdiction.

Discretionary Expulsion/Suspension

In addition to the foregoing mandatory suspension/expulsion infractions, students may be immediately suspended and recommended for expulsion upon a determination that the student has committed one of the acts listed below:

- Causing, attempting to cause or threatening to cause serious physical injury to another person, except in self-defense
- Hate violence (defined by Section 48900.3)
- Unlawfully possessed, used, or was under the influence of any controlled substance as defined in Health and Safety Code 11053-11058, alcoholic beverage, or intoxicant of any kind.
- Unlawfully possessed or unlawfully offered, arranged, or negotiated to sell any drug paraphernalia, as defined in Health and Safety Code 11014.5.
- Using tobacco or any products containing tobacco or nicotine products, including but not limited to cigars, cigarettes, miniature cigars, clove cigarettes, smokeless tobacco, snuff, chew packets, et al.
- Harassed, threatened or intimidated a student who is a complaining witness or witness in a school disciplinary proceeding for the purpose of preventing that student from being a witness and/or retaliating against that student for being a witness.
- Caused or attempted to cause damage to school property or private property.
- Stole or attempted to steal school property or private property.
- Committed an obscene act or engaged in habitual profanity or vulgarity.
- Knowingly received stolen school property or private property.
- Engaged in, or attempted to engage in, hazing as defined in Education Code Section 32050.
- Aided or abetted the infliction or attempted infliction of physical injury to another person.
- Engaged in sexual harassment as defined in Education Code Section 48900.2.
- Engaged in harassment, threats, or intimidation directed against school district personnel or pupils as defined in Education Code Section 48900.4.
- Made terrorist threats against school officials, school property or both as defined in Section 48900.7.
- Engaged in an act of bullying, including, but not limited to, bullying committed by means of an electronic act, as defined in subdivisions (f) and (g) of Section 32261, directed specifically toward a pupil or school personnel.
- Possession of any knife or other dangerous object of no reasonable use to the pupil
- Robbery or extortion
- Assault or batter upon any school employee
- Sold, furnished or offered a substitute substance represented as a controlled substance

- Possession of an imitation firearm
- Unlawfully offered, arranged to sell, negotiated to sell or sold the prescription drug Soma.

PROCESS FOR SUSPENSION AND/OR EXPULSION

To protect student rights, we have established fair and thorough procedures to ensure a comprehensive and consistent process for suspension and expulsion including clear guidelines for due process. Only the Executive Director and/or Education Director is authorized to suspend students.

In-School Suspension

In-school suspensions are given as an alternative to out of school suspensions and are held in the Principal's office. During in-school suspensions, teachers provide the students with assignments to complete by the end of the school day. If the student has questions about the assignments, the teachers provide support. During the day of the suspension, the students' teachers address behaviors that may have contributed to the students' in-school suspension. In addition to completing assigned work, the student is required to complete a reflection addressing why the behavior occurred and what can be done in the future to ensure that the offense is not repeated.

Family Conference

Suspension shall be preceded by a conference conducted by the Principal with the student and his/her parent or guardian. The conference may be omitted if the Principal determines that an emergency situation exists. An "emergency situation" involves a clear and present danger to the lives, safety or health of students or school personnel. If the student is suspended without conference, the parent/guardian shall be notified of the suspension and a conference will be requested by LbD as soon as possible.

Notice to Parents/Guardians

At the time of suspension, the Principal shall make a reasonable effort to contact the parent/guardian by telephone or in person to be followed up with a written notification. This notice will state the specific offense committed by the student. In addition, the notice will contain the date and time the student may return to school. If the Principal wishes to ask the parent/guardian to confer regarding matters pertinent to the suspension, the notice shall note that the parents are required to respond to this request without delay.

Length of Suspension

The length of the out of school and in school suspensions will be determined by the Principal based on the severity of the offense(s), as evidenced by witness statements, physical evidence, and other relevant factors. The length of suspension for students may not exceed a period of 5 consecutive days unless a recommendation has been made by the Principal and agreed to by the student's parent/guardian. The total number of days for which a pupil may be suspended from Charter School shall not exceed 20 school days in any school year, or more than 10 days for a

student with an IEP, unless a pupil enrolls in or is transferred to another regular school, an opportunity school or class, in which case the total number of schooldays for which the pupil may be suspended shall not exceed 30 days in any school year.

The teacher of the suspended student will collect and provide the student with classroom material and current assignments to be completed at home during the length of the suspension. Written notification listing all required assignments will be sent to the student's parents and all needed materials will be left in the front office. Students will take all tests missed upon their return to school.

Recommendations for Expulsion

Students will be recommended for expulsion if the Principal finds that one of the reasons for expulsion has occurred and at least one of the following findings is substantiated:

- Other means of correction are not feasible or have repeatedly failed to bring about proper conduct.
- Due to the nature of the violation, the presence of the student causes a continuing danger to the physical safety of the student or others.

Expulsion Hearing

Students recommended for expulsion will be entitled to a hearing, to determine whether or not the student should be expelled. The hearing will be held within 30 days from the date of the recommended expulsion.

The Principal will prepare a written notice of the hearing, which will be emailed and mailed, to the student and the student's parents at least 10 calendar days before the date of the hearing. This notice will include:

- The date, time and place of the hearing
- A statement of the specific facts, charge(s) and offense(s) upon which the proposed expulsion is based
- A copy of the disciplinary rules that relate to the alleged violation
- The opportunity for the student or the student's parents to appear in person at the hearing
- The opportunity for the student to be represented by counsel or other advocate.
- Right of postponement
- Presentation and cross examination of witnessed and other evidence
- Information regarding reasonable accommodations and language support

Upon a recommendation of expulsion by the Principal or Principal's designee which would be the Executive Director, the pupil and the pupil's guardian or representative will be invited to a conference to determine if the suspension for the pupil should be extended pending an expulsion hearing. This determination will be made by the Principal or designee upon either of the following: 1) the pupil's presence will be disruptive to the education process; or 2) the pupil poses a threat or danger to others. Upon either determination, the pupil's suspension will be extended pending

the results of an expulsion hearing. The student will receive meaningful access to education during suspension, and will have the opportunity to complete instructional activities missed due to his or her suspension. Suspended students will be able to communicate with designated classroom teacher(s) or administrator(s) for any questions and for evaluation of work, and shall receive homework assignments and modified instruction through classroom teacher(s) during their suspension and be provided the opportunity to make up any missed exams.

The hearing will be presided over by an Administrative Panel appointed by the Board of Directors. The Administrative Panel will consist of three members who are certificated and neither a teacher of the pupil or a Board member of the Charter School's governing board in order to ensure impartiality.

The decision of the Administrative Panel shall be in the form of written findings of fact within ten days and a determination regarding the expulsion. If the Administrative Panel decides not to expel, the pupil shall immediately be returned to his/her educational program. Following a decision of the Administrative Panel to expel, the Principal shall send written notice of the decision to expel, including the adopted findings of fact, to the student or parent/guardian. A notice shall also include the following:

- Notice of the specific offense(s) committed by the student
- Notice of the student's or parent/guardian's obligation to inform any new district in which the student seeks to enroll of the student's status with the School
- Terms of expulsion
- Rehabilitation Plan
- Criteria for Rehabilitation plan
- Eligibility date for reinstatement
- Notice of appeal rights/procedures.

Special Procedures for Expulsion Hearings Involving Sexual Assault or Battery Offenses

The complaining witness in any sexual assault or battery case must be provided with a copy of the applicable disciplinary rules and advised of his/her right to (a) receive five days' notice of his/her scheduled testimony, (b) have up to two (2) adult support persons of his/her choosing present in the hearing at the time he/she testifies, which may include a parent, guardian, or legal counsel, and (c) elect to have the hearing closed while testifying. The Charter School must also provide the victim a room separate from the hearing room for the complaining witness' use prior to and during breaks in testimony. At the discretion of the Administrative Panel conducting the hearing, the complaining witness shall be allowed periods of relief from examination and cross-examination during which he or she may leave the hearing room. The Administrative Panel conducting the expulsion hearing may also arrange the seating within the hearing room to facilitate a less intimidating environment for the complaining witness. The Administrative Panel conducting the expulsion hearing may also limit time for taking the testimony of the complaining witness to the hours he/she is normally in school, if there is no good cause to take the testimony during other hours.

Prior to a complaining witness testifying, the support persons must be admonished that the hearing is confidential. Nothing in the law precludes the person presiding over the hearing from removing a support person whom the presiding person finds is disrupting the hearing. The Administrative Panel conducting the hearing may permit any one of the support persons for the complaining witness to accompany him or her to the witness stand. If one or both of the support persons is also a witness, the Charter School must present evidence that the witness' presence is both desired by the witness and will be helpful to the Charter School. The person presiding over the hearing shall permit the witness to stay unless it is established that there is a substantial risk that the testimony of the complaining witness would be influenced by the support person, in which case the presiding official shall admonish the support person or persons not to prompt, sway, or influence the witness in any way. Nothing shall preclude the Administrative Panel conducting the hearing from exercising its discretion to remove a person from the hearing whom he or she believes is prompting, swaying, or influencing the witness.

The testimony of the support person shall be presented before the testimony of the complaining witness and the complaining witness shall be excluded from the courtroom during that testimony. Evidence of specific instances of a complaining witness' prior sexual conduct is presumed inadmissible and shall not be heard absent a determination during the hearing that extraordinary circumstances exist requiring the evidence be heard. Before such a determination regarding extraordinary circumstance can be made, the witness shall be provided notice and an opportunity to present opposition to the introduction of the evidence. In the hearing on the admissibility of the evidence, the complaining witness shall be entitled to be represented by a parent, legal counsel, or other support person.

APPEAL OF SUSPENSION OR EXPULSION

Parents will be notified by the Principal through a telephone call and in writing at the time of enactment of the suspension or expulsion and can appeal a student's suspension or expulsion.

The suspension of a student will be at the discretion of the Principal. A suspension appeal may be made in writing to the Board Chair within ten days of the suspension. Immediately following the request to appeal the suspension, the Board Chair will meet with the parent/guardian to hear their evidence as to why the student should not be suspended. Following the meeting, the Board Chair will determine whether to uphold or deny the request to suspend. The parent/guardian and Principal will be notified within 24 hours of the final decision. Following due consideration of the facts and safety of students, a decision by the Board Chair regarding student suspension will be considered final. If the Board Chair reverses a decision to suspend, the student will be returned to class and record of his/her suspension will be deleted.

An expulsion may be appealed to the Board of Directors within ten working days and must be submitted in writing to the Principal. The student will be considered suspended until a meeting is convened to consider the appeal (within 30 working days). The appeal will be considered by the Board of Directors and the family will have a meaningful opportunity in the appeal process,

including by making written and verbal testimony, to be heard in the appeal process. For a student who is not reinstated upon appeal, the family will be sent written notification by the Principal, within 24 hours of such decision, including specific reasons why reinstatement was denied, and will be given a new eligibility review date.

The appeal decision of the Board of Directors will be impartial and final. LbD will create and maintain records of the expulsion proceedings and make audio records and written findings available to students/parents. LbD will provide support and will help facilitate family's with enrolling in the educational options (i.e. access to education, including preparing a list of educational options for the student) to expelled students and their families to facilitate continued access to education.

Reinstatement and Readmission

The readmission process will include a meeting with the Principal to determine whether the pupil has met the conditions of the rehabilitation plan and/or whether the pupil continues to pose a danger to campus safety. The Principal shall make a recommendation to the Board of Directors for readmission unless there is a finding that the pupil has not met the conditions of the rehabilitation plan and/or continues to pose a danger to campus safety. The Board will make the final determination. These procedures shall be made available to the pupil and the pupil's parent or guardian at the time the expulsion order is issued. LbD is responsible for reinstating the student upon the conclusion of the expulsion period.

Rehabilitation Plans

Criteria for the rehabilitation plan will include the following: enrollment in another school; upholding school rules and behavioral expectations; acceptable attendance; completion of school work; and community service hours. LbD shall mail written notification to parent within 30 days prior to the end of the expulsion term. This notification will request parent to submit written documentation to the school showing that the student has met the conditions of the rehabilitation plan. The Board of Directors shall review the reinstatement documentation and vote to reinstate or not. If the Board votes to reinstate the student, LbD shall remove record of the student's expulsion from their student records. If the student does not meet the requirements of their rehabilitation plan as determined by the Board, the Board will revisit at a later date not to exceed one (1) year.

ELEMENT 11 – EMPLOYEE RETIREMENT SYSTEMS

“The manner by which staff members of the charter schools will be covered by the State Teachers’ Retirement System, the Public Employees’ Retirement System, or federal social security.” (Ed. Code § 47605(c)(5)(K).)

District employees working at or assigned to Charter School will continue to receive compensation and benefits for their services according to the provisions of the collective bargaining agreements of their respective bargaining units with LAUSD, inclusive of but not limited to provisions related to salaries, unemployment benefits, retirement systems and benefits (including CalSTRS and CalPERS), health insurance, life insurance, and all other assigned compensation and benefits.

As LAUSD employees, Charter School’s administrators, faculty and staff will receive all appropriate benefits in compliance with state and federal laws regarding employee benefits.

LbD will not participate or offer coverage in CalSTRS or CalPERS.

The Charter School retains the option to elect the California State Teachers’ Retirement System (CalSTRS) coverage at a future date. Contributions will be made at the rate established by the Teacher’s Retirement Board. The Charter School will complete all required documentation (including an amendment to the charter to include the election of CalSTRS) prior to the effective date of coverage and before reporting contributions to CalSTRS.

All classified and certificated employees will be covered by Medicare and Social Security and the school will make the required contributions. Eligible employees may elect to participate in a 403b retirement contribution plan.

The Executive Director will be responsible for ensuring that appropriate arrangements for benefits (including employer contributions to mandated programs such as Social Security) have been made. The Board of Directors retains the option to consider any other public or private retirement plans and to coordinate such participation with existing programs, as it deems appropriate.

ELEMENT 12 – PUBLIC SCHOOL ATTENDANCE ALTERNATIVES

“The public school attendance alternatives for pupils residing within the school district who choose not to attend charter schools.” (Ed. Code § 47605(c)(5)(L).)

Students of Charter School do not have or gain any right to admission in a particular school of any school district, or program of any school district, as a consequence of applying to or enrolling in a Charter School, except to the extent that such a right is extended by the school district.

A student residing within the territorial boundaries of the District who chooses not to attend a Charter School may contact School Management Services and Demographics to seek assistance in enrolling in a District school in accordance with District policies and procedures. Alternatively, the student may pursue an inter-district transfer, if available, in accordance with admission, enrollment, and transfer policies and procedures of the District, as they may change from time to time, or seek enrollment at another charter public school pursuant to applicable law and the terms of the school’s charter.

A student currently enrolled at Charter School who resides outside the territorial boundaries of the District and who chooses not to continue attending the Charter School may attend a public school within the student’s school district of residence in accordance with applicable law and that school district’s policies and procedures or seek enrollment at another charter public school pursuant to applicable law and the terms of that school’s charter.

LbD is a school of choice that is open to anyone in the State of California. All parents and students will be informed of their public school attendance alternatives during the enrollment process.

ELEMENT 13 – RIGHTS OF DISTRICT EMPLOYEES

“The rights of an employee of the school district upon leaving the employment of the school district to work in a charter school, and of any rights of return to the school district after employment at a charter school.” (Ed. Code § 47605(c)(5)(M).)

As a District Affiliated Charter School, all administrators, faculty, and staff of Charter School are and shall be LAUSD employees. All Charter School employees shall be hired by the District and maintain the same relationships with and through all respective bargaining units as other District employees at non-charter schools.

ELEMENT 14 – MANDATORY DISPUTE RESOLUTION

“The procedures to be followed by the charter school and the entity granting the charter to resolve disputes relating to provisions of the charter.” (Ed. Code § 47605(c)(5)(N).)

Charter School agrees to resolve any claim, controversy, or dispute (“Dispute”) arising out of or relating to the Charter, except for any claim, controversy or dispute that is in any way related to revocation of this Charter, pursuant to the terms of this Element 14.

Any Dispute between the District and Charter School shall be resolved by a collaborative team from the appropriate Region and the Charter Schools Division in accordance with the procedures set forth below:

- 1) Notification of any Dispute shall be made in writing (“Written Notification”). The Written Notification must identify the nature of the Dispute and any supporting facts. The Written Notification shall be tendered to the District by personal delivery, by facsimile, or by certified mail. The Written Notification shall be deemed received (a) if personally delivered, upon the date of delivery to the address of the person to receive such notice if delivered by 5:00 PM; otherwise, it is deemed received on the next business day following personal delivery; (b) if by facsimile, upon electronic confirmation of receipt; or (c) if by certified mail, two (2) business days after deposit in the U.S. Mail. All Written Notifications shall be addressed as follows:

To Charter School:	Charla Austin-Harris c/o Executive Director 7019 S. Van Ness Ave. Los Angeles, CA 90047
To District:	LAUSD Attn: Director, Charter Schools Division Los Angeles Unified School District 333 South Beaudry Avenue, 20th Floor Los Angeles, California 90017

- 2) A written response (“Written Response”) shall be tendered to Charter School within twenty (20) business days from the date of receipt of the Written Notification. The parties shall schedule a conference at a mutually agreeable time and place to discuss the Dispute identified in the Written Notice (“Issue Conference”). The Issue

Conference shall take place within fifteen (15) business days from the date the Written Response is received by Charter School. The Written Response may be tendered by personal delivery, by facsimile, or by certified mail. The Written Response shall be deemed received (a) if personally delivered, upon the date of delivery to the address of the person to receive such notice if delivered by 5:00 PM; otherwise, it is deemed received on the next business day following personal delivery; (b) if by facsimile, upon electronic confirmation of receipt; or (c) if by certified mail, two (2) business days after deposit in the U.S. Mail.

- 3) If the Dispute cannot be resolved by mutual agreement at the Issue Conference, either party may then request that the Dispute be resolved by the Superintendent or his/her designee.

ELEMENT 15 – CHARTER SCHOOL CLOSURE PROCEDURES

“The procedures to be used if the charter school closes. The procedures shall ensure a final audit of the charter school to determine the disposition of all assets and liabilities of the charter school, including plans for disposing of any net assets and for the maintenance and transfer of pupil records.” (Ed. Code § 47605(c)(5)(O).)

CLOSURE ACTION

In order to close Charter School, the LAUSD Board of Education must take a “Closure Action.” A Closure Action shall be deemed to have been automatically taken when any of the following occur: the LAUSD Board of Education revokes or denies renewal of the Charter; the LAUSD Board of Education takes specific Board action to close Charter School pursuant to the Board’s general authority and/or its unique authority as the legal governing board of Charter School pursuant to the Charter Schools Act of 1992; the Charter lapses; or the LAUSD Board of Education or its designee approves Charter School’s request to revert to a non-charter District school.

In the event of a Closure Action, unless the LAUSD Board of Education or its duly authorized designee expressly directs otherwise, Charter School shall revert to a District traditional school.

REVOCATION OF THE CHARTER

The Board of Education may revoke the Charter if Charter School commits a breach of any provision set forth in a District policy related to charter schools adopted by the District Board of Education and/or any provision of the Charter Schools Act of 1992, as it may be amended from time to time. The Board of Education may revoke the charter of Charter School if the District finds, through a showing of substantial evidence, that Charter School did any of the following:

- Charter School committed a material violation of any of the conditions, standards, or procedures set forth in the Charter.
- Charter School failed to meet or pursue any of the pupil outcomes identified in the Charter.
- Charter School failed to meet generally accepted accounting principles or engaged in fiscal mismanagement.
- Charter School violated any provision of law.

Pursuant to AB 97 (2013), Charter School may be identified for assistance based on state evaluation rubrics and be subject to revocation pursuant to Education Code section 47607.3.

Prior to revocation, and in accordance with Education Code section 47607(g) and state regulations, the LAUSD Board of Education will notify Charter School in writing of the specific violation, and give Charter School a reasonable opportunity to cure the violation, unless the LAUSD Board of Education determines, in writing, that the violation constitutes a severe and imminent threat to the health or safety of the pupils, or otherwise takes specific Board action to close Charter School pursuant to the Board's general authority and/or its unique authority as the legal governing board of Charter School. Revocation proceedings are not subject to the dispute resolution clause set forth in this Charter.

Pursuant to Education Code section 47607.3, a charter school identified for needing assistance and provided advice and assistance from the California Collaborative for Educational Excellence based on failure to satisfy state evaluation rubrics may be subject to revocation.

REQUEST FOR VOLUNTARY REVERSION TO NON-CHARTER SCHOOL STATUS

In the event that Charter School, seeks to revert voluntarily to a non-charter District school status, the Local School Leadership Council and/or the Governance Council, as indicated in Element 4, shall execute a resolution requesting approval from the LAUSD board. Charter School shall contact its assigned Charter Schools Division administrator, who will provide information and guidance regarding the applicable procedures for submitting and processing a request for voluntary reversion to non-charter school status. Students enrolled at the District Affiliated Charter School at the time of reversion, who reside outside of resident school area (boundaries), will be entitled to continuous enrollment through permits, as applicable.

CLOSURE PROCEDURES

In the event of a Closure Action, Charter School shall immediately act and operate in all matters as a traditional District school, unless otherwise directed by the LAUSD Board of Education or its duly authorized designee. If and to the extent that they are not already District property or rights, all assets of Charter School shall be automatically transferred to LAUSD. The District reserves the right to conduct a close out audit or other audit.

Charter School shall issue written notification of the school's closure as a District Affiliated Charter School, and reversion to a non-charter District school, to the parents/guardians/caregivers of all enrolled students of Charter School within 72 hours of a Closure Action. Such notification must include, but is not limited to, notice of the effective date of closure as a District Affiliated Charter School and information regarding student enrollment and/or transfer options as appropriate. Charter School shall

simultaneously provide a copy of the written parent notification to the appropriate Region Superintendent and Charter School's assigned Charter Schools Division administrator.

If Charter School serves any students who reside outside District boundaries, Charter School shall notify, within 72 hours of a Closure Action, any school district that may be responsible for providing education services to the former students of Charter School. This notice must include a list of students potentially returning to that district based on student residence. Charter School shall simultaneously provide a copy of these notifications, if any, to the Charter Schools Division. Charter School shall comply with and implement all District policies and procedures and terms of this Charter relating to the transfer of student records.

This Element 15 shall survive the revocation, expiration, termination, or cancellation of this Charter, or any other act or event that would end Charter School's authorization to operate as a charter school or cause Charter School to cease operation.

In the event that the school closes, the Executive Director will serve as the school's closure agent.

ADDITIONAL PROVISIONS

FACILITIES

Charter School's school site remains subject to use by the District and possible space allocation under Proposition 39 and implementing regulations.

Charter School shall comply with all applicable federal and state laws and regulations, and District policies and procedures, regarding facilities.

FISCAL MATTERS

As a District Affiliated Charter School, Charter School's fiscal operations will be supervised by LAUSD. Charter School shall adhere to all applicable District fiscal policies and procedures, including but not limited to policies and procedures related to budgeting, procurement, third party contracts, student body funds, student store, donations, fundraising, payroll, imprest funds, and payment approval for goods and services.

LOCAL CONTROL AND ACCOUNTABILITY PLAN

In accordance with California Education Code sections 47604.33 and 47606.5, Charter School shall include in its annual update a "listing and description of the expenditures for the fiscal year implementing the specific actions included in the charter as a result of the reviews and assessment required by paragraph (1)" of section 47606.5(a). These expenditures shall be "classified using the California School Accounting Manual pursuant to Section 41010." (Ed. Code § 47606.5(b).)

EXHIBIT 2



LOS ANGELES UNIFIED SCHOOL DISTRICT
Charter Schools Division

333 S. Beaudry Ave., 20th Floor
Los Angeles, CA 90017

Office: (213) 241-0399 • Fax: (213) 241-2054

740
ALBERTO M. CARVALHO
Superintendent

CAROLYN SPAHT GONZALEZ
Chief of Staff

JOSÉ COLE-GUTIÉRREZ
Senior Executive Director of Strategy

MARLA WILLMOTT
Charter Schools Division Director (Interim)

NOTICE OF ALLEGED VIOLATIONS

IMMEDIATE ACTION REQUIRED

July 15, 2025

Learning by Design Charter, Inc.
Ashlye Durrell, Board Chair
Charla Austin-Harris, Executive Director
7019 S. Van Ness Avenue
Los Angeles, CA 90047

Distributed Via:

Email Ashlye Durrell adurrell@lbdschools.org

Email Charla Austin-Harris charris@lbdschools.org

RESPONSE DUE: August 18, 2025

**SUBJECT: NOTICE OF ALLEGED VIOLATIONS AND OPPORTUNITY TO CURE
PURSUANT TO EDUCATION CODE SECTION 47607(e)
LEARNING BY DESIGN CHARTER**

Learning by Design Charter
Charter Number (1959) Location Code (7572)

Dear Board Chair Ashlye Durrell and Executive Director Charla Austin-Harris:

This letter shall serve as the Los Angeles Unified School District's ("District" or "LAUSD") Notice of Alleged Violations issued to Learning by Design Charter ("Charter School"), pursuant to Education Code section 47607.

BACKGROUND AND LEGAL BASIS FOR NOTICE

Charter School, operated by Learning by Design Charter, Inc. ("LBD"), is authorized by the LAUSD Board with its current term expiring June 30, 2026.

Pursuant to Education Code section 47607, subdivision (e):

"Notwithstanding subdivision (c) and subdivisions (a) and (b) of Section 47607.2, the chartering authority may deny renewal of a charter school upon a finding that the school is demonstrably unlikely to successfully implement the program set forth in the petition due to substantial fiscal or governance factors, or is not serving all pupils who wish to attend, as documented pursuant to subdivision (d). The chartering authority may deny renewal of a charter school under this subdivision only after it has provided at least 30 days' notice to the charter school of the alleged violation and provided the charter school with a reasonable opportunity to cure the violation, including a corrective action plan proposed by the charter school."

(Emphasis added.)

Overview of Legal, Charter and District Requirements

A. Legal Requirements

Charitable organizations, such as nonprofit public benefit corporations in California, are required to maintain adequate and correct financial records and books. The nonprofit board is expected to vigorously promote accurate fiscal management practices and, in fact, is required to exercise ultimate authority over all corporate activities.¹ More specifically, the nonprofit board is responsible for ensuring the corporation operates in a fiscally sound manner and has mechanisms in place to keep it fiscally sound. As a charitable organization, effective internal controls help safeguard charitable assets, prevent loss, and ensure the reliability of financial records.² Because of this, the charitable organization's board should play a key role in establishing internal controls for the organization.

Education Code section 47604.32(a)(4):

“Each chartering authority, in addition to any other duties imposed by this part, shall do all of the following with respect to each charter school under its authority... Monitor the fiscal condition of each charter school under its authority.”

Education Code section 47604.33(b):

“The chartering authority shall use any financial or other information it obtains from the charter school, including, but not limited to, the reports required by this section, to perform the duties described in subdivision (a) of Section 47604.32, including monitoring the fiscal condition of the charter school.”

B. Charter Requirements

Charter School's operative charter provides, in pertinent parts:

“Charter School shall establish, maintain, and implement sound fiscal policies and procedures, including but not limited to internal controls governing all financial and business-related activities.”

"Charter School, including its nonprofit corporation, shall promptly respond to all reasonable inquiries, including but not limited to inquiries regarding financial records from the District, and shall cooperate with the District regarding any inquiries."

¹ (Corp. Code, § 5210.)

² An effective internal control system includes, but is not limited to, budgets, segregation of duties, policy and procedures manuals, clear definition of and adherence to set procedures for management authority and control, and periodic review of the control system. In addition to these obligations, a charter organization must conduct independent financial audits that employ generally accepted accounting principles ("GAAP").

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Learning by Design Charter, Inc.

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“Cash Reserves - Charter School acknowledges that the recommended cash reserve is 5% of expenditures, as provided in section 15450, title 5 of the California Code of Regulations.”

C. LAUSD Policy and Procedures for Charter Schools (“District Policy”) Requirements

District Policy specifies, in pertinent parts:

“...LAUSD is responsible to provide oversight of its charter schools and the entities managing charter schools...”

“The governing board of a charter school has an ongoing responsibility to oversee the operations of its charter school(s), ensuring that every charter school it oversees is providing a high-quality educational program for students enrolled, is successfully fulfilling the terms of their charter, is fiscally sound, and complies with applicable laws, regulations, and court orders.”

“An important responsibility for charter schools is effective and ethical governance. Charter schools are publicly funded local educational agencies and shall be subject to the transparency and accountability requirements that govern other publicly funded local educational agencies. Charter schools shall not be operated by a for-profit corporation. (Ed. Code, § 47604(b)(1).) All charter schools authorized by LAUSD commit to the highest level of ethical, transparency, and accountability standards.”

“LAUSD’s performance-based oversight is structured into four oversight categories:

Category I: Governance - The CSD assesses whether the charter school’s governing board is fulfilling its fiduciary responsibility to effectively direct and provide oversight for the charter school, including but not limited to achieving positive academic outcomes for all students, enacting and monitoring policies and procedures to ensure the school’s fiscal soundness, educational mission, and full compliance with applicable law, policy, agreements, and the terms of the charter approved by the LAUSD Board of Education...

Category IV: Fiscal Operations - The CSD assesses each fiscally independent charter school to evaluate the school’s fiscal condition and operations, and management of public funds, including review of all legally required fiscal reports, and the annual update of the charter school’s local control and accountability plan (‘LCAP’) (Ed. Code, §§ 47604.32, 47604.33, 47606.5).” (*Emphasis added.*)

“Specifically, the LAUSD Board may deny renewal of any charter petition, regardless of whether the charter school satisfies the high, middle, or low performing criteria, upon a finding that either:

- 1) The charter school is demonstrably unlikely to successfully implement the program set forth in the renewal petition due to either:

NOTICE OF ALLEGED VIOLATIONS

Learning by Design Charter, Inc.

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- a) Substantial fiscal factors, or
- b) Substantial governance factors.

Substantial fiscal factors may include, but are not limited to, issues related to the charter school's fiscal solvency, mismanagement of funds, cash flow concerns, or outstanding financial liabilities owed to the District and/or others (e.g., contractual obligations, judgments/settlements, unpaid bills or debts, fee-for-service arrangements, facilities-related costs, Prop. 39 over-allocated space reimbursements, etc.).

Substantial governance factors may include, but are not limited to, issues related to the retention of faculty (such as school leadership and teachers) which rise to the level of disruption of delivery of educational programs; conflicts of interest; or, violations of the Brown Act or California Public Records Act.

Prior to a nonrenewal determination...LAUSD shall provide the charter school with at least 30 days' notice of the alleged violation and provide the charter school with a reasonable opportunity to cure the violation, including providing an opportunity for the charter school to present a proposed corrective plan. (Ed. Code, § 47607(e).) After providing notice of the alleged violation and reasonable opportunity to cure the violation, the LAUSD Board may deny a renewal petition if it finds that either:

- 1) The corrective action proposed by the charter school has been unsuccessful, or
- 2) The violations are sufficiently severe or pervasive as to render a corrective action plan unviable."

VIOLATIONS UPON WHICH THIS NOTICE IS BASED

I. Substantial Fiscal Factors

Consistent with Education Code section 47607, subdivision (e), District Policy explains that "substantial fiscal factors" may include, but are not limited to, issues related to the charter school's fiscal solvency, mismanagement of funds, cash flow concerns, or outstanding financial liabilities owed to the District and/or others (e.g., contractual obligations, judgments/settlements, unpaid bills or debts, fee-for-service arrangements, facilities-related costs, Proposition 39 over-allocated space reimbursements, etc.).

The following, but not limited to, facts demonstrate substantial fiscal solvency concerns regarding Charter School:

(1) Weak Fiscal Condition³

³ "Weak fiscal condition" may include, but is not limited to, year-to-year financial fluctuations, significant net losses, and negative net assets in the current or foreseeable future fiscal years.

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Charter School's fiscal condition is negative based on the most current annual independent audit report. As reflected in the Financial Highlights section below, Charter School reported net losses of **(\$103,793)** in 2022-2023 and **(\$413,327)** in 2023-2024, resulting in negative net assets of **(\$220,962)** as of June 30, 2024. As a result, Charter School did not meet the minimum recommended levels for the fund reserve (reserve for economic uncertainty), cash reserve level, current ratio, and debt ratio for Fiscal Year 2023-2024. Additionally, Charter School's monthly 2024-2025 cash flow projections submitted to the CSD reflect a need for additional financing, as evidenced by \$300,000 in short-term borrowing from a line of credit. Consequently, the total outstanding loan balance increased to \$410,000 as of February 28, 2025. Furthermore, Charter School's Second Interim financial report for Fiscal Year 2024-2025 continues to project a negative financial condition and indicates failure to meet all four recommended financial ratios.

FINANCIAL HIGHLIGHTS ⁴					
Learning by Design Charter	2020-2021 (Audited Actuals)	2021-2022 (Audited Actuals)	2022-2023 (Audited Actuals)	2023-2024 (Audited Actuals)	2024-2025 (Second Interim)
Net Assets	(\$124,908)	\$296,158	\$192,365	(\$220,962)	(\$130,260)
Net Income / (Loss)	\$291,956	\$421,066	(\$103,793)	(\$413,327)	\$90,702
Transfers In / Out	\$0	\$0	\$0	\$0	\$0
Prior Year Adjustment(s)	\$0	\$0	\$0	\$0	\$0
Cash and Cash Equivalents	\$100,619	\$187,002	\$304,256	\$11,450	\$93,224
Unrestricted Net Assets	(\$124,908)	\$296,158	\$192,365	(\$220,962)	(\$263,943)
FINANCIAL RATIO ANALYSIS					
Fund Reserve (Reserve for Economic Uncertainty) (Unrestricted Net Assets/Total Expenditures) <i>3% - 5% and greater is recommended (depending on the school's ADA)</i>	0.00%	14.51%	7.91%	0.00%	0.00%
Cash Reserve Level (Cash Balance/Total Expenditures) <i>5% and greater is recommended</i>	5.87%	9.16%	12.50%	0.44%	3.74%
Current Ratio (Working Capital Ratio) (Current Assets/Current Liabilities) <i>At least 1.2 or 120% is recommended</i>	904.92%	152.94%	98.89%	42.90%	85.60%
Debt Ratio (Total Liabilities/Total Assets) <i>Lower than 1.0 or 100% is recommended</i>	12.46%	63.79%	77.33%	140.20%	112.83%

(2) Charter School's Low and Declined Student Enrollment (Recurring Issue)

Charter School's low and continued declining student enrollment in the 2024-2025 school year raises concerns. This may exacerbate its negative fiscal condition, as the Local

⁴ The data summarized in the Financial Highlights table is obtained from LBD's annual independent audit report for Fiscal Year 2023-2024 and Charter School's 2024-2025 Second Interim Financials, respectively.

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Learning by Design Charter, Inc.

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Control Funding Formula (“LCFF”) revenue is directly tied to its Average Daily Attendance (“ADA”) and enrollment.

Charter School’s reported Norm Enrollment was 131, 118, 105, 112, and 106 students for Fiscal Years 2020-2021 through 2024-2025, respectively. This reflects a cumulative decrease of 25 students (or 19.1%) since Fiscal Year 2020-2021 and a one-year decline of 6 students (or 5.4%) in Fiscal Year 2024-2025. Charter School’s reported Norm Enrollment for Fiscal Year 2024-2025 is 106 students, which is 244 students (or approximately 69.7%) below its approved enrollment capacity in Charter School’s operative charter (i.e., 350 students). Additionally, Charter School reported 2024-2025 P-1 ADA of 101.87 and P-2 ADA of 106.96, respectively.

The tables below summarize Charter School’s projected enrollment in its operative charter and its Norm Enrollment since Fiscal Year 2020-2021, reflecting that the school has been under-enrolled for four of the five fiscal years.

Table 1: Charter School's Enrollment Rollout Plan as Outlined in Its Operative Charter					
Grade Level	2020-2021	2021-2022	2022-2023	2023-2024	2024-2025
TK/K	100	100	100	100	100
1	50	50	50	50	50
2	50	50	50	50	50
3	50	50	50	50	50
4		50	50	50	50
5			50	50	50
Total Projected Enrollment (A)	250	300	350	350	350

Table 2: Charter School's Norm Day Enrollment History					
Grade Level	2020-2021	2021-2022	2022-2023	2023-2024	2024-2025
TK*			5	7	3
K*	17	16	11	15	12
1	24	18	13	19	18
2	20	22	16	15	16
3	19	21	25	15	16
4	28	16	18	25	12
5	23	25	17	16	29
Total Enrollment (B)	131	118	105	112	106
Increase/(Decrease) in the # of Students Enrollment from Prior Year	N/A	(13)	(13)	7	(6)

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Learning by Design Charter, Inc.

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Table 2: Charter School's Norm Day Enrollment History					
Grade Level	2020-2021	2021-2022	2022-2023	2023-2024	2024-2025
% Increase/(Decrease) in the # of Students Enrollment from Prior Year	N/A	(9.9%)	(11.0%)	6.7%	(5.4%)
Under-Enrollment (Enrollment Rollout Plan vs Norm Day Enrollment) (B)-(A)	(119)	(182)	(245)	(238)	(244)
*Prior to FY 2022-2023, TK (Transitional Kindergarten) and K (Kindergarten) counts were reported together. Therefore, the K counts include the TK counts for the school years prior to 2022-2023.					

(3) Ongoing Financial Sustainability Concerns at Charter School

Due to the potential impact of Charter School's current financial trajectory on the sustainability of its operations—along with ongoing fiscal concerns related to its deteriorating financial condition, negative unrestricted net assets, and persistent low and declining student enrollment—the Charter Schools Division (“CSD”) has issued multiple notices to Charter School. The CSD first issued a Notice of Concern on August 3, 2020, followed by a second Notice of Concern on June 25, 2024, citing Charter School's weak financial condition and low and declining enrollment. Although Charter School intermittently addressed the concerns identified in these notices at the time, the same or similar issues have since resurfaced and continue to persist. The CSD remains concerned about the school's ability to maintain a positive net assets balance and its ongoing reliance on borrowed funds to sustain adequate cash flow. Most recently, on March 31, 2025, the CSD issued a Notice to Cure,⁵ requiring immediate action by LBD's governing board (“LBD Board”) to address the ongoing fiscal and enrollment challenges. On April 21, 2025, the LBD Board submitted a response that included a revised budget and cash flow projections for Fiscal Years 2024-2025 and 2025-2026. In reviewing LBD's response and submitted budget and cash flow projections, the CSD notes that the school's assumptions include a projected enrollment of 132 and 135 and ADA of 126.72 and 129.60, respectively. Charter School's current revenue projections appear unrealistic in light of its historical enrollment trends, raising concerns about the overall reasonableness of the revised budget submitted to the District. As a result, Charter School's budget and cash flow projections lack credibility and do not reflect a viable financial plan, raising serious concerns about the school's ability to remain fiscal solvent and meet its operational obligations.

II. Substantial Governance Factors

Consistent with Education Code section 47607, subdivision (e), and the Policy, the above-described facts demonstrating Charter School's fiscal mismanagement also indicate substantial governance mismanagement of Charter School by its Board and administration, and therefore warrant corrective action.

⁵ See Attachment 1 for March 31, 2025, Notice to Cure.

NOTICE OF ALLEGED VIOLATIONS

Learning by Design Charter, Inc.

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REQUIRED CORRECTIVE ACTIONS AND OPPORTUNITY TO CURE

As a result of the foregoing and the legal basis for corrective actions, the District issues this Notice of Alleged Violations to Charter School. The above-described facts demonstrate Charter School's weak and deteriorating student enrollment and fiscal condition, and therefore warrant corrective action. Accordingly, the District provides the Charter School with an opportunity to cure the alleged violation for a period of at least thirty (30) calendar days from the date of this Notice.

Due to the serious nature of the fiscal and governance concerns as identified herein, the District requires LBD's actions in response to this Notice of Alleged Violations, which include curing the corrective actions listed below. The District will require the provision of a corrective action plan to address the above and below, and confirmation of each corrective action taken by LBD.

1. Provide a revised budget and updated cash flow projections for Fiscal Year 2025-2026 (the remainder of Charter School's approved charter term). These files must be in Microsoft Excel format, with formulas, no hidden cells, and not be password-protected. Descriptions of all assumptions used to prepare these revised reports must also be provided.
 - If applicable, provide information and documentation related to financing activities:
 - a. A list of all current financing activities, in Microsoft Excel format, that includes the type of financing or borrowing, terms, the effective date, the outstanding balance as of the date of charter school's response, the maturity date, and purposes
 - b. Pertinent information and documentation, including but not limited to, all of the most current signed and executed agreements, and the minutes of the meetings reflecting the reviews and approvals of said agreements
2. Provide a detailed written explanation as to how the revised financial documents referenced under Corrective Action No. 1 above will affect Charter School's instructional programs and enable the school to meet all of its financial obligations in a timely manner while performing all school operations.
3. Provide documentation related to the steps/actions that the LBD Board will continue to take to monitor the school's fiscal condition and ensure the school is fiscally viable and able to meet all of its financial obligations.
4. Copies of all governing board meeting agendas and minutes (or other publicly available records) that evidence reviews, discussions, deliberations, and/or actions taken by the LBD Board concerning any and all items included in this Notice.

The District will require the provision of a corrective action plan to address the above, and confirmation of each corrective action taken by Charter School and the LBD Board.

PLEASE TAKE NOTICE that failure to take corrective actions in response to this Notice may lead to LAUSD's recommended denial of Charter School's renewal petition based on either of the following findings: (1) the corrective action has been unsuccessful; or (2) the violations are sufficiently severe and pervasive as to render a corrective action plan unviable. (Ed. Code, §

NOTICE OF ALLEGED VIOLATIONS

Learning by Design Charter, Inc.

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47607(e).) The District also reserves the right to pursue non-renewal of the Charter upon findings of fact supporting other bases for non-renewal specified in Education Code sections 47605(c), and/or 47607.2, as applicable.

If you have any questions or need additional information regarding this Notice, please contact me by email at joseph.dae@lausd.net or (213) 241-8627 or Allan Villamor, Fiscal Oversight Administrator, by email at allan.villamor@lausd.net or (213) 241-0338.

Thank you for your cooperation.

Attachments: Attachment 1 — Notice to Cure issued on March 31, 2025

Sincerely,

Joseph Dae
Fiscal Oversight Manager

c: Josè Cole-Gutiérrez, Senior Executive Director of Strategy, LAUSD
Marla Willmott, Director (Interim), CSD
Lillian Lee, Fiscal Administrator, CSD
Sarah Ziegenhorn, Senior Coordinator, CSD
Allan Villamor, Fiscal Oversight Administrator, CSD
Luis E. Aguilar, Specialist, CSD

EXHIBIT 3

Learning by Design Charter

Board District: 1 | Region: South | Location Code: 7572

CA School Dashboard: Academic Performance - English Language Arts

This report shows the performance levels for the English Language Arts Academic Performance Indicator for all student groups in grades 3-8 and 11. It also shows the participation rate, number of students tested, DFS (status), and performance level (color) for three consecutive years of the CA Dashboard. Performance Levels (colors) have five possible values (Red, Orange, Yellow, Green, Blue). A single asterisk (*) shows that the student group has fewer than 11 students and is not reported for privacy reasons. A cell with "--" means that data is not currently available. For student groups with less than 30 students and scores in the current and prior year, status is reported, but performance level (color) is not reported. Note: Charter Schools are treated as schools (not LEAs) when it comes to reporting Foster Youth and Homeless student groups. Charter schools will need at least 30 or more Foster Youth, or 30 or more Homeless youth, to receive a status level for each student group. The Every Student Succeeds Act requires districts and schools to test at least 95 percent of all students and student groups in English Language Arts and Mathematics. It also requires states to factor the participation rate into the Academic Indicator. For any local educational agency (LEA), school, or student group with less than 95 percent of students tested, the ESSA requires a penalty to be applied to the Academic Indicator. To meet this federal requirement, California assigns the Lowest Obtainable Scale Score (LOSS) to each student needed to bring the participation rate of the school, district, and/or student group to 95 percent. The LOSS assigned to each of these students who did not test will be used in calculating the Distance from Standard (DFS). When comparing school to state, only numerically significant student groups of 30 or more will be compared for accountability purposes.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and California School Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

ELA (Grades 3-8 and Grade 11) Academic Indicator - CA School Dashboard Indicator																						
	Dashboard 2022						Dashboard 2023								Dashboard 2024							
Student Group	Part. Rate	Students w/ Scores	DFS	Status Level	State DFS	School vs State	Part. Rate	Students w/ Scores	DFS	Change	Change Level	Color	State DFS	School vs State	Part. Rate	Students w/ Scores	DFS	Change	Change Level	Color	State DFS	School vs State
All Students	91%	48	-89.4	Very Low	-12.2	Lower	98%	51	-67.4	24.3	Increased Significantly	Yellow	-13.6	Lower	98%	54	-11.9	55.5	Increased Significantly	Yellow	-13.2	Higher
African American/Black	87%	36	-102.6	Very Low	-57.7	Lower	100%	34	-70.1	37.1	Increased Significantly	Orange	-59.6	Lower	97%	29	-27.8	42.4	Increased Significantly	--	-58.9	--
Latino	100%	11	-50.0	Low	-38.6	--	95%	16	-53.6	-3.6	Declined	--	-40.2	--	100%	23	13.5	67.1	Increased Significantly	--	-39.3	--
Socioeconomically Disadvantaged	90%	46	-99.3	Very Low	-41.4	Lower	98%	45	-77.6	25.3	Increased Significantly	Orange	-42.6	Lower	98%	45	-18.7	59.0	Increased Significantly	Yellow	-40.9	Higher

Data Sources: California School Dashboard Research data files.

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Board District: 1 | Region: South | Location Code: 7572

CA School Dashboard: Academic Performance - Math

This report shows the performance levels for the Mathematics Academic Performance Indicator for all student groups in grades 3-8 and 11. It also shows the participation rate, number of students tested, DFS (status), and performance level (color) for three consecutive years of the CA Dashboard. Performance Levels (colors) have five possible values (Red, Orange, Yellow, Green, Blue). A single asterisk (*) shows that the student group has fewer than 11 students and is not reported for privacy reasons. A cell with "—" means that data is not currently available. For student groups with less than 30 students and scores in the current and prior year, status is reported, but performance level (color) is not reported. Note: Charter Schools are treated as schools (not LEAs) when it comes to reporting Foster Youth and Homeless student groups. Charter schools will need at least 30 or more Foster Youth, or 30 or more Homeless youth, to receive a status level for each student group. The Every Student Succeeds Act requires districts and schools to test at least 95 percent of all students and student groups in English Language Arts and Mathematics. It also requires states to factor the participation rate into the Academic Indicator. For any local educational agency (LEA), school, or student group with less than 95 percent of students tested, the ESSA requires a penalty to be applied to the Academic Indicator. To meet this federal requirement, California assigns the Lowest Obtainable Scale Score (LOSS) to each student needed to bring the participation rate of the school, district, and/or student group to 95 percent. The LOSS assigned to each of these students who did not test will be used in calculating the Distance from Standard (DFS). When comparing school to state, only numerically significant student groups of 30 or more will be compared for accountability purposes.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and California School Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

Math (Grades 3-8 and Grade 11) Academic Indicator - CA School Dashboard Indicator																						
	Dashboard 2022						Dashboard 2023								Dashboard 2024							
Student Group	Part. Rate	Students w/ Scores	DFS	Status Level	State DFS	School vs State	Part. Rate	Students w/ Scores	DFS	Change	Change Level	Color	State DFS	School vs State	Part. Rate	Students w/ Scores	DFS	Change	Change Level	Color	State DFS	School vs State
All Students	89%	48	-130.8	Very Low	-51.7	Lower	98%	51	-62.1	75.1	Increased Significantly	Yellow	-49.1	Lower	98%	54	-1.9	60.1	Increased Significantly	Green	-47.6	Higher
African American/Black	85%	36	-139.8	Very Low	-106.9	Lower	100%	34	-62.7	88.4	Increased Significantly	Yellow	-104.5	Higher	97%	29	-1.4	61.3	Increased Significantly	--	-102.2	--
Latino	100%	11	-123.9	Very Low	-83.4	--	95%	16	-52.4	71.5	Increased Significantly	--	-80.8	--	100%	23	0.7	53.2	Increased Significantly	--	-79.2	--
Socioeconomically Disadvantaged	90%	46	-135.0	Very Low	-84.0	Lower	98%	45	-66.8	74.9	Increased Significantly	Yellow	-80.8	Higher	98%	45	-10.8	56.0	Increased Significantly	Green	-78.2	Higher

Data Sources: California School Dashboard Research data files.

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Board District: 1 | Region: South | Location Code: 7572

CA School Dashboard: English Learner Progress Indicator (ELPI)

This report shows the percentage of current English learner (EL) students making progress towards English language proficiency at their school for all student groups in grades 1-12. The English Learner Progress Indicator (ELPI) relies on the results of the Summative English Language Proficiency Assessment (ELPAC), including Summative Alternate ELPAC results, to determine EL student progress. For the EL students taking the Summative ELPAC, those who increase an ELPI level or maintain ELPAC Level 4 are counted as making progress towards English language proficiency. ELPI Change measures the rate at which schools are improving their ability to move their EL students towards English language proficiency. It is the difference between the prior year Status and the current year Status. A single asterisk (*) shows that the student group has fewer than 11 students and is not reported for privacy reasons. A cell with "--" means that data is not currently available. For student groups with less than 30 students and scores in the current and prior year, status is reported, but performance level (color) is not reported.

Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and California School Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

Student English Language Acquisition Results Summative ELPAC									
End Year	Student Group	School				State of California			
		Progressed at Least One ELPI Level	Maintained ELPI Level 4	Maintained ELPI Level 1, 2L, 2H, 3L, 3H	Decreased at Least One ELPI Level	Progressed at Least One ELPI Level	Maintained ELPI Level 4	Maintained ELPI Level 1, 2L, 2H, 3L, 3H	Decreased at Least One ELPI Level
2022	EL	--	--	--	--	47.5%	2.8%	31.4%	18.3%
2023	EL	--	--	--	--	45.7%	2.3%	32.2%	18.3%
2024	EL	--	--	--	--	43.2%	1.9%	34.4%	19.1%

Districts and schools that do not meet the 95 percent participation rate on the Summative ELPAC and Summative Alternative ELPAC and have at least 30 EL students enrolled during the testing window (February 1 to May 31) will receive a modified ELPI rate on the California School Dashboard (Dashboard). For each district and school that does not meet the 95 percent target, the minimum number of students needed to reach a participation rate of at least 95 percent is determined. The resulting number of students will be counted as not making progress in the current ELPI Status calculation.

Summative ELPAC Participation Rate Report									
End Year	Student Group	School				State of California			
		Students Tested During Testing Window	Students Enrolled During Testing Window	Participation Rate	Participation Rate Greater Than 95%	Students Tested During Testing Window	Students Enrolled During Testing Window	Participation Rate	Participation Rate Greater Than 95%
2022	EL	13	13	100.0%	Y	1,052,513	1,088,734	96.7%	Y
2023	EL	16	17	94.1%	N	1,048,300	1,069,515	98.0%	Y
2023	LTEL	--	--	--	--	193,182	202,530	95.4%	Y
2024	EL	20	23	87.0%	N	1,028,083	1,047,977	98.1%	Y
2024	LTEL	--	--	--	--	182,603	190,459	95.9%	Y

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CA School Dashboard: Chronic Absenteeism

This report shows the percentage of students in Kindergarten through grade eight who were absent 10 percent or more of the school year for all student groups in grades TK-8. Please note that good performance on the Chronic Absenteeism indicator means having the lowest percentage of students chronically absent in the current year. A single asterisk (*) shows that the student group has fewer than 11 students and is not reported for privacy reasons. A cell with "—" means that data is not currently available. For student groups with less than 30 students with scores in the current and prior year, status is reported, but no performance level (color) will be reported. When comparing school to state, only numerically significant student groups of 30 or more will be compared for accountability purposes.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and California School Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

Chronic Absenteeism - CA School Dashboard Indicator																			
Student Group	Dashboard 2022					Dashboard 2023							Dashboard 2024						
	Students	Chronic Absenteeism	Status Level	State Chronic Absenteeism	School vs State	Students	Chronic Absenteeism	Change	Change Level	Color	State Chronic Absenteeism	School vs State	Students	Chronic Absenteeism	Change	Change Level	Color	State Chronic Absenteeism	School vs State
All Students	124	1.6%	Very Low	30.0%	Lower	126	44.4%	42.8	Increased	Red	24.3%	Higher	129	57.4%	12.9	Increased	Red	18.6%	Higher
African American/Black	75	2.7%	Low	42.9%	Lower	81	42.0%	39.3	Increased	Red	36.4%	Higher	65	52.3%	10.3	Increased	Red	31.3%	Higher
English Learner	15	0.0%	Very Low	33.6%	--	18	66.7%	66.7	Increased	--	26.3%	--	27	74.1%	7.4	Increased	--	20.1%	--
Latino	36	0.0%	Very Low	35.8%	Lower	43	48.8%	48.8	Increased	Red	28.4%	Higher	61	63.9%	15.1	Increased	Red	21.7%	Higher
Socioeconomically Disadvantaged	105	1.9%	Very Low	37.4%	Lower	108	46.3%	44.4	Increased	Red	29.9%	Higher	103	62.1%	15.8	Increased	Red	23.4%	Higher
Students with Disabilities	8	*	*	39.6%	*	7	*	*	*	*	33.1%	*	13	61.5%	--	--	--	26.3%	--
Two or More	12	0.0%	Very Low	25.1%	--	1	*	*	*	*	21.6%	*	2	*	*	*	*	16.2%	*

Data Sources: California School Dashboard Research data files.

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Board District: 1 | Region: South | Location Code: 7572

CA School Dashboard: Suspension Rate Indicator

This report shows the number of students who have been suspended at least once in the school year for all student groups in grades TK-12. A student is counted as suspended in the suspension rate only once regardless of multiple suspensions or multiple days of suspension. Please note that good performance on the Suspension Rate Indicator means having the lowest percentage of students suspended in the current year. A single asterisk (*) shows that the student group has fewer than 11 students and is not reported for privacy reasons. A cell with "--" means that data is not currently available. For student groups with less than 30 students with scores in the current and prior year, status and change are reported, but no performance level (color) will be reported. When comparing school to state, only numerically significant student groups of 30 or more will be compared for accountability purposes.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and California School Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

Suspension Rate Indicator - CA School Dashboard Indicator																			
Student Group	Dashboard 2022					Dashboard 2023							Dashboard 2024						
	Students	Suspension Rate	Status Level	State Suspension Rate	School vs State	Students	Suspension Rate	Change	Change Level	Color	State Suspension Rate	School vs State	Students	Suspension Rate	Change	Change Level	Color	State Suspension Rate	School vs State
All Students	133	0.8%	Low	3.1%	Lower	127	3.1%	2.4	Increased	Orange	3.5%	Lower	134	6.0%	2.8	Increased	Orange	3.2%	Higher
African American/Black	81	1.2%	Medium	7.9%	Lower	82	4.9%	3.6	Increased	Orange	8.8%	Lower	66	10.6%	5.7	Increased	Red	8.4%	Higher
English Learner	15	0.0%	Very Low	3.2%	--	18	0.0%	0.0	Maintained	--	3.7%	--	29	0.0%	0.0	Maintained	--	3.4%	--
Latino	39	0.0%	Very Low	3.3%	Lower	43	0.0%	0.0	Maintained	Blue	3.8%	Lower	64	1.6%	1.6	Increased	Orange	3.4%	Lower
Socioeconomically Disadvantaged	110	0.9%	Low	4.0%	Lower	109	3.7%	2.8	Increased	Orange	4.5%	Lower	107	6.5%	2.9	Increased	Red	4.0%	Higher
Students with Disabilities	9	*	*	5.4%	*	7	*	*	*	*	5.9%	*	13	23.1%	--	--	--	5.4%	--
Two or More	12	0.0%	Very Low	2.9%	--	1	*	*	*	*	3.3%	*	3	*	*	*	*	3.0%	*

Data Sources: California School Dashboard Research data files.

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Board District: 1 | Region: South | Location Code: 7572

Enrollment Report

This report displays CALPADS K-12 enrollment number and percentages of select student groups. Annual enrollment consists of the number of students primarily enrolled on Census Day (the first Wednesday in October). This information was submitted by local educational agencies (LEAs) and charter schools to the California Department of Education (CDE) as part of the annual Fall 1 data submission in the California Longitudinal Pupil Achievement Data System (CALPADS). These data were reviewed and certified in CALPADS as being accurate by authorized district or school personnel. In order to certify data in CALPADS, authorized district or charter school personnel are required to review the accuracy of all data associated with the applicable CALPADS submission. The CDE collects some data on GATE programs through the CALPADS; however, this information is submitted by LEAs on a voluntary basis and it wouldn't necessarily be accurate as per CDE.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and California School Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

Enrollment by Ethnicity and Student Group						
Student Group	2023-2024			2024-2025		
	School	Los Angeles Unified	State of California	School	Los Angeles Unified	State of California
Enrollment	115	529,902	5,837,690	114	516,685	5,806,221
F/R Meal	63.5%	80.6%	61.6%	78.1%	81.9%	62.7%
GATE	0.0%	11.6%	N/A	0.0%	13.0%	N/A
English Learner	24.3%	20.1%	18.4%	14.9%	18.6%	17.4%
Foster Youth	0.9%	0.6%	0.5%	0.0%	0.5%	0.5%
Homeless Youth	3.5%	2.1%	3.6%	0.9%	2.7%	4.0%
Socioeconomically Disadvantaged	67.0%	81.3%	62.7%	79.8%	82.4%	63.6%
Students w/ Disabilities	9.6%	14.8%	13.7%	7.9%	15.6%	14.2%
Migrant Youth	0.0%	0.2%	0.8%	0.0%	0.2%	0.8%
African American/Black	48.7%	7.3%	4.9%	55.3%	7.1%	4.9%
American Indian or Alaska Native	0.0%	0.1%	0.4%	0.0%	0.1%	0.4%
Asian	0.9%	3.4%	9.9%	0.9%	3.3%	10.1%
Filipino	0.0%	1.7%	2.2%	0.0%	1.6%	2.2%
Latino	48.7%	73.8%	56.1%	42.1%	73.6%	56.1%
Native Hawaiian or Pacific Islander	0.0%	0.2%	0.4%	0.0%	0.2%	0.4%
White	0.0%	9.8%	20.3%	0.0%	9.7%	20.0%
Two or More Races	0.0%	2.0%	4.6%	0.0%	2.1%	4.8%
Not Reported	1.7%	1.8%	1.1%	1.8%	2.2%	1.2%

N/A: The CDE does not publish centralized, statewide Gifted and Talented Education (GATE) data.

Data Source: Data Quest, Student and School Downloadable Data Files <https://www.cde.ca.gov/ds/sd/sd/filesenr.asp>

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Long-Term English Learners (LTEL) and “At-Risk”

Note: The “EL Total” column in this report displays the summed total of the disaggregated English Learner (EL) data in the four columns under the “English Learners” heading. The “Total (Ever-EL)” column displays the summed total of the data in the “RFEP” column plus the data in the four columns under the “English Learners” heading OR the data in the “EL Total” column, but not both. The percent values displayed in this report are calculated as a percent of the “Total (Ever-EL)” which fully and more accurately considers what happens to all EL students over time, including those who are Reclassified Fluent English Proficient (RFEP). Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and California School Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

	2022-2023						2023-2024						2024-2025					
	School		Los Angeles Unified		State of California		School		Los Angeles Unified		State of California		School		Los Angeles Unified		State of California	
English Learners	#	%	#	%	#	%	#	%	#	%	#	%	#	%	#	%	#	%
LTEL 6+ Years	0	0.0%	17,921	7.3%	226,508	11.1%	0	0.0%	15,302	6.5%	211,186	10.6%	0	0.0%	13,052	5.9%	198,853	10.4%
At-Risk 4-5 Years	5	41.7%	17,295	7.1%	144,189	7.1%	1	3.4%	15,717	6.7%	136,188	6.8%	1	5.3%	11,406	5.2%	115,009	6.0%
EL 0-3 Years	6	50.0%	60,457	24.7%	505,486	24.8%	21	72.4%	60,574	25.7%	519,651	26.0%	13	68.4%	57,726	26.1%	516,862	26.9%
EL 4+ Years & Not At-Risk or LTEL	0	0.0%	18,850	7.7%	236,319	11.6%	6	20.7%	14,725	6.2%	207,768	10.4%	3	15.8%	13,775	6.2%	178,306	9.3%
EL Total	11	91.7%	114,523	46.8%	1,112,502	54.5%	28	96.6%	106,318	45.0%	1,074,793	53.8%	17	89.5%	95,959	43.3%	1,009,030	52.6%
RFEP	1	8.3%	130,377	53.2%	927,694	45.5%	1	3.4%	129,789	55.0%	924,422	46.2%	2	10.5%	125,465	56.7%	909,298	47.4%
Total Ever EL	12	100.0%	244,900	100.0%	2,040,196	100.0%	29	100.0%	236,107	100.0%	1,999,215	100.0%	19	100.0%	221,424	100.0%	1,918,328	100.0%

Data Source: Data Quest, Student and School Downloadable Data Files <https://www.cde.ca.gov/ds/ad/filesltel.asp>

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Students with Disabilities Report

This report displays the K-12 enrollment and the number of K-12 students with disabilities total, by incidence category, and by eligibility as reported on the Census Day (First Wednesday in October) CALPADS Fall 1 Certified Student Profile List Report (Report 8.1) submitted by Local Education Agencies (LEAs). LEAs are required to "certify" specified data during submission windows. The CDE uses certified data for state and federal reporting and to develop accountability metrics. Once data are certified by an LEA following the close of the Amendment Window, they are "frozen" and cannot be amended. High Incidence is defined as students in the Other Health Impairment, Specific Learning Disability, and Speech or Language Impairment categories. Low Incidence Students are defined as those in the Autism, Deafness, Emotional Disturbance, Hard of Hearing, Intellectual Disability, Multiple Disabilities, Orthopedic Impairment, Traumatic Brain Injury, and Visual Impairment categories.

Special Education Enrollment by Category												
	2023-2024						2024-2025					
	School			Los Angeles Unified			School			Los Angeles Unified		
Total Enrollment	115			529,902			114			516,685		
Students with Disabilities	# of SWD	% of Total SWD	% of Total Enrollment	# of SWD	% of Total SWD	% of Total Enrollment	# of SWD	% of Total SWD	% of Total Enrollment	# of SWD	% of Total SWD	% of Total Enrollment
Total SWD Enrollment	9	100%	7.8%	78,319	100%	14.8%	9	100%	7.9%	80,505	100%	15.6%
High Incidence	8	88.9%	7%	52,153	66.6%	9.8%	8	88.9%	7%	52,412	65.1%	10.1%
Low Incidence	1	11.1%	0.9%	26,162	33.4%	4.9%	1	11.1%	0.9%	28,084	34.9%	5.4%
Autism	1	11.1%	0.9%	18,713	23.9%	3.5%	1	11.1%	0.9%	20,802	25.8%	4%
Deaf-Blindness	0	0%	0%	4	0%	0%	0	0%	0%	7	0%	0%
Deafness	0	0%	0%	188	0.2%	0%	0	0%	0%	178	0.2%	0%
Emotional Disturbance	0	0%	0%	1,148	1.5%	0.2%	0	0%	0%	1,082	1.3%	0.2%
Established Medical Disability	0	0%	0%	0	0%	0%	0	0%	0%	1	0%	0%
Hard of Hearing	0	0%	0%	971	1.2%	0.2%	0	0%	0%	931	1.2%	0.2%
Intellectual Disability	0	0%	0%	3,393	4.3%	0.6%	0	0%	0%	3,381	4.2%	0.7%
Multiple Disabilities	0	0%	0%	965	1.2%	0.2%	0	0%	0%	1,035	1.3%	0.2%
Other Health Impairment	1	11.1%	0.9%	10,930	14%	2.1%	0	0%	0%	11,596	14.4%	2.2%
Orthopedic Impairment	0	0%	0%	533	0.7%	0.1%	0	0%	0%	434	0.5%	0.1%
Specific Learning Disability	4	44.4%	3.5%	29,615	37.8%	5.6%	4	44.4%	3.5%	29,368	36.5%	5.7%
Speech or Language Impairment	3	33.3%	2.6%	11,608	14.8%	2.2%	4	44.4%	3.5%	11,448	14.2%	2.2%
Traumatic Brain Injury	0	0%	0%	66	0.1%	0%	0	0%	0%	66	0.1%	0%
Visual Impairment	0	0%	0%	185	0.2%	0%	0	0%	0%	175	0.2%	0%

Data Source: CALPADS 8.1 FALL 1 Certified Report. This information was submitted by local educational agencies (LEAs) and charter schools to the California Department of Education (CDE) as part of the annual Fall 1 data submission in the California Longitudinal Pupil Achievement Data System (CALPADS).

EXHIBIT 4

Aggregate by School

Term: Spring 2022-2023
District: Learning by Design Charter

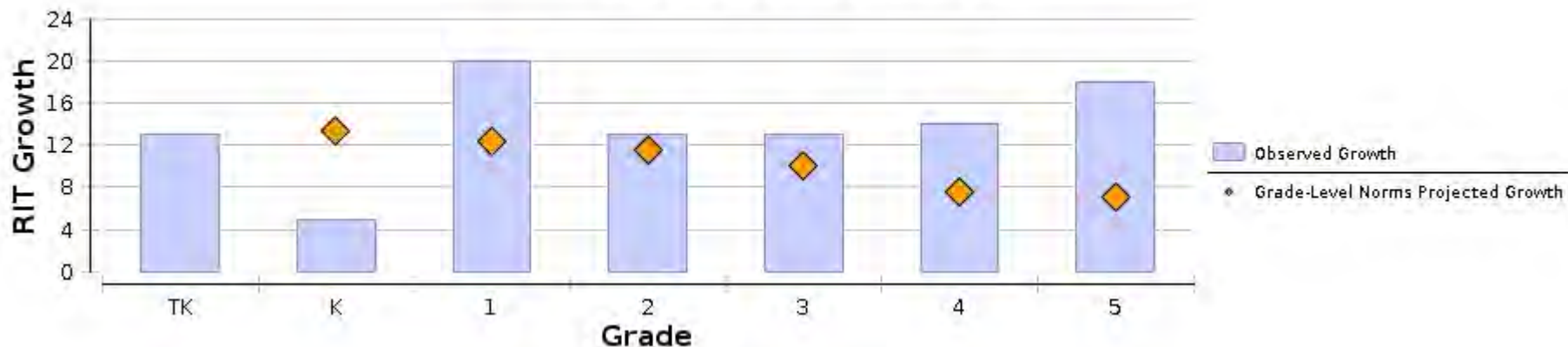
Norms Reference Data: 2025 Norms.
Growth Comparison Period: Fall 2022 - Spring 2023
Weeks of Instruction: Start - 4 (Fall 2022)
End - 32 (Spring 2023)
Grouping: None
Small Group Display: Yes

Learning by Design Charter School

Language Arts:
Reading

		Comparison Periods								Growth Evaluated Against						
		Fall 2022			Spring 2023			Growth		Grade-Level Norms			Student Norms			
Grade (Spring 2023)	Total Number of Growth Events†	Mean RIT Score	Standard Deviation	Achievement Percentile	Mean RIT Score	Standard Deviation	Achievement Percentile	Observed Growth	Observed Growth SE	Projected School Growth	School Conditional Growth Index	School Conditional Growth Percentile	Number of Students With Growth Projections	Number of Students Who Met Their Growth Projection	Percentage of Students Who Met Growth Projection	Student Median Conditional Growth Percentile
2	13	164.5	11.3	23	177.1	12.1	30	13	2.8	11.5	0.28	61	13	6	46	44
3	16	166.8	16.4	2	180.2	17.1	7	13	2.9	10.0	0.86	80	16	8	50	51
4	12	175.2	14.9	1	189.3	11.1	8	14	4.2	7.6	1.70	96	12	9	75	83
5	13	175.9	21.3	1	193.7	24.0	5	18	4.7	7.0	2.67	99	13	10	77	83

Language Arts: Reading



Explanatory Notes

** Calculations not provided because students have no MAP results in at least one of the terms. The Growth Count is zero.

†Growth Count provided reflects students with MAP results in both the Start and End terms. Observed Growth calculation is based on that student data.

Aggregate by School

Term: Spring 2023-2024
District: Learning by Design Charter

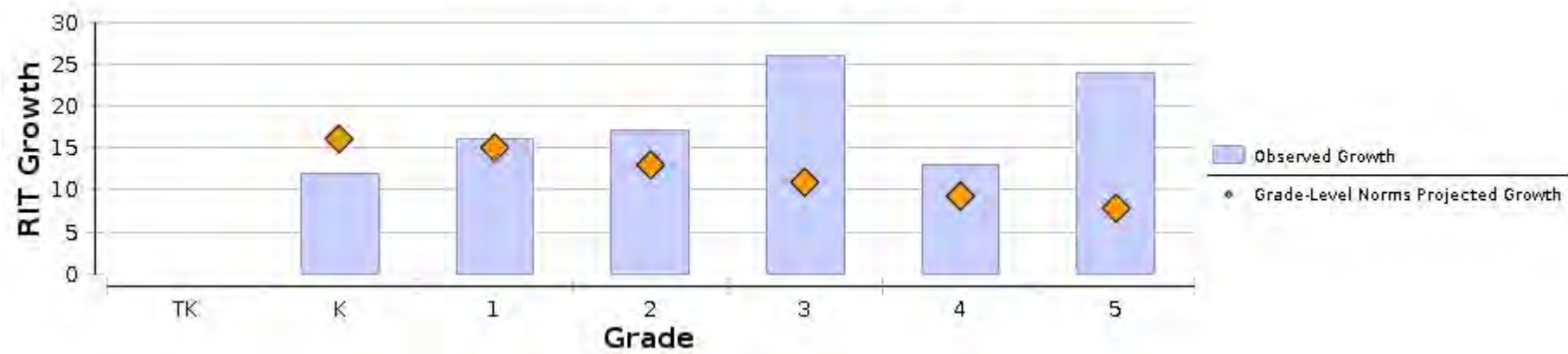
Norms Reference Data: 2020 Norms.
Growth Comparison Period: Fall 2023 - Spring 2024
Weeks of Instruction: Start - 4 (Fall 2023)
End - 32 (Spring 2024)
Grouping: None
Small Group Display: Yes

Learning by Design Charter School

Language Arts:
Reading

		Comparison Periods								Growth Evaluated Against						
		Fall 2023			Spring 2024			Growth		Grade-Level Norms			Student Norms			
Grade (Spring 2024)	Total Number of Growth Events†	Mean RIT Score	Standard Deviation	Achievement Percentile	Mean RIT Score	Standard Deviation	Achievement Percentile	Observed Growth	Observed Growth SE	Projected School Growth	School Conditional Growth Index	School Conditional Growth Percentile	Number of Students With Growth Projections	Number of Students Who Met Their Growth Projection	Percentage of Students Who Met Growth Projection	Student Median Conditional Growth Percentile
TK	13	177.7	14.6	11	203.9	9.4	83	26	4.9	10.9	7.22	99	13	11	85	94
3	20	176.6	12.0	1	189.3	14.6	1	13	4.2	9.3	1.64	95	20	9	45	41
4	13	178.9	17.1	1	202.9	22.3	12	24	4.5	7.8	8.17	99	13	10	77	96

Language Arts: Reading



Aggregate by School

Term: Spring 2024-2025
District: Learning by Design Charter

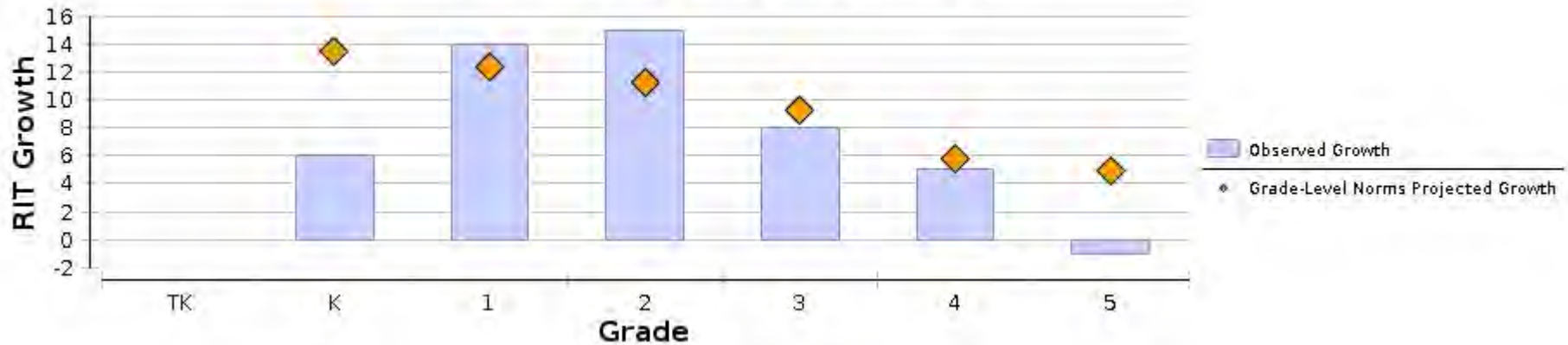
Norms Reference Data: 2025 Norms.
Growth Comparison Period: Fall 2024 - Spring 2025
Weeks of Instruction: Start - 4 (Fall 2024)
End - 32 (Spring 2025)
Grouping: None
Small Group Display: Yes

Learning by Design Charter School

Language Arts:
Reading

		Comparison Periods								Growth Evaluated Against							
		Fall 2024			Spring 2025			Growth		Grade-Level Norms			Student Norms				
Grade (Spring 2025)	Total Number of Growth Events†	Mean RIT Score	Standard Deviation	Achievement Percentile	Mean RIT Score	Standard Deviation	Achievement Percentile	Observed Growth	Observed Growth SE	Projected School Growth	School Conditional Growth Index	School Conditional Growth Percentile	Number of Students With Growth Projections	Number of Students Who Met Their Growth Projection	Percentage of Students Who Met Growth Projection	Student Median Conditional Growth Percentile	
K	10	139.4	11.2	60	145.7	5.9	13	6	3.6	13.5	-1.84	3	10	2	20	30	
1	14	147.2	14.0	9	160.9	13.8	16	14	1.7	12.4	0.41	66	14	6	43	46	
2	13	170.3	11.5	51	185.2	13.6	68	15	2.1	11.2	0.94	83	13	10	77	67	
3	14	177.4	12.0	20	185.4	11.5	18	8	2.2	9.3	-0.33	37	14	5	36	38	

Language Arts: Reading



Explanatory Notes

** Calculations not provided because students have no MAP results in at least one of the terms. The Growth Count is zero.

†Growth Count provided reflects students with MAP results in both the Start and End terms. Observed Growth calculation is based on that student data.

EXHIBIT 5

Aggregate by School

Term: Spring 2022-2023
District: Learning by Design Charter

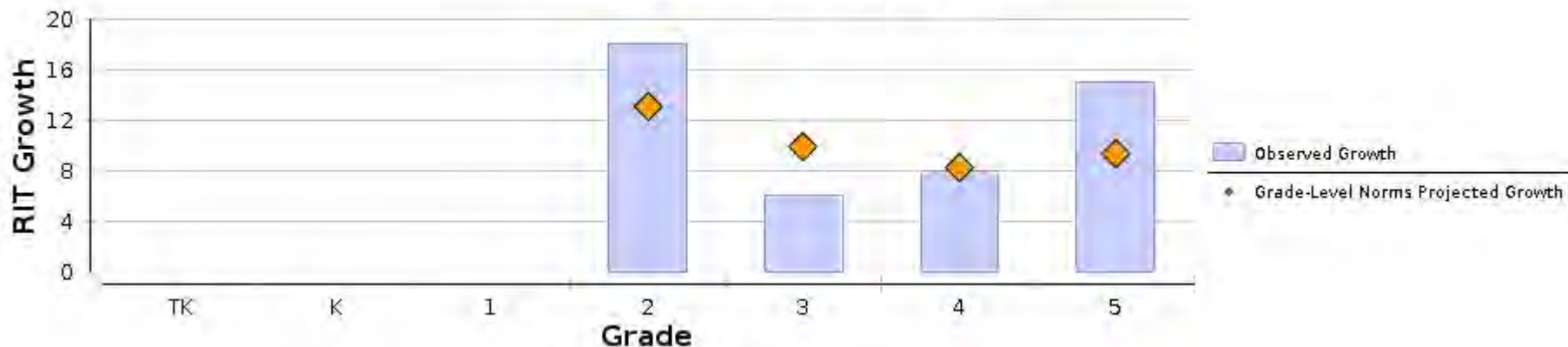
Norms Reference Data: 2025 Norms.
Growth Comparison Period: Fall 2022 - Spring 2023
Weeks of Instruction: Start - 4 (Fall 2022)
End - 32 (Spring 2023)
Grouping: None
Small Group Display: Yes

Learning by Design Charter School

Language Arts:
Language Usage

Language Usage		Comparison Periods								Growth Evaluated Against							
Grade (Spring 2023)	Total Number of Growth Events†	Fall 2022			Spring 2023			Growth		Grade-Level Norms			Student Norms				
		Mean RIT Score	Standard Deviation	Achievement Percentile	Mean RIT Score	Standard Deviation	Achievement Percentile	Observed Growth	Observed Growth SE	Projected School Growth	School Conditional Growth Index	School Conditional Growth Percentile	Number of Students With Growth Projections	Number of Students Who Met Their Growth Projection	Percentage of Students Who Met Growth Projection	Student Median Conditional Growth Percentile	
2	13	158.8	15.1	6	176.6	19.1	23	18	3.6	13.0	1.14	87	13	9	69	52	
3	18	171.9	18.0	7	177.6	15.7	4	6	1.6	9.9	-0.84	20	18	4	22	26	
4	14	180.1	18.8	4	187.8	14.6	7	8	3.1	8.2	-0.11	46	14	8	57	56	
5	14	180.1	18.8	4	187.8	14.6	7	8	3.1	8.2	-0.11	46	14	8	57	56	

Language Arts: Language Usage



Explanatory Notes

** Calculations not provided because students have no MAP results in at least one of the terms. The Growth Count is zero.

†Growth Count provided reflects students with MAP results in both the Start and End terms. Observed Growth calculation is based on that student data.

EXHIBIT 6

Learning by Design Charter

765

Resident Schools Data Set

Academic Performance Medians- English Language Arts

2021-2022 English Language Arts (Grades 3-8 and Grade 11) Academic Indicator Medians - CA School Dashboard Indicator-All Students						
School Name	Percent of Students Enrolled in Magnet Gifted (If Applicable)	Student Group	Number of Students with Scores	Charter (DFS)	Charter Status Level	Charter to Resident Comparison (DFS)
Learning by Design Charter	N/A	All Students	48	-89.4	Very Low	
Resident Schools	Percent of Students Enrolled in Magnet Gifted (If Applicable)	Student Group	Number of Students with Scores	Resident Schools Median (DFS)	Resident Schools Median Status Level	Charter to Resident Comparison (DFS)
Fifty-Ninth Street Elementary	N/A	All Students	103	-92.3	Very Low	Higher
Raymond Avenue Elementary	N/A	All Students	178	-55.9	Low	Lower
Seventy-Fourth Street Elementary	27%	All Students	149	-40.7	Low	Lower
Resident Schools Median	N/A	All Students	430	-55.9	Low	Lower

Data Sources: California School 2022 Dashboard Research data files. 2024-2025 Resident Schools used for comparison. 2021-2022 did not report Color, Change, or Change Level.

Learning by Design Charter 2021-2022 English Language Arts (Grades 3-8 and Grade 11) Academic Indicator Medians - CA School Dashboard Indicator All Students and Numerically Significant Student Groups							
Student Group	Number of Students with Scores	Charter Status Level	Charter (DFS)	Resident Schools Number of Students with Scores	Resident Schools Median Status Level	Resident Schools Median (DFS)	Charter to Resident Schools Median Comparison (DFS)
All Students	48	Very Low	-89.4	430	Low	-55.9	Lower
Black or African American	36	Very Low	-102.6	124	Low	-76.7	Lower
Socioeconomically Disadvantaged	46	Very Low	-99.3	407	Low	-57.2	Lower

Data Sources: California School 2022 Dashboard Research data files. 2024-2025 Resident Schools used for comparison.

2022-2023 English Language Arts (Grades 3-8 and Grade 11) Academic Indicator Medians - CA School Dashboard Indicator-All Students						766
School Name	Percent of Students Enrolled in Magnet Gifted (If Applicable)	Student Group	Number of Students with Scores	Charter Performance Level (color)	Charter (DFS)	Charter to Resident Comparison (DFS)
Learning by Design Charter	N/A	All Students	51	Yellow	-67.4	
Resident Schools	Percent of Students Enrolled in Magnet Gifted (If Applicable)	Student Group	Number of Students with Scores	Resident Schools Median Color	Resident Schools Median (DFS)	Charter to Resident Comparison (DFS)
Fifty-Ninth Street Elementary	N/A	All Students	88	Orange	-86.1	Higher
Raymond Avenue Elementary	N/A	All Students	193	Orange	-54.4	Lower
Seventy-Fourth Street Elementary	27%	All Students	149	Orange	-51.7	Lower
Resident Schools Median	N/A	All Students	430	Orange	-54.4	Lower

Data Sources: California School 2023 Dashboard Research data files. 2024-2025 Resident Schools used for comparison.

Learning by Design Charter 2022-2023 English Language Arts (Grades 3-8 and Grade 11) Academic Indicator Medians - CA School Dashboard Indicator All Students and Numerically Significant Student Groups							
Student Group	Number of Students with Scores	Charter Color	Charter (DFS)	Resident Schools Number of Students with Scores	Resident Schools Median Color	Resident Schools Median (DFS)	Charter to Resident Schools Median Comparison (DFS)
All Students	51	Yellow	-67.4	430	Orange	-54.4	Lower
Black or African American	34	Orange	-70.1	134	Orange	-83.2	Higher
Socioeconomically Disadvantaged	45	Orange	-77.6	405	Orange	-55.4	Lower

Data Sources: California School 2023 Dashboard Research data files. 2024-2025 Resident Schools used for comparison.

2023-2024 English Language Arts (Grades 3-8 and Grade 11) Academic Indicator Medians - CA School Dashboard Indicator-All Students						
School Name	Percent of Students Enrolled in Magnet Gifted (If Applicable)	Student Group	Number of Students with Scores	Charter Performance Level (color)	Charter (DFS)	Charter to Resident Comparison (DFS)
Learning by Design Charter	N/A	All Students	54	Yellow	-11.9	

2023-2024 English Language Arts (Grades 3-8 and Grade 11) Academic Indicator Medians - CA School Dashboard Indicator-All Students						767
School Name	Percent of Students Enrolled in Magnet Gifted (If Applicable)	Student Group	Number of Students with Scores	Charter Performance Level (color)	Charter (DFS)	Charter to Resident Comparison (DFS)
Resident Schools	Percent of Students Enrolled in Magnet Gifted (If Applicable)	Student Group	Number of Students with Scores	Resident Schools Median Color	Resident Schools Median (DFS)	Charter to Resident Comparison (DFS)
Fifty-Ninth Street Elementary	N/A	All Students	98	Orange	-73.6	Higher
Raymond Avenue Elementary	N/A	All Students	195	Yellow	-48.1	Higher
Seventy-Fourth Street Elementary	27%	All Students	161	Yellow	-47.1	Higher
Resident Schools Median	N/A	All Students	454	Yellow	-48.1	Higher

Data Sources: California School 2024 Dashboard Research data files. 2024-2025 Resident Schools used for comparison.

Learning by Design Charter 2023-2024 English Language Arts (Grades 3-8 and Grade 11) Academic Indicator Medians - CA School Dashboard Indicator							
All Students and Numerically Significant Student Groups							
Student Group	Number of Students with Scores	Charter Color	Charter (DFS)	Resident Schools Number of Students with Scores	Resident Schools Median Color	Resident Schools Median (DFS)	Charter to Resident Schools Median Comparison (DFS)
All Students	54	Yellow	-11.9	454	Yellow	-48.1	Higher
Socioeconomically Disadvantaged	45	Yellow	-18.7	425	Yellow	-49.7	Higher

Data Sources: California School 2024 Dashboard Research data files. 2024-2025 Resident Schools used for comparison.